A man started a large fire on the back acreage of his expansive rural property, which borders a fertilizer plant. A witness told police that the man started the fire to clear brush from his property. As a result, the man was charged with violating a state statute making it a crime to "recklessly create a risk of widespread injury or damage in the employment of fire, explosives, or other dangerous means." At trial, the prosecutor called the witness who testified that she watched the man set the fire less than 50 yards from the fertilizer plant. The witness also unexpectedly testified that, while starting the fire, the man stated that he intended it to spread to the fertilizer plant because he hated the plant owner.

The jurisdiction has adopted the Model Penal Code with regard to mens rea.

If the jury believes the witness's testimony, can the man be properly convicted based upon the evidence presented at trial?

A. No, because the testimony established a purposeful rather than reckless mental state, which is required for conviction.

B. No, because the man started the fire on his own property.

C. Yes, because the man acted purposely.

D. Yes, because the witness described a reckless mental state.

Explanation:

The **Model Penal Code** utilizes the following **hierarchy** of **culpable mental states**:

purposely – acting with a conscious objective to engage in conduct or to cause a particular result

knowingly – acting with awareness that conduct is of the nature required by a crime or with practical certainty that conduct will cause a particular result

recklessly – acting with a conscious disregard of a substantial and unjustifiable risk amounting to a gross deviation from the standard of conduct a law-abiding citizen would exhibit

negligently – acting with a lack of awareness of a substantial and unjustifiable risk amounting to a gross deviation from the standard of care a reasonable person would exhibit

When an **offense requires** proof that the defendant acted with a **particular mental state** (ie, mens rea), evidence that the defendant actually possessed a **more culpable mental state** will **satisfy the mens rea requirement**. That is because a more culpable mental state naturally encompasses a lesser one.

Here, the man was charged with *recklessly* creating a risk of widespread injury or damage by starting a large fire near a fertilizer plant. The witness's testimony at trial showed that the man *purposely* created the risk of widespread injury or damage because he intended for the fire to spread to the fertilizer plant **(Choice D)**. Since purposely is a more culpable mental state than recklessly, the man can be properly convicted **(Choice A)**.

(Choice B) The statute provides no protection for a defendant who created the risk of widespread injury or damage from his own property. Therefore, this is not a basis to acquit the man.

Educational objective:

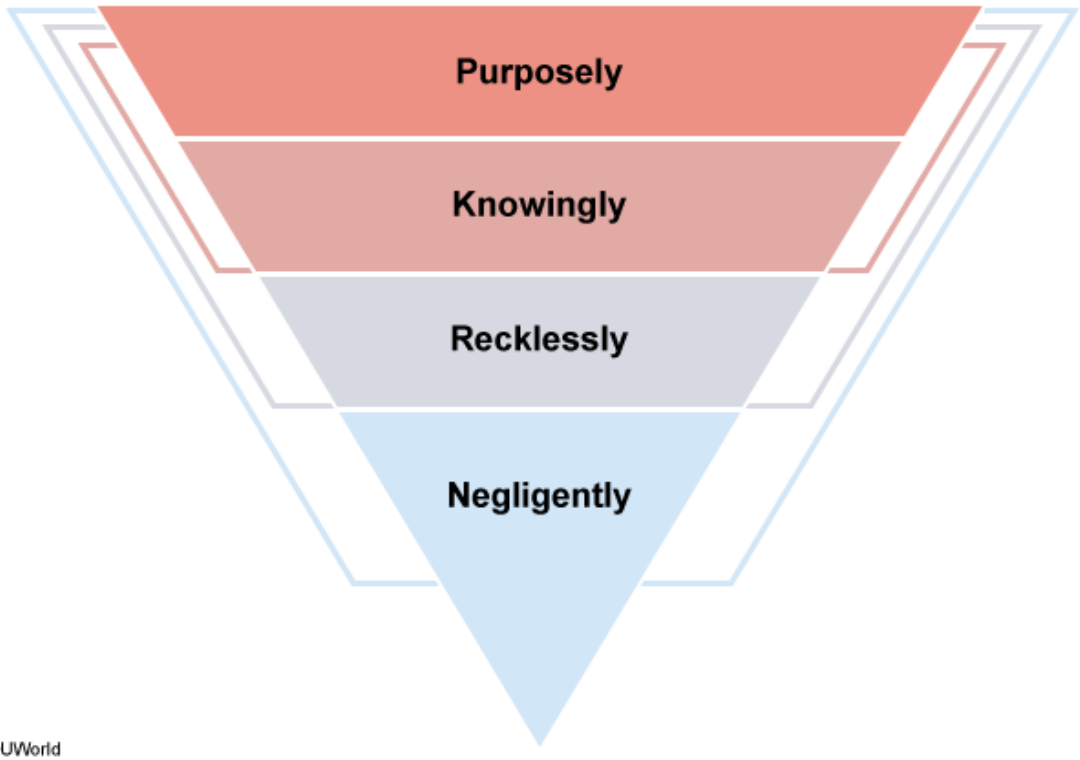
When an offense requires that the defendant acted with a particular mental state, evidence that the defendant actually possessed a more culpable mental state will satisfy the mens rea requirement for the offense.

References

Model Penal Code § 2.02(5) (substitutes for negligence, recklessness, and knowledge).

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Substitution of culpable mental states
(higher mental state satisfies lower mental state)



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In which of the following situations would a court applying common law doctrine be most likely to convict a defendant of the crime charged, despite the defendant's mistake?

A. The defendant was charged with assault with intent to rape a woman who he mistakenly believed had agreed to have sexual intercourse with him.

B. The defendant was charged with bigamy. He married his neighbor four years after her husband was reported missing at sea. The rescued husband returns alive. A state statute provides that a person is presumed dead after five years of unexplained absence. The defendant believed the statutory period was three years.

C. The defendant was charged with burglary. He had broken into an office where he once worked and had taken a typewriter that he erroneously believed had been given to him before he was fired.

D. The defendant was charged with murder after he shot and killed a man who had extorted money from him. The defendant mistakenly thought the victim had raised his hand to shoot when, in fact, the victim was shaking his fist at the defendant to frighten him.

Explanation:

Mistake of law v. Mistake of fact

	Definition	**Applicability**
Mistake of law	Defendant mistakenly believes conduct not prohibited by law	No defense unless: Law prohibiting conduct was unavailable Defendant reasonably relied on invalid law Mistake negates mens rea*
Mistake of fact	Defendant is mistaken as to a matter of fact	When mistake negates mens rea: Specific intent – defense if honest mistake General intent & malice – defense if honest & reasonable mistake Strict liability – no defense

*Mens rea – state of mind necessary to be guilty of criminal offense.

Mistake of fact is a **defense** to criminal liability for:

specific intent crimes – when the defendant's **honest mistake**, even if unreasonable, negates the requisite mens rea *and*

general intent crimes – when the defendant's **honest and *reasonable* mistake** negates the requisite mens rea.

But **mistake of law** is **almost never a defense** to criminal liability. As a result, the court would likely convict the defendant of bigamy—ie, marrying someone who already has a living spouse—despite his mistaken belief that the neighbor's husband was presumed by law to be dead.

(Choice A) Assault with intent to rape requires proof that the defendant specifically intended to commit rape—at common law, sexual intercourse with a woman (other than the defendant's wife) against her will by force or threat of force. Since the defendant's mistaken belief that the woman had agreed to sexual intercourse shows that he did not intend to rape her, he would not be convicted of assault with intent to rape.

(Choice C) Common law burglary is the breaking and entering of another's dwelling at night with the specific intent to commit a felony therein. Here, the defendant's mistaken belief that the typewriter was his negates the necessary intent to commit a felony (no intent to steal). Therefore, he would not be convicted of burglary.

(Choice D) Common law murder is an unlawful killing committed with malice aforethought. But murder may be reduced to voluntary manslaughter when, as here, the defendant mistakenly believed that deadly force was necessary for self-defense. So the defendant would likely be convicted of voluntary manslaughter—not murder.

Educational objective:

An honest mistake of fact is a defense to specific intent crimes (even if *unreasonable*) and general intent crimes (if *reasonable*) when it negates the requisite mens rea. But mistake of law is almost never a defense.

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A defendant is charged with murder. The evidence shows that the defendant pointed a gun at the victim and pulled the trigger. The gun discharged, killing the victim. The gun belonged to the victim. At trial, the defendant testified that the victim told her, and she believed, that the "gun" was a stage prop that could fire only blanks, and that she fired the gun as part of rehearsing a play with the victim at his house.

If the jury believes the defendant's testimony and finds that her mistaken belief that the gun was a prop was reasonable, what verdict should the jury render?

A. Guilty of murder.

B. Guilty of manslaughter.

C. Guilty of either murder or manslaughter.

D. Not guilty of murder or manslaughter

Explanation:

Murder is an **unlawful killing** committed with **malice aforethought**, which exists if the defendant has any of the following mental states:

Intent to kill

Intent to inflict serious bodily injury

Reckless indifference to an unjustifiably high risk to human life (ie, depraved-heart murder)

Intent to commit an inherently dangerous felony (ie, felony murder rule)

But **mistake of fact** is a **defense** to murder—a malice crime—when the defendant's **honest, *reasonable*, but mistaken belief** negates the required mental state (ie, mens rea).

Here, the defendant pointed a gun at the victim and pulled the trigger. But the defendant testified that she thought that the gun was a stage prop that could only fire blanks. If the jury believes the defendant's testimony and finds that her mistaken belief was reasonable, then it should find her *not guilty* of murder. That is because the mistake would negate each type of malice aforethought **(Choices A & C)**.

A reasonable mistake of fact can also serve as a defense to **manslaughter**—a general intent crime—when the mistake negates the required mens rea. Manslaughter can be either:

voluntary – an **intentional** killing mitigated by adequate provocation (ie, heat-of-passion killing) or other factors (eg, imperfect self-defense) *or*

involuntary – an **unintentional** killing committed during an unlawful act or with **criminal negligence** (ie, the substantial failure to act as a reasonable person would act under similar circumstances).

If the jury believes the defendant's testimony, it cannot find that she intentionally killed the victim (no voluntary manslaughter). And if the jury finds that the defendant's mistaken belief that the gun was a prop was reasonable, it cannot find that the killing was committed with criminal negligence (no involuntary manslaughter). Therefore, the jury should not find the defendant guilty of manslaughter **(Choices B & C)**.

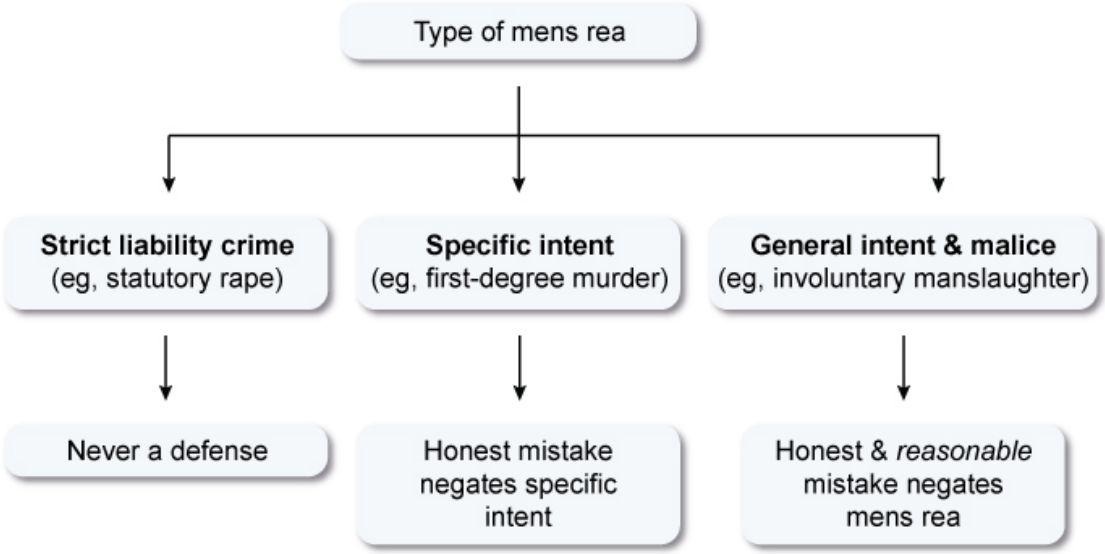
Educational objective:

Mistake of fact is a defense to murder and manslaughter (ie, malice and general intent crimes) when the defendant's honest, reasonable, but mistaken belief negates the required mental state.

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Applicability of mistake-of-fact defense



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A husband and wife took their 12-year-old son to a political rally in an auditorium to hear a controversial United States senator speak. The speaker was late, and the wife stepped outside the auditorium to smoke a cigarette. While there, she saw a man placing what she believed to be a bomb against the back wall of the auditorium. She went back inside and told her husband what she had seen. Without alerting anyone, they took their son and left. Some 20 minutes later, the bomb exploded, killing eight persons and injuring 50.

In the jurisdiction, murder in the first degree is defined as an intentional homicide committed with premeditation and deliberation; murder in the second degree is defined as all other murder at common law; and manslaughter is defined as either a homicide in the heat of passion arising from adequate provocation or a homicide caused by gross negligence or reckless indifference to consequence.

As to the deaths of the eight persons, what crime, if any, did the wife commit?

A. Manslaughter.

B. Murder in the first degree.

C. Murder in the second degree.

D. No crime.

Explanation:

To commit **criminal homicide**, a person must unlawfully kill another (actus reus) with the requisite mental state (mens rea). Criminal liability typically stems from a voluntary act—an overt movement over which the defendant has conscious control (eg, deliberately pulling a gun's trigger). But criminal liability can also arise from a **failure to act** (ie, omission) if the defendant had a **legal duty** to act and could have reasonably done so. A legal duty to act can arise under any of the following circumstances:

The defendant and the victim are in a **special relationship** (eg, parent/child, spouses).

The defendant assumed the victim's care by rendering aid.

The defendant's conduct created the risk of harm to the victim.

A statute imposes a duty.

A contract imposes a duty.

Here, the wife saw a man place what appeared to be a bomb in the auditorium. She told her husband, and they left with their son. The bomb went off shortly thereafter and killed eight people. Although the wife had a legal duty to protect her husband and son from the bomb based on their special relationship, she had no legal duty to warn anyone else. Therefore, she did not commit any degree of criminal homicide—first-degree murder, second-degree murder, or manslaughter **(Choices A, B, & C)**.

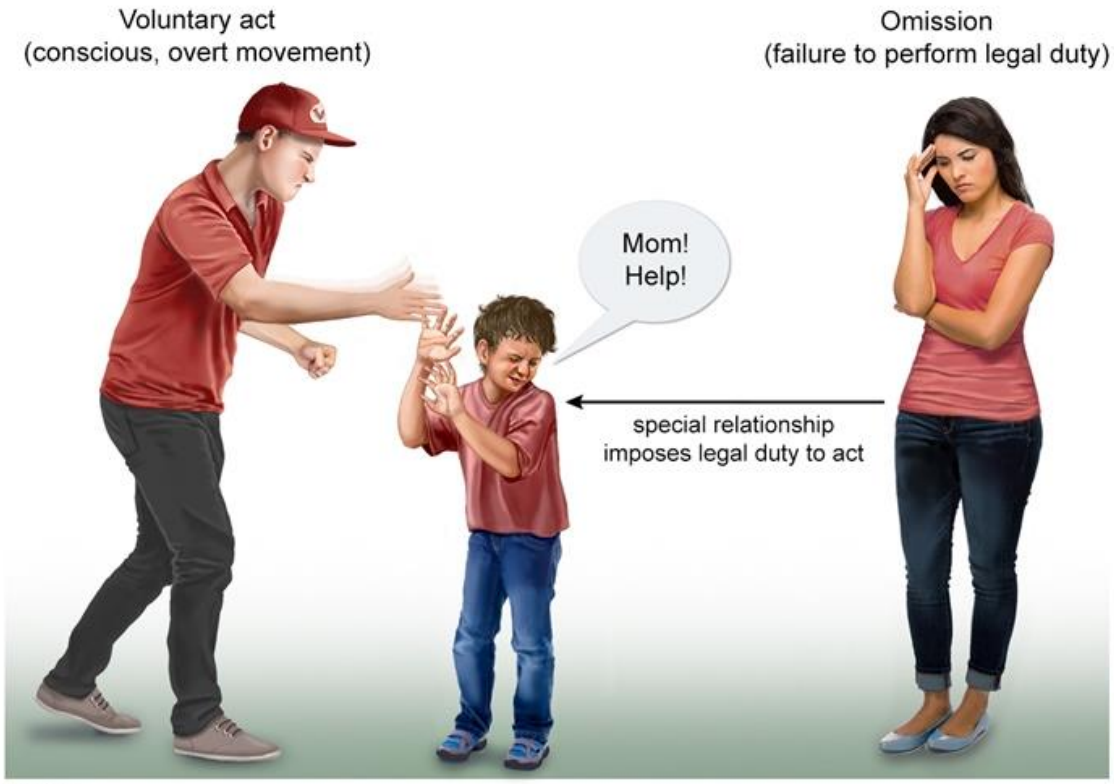
Educational objective:

A person is not criminally liable for failing to act unless he/she had a legal duty to do so. A legal duty can be based on (1) a special relationship, (2) assumption of care, (3) creation of the risk of harm, (4) a statute, or (5) a contract.

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Actus reus



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A high school student's teacher told the student that she was going to receive a failing grade in history, which would prevent her from graduating. Furious, she reported to the principal that the teacher had fondled her, and he was fired. A year later, still unable to get work because of the scandal, the teacher committed suicide. The student, remorseful, confessed that her accusation had been false.

If the student is charged with manslaughter, what is her best defense?

A. She acted under extreme emotional distress.

B. She committed no act that proximately caused the teacher's death.

C. She did not act with malice.

D. She did not intend to cause the teacher's death.

Explanation:

Criminal causation

Actual (factual) cause	Single cause – but for defendant's conduct, crime would not have occurred Multiple causes – defendant's conduct was substantial factor causing crime
Proximate (legal) cause	Crime was natural, probable & foreseeable consequence of defendant's conduct

There are two types of **manslaughter**:

Voluntary – an *intentional* killing mitigated by adequate provocation (ie, heat-of-passion killing) or, in some jurisdictions, other mitigating factors (eg, imperfect self-defense)

Involuntary – an *unintentional* killing committed with criminal negligence or during an unlawful act (eg, misdemeanor manslaughter)

A conviction of either crime requires proof that the **defendant's conduct** was both the **actual ("but for") cause** *and* **proximate (foreseeable) cause** of the victim's death.

Here, the teacher committed suicide after the student falsely accused him of fondling her. The student would likely be charged with *involuntary* manslaughter since there is no evidence that she intended to cause the teacher's death **(Choice D)**. And though the teacher would not have died but for the student's accusation (actual causation), the student is not guilty of manslaughter if she committed no act that *proximately* caused that death—ie, if the suicide was unforeseeable. Therefore, that is the student's best defense.

(Choice A) Extreme emotional distress is not a defense to a crime—but it can be a mitigating factor at sentencing. Here, however, the student's distress at her failing grade would hardly mitigate a false sexual-misconduct report.

(Choice C) Malice aforethought is a requirement for murder—not manslaughter.

Educational objective:

A manslaughter conviction requires proof that the defendant's conduct was both the actual ("but for") *and* proximate (foreseeable) cause of the victim's death.

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A woman experiencing homelessness broke into the basement of a hotel and fell asleep. She was awakened by a security guard, who demanded that she leave. As the woman was leaving, she cursed the security guard. Angered, the guard began to beat the woman on her head with his flashlight. After the second blow, the woman grabbed a fire extinguisher and sprayed the guard in his face, causing him to lose his sight in one eye.

The jurisdiction defines aggravated assault as assault with intent to cause serious bodily injury.

The crimes below are listed in descending order of seriousness. What is the most serious crime of which the woman could be properly convicted?

A. Aggravated assault.

B. Burglary.

C. Assault.

D. Trespass.

Explanation:

Self-defense

(justification for criminal conduct)

	General requirements	**Duty to retreat**
Nondeadly force	Actual & reasonable belief of imminent *unlawful* harm Force reasonably necessary to prevent harm Not initial aggressor	No duty to retreat
Deadly force	Actual & reasonable belief of imminent *serious harm* or *death* Deadly force necessary to prevent harm Not initial aggressor	Majority rule: No duty to retreat Minority rule: Duty when safe retreat available *unless* inside one's home

Criminal trespass is an **intentional entry** upon another's property **without permission or legal privilege**. Persons are privileged to enter premises held open to the public (eg, a hotel lobby), but not other areas of the building (eg, a hotel basement). Since the woman had no such privilege or permission when she broke into the hotel's basement, she could be convicted of criminal trespass. And this could be elevated to **burglary** had the woman entered the building with the **specific intent to commit a crime** therein. But since she entered the hotel to sleep (not to commit a crime), no burglary occurred **(Choice B)**.

Assault occurs when a person (1) attempts to commit a battery *or* (2) intentionally **places another in apprehension of imminent harmful** or offensive **contact**. Here, the woman may have committed an assault since she likely placed the security guard in apprehension of imminent harm before spraying his face with a fire extinguisher. And this could be elevated to aggravated assault if she intended to cause him serious bodily injury. But her conduct would be a privileged act of **self-defense** since:

she **actually and reasonably believed** that force was **necessary to protect herself** from the security guard's imminent use of unlawful force (beating her head with a flashlight) *and*

she used **no more force than was reasonably necessary** to resist the security guard's unlawful force.

Therefore, she could not be convicted of assault or aggravated assault **(Choices A & C)**.

Educational objective:

Criminal trespass is an intentional entry upon another's property without permission or legal privilege. And self-defense is a defense to assault if a person (1) actually and reasonably believed that force was necessary to protect him/herself from another's imminent use of unlawful force and (2) used no more force than necessary to do so.

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State Y employs the American Law Institute/Model Penal Code (MPC) test for insanity, and requires the state to prove sanity, when it is in issue, beyond a reasonable doubt.

At the defendant's trial for murder, he pleaded insanity. The state put on an expert psychiatrist who had examined the defendant. He testified that, in his opinion, the defendant was sane at the time of the murder. The defendant's attorney did not introduce expert testimony on the question of sanity. Rather, he presented lay witnesses who testified that, in their opinion, the defendant was insane at the time of the murder. At the end of the trial, each side moves for a directed verdict on the question of sanity.

How may the judge rule?

A. She may grant a directed verdict for the defense if she believes that the jury could not find the prosecution to have proved sanity beyond a reasonable doubt.

B. She may grant a directed verdict for the prosecution if she believes that the defendant's witnesses on the insanity question are not believable.

C. She may grant a directed verdict for the prosecution if she is convinced by the prosecution's experts that the defendant was sane beyond a reasonable doubt.

D. She may not grant a directed verdict for the defense, because the state had expert testimony and the defense only lay witnesses.

Explanation:

Insanity defense

Burden of production	Defendant must produce some evidence that he/she was insane under applicable test when criminal act occurred
Burden of persuasion	Majority rule – defendant must prove *insanity* by a preponderance of the evidence Minority (MPC) rule – prosecution must prove *sanity* beyond a reasonable doubt

MPC = Model Penal Code

All defendants are presumed sane. But a defendant may put his/her mental state at issue by producing some evidence that he/she was legally insane at the time of the criminal act. Once this occurs, this jurisdiction—and others that employ the **Model Penal Code** (MPC) **test for insanity**—place the burden on the **prosecution to prove** sanity **beyond a reasonable doubt**. If the prosecution **fails to present legally sufficient evidence** to meet that burden—ie, no reasonable jury could find that sanity was proved beyond a reasonable doubt—then the judge may grant a **directed verdict for the defense**.

(Choices B & C) A judge may only grant a directed verdict for a party if the judge determines that no reasonable jury could find in the other party's favor. The judge's personal belief regarding the credibility of witnesses is irrelevant.

(Choice D) Expert testimony need not be weighed more heavily than lay (ie, nonexpert) witness testimony. So the fact that the defense had only lay witnesses does not preclude a directed verdict for the defense (or ensure a directed verdict for the prosecution).

Educational objective:

Under the Model Penal Code test for insanity, the prosecution has the burden of proving the defendant's sanity beyond a reasonable doubt once a defendant has put his/her sanity at issue.

References

Model Penal Code § 4.01 (2019) (mental disease or defect excluding responsibility).

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A man, despondent and angry over losing his job, was contemplating suicide. With his revolver in his pocket, he went to a bar and drank until he was very intoxicated. He overheard a customer on the next barstool telling the bartender how it was necessary for companies to downsize in order to keep the economy strong. The man turned to the customer and said, "Why don't you shut the hell up." The customer responded, "This is a free country, and I can say what I want," all the while shaking his finger at the man. The man became enraged, snatched his revolver from his pocket, and shot the customer, killing him.

A state statute defines first-degree murder as "knowingly causing the death of another person after deliberation upon the matter." Deliberation is defined as "cool reflection for any length of time, no matter how brief." Second-degree murder is defined as "knowingly causing the death of another person." Manslaughter is defined as at common law.

What crime did the man commit?

A. First-degree murder, because deliberation can take place in an instant.
B. First-degree murder, because he contemplated taking a human life before becoming intoxicated.
C. Manslaughter, because there was a reasonable explanation for his becoming enraged.
D. Second-degree murder, because he knowingly caused the customer's death without deliberation.

Explanation:

Intoxication

Voluntary Deliberate ingestion of substance that person knew or should have known has intoxicating effects

Involuntary Unknowing or forcible ingestion of intoxicating substance

In this state, criminal homicide—the killing of another with the requisite mens rea (ie, state of mind)— is divided into three levels:

First-degree murder – knowingly killing another after deliberation (ie, cool reflection for any length of time, no matter how brief)

Second-degree murder – knowingly killing another (ie, acting with substantial certainty that death will occur)

Common law manslaughter – intentionally killing another in the heat of passion upon adequate provocation or in imperfect self-defense (voluntary manslaughter) *or* unintentionally killing another with criminal negligence or during an unlawful act (involuntary manslaughter)

Voluntary intoxication is the deliberate ingestion of a substance that a person knows or should know has intoxicating effects. This is a **defense to specific intent crimes** if the intoxication prevented the person from forming such intent. First-degree murder is a specific intent crime since it requires a person to deliberate upon the killing, so voluntary intoxication is a defense. But it is **not a defense** to second-degree murder since that crime requires a **lesser mental state** (ie, knowledge).

Here, the state statute establishes that deliberation can take place instantly. But the man's intoxication prevented him from deliberating upon the killing since he killed in a rage—not after cool reflection. Therefore, he did not commit first-degree murder **(Choice A)**. However, the man *knowingly* killed the customer since it was substantially certain that the customer would die from being shot at close range. And since his intoxication did not negate that knowledge, the man still committed second-degree murder.

(Choice B) Voluntary intoxication is not a defense to first-degree murder when the defendant contemplated killing *another* person before becoming intoxicated. Here, the man contemplated killing *himself* (not another) before becoming intoxicated, so voluntary intoxication is an available defense.

(Choice C) Voluntary manslaughter is the intentional killing of another in response to adequate provocation—ie, conduct that would cause a reasonable person to lose control (more than mere words). Here, the man became enraged when the customer said, "This is a

free country, and I can say what I want" while shaking his finger. Since that would not provoke a reasonable person to kill, the man did not commit voluntary manslaughter.

Educational objective:

Voluntary intoxication—deliberately ingesting a substance that a person knows or should know has intoxicating effects—is a defense to specific intent crimes (eg, first-degree murder) when the intoxication prevented the person from forming such intent.

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One evening, a man had several drinks and then started to drive home. As he was proceeding down Main Boulevard, an automobile pulled out of a side street to his right. The man's car struck this automobile broadside. The driver of the other car was killed as a result of the collision. A breath-analysis test administered after the accident showed that the man satisfied the legal definition of intoxication.

If the man is prosecuted for manslaughter, which of the following arguments would give him the best chance for acquittal?

A. Because of his intoxication, the man lacked the mens rea needed for manslaughter.
B. Driving while intoxicated requires no mens rea and therefore cannot be the basis for misdemeanor manslaughter.
C. The collision would have occurred even if the man had not been intoxicated.
D. The other driver was contributorily negligent.

Explanation:

Criminal causation

Actual (factual) cause	Single cause – but for defendant's conduct, crime would not have occurred Multiple causes – defendant's conduct was substantial factor causing crime
Proximate (legal) cause	Crime was natural, probable & foreseeable consequence of defendant's conduct

There are two types of **manslaughter**:

Voluntary – an intentional killing mitigated by adequate provocation (ie, heat of passion) or, in some jurisdictions, other mitigating factors (eg, imperfect self-defense)

Involuntary – an unintentional killing that is caused by criminal negligence or occurs during the commission of an unlawful act (eg, misdemeanor manslaughter)

But to be convicted of manslaughter, the **defendant's conduct** must be the **actual (ie, but for) cause** *and* **proximate (ie, foreseeable) cause** of the **specified result**—the victim's death.

Here, the man's car struck a driver's vehicle, and the driver died as a result of the collision. The man would likely be charged with involuntary manslaughter since the collision occurred when he was driving under the influence of alcohol. But his unlawful act would not be the *actual* cause of the driver's death if the collision would have occurred even if the man had not been intoxicated. And since actual causation is required for a manslaughter conviction, this is the man's strong argument for acquittal.

(Choice A) Voluntary intoxication is a defense to a specific intent crime if the intoxication negated the requisite mens rea. But it is no defense to lesser intent crimes—eg, involuntary manslaughter stemming from criminal negligence (as seen here).

(Choice B) Any criminal act that is malum in se (ie, inherently wrong)—including driving while intoxicated—can serve as a basis for misdemeanor manslaughter, even if the criminal act requires no mens rea.

(Choice D) Even if the driver's negligence contributed to his death, the man could still be convicted of manslaughter if his drunk driving was a substantial factor in causing that death.

Educational objective:

Crimes that require a specific result (eg, homicide) require proof that the defendant's conduct was both the actual (ie, but for) and proximate (ie, foreseeable) cause of that result.

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A man decided to steal a car he saw parked on a hill. After he got in and started the engine, the car began rolling down the hill. The man quickly discovered that the car's brakes did not work. He crashed through the window of a store located at the bottom of the hill.

The man was charged with larceny of the car and with the crime of malicious damage to property. At trial, the judge instructed the jury that if the jury found both that the man was guilty of larceny of the car and that the damage to the store was the result of that larceny, then it should also find him guilty of malicious damage to property.

The man was convicted on both counts. On appeal, he argued that the conviction for malicious damage to property should be reversed because the instruction was not a correct statement of the law.

Should the man's conviction be affirmed?

A. No, because it would violate double jeopardy to convict the man of two crimes for a single act.

B. No, because the instruction wrongly described the necessary mental state.

C. Yes, because he was committing a felony.

D. Yes, because his intent to steal the car provides the necessary mental element.

Explanation:

Larceny occurs when a defendant unlawfully takes and carries away another's property with the **specific intent to permanently deprive** that person of the property (ie, steal). In contrast, **malicious damage to property** occurs when a defendant damages another's property with malice. **Malice** requires proof of either:

knowledge – practical certainty that one's act will cause a particular result *or*

recklessness – conscious disregard of a substantial and unjustifiable risk of harm.

Here, the man committed larceny when he intentionally stole the car. But his intent to steal does *not* provide the necessary mental element for malicious damage to property **(Choice D)**. That is because he could not have known with practical certainty, or consciously disregarded the risk, that stealing the car would cause damage to the store—especially since he had no idea that the car lacked working brakes. And since the jury instruction left out the malice requirement, the man's conviction for malicious damage to property should be reversed.

(Choice A) Double jeopardy prohibits multiple punishments for the same offense. Two crimes constitute the same offense when (1) both crimes have identical elements or (2) every element of one crime is an element of the other crime. But since larceny and malicious damage to property have distinct elements, they are separate offenses. As a result, convicting the man of both crimes would not violate double jeopardy.

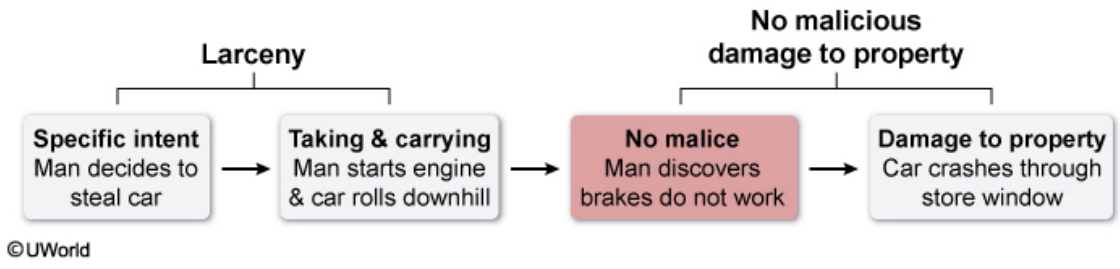
(Choice C) Commission of a felony is not an element of malicious damage to property. Therefore, this is not a basis for affirming the man's conviction.

Educational objective:

Malice crimes (eg, malicious damage to property) require proof that the defendant was practically certain that his/her act would cause a particular result (knowledge) *or* consciously disregarded a substantial and unjustifiable risk of harm (recklessness).

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Instead of going to work one evening, a man decided to visit a bar to watch a basketball game. The man started drinking when he arrived and quickly became intoxicated. While the man was watching the game, his girlfriend arrived at the bar. The girlfriend approached the man and began arguing with him about skipping work to drink. The man in turn accused the girlfriend of visiting the bar alone to flirt with other people. The argument escalated and the girlfriend tried to scratch the man's face. The man tried to grab the girlfriend's wrists to push her arms away, but because his intoxication made him clumsy, he accidentally pushed her backward hard enough to knock her down. The man has been charged with criminal battery.

Can the man properly be convicted of criminal battery on these facts?

A. No, because the man acted justifiably.

B. No, because the man's criminal behavior is excused.

C. Yes, because battery is a general intent crime.

D. Yes, because the man made no attempt to retreat from the altercation.

Explanation:

Self-defense

(justification for criminal conduct)

	General requirements	**Duty to retreat**
Nondeadly force	Actual & reasonable belief of imminent *unlawful* harm Force reasonably necessary to prevent harm Not initial aggressor	No duty to retreat
Deadly force	Actual & reasonable belief of imminent *serious harm* or *death* Deadly force necessary to prevent harm Not initial aggressor	Majority rule: No duty to retreat Minority rule: Duty when safe retreat available *unless* inside one's home

Criminal battery occurs when a person **unlawfully applies force** to another, resulting in **bodily harm** or **offensive contact**. However, the person's otherwise unlawful use of force may be justifiable if it is deemed socially acceptable due to the circumstances in which it occurred. For example, the application of force against another is justified if committed in **self-defense**—ie, if the actor:

actually and reasonably believed the force was necessary to protect against imminent unlawful harm

used reasonable force (ie, no more than necessary) to prevent such harm *and*

was not the initial aggressor—ie, did not provoke the altercation.

The reasonableness of a voluntarily intoxicated person's response to imminent unlawful harm is measured through the eyes of a **reasonable, sober individual**.

Here, the man's belief that force was necessary to protect himself from the girlfriend's imminent and unlawful scratching was reasonable. His use of force was also reasonable because it is likely that a reasonable, sober person also would have tried to push the girlfriend away. And since the man was not the initial aggressor, his actions constitute justifiable self-defense. As a result, he cannot properly be convicted of criminal battery.

(Choice B) Voluntary intoxication serves as an excuse for the commission of a specific intent crime if it prevented the defendant from forming the requisite intent. But since criminal battery is a general intent crime, a voluntary intoxication defense would be meritless.

(Choice C) Criminal battery *is* a general intent crime because it requires that the criminal act be consciously performed (or criminally negligent). But this does not impact the man's ability to successfully claim that he justifiably acted in self-defense.

(Choice D) There is no duty to retreat before using *nondeadly* force in self-defense (as seen here)—even if there is an opportunity to do so safely.

Educational objective:

Use of force against another is justified as self-defense if the actor (1) actually and reasonably believed the force was necessary to protect against imminent unlawful harm, (2) used reasonable force to prevent such harm, and (3) was not the initial aggressor.

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In which of the following situations would the defendant's mistake most likely constitute a defense to the crime charged?

A. A local ordinance forbids the sale of alcoholic beverages to persons under 18 years of age. Relying on false identification, the defendant sells champagne to a 16-year-old high school student. The defendant is charged with illegal sale of alcoholic beverages.

B. Mistaking the defendant for a narcotics suspect, an undercover police officer attempts to arrest him. The defendant, unaware that the person who has grabbed him is an officer, hits him and knocks him unconscious. The defendant is charged with assault.

C. Relying on erroneous advice from his attorney that, if his wife has abandoned him for more than a year, he is free to marry, the defendant remarries and is subsequently charged with bigamy.

D. The defendant, aged 23, has sexual intercourse with a 15-year-old prostitute who tells the defendant that she is 18. The defendant is charged with the felony of statutory rape under a statute that makes sexual relations with a child under 16 a felony.

Explanation:

Mistake of law v. Mistake of fact

	Definition	Applicability
Mistake of law	Defendant mistakenly believes conduct not prohibited by law	No defense unless: Law prohibiting conduct was unavailable Defendant reasonably relied on invalid law Mistake negates mens rea*
Mistake of fact	Defendant is mistaken as to a matter of fact	When mistake negates mens rea: Specific intent – defense if honest mistake General intent & malice – defense if honest & reasonable mistake Strict liability – no defense

*Mens rea – state of mind necessary to be guilty of criminal offense.

Mistake of fact is a **defense** when that misbelief, if true, would have **justified** the defendant's **criminal act**. Here, the defendant was charged with assault for knocking the police officer unconscious after the officer attempted to arrest him. But since the defendant mistakenly believed that he was being grabbed by an aggressor—not an undercover police officer—his use of reasonable force to resist that arrest was justified. Therefore, the defendant's mistake would constitute a defense to his assault charge.

Mistake of fact is also a defense when that **misbelief negates** the requisite **mens rea** for the charged crime. Therefore, mistake of fact is **no defense to strict liability crimes** because they have no mens rea requirement. And since (1) an ordinance forbidding the sale of alcohol to minors and (2) a statute criminalizing sex with an underage person both impose strict liability, mistaking a person's age is no defense **(Choices A & D)**.

(Choice C) Mistake of law is almost never a criminal defense. So relying on an attorney's erroneous legal advice—eg, that an abandoned spouse is free to remarry after a year—is no defense to bigamy.

Educational objective:

Mistake of fact is a defense if that misbelief (1) would have justified the defendant's criminal act had the belief been true or (2) negates the requisite mens rea for the charged crime. But it is never a defense to strict liability crimes.

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A fan and his friend were watching a football game at the fan's home when they began to argue. The friend became abusive, and the fan asked him to leave. The friend refused, walked into the kitchen, picked up a knife, and said he would cut the fan's heart out. The fan pulled a gun from under the sofa, walked to his front door, opened it, and again told the friend to leave. The friend again refused. Instead, he walked slowly toward the fan, brandishing the knife in a threatening manner. The fan, rather than running out the door himself, shot in the friend's direction, intending only to scare him. However, the bullet struck the friend, killing him instantly.

The fan is charged with murder.

Should he be convicted?

A. No, because he did not intend to kill his friend.

B. No, because he was acting in self-defense and had no duty to retreat.

C. Yes, because he had a clear opportunity and duty to retreat.

D. Yes, because the use of deadly force was unreasonable under the circumstances.

Explanation:

Self-defense

(justification for criminal conduct)

	General requirements	**Duty to retreat**
Nondeadly force	Actual & reasonable belief of imminent *unlawful* harm Force reasonably necessary to prevent harm Not initial aggressor	No duty to retreat
Deadly force	Actual & reasonable belief of imminent *serious harm* or *death* Deadly force necessary to prevent harm Not initial aggressor	Majority rule: No duty to retreat Minority rule: Duty when safe retreat available *unless* inside one's home

Murder requires proof that a person unlawfully killed another with malice aforethought. But the use of **deadly force in self-defense** justifies a killing and serves as a **defense to murder** if the person:

actually and reasonably believed that such force was **necessary to prevent** imminent serious bodily harm or **death** *and*

was **not the initial aggressor**—ie, did not engage in physical force first or intentionally provoke the altercation.

Under the majority rule, there is **no duty to retreat** before using deadly force in self-defense. And though a minority of jurisdictions require retreat before using deadly force if it is safe to do so, a person **never** has a duty to retreat **in his/her own home**.

Here, the fan shot and killed his friend. But the fan actually and reasonably believed that he needed to use deadly force in self-defense because (1) the friend had threatened to cut out the fan's heart and (2) was walking toward him while brandishing a knife. Additionally, the fan was not the initial aggressor, so he justifiably shot his friend in self-defense **(Choice D)**. And though the fan had a clear opportunity to run out the open front door, he had no duty to retreat since he was in his own home **(Choice C)**. Therefore, the fan should not be convicted of murder.

(Choice A) A person may be convicted of murder—even if there was no intent to kill—if the person recklessly disregarded a high risk of serious bodily harm or death (ie, depraved-

heart murder). Since the fan recklessly disregarded the high risk that the fired bullet would hit and kill the friend, the fan's lack of intent to kill will not prevent his conviction.

Educational objective:

Deadly force can be used in self-defense when a person (1) actually and reasonably believes that such force is necessary to prevent imminent serious harm or death and (2) is not the initial aggressor. There is generally no duty to retreat before using such force—especially when a person is inside his/her home.

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A state statute provides: "The sale of an alcoholic beverage to any person under the age of 21 is a misdemeanor." A woman who was 20 years old, but who looked older and who had a very convincing fake driver's license indicating that she was 24, entered a convenience store, picked up a six-pack of beer, and placed the beer on the counter. The store clerk, after examining the driver's license, rang up the purchase. Both the clerk and the store owner were charged with violating the state statute. At trial, the court found both the clerk and store owner guilty.

What standard of liability must the court have interpreted the statute to impose?

A. Strict liability only.

B. Vicarious liability only.

C. Both strict and vicarious liability.

D. Either strict or vicarious liability.

Explanation:

Most crimes require proof that a person committed a particular act (actus reus) with a particular state of mind (mens rea). But **strict liability crimes** have **no mens rea requirement**. This means that proof of the **actus reus alone is sufficient** to support a conviction. And persons can be **directly liable** for the strict liability crime if they commit the actus reus themselves OR **vicariously liable** if their agent (often an employee) does so.

Here, the clerk and store owner were convicted of violating the state statute after the clerk sold beer to a woman who was under 21 years of age (actus reus). But the clerk did not do so knowingly, or even negligently, since the woman looked older and the clerk examined her driver's license (no mens rea). Therefore, the court must have interpreted the statute as imposing *strict liability* to convict the clerk.

And since the store owner did not personally complete the sale, the court must have construed the statute as authorizing *vicarious liability* to convict the store owner for the sale by the clerk (the owner's agent) **(Choices A, B, & D)**.

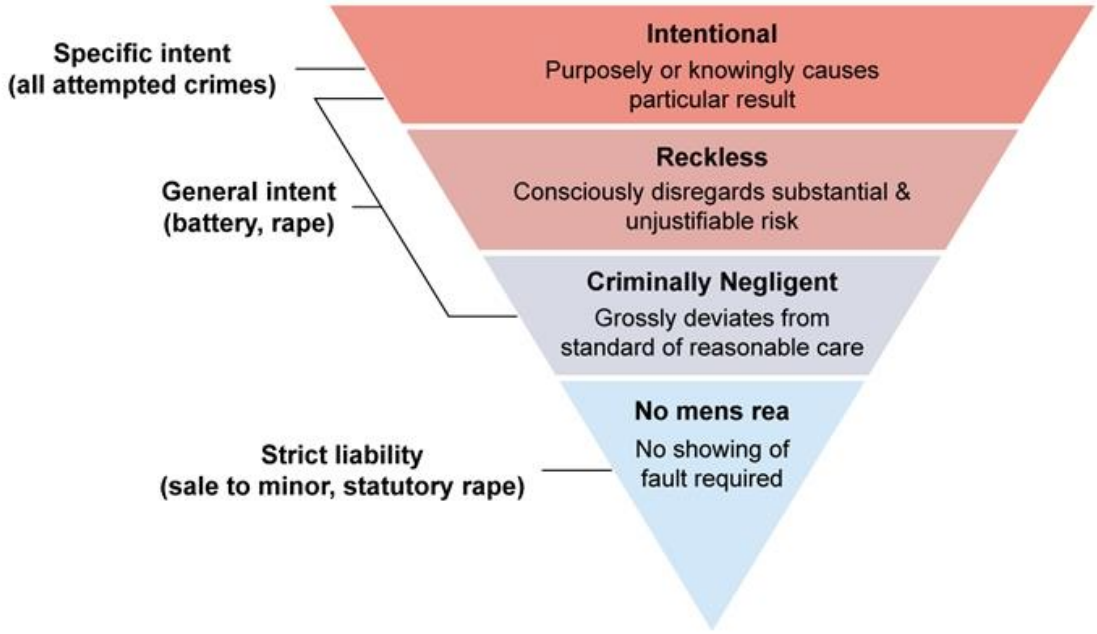
Educational objective:

Strict liability crimes require a particular actus reus—but not a particular mens rea. And persons can be (1) directly liable for such crimes if they commit the actus reus themselves or (2) vicariously liable if their agent does so.

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Types of mens rea



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A man was charged with violating a state statute making it a crime "to hold or promote an illegal gambling event." The statutory definition of illegal gambling event includes "any private gathering held for the purpose of gambling in which the host charges an entrance fee or takes a percentage of the wagered money or players' winnings." At trial, it was established that the man arranged and hosted a private high-stakes poker tournament at his large estate and, in violation of the statute, took a $10,000 entrance fee from each player.

Which of the following facts, if proved at trial, would serve as the man's best defense?

A. At the time of trial, the statute making the man's conduct illegal was being challenged in the state's highest court.

B. The man had just moved to the state and was unaware that his conduct was illegal.

C. The man relied on the advice of his attorney, who erroneously told the man that his conduct was legal.

D. The statute making the man's conduct illegal was not reasonably made available prior to the conduct.

Explanation:

Mistake of law v. Mistake of fact

	Definition	Applicability
Mistake of law	Defendant mistakenly believes conduct not prohibited by law	No defense unless: Law prohibiting conduct was unavailable Defendant reasonably relied on invalid law Mistake negates mens rea*
Mistake of fact	Defendant is mistaken as to a matter of fact	When mistake negates mens rea: Specific intent – defense if honest mistake General intent & malice – defense if honest & reasonable mistake Strict liability – no defense

*Mens rea – state of mind necessary to be guilty of criminal offense.

A defendant's mistaken belief that his/her conduct was not prohibited by law (ie, **mistake of law**) is generally **not a defense** to **criminal liability (Choice B)**. But mistake of law **is** a defense when:

the **charged conduct** is classified as a **malum prohibitum** offense—ie, an offense that is not inherently or obviously wrong (eg, gambling) *and*

the **statute** making the conduct illegal was **not reasonably made available** prior to the conduct.

Here, the man arranged and hosted a private high-stakes poker tournament and, in violation of the state statute, took a $10,000 entrance fee from each player. But if the man can establish that the statute making his conduct illegal was not reasonably made available prior to the tournament, he can rely on a mistake-of-law defense. That is because the charged offense is malum prohibitum (ie, not inherently wrong).

(Choice A) The fact that the statute making the man's conduct illegal was being challenged in the state's highest court at the time of the man's trial would not serve as a defense. A mere challenge to a statute does not invalidate it.

(Choice C) Erroneous legal advice from an attorney generally is not a valid defense, regardless of whether a reasonable person would have known that the advice was erroneous or relied on it. However, such advice may serve as a defense if it negates a

mental state required by a statute—eg, a statute requiring that the defendant knowingly violate the law or act without legal privilege (not seen here).

Educational objective:

Mistake of law is a defense to criminal liability when (1) the charged offense is classified as a malum prohibitum offense and (2) the statute making the defendant's conduct illegal was not reasonably made available prior to the conduct.

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A worker at a day-care center run by a corporation noticed that one of the boys often arrived with bruises and welts on his back and legs. A statute in the jurisdiction requires all day-care workers to report to the police cases where there is probable cause to suspect child abuse and provides for immediate removal from the home of any suspected child-abuse victims. The worker was not aware of this statute. Nevertheless, he did report the boy's condition to his supervisor, who advised him to keep quiet about it so the day-care center would not get into trouble for defaming a parent. About two weeks after the worker first noticed the boy's condition, the boy was beaten to death by his father.

The worker has been charged with murder in the death of the boy. The evidence at trial disclosed, in addition to the above, that the boy had been the victim of beatings by the father for some time, and that these earlier beatings had been responsible for the marks that the worker had seen. The boy's mother had been aware of the beatings but had not stopped them because she was herself afraid of the boy's father.

What is the worker's best argument that he is NOT guilty of murder?

A. He lacked the mental state necessary to the commission of the crime.

B. He was not aware of the duty-to-report statute.

C. His omission was not the proximate cause of the boy's death.

D. The day-care corporation, rather than the worker, was guilty of the omission, which was sanctioned by its supervisory-level agent.

Explanation:

Murder is the unlawful killing of another (criminal act) with **malice aforethought** (mental state). An unlawful killing can be caused by a voluntary act (eg, deliberately pulling a gun's trigger). But it can also be caused by an **omission**—ie, a **failure to perform a statutory** or other **legal duty** when the defendant **could have reasonably done so**. Causation must be both:

actual – (1) the victim would not have died at that time but for the defendant's conduct or (2) when there were multiple causes, the defendant's conduct was a substantial factor in the victim's death *and*

proximate – the death was a natural and probable (ie, foreseeable) consequence of the defendant's conduct.

Here, the worker failed to perform his statutory duty to report the boy's frequent bruises and welts to police even though he reasonably could have done so (omission). This was a substantial factor in the boy's death because he would have been immediately removed from his home had the worker informed police (actual cause). And it was foreseeable that the omission would result in continued abuse and possible death (proximate cause) **(Choice C)**. But since murder requires malice aforethought, the worker's best defense is that he lacked that mental state.

(Choice B) Mistake or ignorance of the law is no defense to criminal liability (absent very narrow exceptions). Therefore, the worker could be convicted of murder even though he was unaware of the duty-to-report statute.

(Choice D) Under the doctrine of respondeat superior, an employer may be vicariously liable for a crime committed by its employee within the scope of employment and for the employer's benefit. Here, the supervisor recklessly advised the worker to keep quiet so that the day-care corporation could avoid a defamation suit. Therefore, the corporation may be vicariously liable for murder. But this is no defense to the worker's criminal liability.

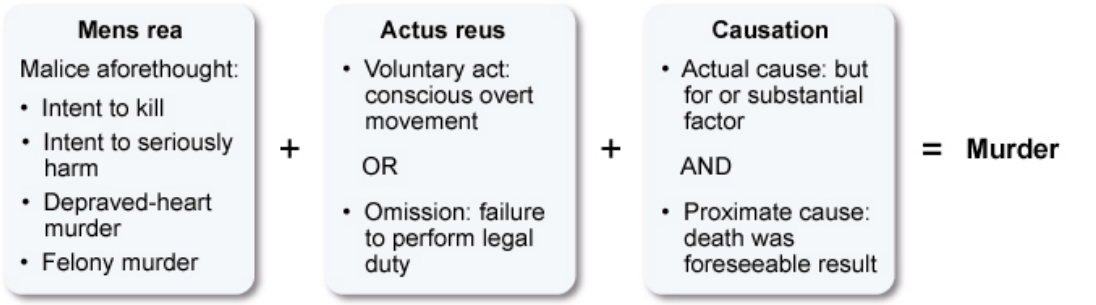
Educational objective:

A defendant is guilty of murder when his/her voluntary act or omission (1) actually and proximately caused another's death and (2) was committed with malice aforethought. An omission is the failure to perform a legal duty when the defendant could have reasonably done so.

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Elements of murder



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A woman charged with murder has entered a plea of not guilty by reason of insanity. At her trial, in which the questions of guilt and sanity are being tried together, the evidence shows that the woman stalked the victim for several hours before following him to an isolated hiking trail where she shot and killed him. Expert witnesses for the defense have testified that the woman knew that killing was illegal and wrong, but that she suffered from a serious mental illness that left her in the grip of a powerful and irresistible compulsion to kill the victim.

If the jury believes the testimony of the defense experts, under what circumstances could the jury properly acquit the woman of murder?

A. Only if the jurisdiction follows the M'Naghten test for insanity.
B. Only if the jurisdiction follows the ALI Model Penal Code test for insanity.
C. If the jurisdiction follows either the M'Naghten or the ALI Model Penal Code test for insanity.
D. Even if the jurisdiction has abolished the insanity defense.

Explanation:

Types of insanity defenses

M'Naghten	Mental illness prevented defendant from:
(majority rule)	understanding nature or quality of the criminal act *or* knowing that his/her actions were wrong
Irresistible impulse	Mental illness prevented defendant from:
	controlling actions *or* conforming conduct to law
***Durham*/New Hampshire**	Defendant's criminal actions were product of mental illness
Model PenalCode	Mental illness prevented defendant from:
	appreciating criminality of act *or* conforming conduct to law

A defendant may be able to assert an **insanity defense** if he/she was legally insane at the time of the crime. The ***M'Naghten* test** for insanity (used in most jurisdictions) considers whether a **mental disease or defect prevented** the defendant from either:

understanding the **nature and quality** of the criminal act *or*
knowing that his/her actions were **legally or morally wrong**.

In contrast, the **Model Penal Code (MPC) test** for insanity considers whether a mental disease or defect prevented the defendant from either:

appreciating the **wrongfulness** of the criminal act *or*
conforming his/her **conduct to the law**.

Here, the woman committed murder—an unlawful killing committed with malice aforethought—when she shot and killed the victim. Since she understood that she was killing a person and knew that it was illegal and wrong, she *cannot* be acquitted of murder if the jurisdiction follows the *M'Naghten* test **(Choices A & C)**. But she *can* be acquitted of murder if the jurisdiction follows the *MPC* test. That is because her serious mental illness compelled her to kill the victim—ie, prevented her from conforming her conduct to the law.

(Choice D) Since the woman committed every element of murder, she cannot be acquitted if the jurisdiction has abolished the insanity defense.

Educational objective:

The *M'Naghten* insanity test is met if a mental disease prevented the defendant from understanding the nature and quality of the criminal act *or* knowing that it was wrong. But

the Model Penal Code insanity test is met if a mental disease prevented the defendant from appreciating the wrongfulness of his/her conduct *or* conforming it to the law.

References

Model Penal Code § 4.01 (Am. Law Inst. 2019) (insanity defense).

21 Am. Jur. 2d Criminal Law § 50 (2019) (M'Naghten test).

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A woman was walking her dog one evening when she saw a strange man walking toward her neighbor's house holding a suspicious-looking tool. She decided to walk her dog past the side of the house to get a better view of the man. When she got closer, she noticed that he was using the tool to pry open a window. The woman also noticed that the man had an empty bag on the ground next to him. When the man managed to pry the window open, he grabbed the empty bag and began to climb inside. The woman ran toward the man, grabbed one of his shoes, and began hitting him until he fell back on the ground.

Given these facts, can the woman properly be convicted of criminal battery?

A. No, because the woman acted justifiably.

B. No, because the woman may use any amount of force to prevent a crime.

C. Yes, because the woman had the requisite general intent for battery.

D. Yes, because the woman was not the owner of the house.

Explanation:

Criminal battery is the unlawful application of force to another that causes bodily harm or offensive contact. However, a defendant's otherwise unlawful use of force may be justifiable if it is deemed socially acceptable due to the circumstances in which it occurred. For example, a person may use force to **prevent a crime**, but the level of force permitted depends on the seriousness of the crime:

Deadly force may be used to prevent the commission of a **serious felony** involving **imminent death or serious bodily harm**.

Nondeadly force may be used to prevent the commission of a **lesser felony** (here, burglary) or a **breach-of-the-peace misdemeanor**.

Here, the woman committed a battery when she grabbed the man's shoe and hit him. However, she only hit the man because she saw that he was trying to break into her neighbor's home. And since she applied only *nondeadly* force to prevent this felony, she acted justifiably and cannot properly be convicted of criminal battery.

(Choice B) The use of deadly force is justified only when the defendant actually and reasonably believes that such force is necessary to prevent imminent death or serious bodily harm to him/herself or others. Here, there is no indication that the man presented such a threat, so only nondeadly force could be used to stop him.

(Choice C) Criminal battery is a general intent crime because it requires that the criminal act be consciously performed (or criminally negligent). Here, although the woman acted with the requisite intent (by consciously grabbing and hitting the man), this does not impact her "crime prevention" defense.

(Choice D) For the "crime prevention" defense to apply, the crime being prevented need not be directed against the person, habitation, or property of the defendant; it may be directed against a third person or his/her property (here, the neighbor's house).

Educational objective:

A person may use deadly force to prevent the commission of a serious felony involving imminent death or serious bodily harm. But only nondeadly force may be used to stop a lesser felony or a breach-of-the-peace misdemeanor.

References

Wayne R. LaFave, 2 Substantive Criminal Law § 10.7(c) (3d ed. 2020) (discussing the privilege to use force to prevent the commission of a felony or breach-of-the-peace misdemeanor).

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The chief executive officer (CEO) of a company that operated a knitting mill delegated all operational decision-making to the supervisor of the mill. The child labor laws in the jurisdiction provide, "It is a violation of the law for one to employ a person under the age of 17 years for full-time labor."

Without the CEO's knowledge, the supervisor hired a number of 15- and 16-year-olds to work at the mill full time. He did not ask their ages and they did not disclose them. The supervisor could have discovered their ages easily by asking for identification, but he did not do so because he was not aware of the law and believed that company policy was to hire young people.

If the statute is interpreted to create strict liability and the CEO is convicted of violating it, is his contention that his conviction would violate the Constitution correct or incorrect?

A. Correct, because criminal liability is personal and the knitting mill, not the CEO, is the employer of the children.

B. Correct, because it is a violation of due process to punish without a voluntary act.

C. Incorrect, because he was in a position to exercise control over the hiring of employees for the knitting mill.

D. Incorrect, because regulatory offenses are not subject to due process limitations.

Explanation:

Comparing theories of criminal liability

Theory	Mens rea	Actus reus
	(criminal mind)	(criminal act)
Direct liability	Defendant has mens rea	Defendant performs actus reus
Vicarious liability	Defendant's agent has mens rea	Agent performs actus reus under defendant's control
Strict liability	No mens rea requirement	Defendant performs actus reus

A defendant can be:

directly liable for a criminal act that he/she **personally performed** *or*
vicariously liable for a criminal act **performed by another**—often an employee.
But for a defendant to be convicted based on vicarious liability, **due process** requires proof that the **defendant had control** over the other's conduct. Such proof exists here because the CEO was in a position to exercise control over the supervisor's hiring practices. As a result, the CEO's vicarious liability for the supervisor's criminal hiring does not raise any due process or other constitutional concerns.

(Choice A) Criminal liability often arises when the defendant personally commits a criminal act—but not always. As in this case, a defendant can be criminally liable for failing to prevent a criminal act that an agent (eg, the supervisor) committed while under the defendant's control.

(Choice B) Due process *allows* punishment without a voluntary act on the part of the defendant when, as here, the defendant had control over and is being held vicariously liable for another's conduct.

(Choice D) Regulatory offenses are strict liability crimes that are designed to protect the public welfare (eg, speeding, public intoxication). These offenses *are* subject to due process limitations—eg, the punishment must fit the crime. And since regulatory offenses require no proof of fault, they generally are only punishable by fine.

Educational objective:

Due process requires proof that the defendant had control over another's conduct to hold the defendant vicariously liable for that person's criminal act.

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A defendant is charged with an offense under a statute that provides as follows: "Any person who, while intoxicated, appears in any public place and manifests a drunken condition by obstreperous or indecent conduct is guilty of a misdemeanor."

At trial, the evidence shows that the defendant was intoxicated when police officers burst into his house and arrested him pursuant to a valid warrant. It was a cold night, and the officers hustled the defendant out of his house without giving him time to get his coat. The defendant became angry and obstreperous when the officers refused to let him go back into the house to retrieve his coat. The officers left him handcuffed outside in the street, waiting for a special squad car to arrive. The arrest warrant was later vacated.

Can the defendant properly be convicted of violating the statute?

A. No, because the defendant's claim of mistreatment is valid.

B. No, because the statute requires proof of a voluntary appearance in a public place.

C. Yes, because the defendant voluntarily became intoxicated.

D. Yes, because the defendant voluntarily behaved in an obstreperous manner.

Explanation:

Every crime requires proof that the **defendant voluntarily committed** the **actus reus** by (1) consciously performing a bodily movement or (2) failing to act when he/she had a legal duty and the ability to do so. Therefore, **no criminal liability** can be imposed when an **act does not result** from the defendant's **free will**.

Here, the defendant was charged with appearing in a public place and manifesting a drunken condition by obstreperous (ie, disorderly) or indecent conduct while intoxicated. The defendant voluntarily became intoxicated and voluntarily behaved obstreperously outside his home **(Choices C & D)**. But he appeared in this public place *against his will* because police hustled him out of his home and kept him from reentering. And since this crime (like all others) requires that the actus reus be *voluntary*, the defendant cannot be convicted.

(Choice A) The defendant may have a valid mistreatment claim since the police wrongfully deprived him of his coat. But this will not prevent the defendant's conviction since mistreatment would not negate an element of the charged crime.

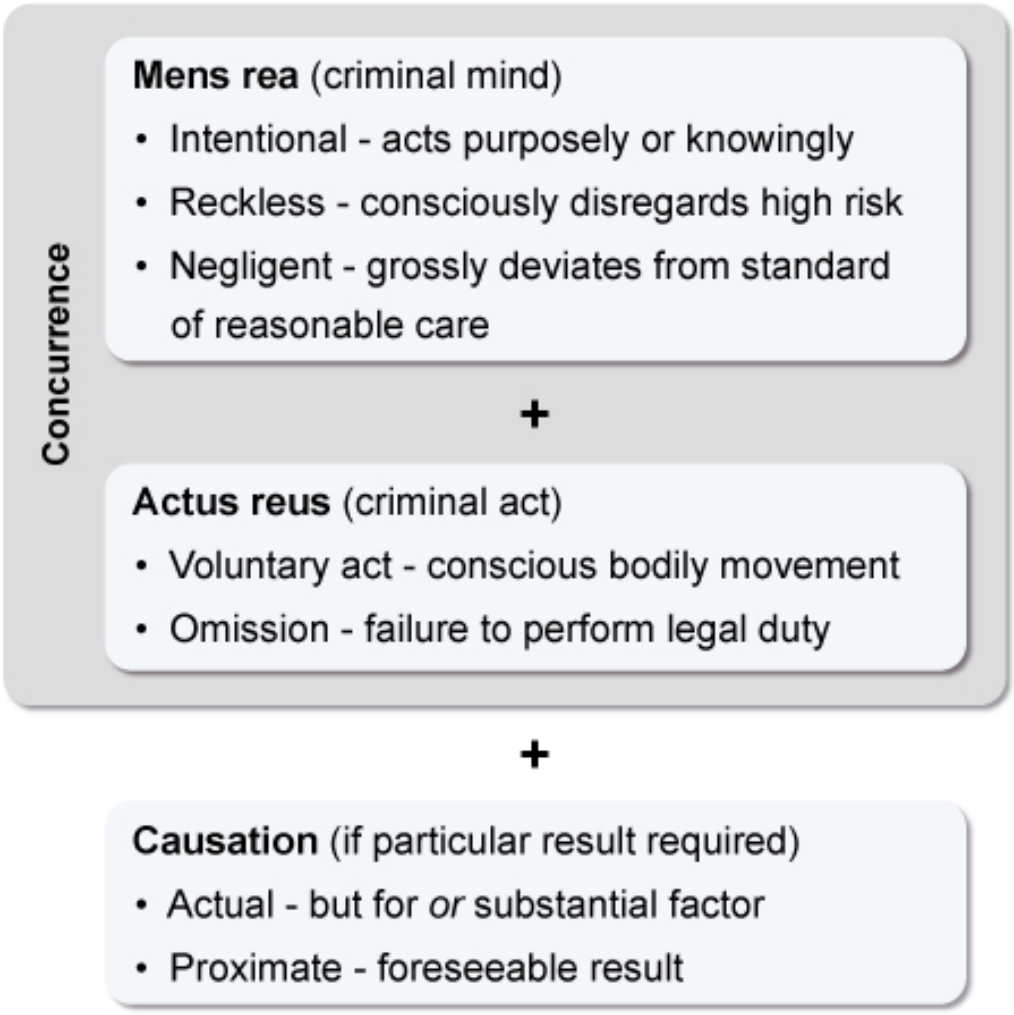
Educational objective:

A criminal conviction requires proof that the defendant voluntarily committed the criminal act or omission. Therefore, an act that is not a product of the defendant's free will cannot be used to impose criminal liability.

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Elements of a crime



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A defendant has been charged with battery for breaking a man's nose in a bar fight. At trial, the evidence established the following: The defendant was watching a contentious football game with the man when the defendant yelled obscenities about the man's favorite football team. In response to the defendant's remarks, the man yelled obscenities about the defendant. The defendant stood up from his chair, walked over to where the man was sitting, raised his fist and said, "One more word and I'll shut your mouth for you." The man then grabbed the defendant by the shirt and started waving a knife at the defendant in an effort to stab him. The defendant proceeded to punch the man several times until the man released the defendant's shirt.

Should the defendant be convicted of battery?

A. No, because a person may use any amount of force to repel an attack.

B. No, because the man attempted to use deadly force against him.

C. Yes, because the defendant failed to retreat.

D. Yes, because the defendant was the initial aggressor.

Explanation:

Battery is the unlawful application of force (eg, a punch) to another person that causes offensive contact or bodily harm (eg, a black eye). Therefore, the defendant committed battery. However, an otherwise unlawful use of force may be justified if it was done in **self-defense**. This justification generally **does not extend to an initial aggressor**—ie, the person who first uses or threatens physical force. However, an initial aggressor may **gain the right** to act in self-defense **in two circumstances**:

When the initial aggressor's use of nondeadly force is **met with deadly force***

When the initial aggressor, in good faith, **completely withdraws** from the altercation and **communicates** that fact **to the victim**

Although merely using obscenities does not alone make a person an initial aggressor, the defendant assumed this role when he walked over to the man and threatened to strike him. The defendant's nondeadly threat was then met with deadly force when the man grabbed and waved a knife at the defendant in an attempt to stab him. This gave the defendant the right to act in self-defense by using *reasonable* force to prevent imminent unlawful harm to himself **(Choice A)**.

Reasonable force means that a person may only use as much force as is required to repel the attack. Here, the defendant used reasonable force since he punched the man only until the man released the defendant's shirt. As a result, the battery against the man was justified and the defendant should *not* be convicted of this crime **(Choice D)**.

*The initial aggressor may not claim self-defense when he/she initially used deadly force against the victim.

(Choice C) There is no duty to retreat before using nondeadly force in self-defense (as seen here), even if there is an opportunity to do so safely.

Educational objective:

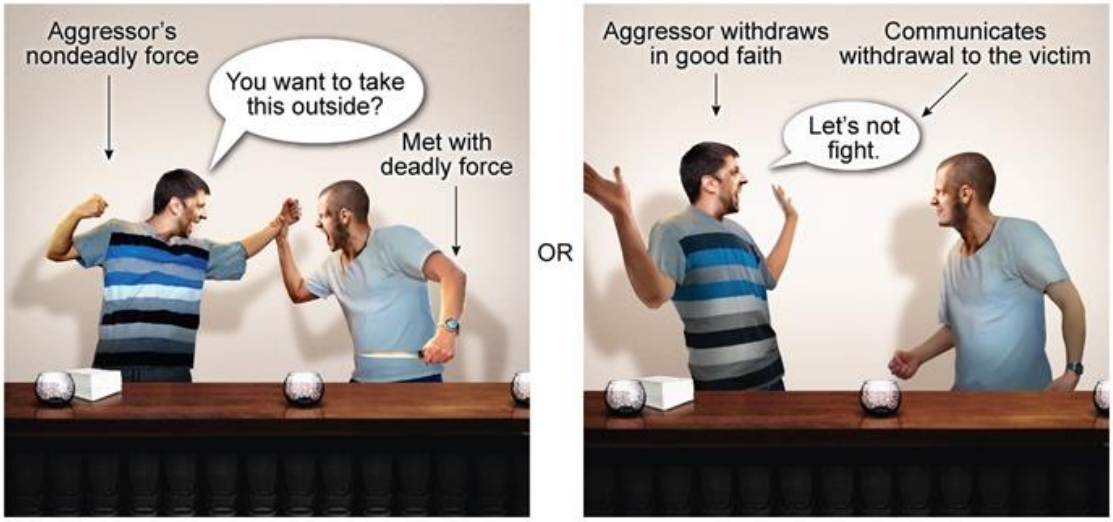
An initial aggressor can only claim self-defense if (1) the aggressor's use of nondeadly force was met with deadly force or (2) the aggressor, in good faith, completely withdrew from the altercation and communicated that fact to the victim.

References

6 Am. Jur. 2d Assault and Battery § 53 (2020) (explaining when an initial aggressor gains the right to act in self-defense).

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When initial aggressor gains the right to self-defense



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The chief executive officer (CEO) of a company that operated a knitting mill delegated all operational decision-making to the supervisor of the mill. The child labor laws in the jurisdiction provide, "It is a violation of the law for one to employ a person under the age of 17 years for full-time labor."

Without the CEO's knowledge, the supervisor hired a number of 15- and 16-year-olds to work at the mill full time. He did not ask their ages and they did not disclose them. The supervisor could have discovered their ages easily by asking for identification, but he did not do so because he was not aware of the law and believed that company policy was to hire young people.

If the statute is interpreted to create strict liability and the supervisor is charged with violating it, what is the proper verdict?

A. Guilty, because he hired the children.
B. Guilty, because he should have inquired as to the ages of the children.
C. Not guilty, because he believed he was following company policy and was not aware of the violation.
D. Not guilty, because the knitting mill, not the supervisor, is the employer of the children.

Explanation:

A person is **guilty** of any crime that he/she **personally committed**—even if that crime was committed on another's behalf or within the scope of employment. And guilt for a strict liability crime (as seen here) arises once a person commits the unlawful act—regardless of the person's fault or mens rea.

Here, the supervisor—who had all operational decision-making authority for the knitting mill—hired 15- and 16-year-olds for full-time labor at the mill. And though the mill is the children's employer, the supervisor personally violated the child labor statute when he hired them. Therefore, he is guilty of this strict liability crime **(Choice D)**.

(Choice B) Though inquiring into the children's ages before hiring them would have been prudent, failing to do so is not a violation of the statute or a basis for the supervisor's guilt.

(Choice C) Evidence that the supervisor believed he was following company policy (mistake of fact) and was not aware of the violation (mistake of law) goes to the supervisor's mens rea. But since a defendant's mens rea is irrelevant to strict liability crimes, these mistakes are no defense.

Educational objective:

A person is liable for any crime that he/she commits personally—even while acting on another's behalf or within the scope of employment.

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An off-duty doctor was jogging one evening when he came upon an elderly woman who had suffered a severe heart attack while walking her dogs. The woman was not breathing, and the doctor could barely detect a pulse. The doctor immediately began CPR on the woman while a bystander called 911. The doctor was able to resuscitate the woman but, in the process of performing CPR, broke several of her ribs. The broken ribs punctured the woman's lungs, causing them to collapse and leaving her unable to breathe. Because the doctor did not have the necessary medical instruments to release the air that was trapped inside of the woman's lungs, the doctor did nothing further to help her. The woman subsequently died from suffocation before an ambulance arrived.

Is the doctor criminally liable for the woman's death?

A. No, because it was not reasonably possible for the doctor to help the woman.
B. No, because the doctor was not under a legal duty to help the woman.
C. Yes, because the doctor, as a medical professional, was under a legal duty to help the woman.
D. Yes, because the doctor stopped rendering aid to the woman after breaking her ribs.

Explanation:

Legal duty to act

(subject to criminal liability if breach)

Special relationship	Parent/child, spouses, employer/employee
Assumption of care	Once person renders aid, liable for making victim's condition worse (ie, detrimental undertaking)
Created risk of harm	Person who falsely imprisons another & fails to provide food is liable for resulting death
Statute imposes duty	"Off-duty nurses must render aid to injured persons"
Contract imposes duty	"Employer will administer first aid in case of emergency"

Mnemonic: **S**pecific **A**cts **C**an **S**pawn **C**rimes

Criminal liability can arise from a **failure to act** (ie, an **omission**) if the defendant:

had a **legal duty to act** *and*
could have **reasonably** done so.

A **legal duty** to act is imposed when a person **voluntarily assumes care of another**—eg, by rendering aid in a medical emergency. As a result, a voluntary rescuer has a duty to take all reasonable steps to provide care to the rescuee and may be criminally liable for omissions during the process. But such omissions will **not result in criminal liability** if the omitted action **could not reasonably be performed**.

Here, by rendering aid after finding the woman unconscious, the doctor voluntarily assumed a legal duty to take all reasonable steps to help her **(Choice B)**. However, he subsequently failed to relieve the pressure in the woman's lungs caused by his administration of necessary CPR. But since the doctor lacked the medical equipment necessary to do so, it was not reasonably possible for him to perform the omitted act. Therefore, he is not criminally liable for the woman's death **(Choice D)**.

(Choice C) The doctor was not under a legal duty to help the woman simply because he was a medical professional. Instead, his duty to act on the woman's behalf was imposed when he voluntarily assumed care of the woman by rendering aid.

Educational objective:

Criminal liability can arise from a failure to act if the defendant had a legal duty to act (eg, by voluntarily assuming care of another) and could have reasonably done so. However, omissions in performing that duty will not result in criminal liability if the omitted action could not reasonably be performed.

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A defendant was charged with battery, defined as at common law. At trial, an expert witness testified for the defense that the defendant, an athlete, was under the influence of a performance-enhancing drug at the time he committed the battery and that he would not have done so had he not been so influenced. The defendant asked for an instruction to the effect that if the jury believed that he was influenced by the drug at the time of the crime and would not have committed it otherwise, it had to acquit him.

Which of the following circumstances would most aid the defendant's argument in favor of such an instruction?

A. Evidence that the defendant is addicted to this drug and has an overwhelming urge to consume it.

B. Evidence that the defendant's coach, who gave him the drug, told him it was only an aspirin.

C. Evidence that the victim of the assault taunted the defendant about his use of the drug immediately before the assault.

D. Expert testimony that a reasonable person, on consuming this drug, may experience uncontrollable rages.

Explanation:

An **intoxication defense** can be raised if the defendant was intoxicated when the charged crime was committed due to either of the following:

Involuntary intoxication – the **unknowing or forcible ingestion** of an intoxicating substance is a **defense to any crime** if it placed the defendant in the mental state required for an insanity defense.

Voluntary intoxication – the **deliberate ingestion** of a substance that the defendant knew or should have known has intoxicating effects is a **defense to specific intent crimes** if it prevented the defendant from forming such intent.

Here, the defendant requested an instruction that the jury acquit him if it believed that he was influenced by the performance-enhancing drug when he committed the battery and would not have done so otherwise. Since battery is a general intent crime, that instruction would only be proper if the intoxication was *involuntary*. Therefore, evidence that the defendant's coach tricked him into taking the drug by telling him that it was aspirin would support such an instruction.

(Choice A) Voluntary intoxication is never a defense to general intent crimes like battery. And evidence that the defendant was addicted to the drug would not make his ingestion involuntary (ie, unknowing or forcible) for purposes of criminal law. Therefore, this evidence would not support an intoxication instruction.

(Choice C) The fact that the victim taunted the defendant about his use of the drug immediately before the crime would not serve as a defense to a battery charge or support an intoxication instruction.

(Choice D) Expert testimony that the drug causes uncontrollable rage would not support an intoxication instruction since voluntary intoxication—regardless of the intoxicant's effects—is no defense to battery.

Educational objective:

Involuntary intoxication is a defense to *any* crime if it placed the defendant in the mental state required for an insanity defense. And voluntary intoxication is a defense to *specific intent* crimes if it prevented the defendant from forming the required intent.

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Intoxication defense

Type of crime	Definition	Voluntary	Involuntary
Specific intent	Act consciously performed for particular purpose	✓	✓
General intent	Act consciously performed		✓
Strict liability	Act performed		✓

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After being fired from his job, a financial analyst drank almost a quart of vodka and decided to ride the bus home. While on the bus, he saw a briefcase he mistakenly thought was his own and began struggling with the passenger carrying the briefcase. The analyst knocked the passenger to the floor, took the briefcase, and fled. The analyst was arrested and charged with robbery.

Should he be convicted of robbery?

A. No, because he used no threats and was intoxicated.

B. No, because his mistake negated the required specific intent.

C. Yes, because his intoxication was voluntary.

D. Yes, because mistake is no defense to robbery.

Explanation:

Robbery requires proof of the following elements:

The defendant unlawfully took and carried away the victim's property.

The property was taken from the victim's person or presence by force *or* threat of force **(Choice A)**.

The defendant **specifically intended** to permanently deprive the victim of the property (ie, intent to steal).

Mistake of fact is a **defense to robbery** (and other specific intent crimes) when the defendant's **honest but mistaken belief** negates the requisite intent **(Choice D)**. This is true even when that mistake is unreasonable.

Here, the analyst took the passenger's briefcase by force when he knocked the passenger to the floor and fled with it. But the analyst did not intend to deprive the passenger of his briefcase since the analyst honestly but mistakenly believed that he owned it. And though that mistaken belief likely was unreasonable (and the result of the analyst's intoxication), it still negated the specific intent required for robbery. Therefore, the analyst should be acquitted.

(Choice C) Voluntary intoxication is a defense to specific intent crimes if it prevented the defendant from forming the requisite intent. And since the analyst's intoxication may have contributed to his mistaken belief that he owned the briefcase, it would support an acquittal—not a conviction.

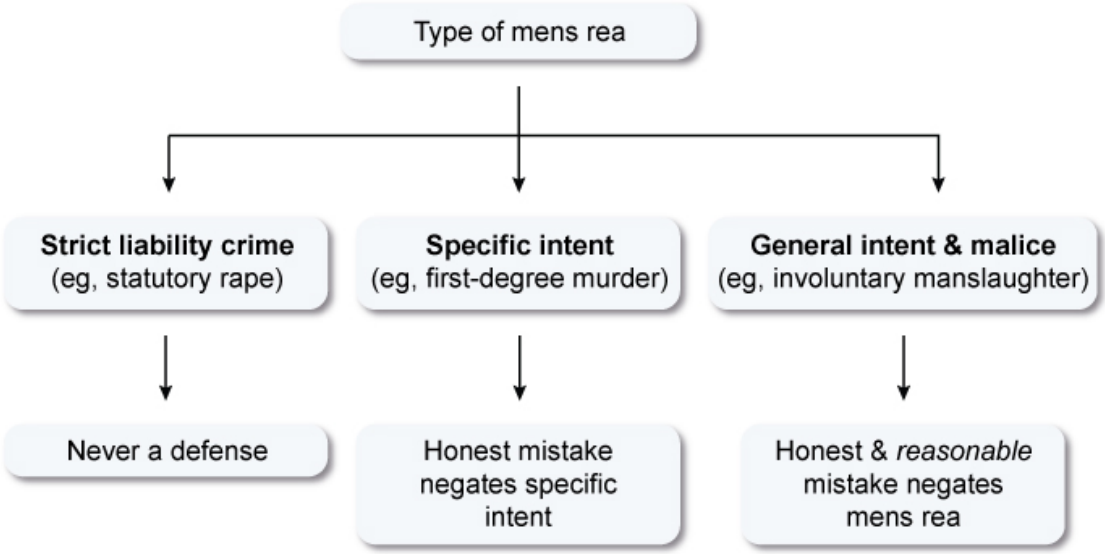
Educational objective:

Mistake of fact is a defense to specific intent crimes (eg, robbery) when the defendant's honest but mistaken belief negates the requisite intent—even if that belief was unreasonable.

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Applicability of mistake-of-fact defense



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A kidnapping statute in State A makes it a crime for a person, including a parent, to "take a child from the custody of his custodial parent, knowing he has no privilege to do so." After a bitter court battle, a woman and man were divorced, and the woman was given custody of their daughter.

The man later moved to State B, where he brought an action to obtain custody of the daughter. A local judge awarded him custody. His attorney incorrectly advised him that, under this award, he was entitled to take the daughter away from the woman. The man drove to State A, picked the daughter up at her preschool, and took her back to State B with him. He was indicted for kidnapping in State A, extradited from State B, and tried.

At trial, he testified that he had relied on his attorney's advice in taking the daughter, and that at the time he believed his conduct was not illegal.

If the jury believes the man's testimony, what should be its finding?

A. Acquitted, because he acted on the advice of an attorney.

B. Acquitted, because he lacked a necessary mental element of the crime.

C. Convicted, because reliance on an attorney's advice is not a defense.

D. Convicted, provided a reasonable person would have known that the attorney's advice was erroneous.

Explanation:

Mistake of law v. Mistake of fact

	Definition	Applicability
Mistake of law	Defendant mistakenly believes conduct not prohibited by law	No defense unless: Law prohibiting conduct was unavailable Defendant reasonably relied on invalid law Mistake negates mens rea*
Mistake of fact	Defendant is mistaken as to a matter of fact	When mistake negates mens rea: Specific intent – defense if honest mistake General intent & malice – defense if honest & reasonable mistake Strict liability – no defense

*Mens rea – state of mind necessary to be guilty of criminal offense.

A defendant's mistaken belief that his/her conduct was not prohibited by law (ie, **mistake of law**) is rarely a defense to criminal liability. But it is a **valid defense** when it **negates** the **required mens rea** (ie, mental state) for the crime.

Here, State A's kidnapping statute makes it a crime for any person to take a child from his/her custodial parent, *knowing* that he/she has no privilege to do so. And though the man took the daughter away from the woman (her custodial parent) in State A, his attorney had incorrectly advised him that he was legally entitled to take her. As a result, the man's mistake of law negates the necessary mental element of the crime, and he should be acquitted.

(Choices A, C & D) Erroneous legal advice from an attorney is not itself a valid defense—regardless of whether a reasonable person would have known that the advice was erroneous or relied on it. But it may negate the required mental state for the crime (as seen here). In that case, a mistake-of-law defense is appropriate.

Educational objective:

A defendant's mistaken belief that his/her conduct was not prohibited by law (ie, mistake of law) is a defense to a crime when it negates the required mens rea.

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A defendant was charged with battery in a jurisdiction that follows the "retreat" doctrine, and he pleaded self-defense. At his trial, the evidence established the following: A man and his wife were enjoying a drink at a tavern when the defendant entered and stood near the door. The wife whispered to her husband that the defendant was the man who had insulted her on the street the day before. The husband approached the defendant and said, "Get out of here, or I'll break your nose." The defendant said, "Don't come any closer, or I'll hurt you." When the husband raised his fists menacingly, the defendant pulled a can of pepper spray from his pocket, aimed it at the husband's face, and sprayed. The husband fell to the floor, writhing in pain.

Should the defendant be convicted?

A. No, because he had no obligation to retreat before resorting to nondeadly force in self-defense.

B. No, because there is no obligation to retreat when one is in an occupied structure.

C. Yes, because he failed to retreat even though there was an opportunity available.

D. Yes, because the husband did not threaten to use deadly force against him.

Explanation:

Self-defense

(justification for criminal conduct)

	General requirements	**Duty to retreat**
Nondeadly force	Actual & reasonable belief of imminent *unlawful* harm Force reasonably necessary to prevent harm Not initial aggressor	No duty to retreat
Deadly force	Actual & reasonable belief of imminent *serious harm* or *death* Deadly force necessary to prevent harm Not initial aggressor	Majority rule: No duty to retreat Minority rule: Duty when safe retreat available *unless* inside one's home

Battery occurs when a person inflicts harmful or offensive contact on another. But a battery committed in **self-defense** is justified—and not subject to criminal liability—if the person:

actually and reasonably believed that force was necessary to protect against imminent unlawful harm

used reasonable force (ie, no more than necessary) to prevent such harm *and*

was not the initial aggressor—ie, did not provoke the altercation.

There is **no duty to retreat** before using ***nondeadly*force** in self-defense—even when one could do so safely **(Choice C)**. But in the few jurisdictions that follow the **retreat doctrine** (as seen here), a person **must retreat** before using ***deadly*force** when that person is outside his/her home and can retreat with reasonable safety.

Here, the wife provoked the altercation when she told her husband that the defendant had insulted her the day before. The husband then approached the defendant, threatened to break his nose, and raised his fists menacingly. This caused the defendant to actually and reasonably believe that he was in danger of imminent unlawful harm, so he sprayed the husband's face with pepper spray. And since the defendant had *no duty to retreat* before using such nondeadly force in self-defense, he should not be convicted of battery.

(Choice B) There is no obligation to retreat before using nondeadly force in self-defense—no matter the location. And under the castle doctrine (minority rule), there is no obligation to retreat before using deadly force while in one's home—not any occupied structure (eg, the tavern).

(Choice D) The fact that the husband did not threaten to use deadly force means that the defendant could not have used *deadly* force in self-defense. But since he used *nondeadly* force (pepper spray), his actions were justified.

Educational objective:

Under the retreat doctrine (minority rule), a person must retreat before using *deadly* force in self-defense if that person is outside his/her home and can do so with reasonable safety. But there is no duty to retreat before using *nondeadly* force in self-defense.

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A man was upset because he was going to have to close his liquor store due to competition from a discount store in a new shopping mall nearby. In desperation, he decided to set fire to his store to collect the insurance. While looking through the basement for flammable material, he lit a match to read the label on a can. The match burned his finger and, in a reflex action, he dropped the match. It fell into a barrel and ignited some paper. The man made no effort to put out the fire but instead left the building. The fire spread and the store was destroyed by fire. The man was eventually arrested and indicted for arson.

What verdict should the jury return at the man's trial?

A. Guilty, because the man could have put out the fire before it spread and did not do so because he wanted the building destroyed.

B. Guilty, because the man was negligent in starting the fire.

C. Not guilty, because even though the man wanted to burn the building, there was no concurrence between his mens rea and the act of starting the fire.

D. Not guilty, because his starting the fire was the result of a reflex action and not a voluntary act.

Explanation:

Most jurisdictions define **arson** as the malicious (ie, intentional or reckless) **burning of any structure or vehicle**—including the defendant's own property if the burning was committed to collect insurance proceeds. The burning can be **caused by** a **voluntary act**. But it can also be caused by an **omission** (ie, failure to act) if the defendant had a **legal duty to act** (eg, the defendant created the risk of harm) and **could have reasonably done so**.

Here, the man wanted to eventually set fire to his store to collect the insurance. And though he dropped the match in a reflex (not voluntary) action, he had a legal duty to put out the fire once it started. That is because he created the risk of fire by lighting the match **(Choice D)**. And since he could have put out the fire before it spread but did not do so because he maliciously wanted the building destroyed, the jury should return a guilty verdict.

(Choice B) Since arson requires proof of malice, the defendant must have acted intentionally or recklessly—not merely negligently. So the fact that the man negligently started the fire does not support his guilt.

(Choice C) An arson conviction requires proof of concurrence—ie, that the defendant had the required mens rea (ie, guilty mind) when the actus reus (ie, guilty act) occurred. Here, the actus reus occurred when the man failed to put out the fire—not when he started it. And since he had the required mens rea (malice) at that time, he is guilty.

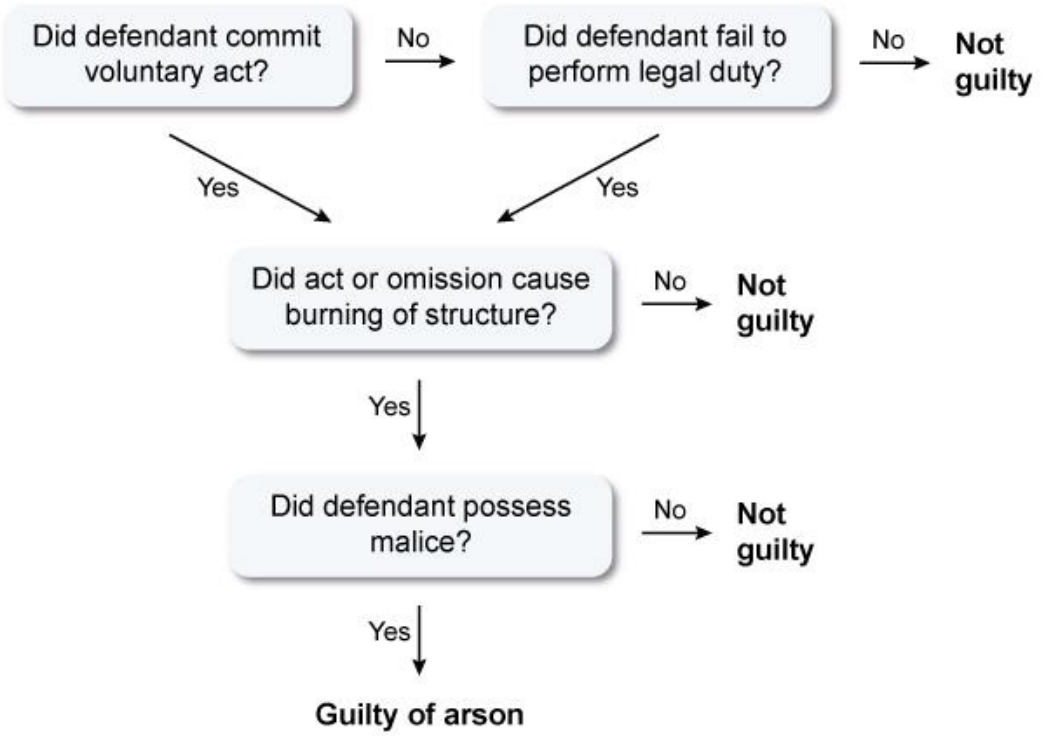
Educational objective:

Arson is the malicious burning of any structure or vehicle—including the defendant's own property if the burning was committed to collect insurance proceeds. The burning element can be met if the defendant acts voluntarily *or* fails to perform a legal duty when he/she could have reasonably done so.

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Arson based on act or omission



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In which of the following situations is the defendant most likely to be convicted, even though he did not intend to bring about the harm that the statute defining the offense is designed to prevent?

A. The defendant burglarized a jewelry store, intending to steal some diamonds. As he entered the store, he short-circuited the store's burglar alarm system, thereby preventing a warning of his entry to police. The smoldering wires eventually caused a fire that destroyed the store. Defendant is charged with arson.

B. The defendant struck the victim in the face with a baseball bat, intending to inflict a serious injury. The victim died after being hospitalized for three days. The defendant is charged with murder.

C. The defendant wanted to frighten the victim's friend by placing a plastic rattlesnake in his lunch box. When the victim mistakenly took the lunch box and opened it, believing it to be his own, the plastic rattlesnake popped out. As a result of the fright, the victim suffered a heart attack and died. The defendant is charged with involuntary manslaughter.

D. The defendant was the president of an aspirin manufacturing company. A federal inspector discovered that a large number of aspirin tablets randomly scattered through several bottles in a carton ready for shipment were laced with arsenic. The defendant is charged with attempted introduction of adulterated drugs into interstate commerce.

Explanation:

Homicide

Murder	**Common law**	**Modern approach**
	Unlawful killing committed with malice aforethought:	First-degree: murder committed with:
	Intent to kill	premeditation & deliberation
	Intent to cause serious bodily harm	heinous acts (eg, bombing, torture)
	Depraved-heart murder	enumerated felony murder
	Felony murder	Second-degree: any murder that is not first-degree murder
Voluntary manslaughter	Intentional killing mitigated by either:	
	adequate provocation (ie, heat of passion)	
	other mitigating factors (eg, imperfect self-defense)	
Involuntary manslaughter	Unintentional killing either:	
	caused by criminal negligence (or recklessness under MPC)	
	occurs during commission of criminal act (eg, misdemeanor manslaughter)	

MPC = Model Penal Code.

Murder is an **unlawful killing** committed with **malice aforethought**. The malice-aforethought requirement can be satisfied by *any* of these mental states:

intent to kill

intent to inflict serious bodily injury

reckless disregard of an obvious or unjustifiably high risk of causing death or serious bodily injury (ie, depraved-heart murder) *or*

intent to commit an inherently dangerous felony (ie, felony-murder rule).

Here, the defendant intended to inflict a serious injury when he struck the victim in the face with a baseball bat. And since the victim died as a result, the defendant is guilty of murder—even though he did not intend to kill the victim. Therefore, this defendant is *most* likely to be convicted of the charged offense.

(Choice A) Arson is the malicious (ie, intentional or reckless) burning of any structure. But this defendant did not intend to burn the store. Nor did he recklessly disregard an obvious

or high risk that disabling the store's burglary alarm would result in a fire. Therefore, he is unlikely to be convicted of arson.

(Choice C) Involuntary manslaughter is an *unintentional* killing committed with criminal negligence or during an unlawful act. But this defendant is unlikely to be convicted of this crime since he did not grossly deviate from a reasonable standard of care, or commit an unlawful act, by pranking the victim with a plastic rattlesnake.

(Choice D) Attempt always requires proof of specific intent to commit the target crime. And since there is no indication that this defendant intended to introduce adulterated aspirin into interstate commerce, he is unlikely to be convicted of attempt. This is true even though the completed crime is likely a strict liability offense.

Educational objective:

Murder need not be committed with the intent to kill. Instead, this crime can be committed with *any* type of malice aforethought—eg, intent to inflict serious bodily injury.

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A man was charged under a state statute criminalizing the commission of "any lewd act which the person knows is likely to be observed by others who would be affronted or alarmed." At trial, it was established that, one evening, the man emerged unclothed on his apartment balcony in full view of his neighbors. The man testified that, on the day of the incident, he had been drinking heavily and was so intoxicated that he believed he was walking into his bedroom and not onto his balcony. The man has asked the court to instruct the jury on the defense of voluntary intoxication.

In a jurisdiction that has adopted the Model Penal Code, should the court grant the man's request?

A. No, because the man has not been charged with a specific intent crime.

B. No, because the Model Penal Code does not recognize voluntary intoxication as a defense.

C. Yes, because a reasonable jury could find that the man's intoxication negated the requisite mental state.

D. Yes, because the evidence established that the man became intoxicated within the privacy of his home.

Explanation:

Voluntary intoxication

Majority approach	Defense to *specific intent* crimes—ie, crimes that require defendant to possess subjective desire, specific objective, or knowledge to accomplish prohibited result Defendant must prove that intoxication prevented formation of requisite intent
Model Penal Code approach	Defense to crimes for which required mental state is: *purposely* – with conscious objective to engage in conduct or cause particular result *or* *knowingly* – with awareness that conduct is of nature required by crime or practical certainty that conduct will cause particular result Defendant must prove that intoxication prevented formation of that mental state
Minority approach	Voluntary intoxication is no defense

A court should grant a request for a jury instruction on a defense if a reasonable jury could find evidence to support that defense. Under the **Model Penal Code** (MPC), voluntary intoxication is only a defense to crimes for which the requisite mental state is either:

purposely – with a conscious objective to (1) engage in the conduct or (2) cause a particular result *or*

knowingly – with (1) an awareness that the conduct is of the nature required by the crime or (2) a practical certainty that the conduct will cause a particular result **(Choice B)**.

To prevail on this defense, the **defendant must show** that his/her **intoxication prevented** the **formation** of the **requisite mental state**.

Here, voluntary intoxication is a defense to the charged crime since it requires the commission of a lewd act that the defendant *knew* was likely to be observed by others who would be affronted or alarmed. The man testified that he believed he was walking into his bedroom—not onto his balcony—due to his intoxication. A reasonable jury could find that this evidence negates the requisite mental state, so the court should grant the man's request.

(Choice A) Under the majority approach, voluntary intoxication is a defense only to specific intent crimes. In contrast, the MPC recognizes voluntary intoxication as a defense to crimes requiring that the defendant acted either purposely or knowingly.

(Choice D) The fact that the man became intoxicated within the privacy of his home is irrelevant since it has no bearing on whether he formed the requisite intent to commit the crime.

Educational objective:

Under the Model Penal Code, voluntary intoxication is a defense to crimes that require the defendant to have acted purposely or knowingly. To prevail on this defense, the defendant must prove that his/her intoxication prevented the formation of the requisite mental state.

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A man was paroled after serving five years in prison for forgery. Three weeks later, he found a handgun in a high school parking lot. Fearing that students from the school might find the gun and get into trouble using it, the man put it in the trunk of his car. The man drove off, was lawfully stopped by a police officer for speeding, and allowed the officer to search his car and the trunk. During the search, the officer discovered the gun.

The man was charged under a federal statute prohibiting the knowing possession of a firearm by a convicted felon.

Which of the following additional facts, if established, would be most helpful to the man's defense?

A. He did not intend to use the gun for an unlawful purpose.
B. He did not know about the federal statute.
C. He was driving to the police station to give the gun to the authorities when the officer stopped his car.
D. His previous conviction did not involve the use of a gun or other weapon.

Explanation:

Justifications for criminal acts

Necessity	Reasonable belief that conduct was necessary to avoid imminent & substantial harm No reasonable legal alternative Harm caused < harm avoided
Self-defense	Actual & reasonable belief that harm is imminent Reasonable force used to prevent harm Not initial aggressor
Defense of others	Actual & reasonable belief that force is necessary to protect victim from imminent harm Reasonable force used to protect victim
Defense of property	Force reasonably necessary to prevent imminent & unlawful interference with possessed property Nondeadly force used
Law enforcement	Prevent imminent crime Make lawful arrest *or* Prevent suspect's escape from custody
Resisting arrest	Reasonable force permitted to resist unlawful arrest or arrest by unknown police officer

The man violated the federal statute making it a crime for a convicted felon to knowingly possess a firearm. But the man only took the gun because he was worried that students might find the gun in the school parking lot and use it. Therefore, he can **justify** his criminal conduct and escape criminal liability if he can show that the crime was brought about by **necessity**. This requires proof that:

he reasonably believed that the crime was necessary to **avoid imminent and substantial harm**

no reasonable legal alternative was available *and*

the **harm caused** by the criminal conduct was **less than** the **harm avoided** (ie, the lesser of two evils).

Necessity must **exist at *all* times** that the defendant is engaged in the criminal conduct. Therefore, the fact that the man was driving to the police station to give the gun to the authorities when he was stopped would be most helpful to his defense.

(Choice A) The statute imposes criminal liability for knowingly *possessing* a firearm—even if there was no intent to use the gun for an unlawful purpose.

(Choice B) Ignorance of the law is almost never a defense. Therefore, the man's lack of knowledge about the federal statute will not absolve him of criminal liability.

(Choice D) The statute applies to all convicted felons—regardless of whether their prior conviction involved the use of a gun or other weapon.

Educational objective:

Necessity justifies criminal conduct if (1) the defendant reasonably believed that such conduct was necessary to avoid imminent and substantial harm, (2) no reasonable legal alternative was available, and (3) the harm caused was less than the harm avoided.

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Plagued by neighborhood youths who had been stealing lawn furniture from his backyard, a man remained awake nightly watching for them. One evening the man heard noises in his backyard. He yelled out, warning intruders to leave. Receiving no answer, he fired a shotgun filled with nonlethal buckshot into bushes along his back fence, where he believed the intruders might be hiding. A six-year-old boy was hiding in the bushes and was struck in the eye by some of the pellets, causing loss of sight. The man is charged with second-degree assault, which is defined in the jurisdiction as "maliciously causing serious physical injury to another."

What verdict should the jury render at the man's trial?

A. Guilty, because the man recklessly caused serious physical injury.

B. Guilty, because there is no privilege to use force against a person who is too young to be criminally responsible.

C. Not guilty, because the child was trespassing and the man was using what he believed was nondeadly force.

D. Not guilty, because the man did not intend to kill or to cause serious physical injury.

Explanation:

Justifications for criminal acts

Necessity	Reasonable belief that conduct was necessary to avoid imminent & substantial harm
	No reasonable legal alternative
	Harm caused < harm avoided
Self-defense	Actual & reasonable belief that harm is imminent
	Reasonable force used to prevent harm
	Not initial aggressor
Defense of others	Actual & reasonable belief that force is necessary to protect victim from imminent harm
	Reasonable force used to protect victim
Defense of property	Force reasonably necessary to prevent imminent & unlawful interference with possessed property
	Nondeadly force used
Law enforcement	Prevent imminent crime
	Make lawful arrest *or*
	Prevent suspect's escape from custody
Resisting arrest	Reasonable force permitted to resist unlawful arrest or arrest by unknown police officer

This jurisdiction defines **second-degree assault** as maliciously causing serious physical injury to another. **Malice** requires proof of either:

intent – conscious desire or practical certainty that one's act will cause a particular result *or*

recklessness – conscious disregard of a substantial and unjustifiable risk of harm.

Here, the man did not intend to kill or cause serious injury when he fired a shotgun filled with nonlethal buckshot into the bushes where he believed intruders might be hiding **(Choice D)**. But he recklessly (ie, maliciously) disregarded the substantial and unjustifiable risk that this would cause serious physical injury. And since some of the pellets struck the boy in the eye, causing loss of sight, the man committed second-degree assault.

However, an assault committed in **defense of property** may be justified if the person (1) **reasonably believed** that property in his/her possession was in danger of **imminent unlawful interference** (eg, trespass) and (2) used **reasonable, nondeadly force** to prevent such interference. Here, although the boy was trespassing and the man believed he was using nondeadly force, it was *unreasonable* to fire a shotgun into the bushes **(Choice**

C). As a result, the man's use of force was not justified and he should be found guilty of second-degree assault.

(Choice B) The privilege to use force against another, whether in defense of one's self or property, does not turn on that person's age. But the person's age and characteristics may be considered in determining whether the use of force was reasonable.

Educational objective:

An assault committed in defense of property may be justified if the person (1) reasonably believed that property in his/her possession was in danger of imminent unlawful interference and (2) used reasonable, nondeadly force to prevent such interference.

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A mechanic advised a delivery driver to replace the hitch on the driver's semi-truck during a routine inspection. The mechanic warned that if the hitch was not replaced, the trailer could disconnect from the semi-truck if driven at speeds exceeding 50 miles per hour. Wanting to avoid the additional cost, the driver opted against replacing the hitch and left the mechanic's shop. Late for a delivery, the driver entered a busy highway and accelerated to 55 miles per hour. Soon thereafter, the trailer disconnected from the semi-truck and obstructed three lanes of traffic.

The driver was charged with the violation of a state statute that makes it a crime for a person who, "having no legal privilege to do so, obstructs any highway or other public passage, whether alone or with others." The statute further provides that a person who commits the offense shall be punished by no more than six months' confinement. The jurisdiction has eliminated strict liability for crimes that carry the possibility of confinement, but the statute does not state a requisite mental state.

In a jurisdiction that has adopted the Model Penal Code approach with respect to mens rea, can the driver be convicted under the statute?

A. No, because at minimum, the driver must have acted knowingly.

B. No, because the driver's conduct was merely negligent.

C. Yes, because at minimum, the driver's conduct was reckless.

D. Yes, because the driver acted purposely.

Explanation:

Hierarchy of culpable mental states

(Model Penal Code)

Purposely	Defendant acts with conscious objective to: engage in conduct *or* cause particular result
Knowingly	Defendant acts with: awareness that conduct is of nature required by crime *or* practical certainty that conduct will cause particular result
Recklessly	Defendant acts with: conscious disregard of substantial & unjustifiable risk *and* risk amounts to gross deviation from law-abiding citizen's standard of conduct
Negligently	Defendant: should be aware of substantial & unjustifiable risk *and* risk amounts to gross deviation from reasonable person's standard of care

Under the **Model Penal Code**, when a statute fails to include a requisite mental state, the prosecution must prove that the defendant acted **at least recklessly** to obtain a conviction **(Choice A)**. This means that a showing of either a **purposeful** or **knowing** mental state will also suffice to obtain a conviction—since those are higher levels of culpability than recklessness. However, proof that the defendant merely acted **negligently will not suffice** since negligence is a lower level of culpability than recklessness.

Here, the driver was *aware* that driving at speeds exceeding 50 miles per hour could cause his trailer to detach. The driver consciously disregarded that risk by driving at 55 miles per hour, resulting in the trailer detaching and obstructing the highway. This means that his conduct exceeded criminal negligence and was, at a minimum, reckless **(Choice B)**. Accordingly, the driver can be convicted under the statute.

(Choice D) Under the Model Penal Code, a purposeful mental state involves a conscious objective to engage in conduct or cause a particular result. Here, there are no facts to indicate that the driver acted with the objective of obstructing the highway. Nevertheless, the driver can be convicted under the statute because he acted recklessly.

Educational objective:

Under the Model Penal Code, when a statute fails to include a requisite mental state, the prosecution must prove that the defendant acted at least recklessly to obtain a conviction.

References

Model Penal Code § 2.02(3) (establishing minimum requisite mental state when not indicated in statute).

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While walking home one evening, an off-duty police officer was accosted by a stranger. The stranger had been drinking and mistakenly thought the officer was a man who was having an affair with his wife. Intending to frighten the officer but not to harm him, the stranger pulled out a knife, screamed obscenities, and told the officer he was going to kill him. Frightened and reasonably believing the stranger was going to kill him and that using deadly force was his only salvation, the officer took out his service revolver and shot and killed the stranger.

The officer is charged with murder. At trial, he claims that he acted in self-defense.

Was the officer justified in using deadly force in self-defense?

A. No, because the officer was not defending his home and had an obligation to retreat or to repel with less than deadly force.
B. No, because the stranger did not in fact intend to harm the officer and the officer was incorrect in believing that he did.
C. Yes, because the killing was in hot blood upon sufficient provocation.
D. Yes, because the officer reasonably believed the stranger was planning to kill him and that deadly force was required.

Explanation:

The use of **deadly force in self-defense** is justified and a **defense to murder**—an unlawful killing of another with malice aforethought (eg, intent to inflict serious bodily harm)—when the defendant:

actually and reasonably believed that deadly force was **necessary to prevent** imminent serious bodily harm or **death** *and*

was **not the initial aggressor**—ie, did not engage in physical force first or intentionally provoke the altercation.

Here, the officer intentionally shot and killed the stranger. But the officer actually and reasonably believed that deadly force was necessary to prevent his imminent death because the stranger had pulled out a knife and threatened to kill the officer. And since the officer was not the initial aggressor, he justifiably used deadly force in self-defense.

(Choice A) In most jurisdictions, a person has no duty to retreat or repel an attack before using deadly force in self-defense—even when the person is outside his/her home (as seen here). But in a minority of jurisdictions, a person who is *outside* his/her home must retreat before using deadly force if he/she can safely do so.

(Choice B) To use deadly force in self-defense, the person's actual belief that serious bodily harm or death is imminent need only be reasonable—not correct. Therefore, the officer's incorrect belief that the stranger intended to harm him does not negate this defense.

(Choice C) Proof that the defendant intentionally killed in hot blood upon sufficient provocation—ie, an action that would cause a reasonable person to lose control—*reduces* murder to voluntary manslaughter. But it does not *justify* the use of deadly force in self-defense.

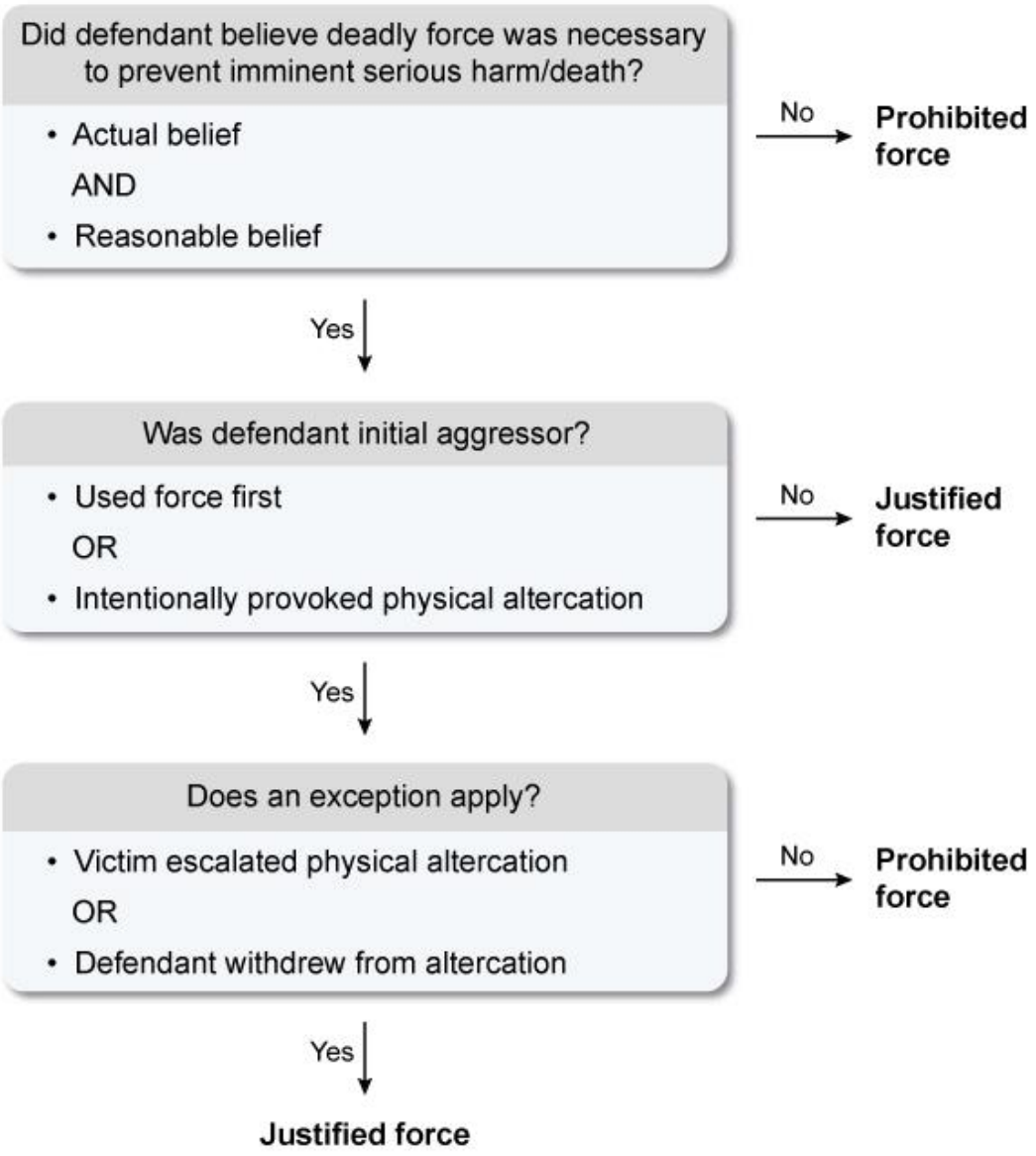
Educational objective:

A defendant may justifiably use deadly force in self-defense when he/she (1) actually and reasonably believes that deadly force is necessary to prevent serious bodily harm or death and (2) is not the initial aggressor.

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Deadly force in self-defense



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The owner of a meatpacking company was charged under a state criminal code prohibiting the sale of contaminated meat. The state's highest court has construed the code as imposing strict and vicarious liability to the extent allowed by the federal Constitution.

The evidence at trial established that the owner's company had sold contaminated meat that had sickened hundreds of consumers. It further showed, however, that the owner had been out of the country when the meat was sold and had had no reason to know that any of the meat was contaminated.

The jury convicted the owner, and the court sentenced him to a large fine and probation. On appeal, the owner has challenged the sufficiency of the trial evidence.

Should the appellate court uphold the conviction?

A. No, because there was insufficient proof of the owner's actus reus.

B. No, because there was insufficient proof of the owner's mens rea.

C. Yes, because an appellate court cannot second-guess a jury's verdict.

D. Yes, because the evidence was sufficient to support the jury's verdict.

Explanation:

General and specific intent crimes require proof that a defendant had a particular mens rea (state of mind) and committed a particular actus reus (criminal act). But since **strict liability crimes** have **no mens rea requirement**, proof of the **actus reus alone is sufficient** to support a conviction **(Choice B)**. And the defendant can be (1) directly liable for personally committing the actus reus *or* (2) vicariously liable, if the statute allows, for using an agent to do so.

Here, the state criminal code imposes strict liability for the direct or vicarious sale of contaminated meat. Since the meatpacking company (the owner's agent) committed the necessary actus reus when it sold contaminated meat, the evidence was sufficient to support the owner's vicarious liability for this offense **(Choice A)**. As a result, the appellate court should uphold the jury's verdict convicting the owner of this strict liability crime.

(Choice C) An appellate court *can* second-guess a jury's verdict and overturn a conviction if the court finds that the evidence was insufficient to sustain the verdict.

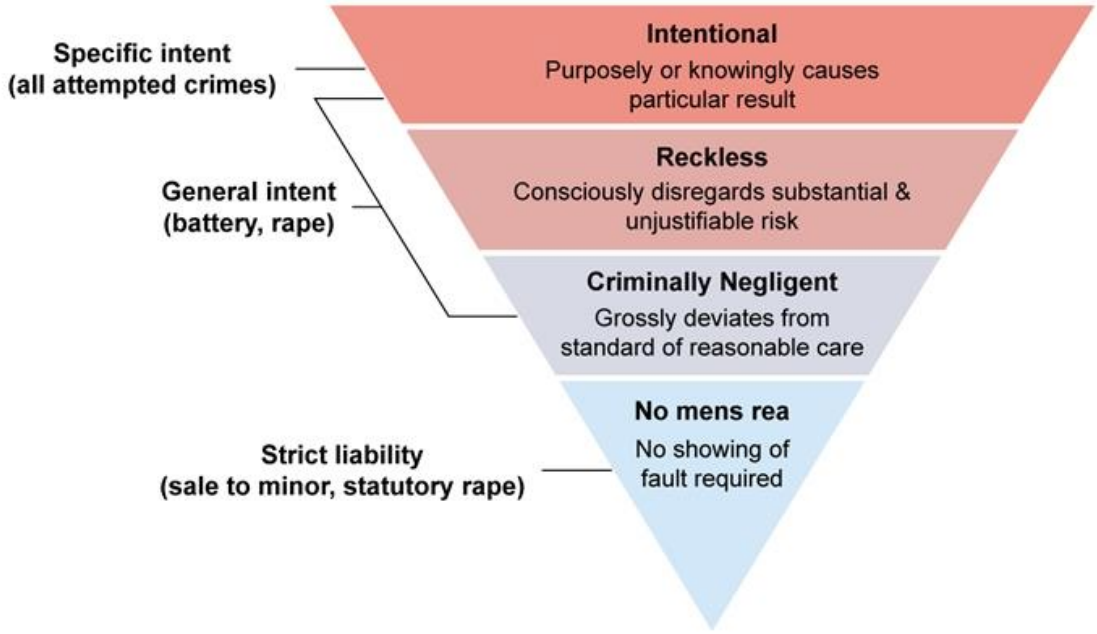
Educational objective:

Since strict liability crimes have no mens rea requirement, proof of the actus reus alone will support a conviction.

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Types of mens rea



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During an altercation between a man and his coworker at a company picnic, the man suffered a knife wound in his abdomen and the coworker was charged with assault and attempted murder. At his trial, the coworker seeks to offer evidence that he had been drinking at the picnic and was highly intoxicated at the time of the altercation.

In a jurisdiction that follows the common-law rules concerning admissibility of evidence of intoxication, how should the court rule on evidence of the coworker's intoxication?

A. Admit the evidence subject to an instruction that it pertains only to the assault charge.
B. Admit the evidence subject to an instruction that it pertains only to the attempted-murder charge.
C. Admit the evidence without limitation.
D. Exclude the evidence altogether.

Explanation:

Specific intent crimes

(criminal acts committed to purposely or knowingly cause a particular result)

Assault
Murder requiring premeditation or deliberation
Burglary
Inchoate crimes – solicitation, conspiracy, attempt
Theft crimes – larceny, robbery, embezzlement, false pretenses, forgery, receiving stolen property, extortion
Mnemonic: **AMBIT**

Voluntary intoxication is the deliberate ingestion of a substance that the defendant knows, or should know, tends to have intoxicating effects. At common law (and in most jurisdictions), voluntary intoxication is a **defense to specific intent crimes** if it **prevented** the defendant from **forming the required intent**.

Here, the coworker is on trial for both:

assault – which requires proof that the defendant specifically intended* to commit battery *and*

attempted murder – which requires proof that the defendant specifically intended to kill the victim.

Since these are both specific intent crimes, the coworker may offer evidence of his voluntary intoxication to establish that the intoxication prevented him from forming the required intent for either charge. Therefore, the court should admit evidence of the coworker's intoxication without limitation **(Choices A, B & D)**.

*By contrast, "fear of harm" assault (a general intent crime) may be proven by showing that the defendant intentionally placed the victim in apprehension of imminent bodily harm.

Educational objective:

When a defendant is charged with a specific intent crime, evidence of voluntary intoxication may be offered to show that the intoxication prevented the defendant from forming the required intent.

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A two-year-old became ill with meningitis. Her parents were members of a group that believed fervently that if they prayed enough, God would not permit their child to die. Accordingly, they did not seek medical aid for their child and refused all offers of such aid. They prayed continuously. The child died of the illness within a week.

The parents are charged with murder in a common law jurisdiction.

What is their best defense to the charge?

A. The child's death was not proximately caused by their conduct.

B. They did not intend to kill or to harm the child.

C. They neither premeditated nor deliberated.

D. They were pursuing a constitutionally protected religious belief.

Explanation:

Common law murder is an **unlawful killing** committed with malice aforethought. The actus reus (unlawful killing) element is met when the unlawful result (death) is **caused by** any of the following:

Voluntary act – the defendant consciously performed a bodily movement

Omission – the defendant had a legal duty to act, could physically perform that act, but failed to do so

Vicarious liability – the defendant was responsible for another's actions

But a murder conviction also requires proof of **concurrence**—ie, that the defendant had the requisite **mens rea** (malice aforethought) **at the time** the actus reus was **actuated and committed**.

Here, the two-year-old died of meningitis when her parents breached their legal duty to the child by failing to seek and accept medical aid. Although this omission satisfies the actus reus requirement, the parents can only be convicted if there also was concurrence. Therefore, their best defense is that they did not have the necessary malice aforethought (eg, intent to kill or harm the child) at the time the unlawful killing occurred.

(Choice A) The child's death *was* proximately caused by the parent's conduct since it was foreseeable that a child with meningitis would die if left untreated.

(Choice C) Most jurisdictions distinguish between murder in the first degree (ie, premeditated and deliberated) and second degree (ie, all other murder)—but the common law does not. Therefore, the parents can be convicted even if they lacked premeditation and deliberation.

(Choice D) Although the parents were pursuing their religious belief, this does not immunize them from laws that are applied equally to all (eg, common law murder). Therefore, the First Amendment free exercise clause is no defense.

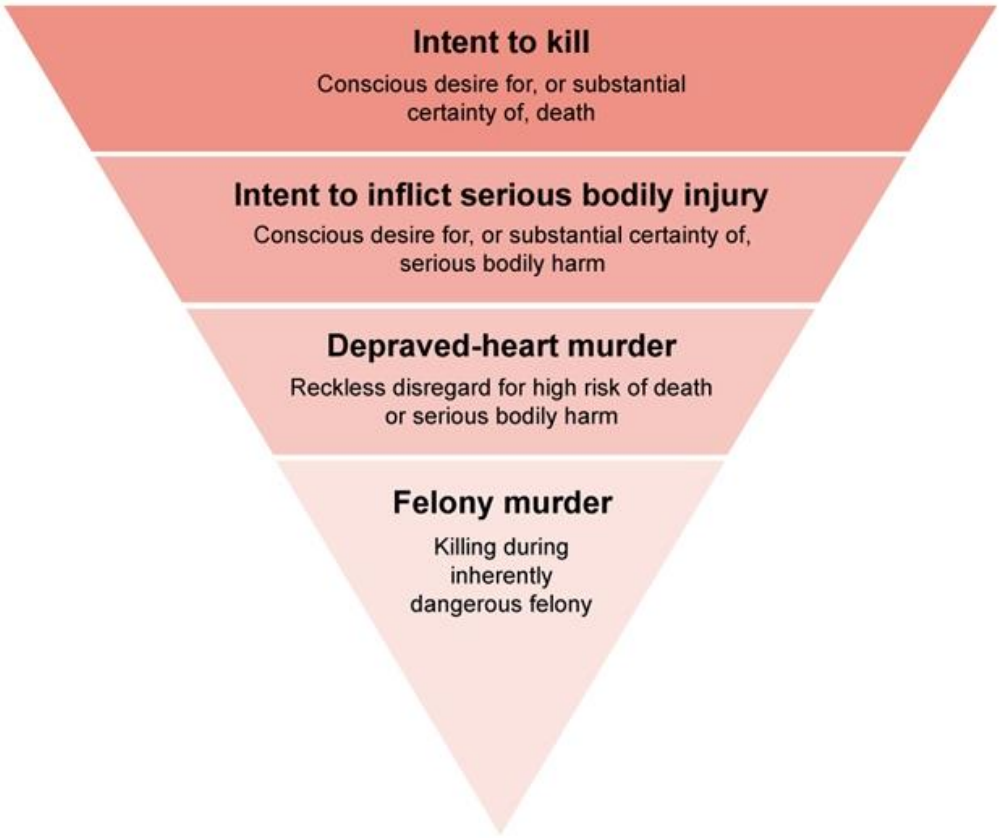
Educational objective:

Crimes generally require proof of concurrence—ie, that the defendant had the requisite mens rea (criminal mind) at the time the actus reus (criminal act) was actuated and committed. And the actus reus can stem from the defendant's voluntary act, omission, or vicarious liability.

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Malice aforethought



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A man who believed that his wife was cheating on him with her gym trainer decided to kill the trainer. He loaded his handgun and set off for the trainer's house. Because he was anxious about committing the crime, the man first stopped at a bar, drank eight shots of hard liquor, and became intoxicated. He then left the bar and went to the trainer's house. When the trainer answered the door, the man shot and killed him. The man then passed out on the trainer's porch.

The man has been charged with murder in a jurisdiction that follows the common law.

Can the man raise an intoxication defense?

A. No, because drinking at the bar was the proximate cause of the killing.
B. No, because the man intended to commit the murder and drank to strengthen his nerve.
C. Yes, because drinking at the bar was a foreseeable intervening cause of the killing.
D. Yes, because the man's intoxication negated the specific intent required for murder.

Explanation:

A defendant may be able to raise an **intoxication defense** if he/she was intoxicated when the crime was committed due to either:

Involuntary intoxication – the unknowing or forcible ingestion of an intoxicating substance is a defense if it placed the defendant in the same mental state required for an insanity defense.

Voluntary intoxication – the deliberate ingestion of a substance that the defendant knew or should have known has intoxicating effects is only a **defense to specific intent** crimes if the intoxication **prevented the defendant from forming** such intent.

At common law, murder is defined as the unlawful killing of another with malice aforethought. Although voluntary intoxication is no defense if the defendant acted with *reckless* malice aforethought, it may negate a defendant's *specific intent* to kill. But such intent is **not negated** if the defendant **became intoxicated to commit** the crime.

Here, the man decided to kill the trainer because he thought that the trainer and his wife were having an affair (specific intent to kill). He had deliberately ingested eight shots of hard liquor at a bar before he went to the trainer's house (voluntary intoxication) and therefore was intoxicated when he killed the trainer. But since the man had become intoxicated to strengthen his nerve to commit the murder, intoxication is no defense **(Choice D)**.

(Choice A) Proximate causation exists when it was foreseeable that the defendant's conduct would kill the victim. Although common law murder requires proof that the defendant proximately caused the victim's death, it has no bearing on whether intoxication is a valid defense.

(Choice C) An *unforeseeable* intervening cause—an event that happens after the defendant acts but before harm occurs—may eliminate the proximate causation required for a crime. But a *foreseeable* intervening cause will not. And even if an unforeseeable intervening cause had occurred (eg, had a plane crashed into the trainer's home), it would not impact the man's ability to raise an intoxication defense. Instead, it would serve as a separate defense.

Educational objective:

Involuntary intoxication is a defense if it placed the defendant in the same mental state required for an insanity defense. Voluntary intoxication is a defense to specific intent crimes if the intoxication kept the defendant from forming such intent. But it is not a defense if the defendant became intoxicated to commit the crime.

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Intoxication defense

Type of crime	Definition	Voluntary	Involuntary
Specific intent	Act consciously performed for particular purpose	✓	✓
General intent	Act consciously performed		✓
Strict liability	Act performed		✓

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A woman and her friend were engaged in a heated discussion over the relative merits of their favorite professional football teams when the woman said, "You have to be one of the dumbest persons around." The friend punched the woman in the face. The woman then drew a knife and stabbed her friend in the stomach. Other persons then stepped in and stopped any further fighting. Despite the pleas of the other persons, the friend refused to go to a hospital or to seek medical treatment. About two hours later, he died as the result of a loss of blood.

The woman was charged with murder. At trial, medical evidence established that if the friend had been taken to a hospital, he would have survived. At the end of the case, the woman moves for a judgment of acquittal or, in the alternative, for an instruction on the elements of voluntary manslaughter.

How should the court rule on the woman's motions?

A. Deny both motions.

B. Deny the motion for acquittal, but instruct on manslaughter because the woman acted with criminal negligence.

C. Deny the motion for acquittal, but instruct on manslaughter because there is evidence of adequate provocation.

D. Grant the motion for acquittal.

Explanation:

A motion for acquittal should be granted if there is insufficient evidence to support any element of the charged crime. Murder requires evidence that the defendant acted with malice aforethought and caused the unlawful killing of another. **Causation** must be both:

actual – (1) the unlawful result would not have occurred **but for** the defendant's conduct *or* (2) when multiple causes exist, the defendant's conduct was a substantial factor in causing that result *and*

proximate – the unlawful result was a **foreseeable consequence** of the defendant's actions.

An **intervening cause**—ie, an event that happens after the defendant acts but before harm occurs—will **break the chain** of **proximate causation** if the event was ***unforeseeable***.

Here, the woman actually and proximately caused her friend to die by stabbing him with malice aforethought. And though the friend's refusal to seek medical treatment is an intervening cause—and the friend would have survived had he gone to the hospital—that refusal was *foreseeable* . Therefore, it did not negate proximate causation and the motion for acquittal should be denied **(Choice D)**.

However, the court should instruct the jury on **voluntary manslaughter** if a reasonable jury could find that the defendant **intentionally killed** the victim:

in response to **adequate provocation**—an act that would cause sudden and intense passion in a reasonable person—*and*

in the **heat of passion**—before a reasonable person could, and the defendant did, cool off from the provocation.

Here, the woman intentionally stabbed the friend while impassioned by his punch. And since a reasonable jury could find that the punch was adequate provocation, the court should give an instruction on voluntary manslaughter **(Choice A)**.

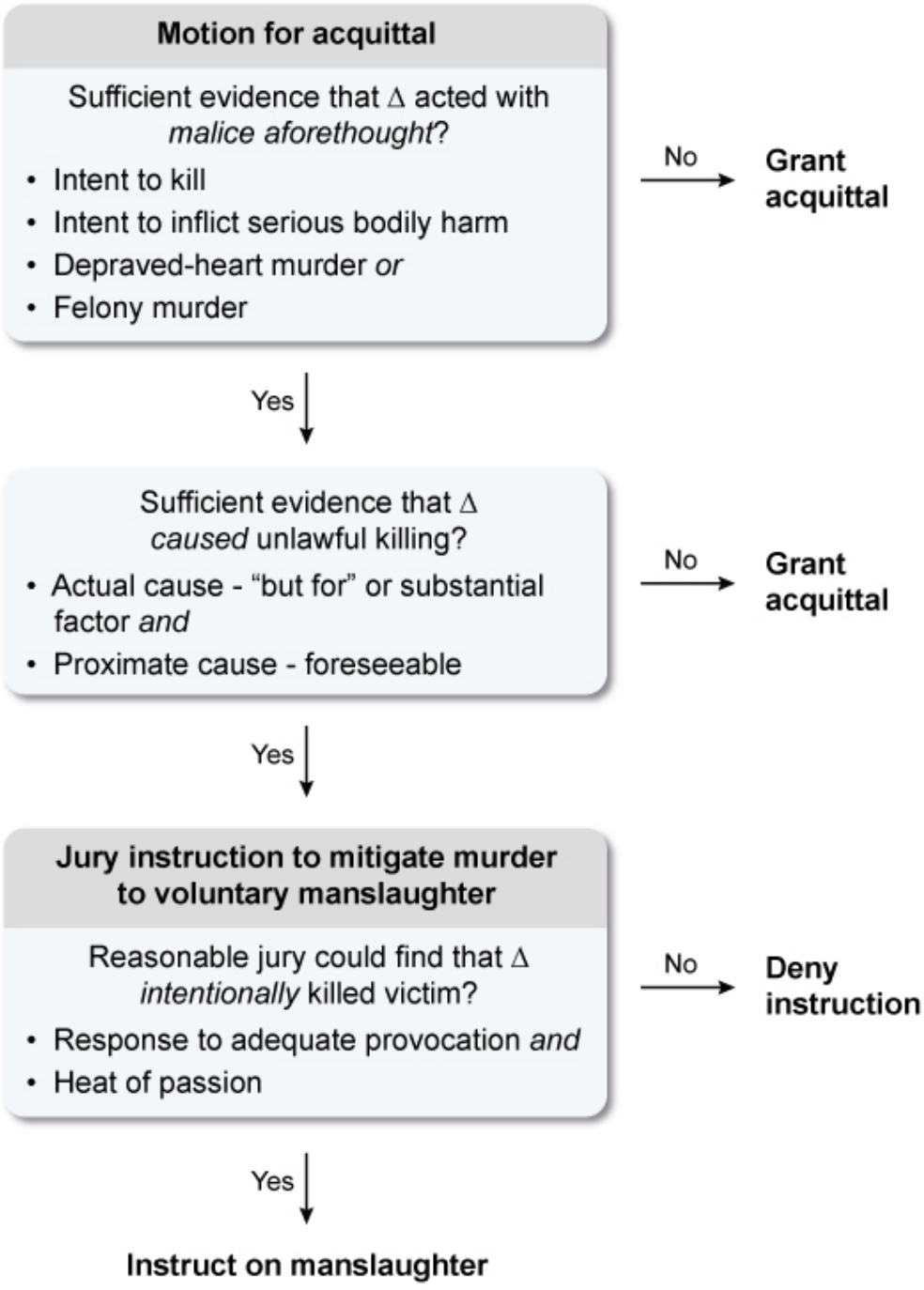
(Choice B) Murder can be mitigated to involuntary manslaughter if the defendant acted with criminal negligence. But here, the woman acted with malice aforethought—not mere criminal negligence—when she *intentionally* stabbed the friend. Therefore, an involuntary-manslaughter instruction is inappropriate.

Educational objective:

Murder requires proof of actual (but for) and proximate (foreseeable) causation. An unforeseeable intervening cause eliminates proximate causation, but a *foreseeable* intervening cause (eg, a victim's refusal to seek medical treatment) does not.

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Motion for acquittal
Sufficient evidence that Δ acted with *malice aforethought*?
• Intent to kill
• Intent to inflict serious bodily harm
• Depraved-heart murder *or*
• Felony murder
No
Grant acquittal
Yes
Sufficient evidence that Δ *caused* unlawful killing?
• Actual cause - "but for" or substantial factor *and*
• Proximate cause - foreseeable
No
Grant acquittal
Yes
Jury instruction to mitigate murder to voluntary manslaughter
Reasonable jury could find that Δ *intentionally* killed victim?
• Response to adequate provocation *and*
• Heat of passion
No
Deny instruction
Yes
Instruct on manslaughter
Δ = defendant

A state statute provides: "Aggravated robbery of the elderly consists of robbery committed against a victim who is 65 years of age or older." Another state statute provides that when a criminal statute does not designate a necessary mental state, the mental state required is recklessness. A third state statute provides that a person acts recklessly if the person "consciously disregards a substantial and unjustified risk that the material element exists or will result from the person's conduct."

The evidence at a criminal trial showed that the defendant robbed a 66-year-old man outside a senior citizens' center. The defendant testified truthfully that the robbery had occurred on a dark night, that she had had no idea how old the victim was and had not cared how old the victim was, and that she had intended to rob whomever she encountered.

Could the defendant properly be convicted of aggravated robbery of the elderly?

A. No, because the only evidence on the issue showed that the defendant did not know, nor could she reasonably have known, the victim's age.

B. No, because there was no evidence of a substantial risk that the victim was age 65 or older.

C. Yes, because the evidence was clear that the victim was 66 years old, and the robbery statute is designed to protect the elderly.

D. Yes, because the jury could find that there was no justification for the defendant's conduct and that she was willing to take the risk that the victim was age 65 or older.

Explanation:

This jurisdiction defines aggravated robbery of the elderly as robbery committed against a victim who is 65 years of age or older. And since this statute does not designate the necessary mental state, the **required mental state** in this jurisdiction is **recklessness**—ie, the **conscious disregard** of a **substantial and unjustified risk** that:

the material element exists *or*

the material element will result from the defendant's conduct.

Since this robbery statute is specifically designed to protect the elderly, the material element is the victim's age. Therefore, a defendant can only be convicted if he/she consciously disregarded a substantial and unjustified risk that the victim was 65 years of age or older.

Here, the evidence shows that the defendant robbed a 66-year-old man. And though the defendant did not know how old the victim was, the jury could still find that the defendant acted recklessly **(Choice A)**. That is because she consciously disregarded the substantial and unjustified risk that the victim was 65 or older since she (1) did not care how old the victim was, (2) intended to rob whomever she encountered, and (3) committed the robbery outside a senior citizens' center **(Choice B)**. Therefore, the jury can properly convict her.

(Choice C) Although there was clear evidence that the victim was 66 years old and the robbery statute is designed to protect the elderly, the defendant can only be convicted if she acted with the requisite mental state—recklessness.

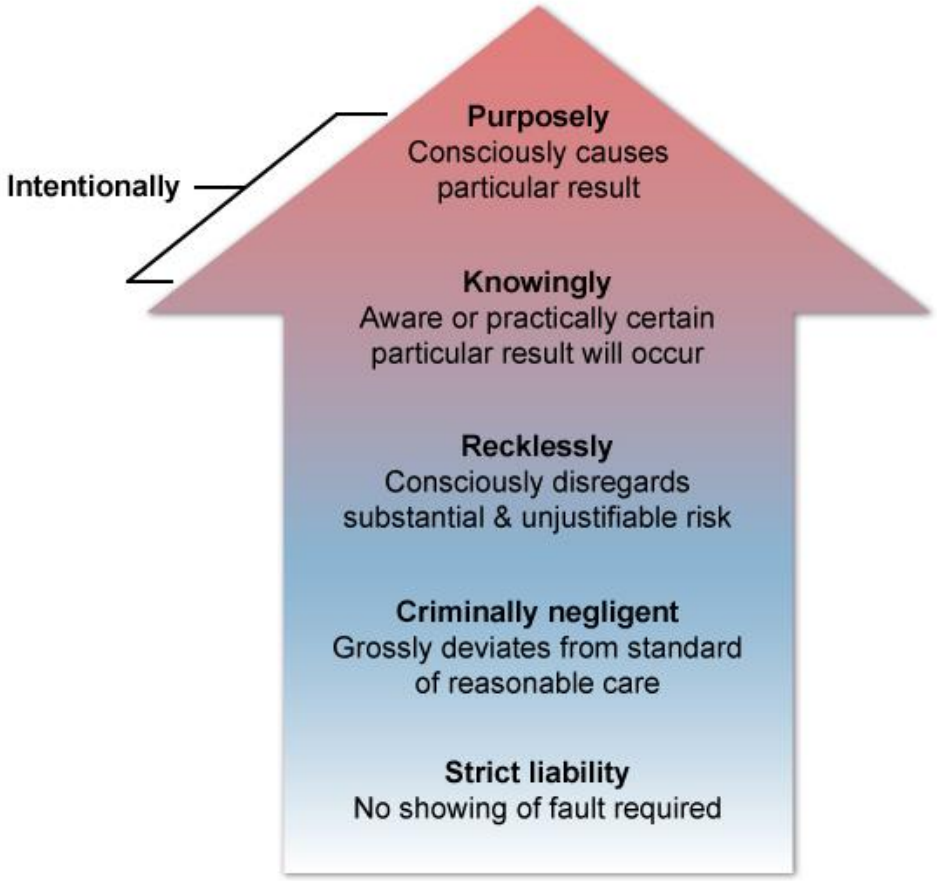
Educational objective:

A defendant can only be convicted of a crime if he/she acted with the requisite mental state—eg, recklessness.

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Criminal mental states



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A bartender is charged with the statutory offense of "knowingly violating a regulation of the State Alcoholic Beverage Control Board" and specifically that he knowingly violated regulation number 345-90 issued by the State Alcoholic Beverage Control Board. That regulation prohibits the sale of alcoholic beverages to any person under the age of 21. It also prohibits the sale of any alcoholic beverage to a person over the age of 20 and under the age of 24 without the presentation of such person's driver's license or other identification showing the age of the purchaser to be 21 or older.

The evidence showed that the bartender worked in a tavern, sold a bottle of beer to a person who was 19 years old, and did not ask for or see the purchaser's driver's license or any other identification.

Which of the following, if found by the jury, would most help the bartender?

A. The bartender did not know that the regulations classified beer as an alcoholic beverage.
B. The bartender had never been told he was supposed to check identification of persons over 20 and under 24 before selling them alcohol.
C. The bartender mistakenly believed the purchaser to be 26 years old.
D. The purchaser had a driver's license that falsely showed his age to be 21.

Explanation:

The bartender is charged with **knowingly** violating an alcoholic-beverage regulation. Knowledge requires proof that the defendant was **aware** that his/her **conduct was of the nature required** by the criminal statute. This means that the bartender can only be convicted if he knowingly sold alcohol to someone (1) under the age of 21 or (2) between the ages of 21 and 23 without checking identification. And since the bartender could not knowingly do so if he mistakenly believed the purchaser to be 26 years old, this jury finding would most help his defense.

(Choices A & B) Ignorance or mistake of law would serve as a defense if it negated the requisite mental state. But the bartender's ignorance regarding the regulation's identification requirement and beer classification is no defense here since it fails to show that he did *not know* that the purchaser was under 24 years old.

(Choice D) The statute required the bartender to check the identification of persons between 21 and 23 years of age before selling them alcohol. But since the bartender never checked the purchaser's identification, the fact that his driver's license was false would not absolve the bartender of guilt.

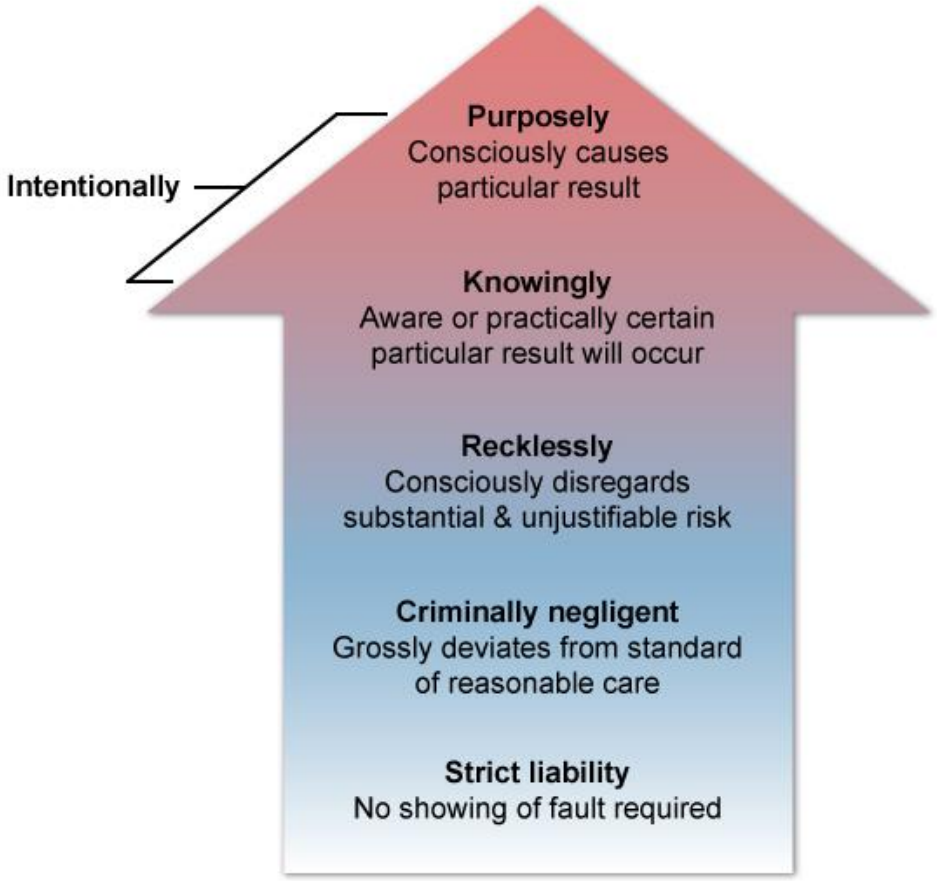
Educational objective:

Criminal statutes listing "knowledge" as the requisite mental state require proof that the defendant was aware that his/her conduct was of the nature required by that statute.

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Criminal mental states



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A woman asked her neighbor if he would loan her $500, promising to repay the amount within two weeks. The neighbor loaned her the $500. The next day the woman took the money to the race track and lost all of it betting on horse races. She then left town for six months. She has not repaid the neighbor.

Which of the following crimes has the woman committed?

A. Both larceny by trick and obtaining money by false pretenses (although she can only be convicted of one offense).
B. Larceny by trick only.
C. Obtaining money by false pretenses only.
D. Neither larceny by trick nor obtaining money by false pretenses.

Explanation:

A person who **knowingly misrepresents** a past or present material fact with the **intent to defraud** commits either:

larceny by trick – if the person thereby **obtains only possession** of another's property *or*

false pretenses – if the person thereby **obtains title** to another's property.

Here, the woman did not commit larceny by trick since she obtained *title* to (not mere possession of) the neighbor's money when she failed to repay his loan as promised **(Choices A & B)**. And she did not commit false pretenses since there is no indication that she knowingly misrepresented her ability to repay the loan or intended to defraud the neighbor **(Choice C)**.

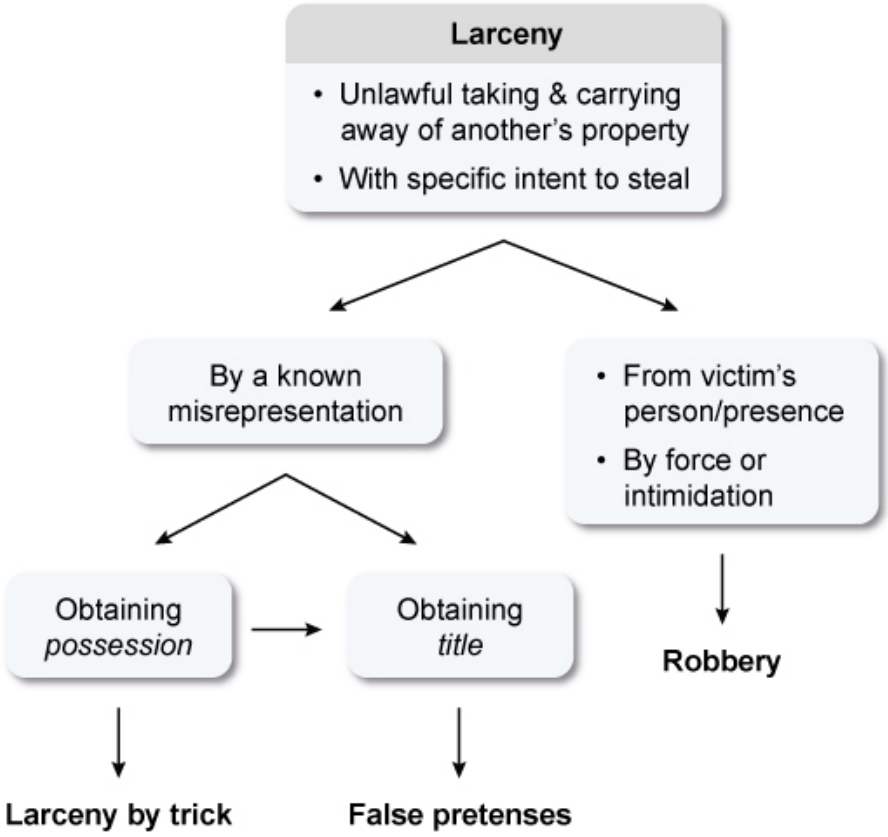
Educational objective:

False pretenses differs from larceny by trick in that false pretenses requires that a person obtain title to—not mere possession of—another's property.

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Distinguishing property crimes



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A man who had retired from a career in music was asked to play some of his old songs at a local bar. Because he was anxious about singing after being retired for a few years, the man drank several shots of liquor at his friend's house and became intoxicated. Before he left for the bar, the man saw his friend's guitar, which was much nicer than the man's. The man wanted to give a good performance, so he took his friend's guitar to use that evening without the friend's permission. On his way to return the friend's guitar the next day, the man tripped and fell, breaking the friend's guitar outside of the friend's house. Upset by the man's actions, his friend called the police, and the man was charged with larceny.

Can the man be properly convicted of larceny?

A. No, because the man did not intend to deprive the friend of his guitar indefinitely.

B. No, because the man's intoxication prevented the formation of the requisite intent.

C. Yes, because the man took possession of the friend's guitar without permission.

D. Yes, because the man's destruction of the guitar constituted a continuing trespass.

Explanation:

Larceny is the unlawful taking and carrying away of another's personal property (eg, guitar) with the **specific intent** to **permanently deprive the owner of that property**. Generally, the intent to permanently deprive the owner of the property must exist at the time of the taking. As a result, the requisite intent **does not exist when**, at the time of the taking, the defendant intends to:

pay for merchandise that the defendant has the means to buy

retrieve property that the defendant owns

take money as repayment of a debt *or*

borrow property with the **ability to return** it (as seen here).

Under the "**continuing trespass rule**," larceny may be committed at a later time if a defendant who took property without the requisite intent **later forms that intent**. However, such an intent is not later formed merely because the property is **accidentally damaged or destroyed**.

Here, the man did not intend to deprive the friend of his guitar indefinitely. Instead, he accidentally broke the guitar while he was on his way to return it to the friend **(Choice D)**. As a result, the man *cannot* be properly convicted of larceny.

(Choice B) In a majority of jurisdictions, voluntary intoxication is a defense to specific intent crimes (eg, larceny) if the intoxication prevented the defendant from forming the requisite intent. Here, the man was voluntarily intoxicated, but his intent was only to borrow the guitar and then return it to the friend. Therefore, this defense is unnecessary.

(Choice C) Although the man took the friend's guitar without lawful permission, he only planned to use the guitar that evening and sought to return it the next morning. As a result, the man did not have the requisite intent to permanently deprive the friend of his property.

Educational objective:

Larceny requires the specific intent to permanently deprive another of his/her property. Such intent does not exist if the defendant intends to borrow property with the ability to return it, and it is not later formed by accidentally damaging or destroying the property.

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Specific intent for property crimes

Intent to permanently deprive = Intent to defraud	Intent & ability to return ≠ Intent to defraud	Intent to retrieve own property ≠ Intent to defraud
		

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In a criminal trial, the evidence has shown that the defendant's neighbor entered the defendant's house with a knife and told the defendant that she was going to kill him. The defendant ran to his bedroom, picked up a gun, and told the neighbor to back off. The neighbor did not stop and stabbed the defendant in the arm. The defendant then shot the neighbor twice. The neighbor fell to the floor and lay quietly moaning. After a few seconds, the defendant fired a third shot into the neighbor.

The case has gone to the jury, which has thus far found that the neighbor died instantly from the third shot and that the defendant was no longer in fear of being attacked by her when he fired the third shot.

Of which of the following degrees of criminal homicide, if any, can the jury properly convict the defendant?

A. Attempted murder only.

B. Manslaughter only.

C. Murder or manslaughter.

D. No degree of criminal homicide.

Explanation:

A person can use **deadly force** in **self-defense** when he/she (1) **actually and reasonably believes** that deadly force is necessary to prevent **imminent serious bodily harm or death** *and* (2) was not the initial aggressor. But this right **expires** once the person **no longer actually or reasonably believes** that he/she is in danger. At that point, if the person continues to engage in deadly force and kills another, that person may be guilty of criminal homicide—ie:

Murder – an unlawful killing committed with malice aforethought (eg, **intent to seriously harm or kill**)

Voluntary manslaughter – an intentional killing committed in the **heat of passion upon adequate provocation** (eg, a serious battery) *or*

Involuntary manslaughter – an unintentional killing that resulted from criminal negligence or an unlawful act.

Here, the defendant's first two shots were justified since he reasonably believed this force was necessary to stop his neighbor (initial aggressor) from stabbing him (imminent serious bodily harm). Those shots caused the neighbor to fall to the ground, terminating the defendant's fear of an attack. Therefore, the defendant's third shot was unjustified. And since that shot killed the neighbor, the defendant could be convicted of either:

murder because the jury could find that he intended to seriously harm or kill the neighbor **(Choice B)** *or*

voluntary manslaughter because the jury could find that he intentionally killed the neighbor in the heat of passion after he was adequately provoked by the stabbing **(Choice D)**.

(Choice A) Attempted murder requires proof that the defendant (1) possessed the specific intent to kill another, (2) acted in furtherance of the killing, but (3) failed to complete it. But since the man accomplished the killing, he will likely be convicted of murder or voluntary manslaughter.

Educational objective:

A person can use deadly force in self-defense when he/she (1) actually and reasonably believes that deadly force is necessary to prevent imminent serious bodily harm or death and (2) was not the initial aggressor. But this right terminates once the fear of danger ends.

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Deadly force in self-defense



A woman was in the process of moving and decided to hire a mover to move the contents of her apartment across town. Upon the completion of the move, the mover sought payment from the woman for the moving services. The woman, without justification, refused to pay the mover.

In a jurisdiction that has adopted the Model Penal Code with regard to theft, is the woman likely guilty of theft?

A. No, because the woman did not take or carry away.

B. No, because the woman did not take tangible property from the mover.

C. Yes, because the asportation requirement was satisfied when the contents of the apartment were moved.

D. Yes, because the mover rendered services for which the woman has refused to pay.

Explanation:

Legislative changes to theft crimes

Common law	Larceny, embezzlement, false pretenses & receipt of stolen goods are separate offenses Property limited to tangible personal property
MPC & state criminal codes	Theft is a single statutory crime that encompasses larceny, embezzlement, false pretenses & receiving stolen goods Property broadened to include anything of value—including intangibles, services, documents

MPC = Model Penal Code.

Under the **Model Penal Code** and state criminal codes, the common-law property offenses of larceny, embezzlement, false pretenses, and receipt of stolen goods are treated as a single statutory crime of theft. Additionally, the definition of property has been expanded from tangible personal property (the common law view) to include **anything of value**—eg, intangibles, **services**, and documents. This means that a theft conviction can stem from the unlawful taking of anything of value.

Here, the woman refused to pay the mover for services it had rendered. Since the woman took something of value from the mover, she is likely guilty of theft.

(Choices A & C) Although larceny requires the unlawful taking and carrying away (ie, asportation) of another's personal property with the specific intent to steal, theft of services has no asportation requirement. That is because intangible property and services cannot be held or moved.

(Choice B) At common law, the definition of property was limited to tangible personal property—ie, property that can be seen, measured, felt, or otherwise perceived (eg, furniture). However, this definition has since been expanded to include the theft of services (as seen here).

Educational objective:

Under the Model Penal Code and state criminal codes, the theft of property includes the unlawful taking of anything of value—eg, intangibles, services, and documents. This expands the common law definition, where only tangible personal property can be the subject of a theft crime.

References

Model Penal Code § 223.1 (Am. Law Inst. 2019) (consolidating theft offenses).

Charles E. Torcia, 3 Wharton's Criminal Law § 371 (15th ed. 2020) (discussing the broadening of the definition of property to include anything of value, including services).

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Suffering from painful and terminal cancer, a wife persuaded her husband to kill her to end her misery. As they reminisced about their life together and reaffirmed their love for each other, the husband tried to discourage his wife from giving up. She insisted, however, and finally the husband held a gun to her head and killed her.

What is the most serious degree of criminal homicide of which the husband could legally be convicted?

A. No degree of criminal homicide.

B. Involuntary manslaughter.

C. Voluntary manslaughter.

D. Murder.

Explanation:

Possible homicide defenses

Self-defense/defense of others
Mistake of fact
Alibi
Entrapment
Insanity
Intoxication
Infancy
Prevention of inherently dangerous felony
Necessity
Mnemonic: **S**ome **M**urders **A**re **E**xcused **I**f **I**t **I**s **P**lainly **N**ecessary

Criminal homicide—a killing committed with the requisite mens rea—is divided into three degrees:

Murder – an **unlawful killing** with **malice aforethought** (eg, intent to kill)

Voluntary manslaughter – an intentional killing mitigated by adequate provocation or other factors

Involuntary manslaughter – an unintentional killing with criminal negligence or during the commission of an unlawful act

A victim's terminal illness does not absolve the defendant of homicide when the defendant caused the victim to die sooner. And **consent** is only a defense when it negates an element of the charged crime—eg, consent is a defense to rape since lack of consent is an element of that crime. Since consent **does not negate an element** of any degree of criminal homicide, it is **not a defense** to this crime.

Here, the husband intentionally shot and killed his wife. Although his wife persuaded him to kill her so that she would no longer suffer from painful cancer, her consent and terminal illness do not justify or excuse the husband's criminal conduct. Therefore, the most serious crime of which he can legally be convicted is murder **(Choice A)**.

(Choice B) Since the husband *intentionally* killed his wife, he cannot be convicted of involuntary manslaughter—an *unintentional* killing of another.

(Choice C) Although the husband intentionally killed his wife, he cannot be convicted of voluntary manslaughter since there was no adequate provocation—ie, an action likely to invoke a sudden and intense passion in a reasonable person. Instead, the wife merely persuaded him to kill her.

Educational objective:

Consent is only a defense when it negates an element of the charged crime. Since consent does not negate an element of any degree of criminal homicide, it is not a valid defense. Additionally, the victim's terminal illness does not absolve a defendant of criminal homicide.

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After waiting until all the customers had left, a man entered a small grocery store just before closing time. He went up to the lone clerk in the store and said, "Hand over all the money in the cash register or you will get hurt." The clerk fainted and struck his head on the edge of the counter. As the man went behind the counter to open the cash register, two customers entered the store. The man ran out before he was able to open the register drawer.

Of which crime(s) could the man be properly convicted based on this evidence?

A. Assault and attempted robbery.

B. Assault and robbery.

C. Attempted robbery.

D. Robbery.

Explanation:

Robbery requires proof of *all* of the following elements:

The defendant **unlawfully took and carried away** the victim's personal property.

The property was taken from the victim's person or presence **by force or intimidation** (eg, assault).

The defendant **specifically intended to permanently deprive** the victim of the property (ie, to steal).

But a defendant who does **not complete** all of these elements can still be convicted of **attempted robbery** if he/she (1) had the specific intent to commit robbery and (2) committed an **act** in furtherance of that crime.

Here, the man did not commit robbery since he ran out of the store before he could take the money **(Choices B & D)**. But since he specifically intended to steal the cash by intimidation and committed an act in furtherance of the robbery when he threatened to hurt the clerk, he can be convicted of *attempted* robbery.

Assault is (1) an attempted battery *or* (2) conduct that intentionally puts the victim in reasonable apprehension of imminent bodily harm. Therefore, the man committed assault in the **course of the attempted robbery** when he threatened to hurt the clerk if he did not comply. But since assault satisfies the intimidation requirement for robbery, it is a **lesser included offense**. As a result, the assault **merges** with the attempted or completed robbery. This means that the man can be convicted of assault *or* attempted robbery—not both **(Choice A)**.

Educational objective:

Robbery requires a taking of the victim's property by force or intimidation. Since assault satisfies that intimidation requirement, it is a lesser included offense that merges with the completed robbery or attempted robbery.

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Robbery
(greater offense)

Larceny (lesser offense)

- Unlawful taking & carrying away of victim's property
- Specific intent to permanently deprive

+

Battery (lesser offense)

- force used to cause bodily injury or offensive touching

OR

Assault (lesser offense)

- attempted battery or conduct causing apprehension of imminent harm

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A woman who owned a prestigious art gallery was looking for paintings by a recently deceased artist. One of her clients had offered to pay over market price for one of the artist's paintings if the woman could deliver it to the client's home in time for a lavish party that he was throwing the following week. The woman was unable to acquire any of the artist's paintings. However, she knew that her grandfather, an avid art collector, owned one of the artist's earlier works. Knowing that her grandfather was out of town on vacation, the woman decided to have one of her employees pick up the painting from her grandfather's house. The woman falsely told the employee that the grandfather had given her the painting as a gift. When the employee arrived at the grandfather's house, he noticed that the garage door was open and saw the painting leaned up against a wall. The employee walked into the garage, took the painting, and delivered it to the woman. When the grandfather returned from his vacation the following day, he realized that the painting was missing and immediately called the police.

Can the woman be properly convicted of larceny?

A. No, because the employee, as the woman's agent, was unaware of her criminal intent.

B. No, but the woman can be convicted of larceny by trick.

C. Yes, because the woman told the employee to take the artwork with the intent to steal it.

D. Yes, provided the woman does not return the artwork after the client's party.

Explanation:

Larceny is the **unlawful taking** and carrying away of another's personal property with the specific intent to permanently deprive the owner of that property. The taking requirement is satisfied by ***any*** **trespassory removal** of the property from the owner's possession into another's control. As a result, the taking can be committed **by the defendant** personally or **by the defendant's agent**—even one who is unaware of the defendant's criminal intent.

Here, the woman ordered her employee (agent) to take her grandfather's painting. Although the employee had no knowledge of the woman's criminal intent, an unlawful taking still occurred when he took the painting from the grandfather's garage and delivered it to the woman **(Choice A)**. And since the woman had the specific intent to permanently deprive her grandfather of the painting at the time the taking occurred, she can be convicted of larceny.

(Choice B) Larceny by trick is larceny accomplished by a knowing misrepresentation of a past or present material fact that results in the conversion of another's property. The misrepresentation must be made to and relied upon by the victim. But here, the woman's misrepresentation that she was gifted the artwork was made to induce the employee—not the grandfather. Therefore, she cannot be convicted of larceny by trick.

(Choice D) Larceny is complete at the time of the taking. As a result, there is no defense of restoration if the defendant later has a change of heart and returns the property to the rightful owner.

Educational objective:

The taking requirement for larceny is satisfied by any trespassory removal of the property from the owner's possession into another's control. The taking can be committed by the defendant personally or by an agent—even one who is unaware of the defendant's criminal intent.

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Larceny

(Unlawful taking requirement)

By defendant personally



By defendant's agent



A man admired his coworker's wristwatch and frequently said how much he wished he had one like it. The coworker decided to give the man the watch for his birthday the following week. On the weekend before the man's birthday, the man and the coworker attended a company picnic. The coworker took his watch off and left it on a blanket when he went off to join in a touch football game. The man strolled by, saw the watch on the blanket, and decided to steal it. He bent over and picked up the watch. Before he could pocket it, however, the coworker returned. When the coworker saw the man holding the watch, the coworker said, "I know how much you like that watch. I was planning to give it to you for your birthday. Go ahead and take it now." The man kept the watch.

Which crime has the man committed?

A. Attempted larceny.

B. Embezzlement.

C. Larceny.

D. No crime.

Explanation:

Larceny is the:

unlawful taking and **carrying away** of another's personal property
with the **specific intent to permanently deprive** the owner of that property (ie, intent to steal).
An unlawful taking occurs when the defendant removes the property from the owner's possession and control without consent. Property is carried away as soon as the defendant moves it a short distance (eg, mere inches). And once the defendant has committed larceny, it is **no defense** that the **owner later consented** to the taking.

Here, the man grabbed the coworker's watch without his permission (unlawful taking) and picked it up (carrying away) with the intent to steal it. Although the coworker then told the man that he could have the watch, the coworker's consent is not a defense because it was given *after* the man had committed larceny **(Choice D)**.

(Choice A) Attempted larceny occurs when the defendant (1) possesses the specific intent to steal, (2) commits an overt act in furtherance of the theft, but (3) does not complete it. But here, the man *completed* the larceny once he bent over and picked up the watch.

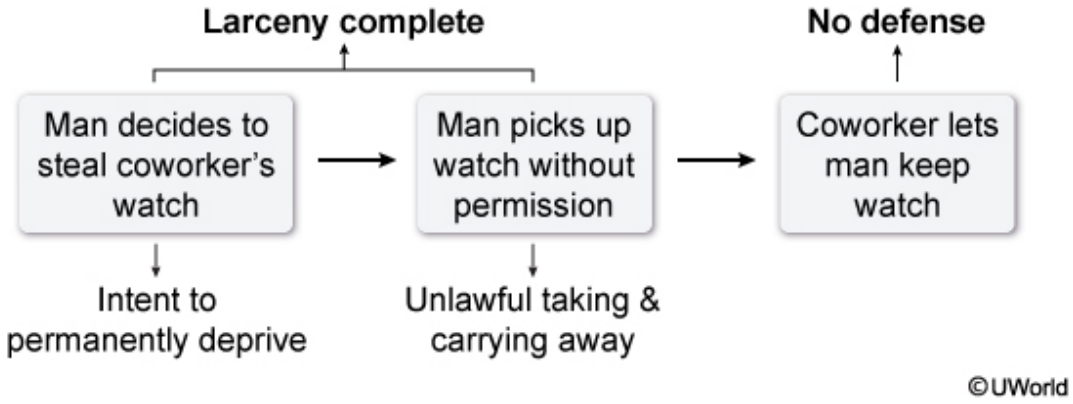
(Choice B) Embezzlement requires proof that a person in lawful possession of another's property fraudulently converted it. Lawful possession occurs when a person possesses or controls the property with the owner's permission. Here, the man did not lawfully possess the watch when he picked it up because he did not have the coworker's permission to do so. Therefore, the man did not commit embezzlement.

Educational objective:

Larceny is the (1) unlawful taking and carrying away of another's personal property (2) with the specific intent to permanently deprive the owner of that property. And the owner's consent to the taking after the defendant has completed the larceny does not negate the defendant's criminal liability.

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Larceny complete
No defense
Man decides to steal coworker's watch
Man picks up watch without permission
Coworker lets man keep watch
Intent to permanently deprive
Unlawful taking & carrying away
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A man told his neighbor that he was going away for two weeks and asked the neighbor to keep an eye on his house. The neighbor agreed. The man gave the neighbor a key to use to check on the house. The neighbor decided to have a party in the man's house. He invited a number of friends. One friend went into the man's bedroom, took some of the man's rings, and put them in his pocket.

Which of the following is true?

A. The neighbor and the friend are guilty of burglary.

B. The neighbor is guilty of burglary and the friend is guilty of larceny.

C. The neighbor is guilty of trespass and the friend is guilty of larceny.

D. The friend is guilty of larceny and the neighbor is not guilty of any crime.

Explanation:

Trespass is the **unlawful entry** of a structure—ie, an entry that occurs without legal necessity or the possessor's permission. And a permissible entry can become unlawful if the entering person **exceeds the scope of permission**—eg, receiving permission to wait in a lobby but exploring an office.

Here, the man gave the neighbor permission to enter by asking the neighbor to watch the man's house and giving the neighbor a key. And since the man did not restrict the neighbor's use of or access to the house, the neighbor did not exceed the scope of the man's permission by having a party. Therefore, the neighbor is not guilty of trespass **(Choice C)**.

Burglary is the **trespassory entry** of a structure with the intent **to commit any crime therein**. Since the neighbor's entry was permissible (not trespassory) and there is no indication that he intended to commit a crime inside, he is not guilty of burglary **(Choices A & B)**. The friend's entry was also permissible since the neighbor (the possessor) invited him in. Therefore, the friend is not guilty of burglary **(Choice A)**.

Larceny is the (1) **unlawful taking and carrying away** of another's personal property with (2) the **intent to permanently deprive** the owner of that property. Here, the neighbor did not take any of the man's property (no larceny). But the friend took the man's rings (taking) and put them in his pocket (carrying away) to presumably keep them (intent to permanently deprive). Therefore, the friend is guilty of larceny.

Educational objective:

Trespass is the unlawful entry of a structure—ie, an entry without legal necessity or permission. Trespass rises to burglary if the person enters the structure with the intent to commit any crime therein. And larceny is the unlawful taking and carrying away of another's personal property with the intent to permanently deprive the owner thereof.

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A man purchased a new rifle and wanted to try it out before bringing it on a hunting trip the following day. After leaving the gun store, the man drove to a remote part of town and stopped at a building that, by all outward appearances, had been abandoned. The man fired upon the building, using the building's boarded-up windows as targets. Unbeknownst to the man, a small group of people had taken shelter inside the building. The man ceased firing once he heard voices yelling from inside the building. However, one of the man's bullets struck and killed a woman inside the building.

The above facts were set out at trial, and the man was convicted of murder. On appeal, the man argues that the evidence was insufficient to support his conviction.

If the jurisdiction follows the common law of homicide, should the man's conviction be overturned?

A. No, because the killing occurred during the commission of an inherently dangerous felony.

B. No, because the man acted with negligent disregard of an obviously high risk of death by shooting at the building.

C. Yes, because the man did not intend to kill the woman when he fired at the building.

D. Yes, because the man was unaware of the danger posed by firing at the seemingly abandoned building.

Explanation:

Homicide

Murder	**Common law**	**Modern approach**
	Unlawful killing committed with malice aforethought:	First-degree: murder committed with:
	Intent to kill	premeditation & deliberation
	Intent to cause serious bodily harm	heinous acts (eg, bombing, torture)
	Depraved-heart murder	enumerated felony murder
	Felony murder	Second-degree: any murder that is not first-degree murder
Voluntary manslaughter	Intentional killing mitigated by either:	
	adequate provocation (ie, heat of passion)	
	other mitigating factors (eg, imperfect self-defense)	
Involuntary manslaughter	Unintentional killing either:	
	caused by criminal negligence (or recklessness under MPC)	
	occurs during commission of criminal act (eg, misdemeanor manslaughter)	

MPC = Model Penal Code.

A conviction should be overturned if the evidence was insufficient to support a guilty verdict because no reasonable fact finder could find proof of every element of the crime beyond a reasonable doubt. **Common-law murder** requires proof that the defendant unlawfully killed another while acting with **malice aforethought**—ie:

intent to kill

intent to inflict serious bodily injury

reckless disregard of an **obvious or unjustifiably high risk** of causing **death** or **serious bodily injury** (ie, depraved-heart murder) *or*

intent to commit an inherently dangerous felony (ie, felony-murder rule)

Here, the man did not intend to kill or seriously injure the woman, and firing a rifle at a seemingly abandoned building does not qualify as an inherently dangerous felony **(Choices A & C)**. However, he could still be guilty of depraved-heart murder if he recklessly

disregarded an obvious or unjustifiably high risk of causing death or serious bodily injury by shooting at the building.

In a majority of jurisdictions (and under the Model Penal Code), a defendant must have **actually realized** the **danger to human life or safety** posed by his/her conduct to be guilty of depraved-heart murder.* Here, there is no evidence that the man was *actually* aware of the danger posed by his conduct because the building was in a remote area and lacked signs of being occupied. Therefore, his conviction should be overturned.

*A minority of jurisdictions impose guilt for depraved-heart murder if a reasonable person in the defendant's position would have realized the danger posed by his/her conduct.

(Choice B) Involuntary manslaughter requires proof that the defendant unintentionally killed another with criminal negligence or during the commission of an unlawful act. But since the man was convicted of murder, not involuntary manslaughter, the fact that he may have been negligent is irrelevant to his appeal.

Educational objective:

Depraved-heart murder is the reckless disregard of an obvious or unjustifiably high risk of causing death or serious bodily injury. In most jurisdictions, the defendant must actually realize the danger posed by his/her conduct to be convicted of common-law murder under this standard.

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A woman and her partner robbed a bank. Although they split the money they had stolen in half, the woman became greedy and decided to steal the partner's share. The woman knew that the partner had stashed his share of the money in a house that had been abandoned for some time. She decided to sneak into the house at night and steal the money. That night, the woman went to the back door of the house, and when she tried the doorknob, she discovered that it was unlocked. She snuck into the house, walked around until she found the partner's money in one of the rooms, and took it. A neighbor heard the woman rummaging in the house and immediately called the police. The police tracked the woman down and arrested her for burglary.

In a jurisdiction that follows the common law with respect to criminal offenses, is the woman guilty of burglary?

A. No, because the back door to the house was unlocked.

B. No, because the house was abandoned.

C. Yes, because the woman intended to permanently deprive the partner of the money.

D. Yes, because the woman used force to enter the house.

Explanation:

Common-law burglary is the unlawful breaking and entering of another's dwelling at night with the specific intent to commit a felony therein. A **dwelling** is defined as a structure regularly **occupied for habitation**. Although the structure need not be occupied at the time of the breaking, it **must not be abandoned**. That is because common-law burglary seeks only to protect a person's right of habitation.

Here, the woman broke into the house at night with the specific intent to steal the partner's money (ie, to commit larceny) **(Choice C)**. However, the house was abandoned when she broke in. As a result, the house does not constitute a dwelling for purposes of a common-law burglary, and the woman is not guilty of this crime.

(Choices A & D) A breaking can be accomplished by using even slight force, such as *opening* an unlocked door (as seen here). However, walking through an already open door would not constitute a breaking.

Educational objective:

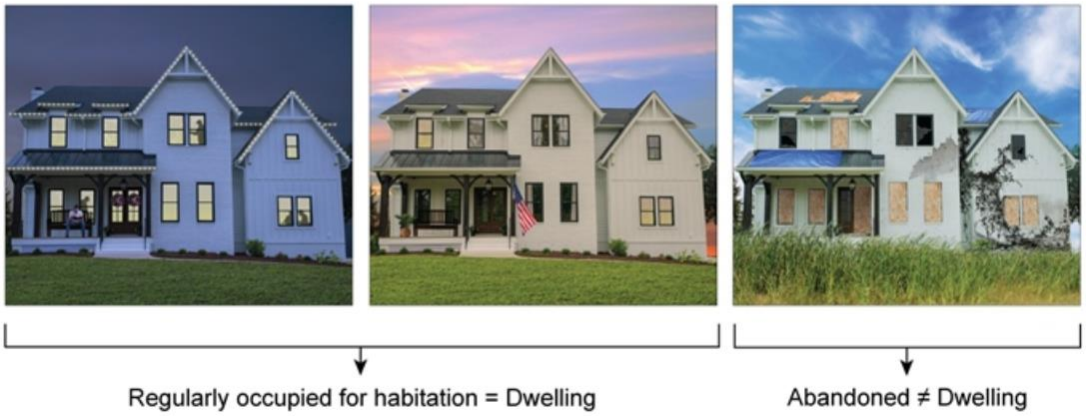
For common-law burglary, a dwelling is defined as a structure regularly occupied for habitation. Although the structure need not be occupied at the time of the breaking, it must not be abandoned.

References

Wayne R. LaFave, 3 Substantive Criminal Law § 21.1(c) (3d ed. 2020) (defining "dwelling of another").

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Dwelling requirement for common-law burglary



Regularly occupied for habitation = Dwelling

Abandoned ≠ Dwelling

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A man who had become very drunk left a bar and started to walk home. Another patron of the bar, who had observed the man's condition, followed him. The patron saw the man stumble and fall to the ground near an alley. The patron then began to pull out a gun but saw that the man had passed out in the gutter. The patron reached into the man's pocket, grabbed his wallet, and started to walk away. When the patron heard police officers approaching, he dropped the wallet and ran off.

The crimes below are listed in descending order of seriousness.

What is the most serious crime of which the patron properly could be convicted?

A. Robbery.

B. Larceny.

C. Attempted robbery.

D. Attempted larceny.

Explanation:

A defendant can be convicted of **larceny** if he/she:

unlawfully took and carried away the victim's property (even a short distance)
with the intent to permanently deprive the victim of that property (ie, intent to steal).

And the defendant can be convicted of the **more serious crime of robbery** if the **property was taken** from the victim's person or presence **by force or intimidation**. But if these (or any other) crimes are **not completed**, the defendant can be convicted of the **less serious crime of attempt** if he/she:

specifically intended to commit the crime *and*
performed an act in furtherance of the crime.

Here, the elements of larceny were met when the patron intentionally took a wallet from the man's pocket and started to walk away. And though the patron later dropped the wallet when he heard the police approaching, this is no defense. Therefore, the patron can be convicted of *larceny*—not attempted larceny **(Choice D)**.

The patron likely intended to commit robbery when he followed the man and pulled out a gun in furtherance of the crime. But since the man then passed out in the gutter, the patron was able to take the wallet *without* using force or intimidation. As a result, the patron could be convicted of *attempted* robbery—but not a completed robbery **(Choice A)**. Nevertheless, larceny is the most serious crime of which the patron could be convicted **(Choice C)**.

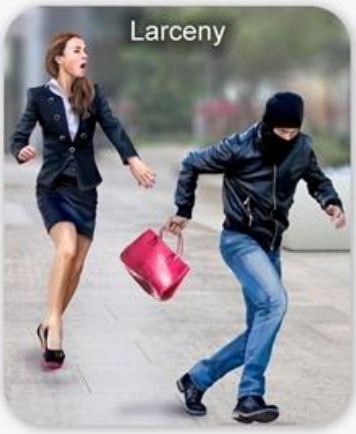
Educational objective:

Larceny evolves into the more serious crime of robbery when the defendant takes property from the victim's person or presence by force or intimidation. But if an element of those (or any other) crimes is not completed, a defendant may be convicted of a less serious attempted crime.

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Robbery



by either





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A new gang member, hoping to impress the gang's leader, pointed a gun at a pedestrian and ordered her to give him her expensive watch, which she did. The gang member then tossed the watch to the gang leader, who was standing nearby. Although totally surprised by this act, the gang leader put the watch in his pocket. The pedestrian ran away.

What crime did the gang leader commit?

A. Accessory after the fact to robbery.

B. Accomplice to robbery.

C. Conspiracy to commit robbery.

D. Receiving stolen property.

Explanation:

The crime of **receiving stolen property** is committed when a person:

receives property that he/she **knows was stolen**
with the **intent to permanently deprive** another of that property.

Here, the gang leader knew that the watch was stolen since he witnessed the robbery—ie, the gang member's theft of the woman's watch through force or intimidation. The gang member then tossed the watch to the gang leader, who pocketed it—evidencing his intent to permanently deprive the woman of the watch. Therefore, the gang leader committed the crime of receiving stolen property.

(Choice A) An accessory after the fact is a person who aids or assists another (ie, the principal) by helping the principal *avoid apprehension or conviction* after the crime has been completed. Here, the gang leader did not play this role since his concealment of the watch did not help the gang member in such a manner.

(Choice B) An accomplice (1) knowingly aids or encourages the principal before or during a crime (2) with the intent that the crime be completed. Here, the gang leader was not an accomplice since the gang member acted of his own accord (ie, without aid or encouragement) to impress the gang leader.

(Choice C) Conspiracy is an agreement between two or more people to commit a crime that is entered with the intent to accomplish that crime. Since the gang leader was totally surprised by the gang member's act, they did not agree to commit the robbery.

Educational objective:

The crime of receiving stolen property is committed when a person (1) receives property that he/she knows was stolen (2) with the intent to permanently deprive another of that property.

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Receiving stolen property (knowledge requirement)

Knowledge of theft

No knowledge



Hoping to give his wife an advantage in a national figure skating competition, a man shot one of the wife's competitors in the leg. The man only intended to wound the figure skater enough to deprive her of the use of her leg for a few months, but the bullet struck a major artery and the figure skater bled to death.

The crimes below are listed from most to least serious.

In a common law jurisdiction, what is the most serious crime of which the man could properly be convicted?

A. Murder.

B. Voluntary manslaughter.

C. Involuntary manslaughter.

D. None of the above.

Explanation:

Homicide

Murder	**Common law**	**Modern approach**
	Unlawful killing committed with malice aforethought:	First-degree: murder committed with:
	Intent to kill	premeditation & deliberation
	Intent to cause serious bodily harm	heinous acts (eg, bombing, torture)
	Depraved-heart murder	enumerated felony murder
	Felony murder	Second-degree: any murder that is not first-degree murder
Voluntary manslaughter	Intentional killing mitigated by either:	
	adequate provocation (ie, heat of passion)	
	other mitigating factors (eg, imperfect self-defense)	
Involuntary manslaughter	Unintentional killing either:	
	caused by criminal negligence (or recklessness under MPC)	
	occurs during commission of criminal act (eg, misdemeanor manslaughter)	

MPC = Model Penal Code.

Common law murder occurs when a person unlawfully kills another with **malice aforethought**, which requires proof of one of the following mental states:

Intent to kill

Intent to inflict serious bodily injury

Reckless disregard of an obvious or unjustifiably high risk of causing death or serious bodily injury (ie, depraved-heart murder)

Intent to commit an inherently dangerous felony (ie, felony-murder rule)

Here, the figure skater bled to death after the man shot her. Although the man did not intend to kill the figure skater, he did intend to wound her badly enough to deprive her of the use of her leg for a few months (serious bodily injury). Therefore, the man acted with the malice aforethought necessary to support a conviction for the most serious offense—murder **(Choice D)**.

(Choice B) Voluntary manslaughter occurs when a person *intentionally* kills another based on (1) adequate provocation or (2) imperfect self-defense. Since the man was not provoked or acting in self-defense, he did not commit voluntary manslaughter.

(Choice C) Involuntary manslaughter is the unintentional killing of another with *criminal negligence* OR during the commission of an unlawful act *separate* from the killing itself. Here, the man cannot be convicted of involuntary manslaughter since the unlawful shooting was a *part of* the killing and was committed with *malice aforethought* (intent to seriously injure).

Educational objective:

A person who did not intentionally kill another may still be guilty of common law murder if he/she acted with (1) the intent to cause serious physical injury, (2) a reckless disregard of an obvious or high risk to human life, or (3) the intent to commit an inherently dangerous felony.

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A brother knew that his sister was suffering from an advanced form of bone cancer and had approximately six months to live. The brother also knew that his sister was considering ending her life if her condition became unbearable. The brother decided to hasten his sister's death with a slow-acting poison so he could collect as the beneficiary of her life insurance policy. The poison caused the sister such severe nausea that she skipped her next scheduled chemotherapy appointment. The bus that the sister usually took to attend chemotherapy crashed that day, leaving no survivors.

Three days later, the sister was in unbearable pain from the poison. Believing that the pain was caused by her progressing cancer, the sister decided to end her own life with an overdose of pain medication. An autopsy conclusively established that the sister had enough poison in her system to cause intense pain but that the poison would not have killed her for another week. The coroner determined that the overdose had been the actual cause of her death. The coroner also predicted that the sister's bone cancer would have caused her death within the year.

The applicable jurisdiction does not classify suicide as a crime.

Can the brother properly be found guilty of common-law murder based on these facts?

A. No, because the brother's conduct actually extended the sister's life.

B. No, because the pain medication was the actual cause of the sister's death.

C. Yes, because a trier of fact could find that the brother's conduct was the actual and proximate cause of the sister's death.

D. Yes, because an act that accelerates impending death is a legal cause of that death.

Explanation:

Criminal homicide occurs when a person **causes the death** of another person while acting with the requisite mens rea—e.g., common-law murder (the most serious type of homicide) requires an intent to kill or other malice aforethought. **Causation** requires proof of both:

actual causation – (1) the victim would not have died but for the defendant's conduct *or* (2) when multiple causes exist, the defendant's conduct was a **substantial factor** in causing the victim's death *and*

proximate causation – the death was a **foreseeable** consequence of the defendant's actions.

Here, the sister died by an intentional overdose of pain medication **(Choice B)**. But her brother had previously poisoned her to collect as the beneficiary of her life insurance policy (intent to kill). The poison was a substantial factor in her death because it caused her unbearable pain that made her decide to end her life (actual causation), and it was foreseeable that the poison would kill her (proximate cause). And since a trier of fact could find that the brother actually and proximately caused the sister's death, he can properly be found guilty of common-law murder.

(Choice A) The brother's conduct actually extended the sister's life since the poison caused her such severe nausea that she skipped her next scheduled chemotherapy appointment and avoided the fatal bus crash. But he can still be found guilty of common-law murder since his conduct actually and proximately caused her death.

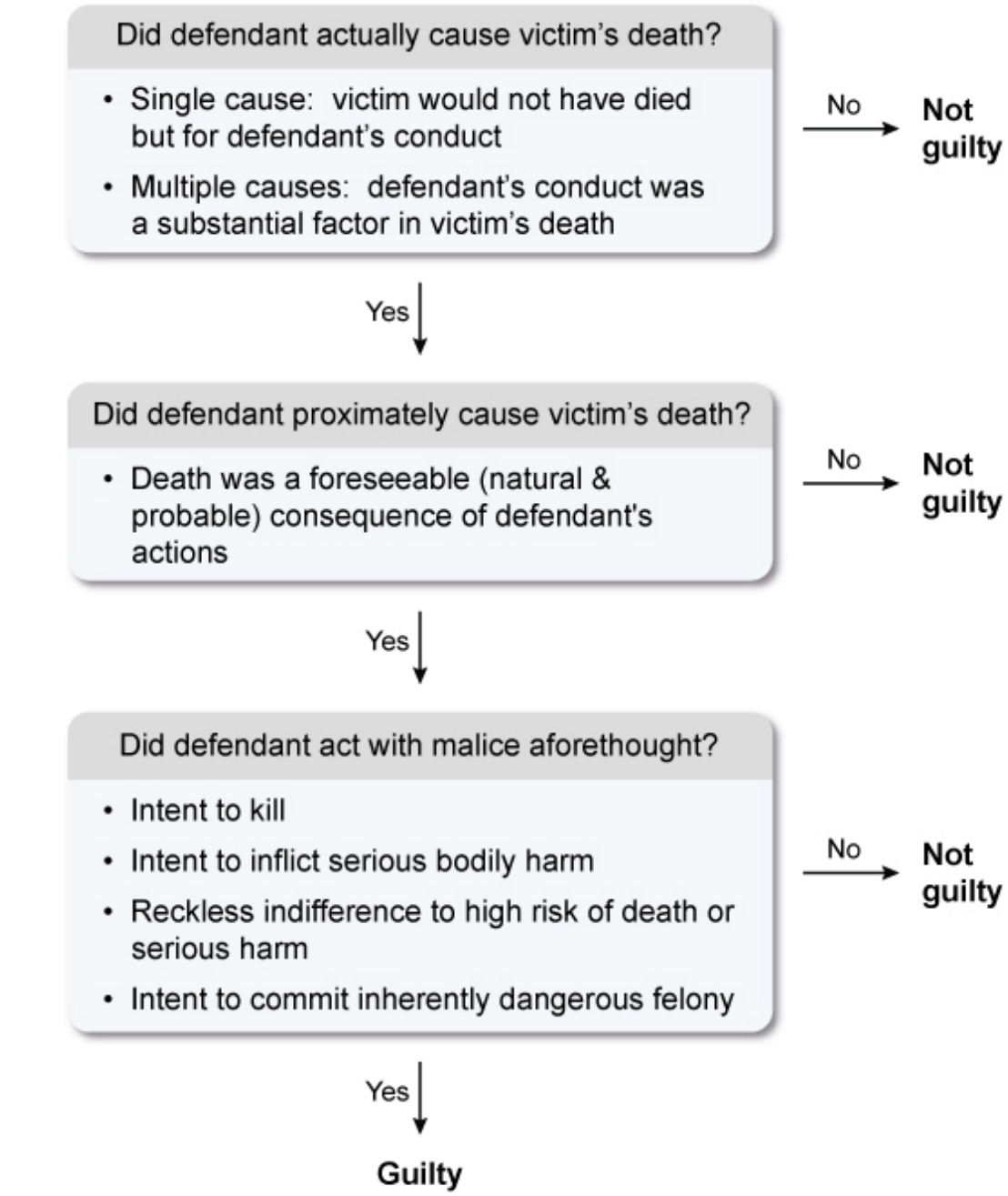
(Choice D) An act that accelerates impending death is a proximate (i.e., legal) cause of that death only if the death was a foreseeable consequence of the defendant's actions. However, actual causation must also be established for the brother to be found guilty of common-law murder.

Educational objective:

Criminal homicide occurs when a person causes another's death with the requisite mens rea. Causation must be actual ("but for" or substantial factor) *and* proximate (foreseeable consequence).

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Criminal liability for murder



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A man intended to rob a local convenience store that was rumored to contain a large safe. One night, the man walked into the convenience store, pointed a gun at the store owner, and demanded to know where the safe was kept. Frightened, the store owner pointed to a storage room located at the back of the store and approximately 20 feet from where the man and the store owner were standing. The man then moved the store owner to the storage room and forced him to open the safe. The man fled after taking the money in the safe, and the store owner immediately called the police. The man was later arrested and charged with robbery and kidnapping.

Can the man be properly convicted of kidnapping?

A. No, because the man did not move the store owner more than was necessary to complete the robbery.

B. No, because the storage room was only 20 feet away from the store owner.

C. Yes, because the man unlawfully moved the store owner into the storage room during the commission of the robbery.

D. Yes, because the man's conduct amounted to confinement of the store owner.

Explanation:

Kidnapping

Common law	Forcibly abducting or stealing person from his/her own country & sending to another country	
MPC	Unlawfully moving or confining another to: hold for ransom or as hostage facilitate commission of felony or flight thereafter injure/terrorize victim or another *or* interfere with governmental/political function	
Modern view	General	Intentional & unlawful confinement involving: some movement (asportation) *or* concealment
	Aggravated	General kidnapping committed for: ransom commission of other crime offensive purpose *or* child stealing

MPC = Model Penal Code.

Kidnapping is:

the intentional and unlawful **confinement** of another
against that **person's will** (eg, by force, threat, or fraud)
coupled with either **moving** or hiding that person.

A perpetrator need only **move the victim** a short distance—even a few feet—to satisfy the movement (ie, asportation) element of kidnapping **(Choice B)**. However, for a kidnapping to occur **incident to** the commission of **another offense**, the movement of the victim must be **more than is necessary to complete** the **other offense**.* Otherwise, the perpetrator cannot be convicted of kidnapping.

Here, the man entered the store intending to commit robbery. The man then pointed a gun at the store owner (force) and moved him into the storage room (confinement) so that the store owner could open the safe. But since the movement of the store owner was no more than was necessary to complete the robbery, the man cannot be properly convicted of kidnapping **(Choices C & D)**.

*Courts will consider several factors, including (1) the duration and significance of the movement, (2) whether the movement was an inherent part or independent of the other offense, and (3) whether the movement made the other offense easier to commit.

Educational objective:

For a kidnapping to occur incident to the commission of another offense, the victim must be moved more than is necessary to complete the other offense.

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A man owned an investment portfolio that, for the past several years, had consistently outperformed the stock market average. When the overall stock market precipitously declined in a single day, the man immediately contacted his financial advisor to ask about the status of his investment portfolio. The advisor lied to the man and told him that due to the decline in the stock market, the value of his account was $250,000, an amount significantly less than what the man had anticipated. However, the decreased value was not attributable to the decline in the stock market but rather the advisor's negligence in managing the portfolio. The man demanded that his account be closed and that the remaining balance in the account be transferred to him within the next two days. The advisor agreed and, accordingly, closed the man's account and transferred the remaining balance two days later. Unbeknownst to the man, there had been a temporary recovery in the investment portfolio that had resulted in a $5,000 increase in the man's account balance the day before his account was closed. The advisor retained the $5,000.

In a jurisdiction that follows the common law with regard to property crimes, which crime has the advisor committed?

A. Embezzlement.

B. False pretenses.

C. Larceny by trick.

D. Theft.

Explanation:

Comparison of property offenses

	Actus reus	**Mens rea**
Embezzlement	Conversion of *lawfully* possessed property that belongs to another	Specific intent to defraud/permanently deprive
Larceny	*Unlawful* taking & carrying away of another's property	
Larceny by trick	Knowingly misrepresenting a material fact to obtain *possession* of another's property	
False pretenses	Knowingly misrepresenting a material fact to obtain *title* to another's property	

Embezzlement is:

The **conversion** of lawfully possessed property that belongs to another
with the specific intent to defraud the owner of that property.

Conversion occurs when the person holding the property **substantially interferes** with the owner's right to the property—eg, by selling, damaging, or unreasonably withholding possession of the property. As a result, a conversion can be established by showing that the **owner demanded the return** of the property and the **defendant failed to comply** with that demand.*

Here, the financial advisor lawfully possessed the man's account. The man requested the return of the balance, but the advisor failed to fully comply with that request because she retained $5,000. This substantially interfered with the man's right to those funds, and there is no indication that she intended to return them. Therefore, the advisor has committed embezzlement.

*Although an owner can establish a conversion by showing that a demand was made but ignored by the defendant, an owner is generally not required to demand the return of the property for a defendant's acts to constitute conversion.

(Choice B) False pretenses is obtaining *legal title* to another's property by knowingly making a false representation of a past or present material fact with the specific intent to defraud. Here, while the advisor falsely represented that the decline in the stock market caused the decrease in the man's account, that representation was not made to obtain title to the $5,000.

(Choice C) Larceny by trick is obtaining *possession* of another's property by knowingly misrepresenting a past or present material fact. But here, the misrepresentation was not made to obtain possession of the man's money.

(Choice D) Under the Model Penal Code and many state criminal codes, common-law property offenses such as larceny, embezzlement, and false pretenses are treated as a single statutory crime of theft. However, this is a common-law jurisdiction, so the offense of theft is inapplicable.

Educational objective:

Embezzlement is the conversion of lawfully possessed property that belongs to another with the specific intent to defraud the owner of that property. Conversion can be established by proving that the defendant failed to comply with the owner's demand for return of the property.

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A 22-year-old man went to a nightclub with a group of friends. The nightclub is known for its strict 18-and-up policy. While there, the man ran into a former coworker who introduced the man to her sister. Over the course of the night, the man and the sister danced and engaged in conversation. The sister told the man that she was 19 years old and attended the local university. Near closing time, the sister invited the man to her apartment. Unbeknownst to him, the sister was only 16 and had gotten into the club using a fake ID. Later that evening, the man had consensual sexual intercourse with the coworker's sister.

The age of consent in the jurisdiction is 17.

Is the man guilty of statutory rape?

A. No, because the man did not knowingly engage in sexual intercourse with a minor.
B. No, because the man's mistake of fact, under the totality of circumstances, was reasonable.
C. Yes, because the man was negligent in failing to confirm the sister's age.
D. Yes, because the man's commission of the requisite actus reus is sufficient for a finding of guilt.

Explanation:

Statutory rape arises when a defendant has sexual intercourse with a person under the age of consent. This is a **strict liability crime**, which means that it has **no mens rea requirement**. Instead, proof of the **actus reus** (here, intercourse with an underage person) is alone **sufficient** to support a conviction. As a result, the fact that the man did not *knowingly* engage in sexual intercourse with a minor does not absolve him of guilt **(Choice A)**.

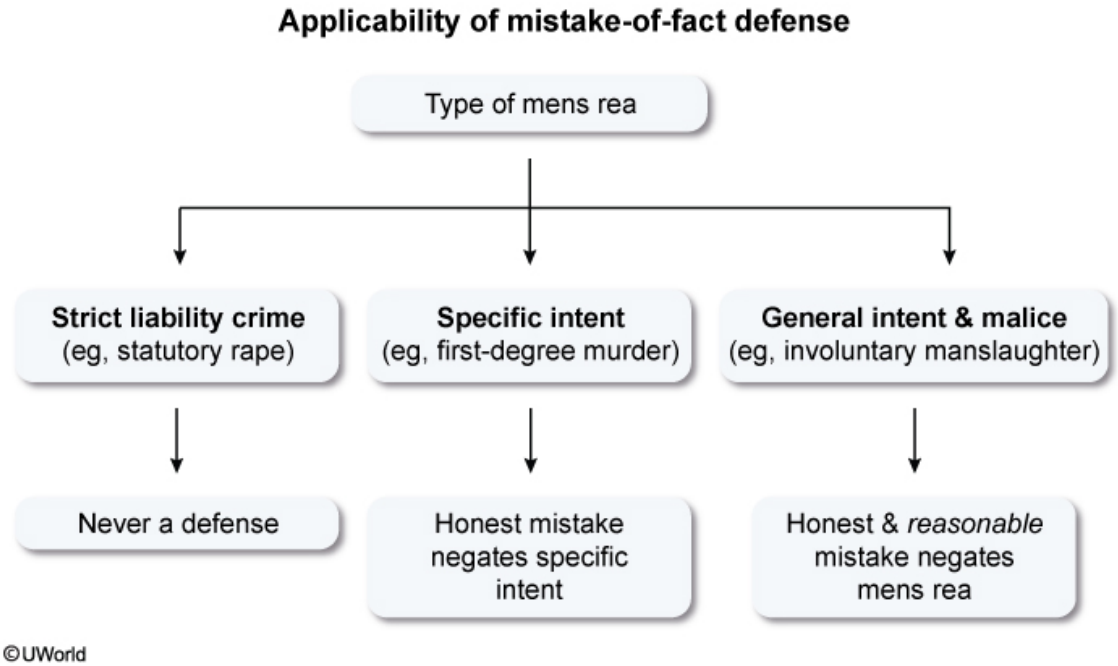
Additionally, **mistake of fact** is **never a defense** to a **strict liability crime** because this defense is predicated on the notion that the defendant's mistake negates the mens rea necessary to convict. So even though the coworker's sister misrepresented her age to the man, he cannot escape liability for statutory rape by establishing that he was **reasonably mistaken** about the **victim's age (Choice B)**. Therefore, the man is guilty of statutory rape.

(Choice C) The man did not confirm the sister's age. But whether his failure to do so was negligent—or even reasonable—is irrelevant to this strict liability crime. All that matters is whether he committed the actus reus.

Educational objective:

Mistake of fact is never a defense to a strict liability crime—including statutory rape. Therefore, a defendant's reasonable mistake as to the victim's age will not serve as a defense to statutory rape.

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An unemployed man was planning to rob a convenience store and staked out the store for several weeks. One evening, the man opened and entered through the front door of the store just before closing time and reached for the gun in his waistband as he approached the checkout counter. However, upon seeing the elderly clerk who reminded the man of his grandfather, the man changed his mind and ran out of the store. Finding the man's behavior suspicious, the clerk called the police, who later apprehended the man and charged him with burglary.

In the jurisdiction, burglary is defined as "breaking and entering any building or structure with the intent to commit a felony or to steal therein."

Is the man likely to be found guilty of burglary?

A. No, because the man had permission to enter the convenience store.
B. No, because the man is guilty of only attempted burglary of the convenience store.
C. Yes, because the man intentionally broke into and entered the convenience store.
D. Yes, because the man lost his status as an invitee when he entered the convenience store with the intent to commit robbery.

Explanation:

This jurisdiction defines burglary as:

the breaking and entering of any building or structure
with the intent to commit a felony (eg, robbery) or to steal therein.

Breaking occurs when the defendant uses any degree of force to gain entry (eg, opening a door), and **entering** occurs when any part of the defendant's body or an object in his/her possession crosses into the structure. The breaking and entering also must have been **unlawful**—ie, **without the owner's permission** or legal privilege. A business gives the public permission to enter its premises during business hours, but not when it is closed.

Here, the man opened the front door and entered the convenience store with the intent to commit a robbery therein **(Choice C)**. But since the store was still open to the public at that time, the man entered the store with the owner's permission. As a result, the man's entry was lawful, and he likely will *not* be found guilty of burglary.

(Choice B) A defendant is guilty of attempted burglary if he/she (1) intended to commit burglary, (2) committed an act in furtherance of the burglary, but (3) did not complete it. Legal impossibility is a defense to attempt if the defendant's actions would not constitute a crime even if completed. And since it is legally impossible to unlawfully break and enter a store that is open to the public, the man is not guilty of attempted burglary.

(Choice D) A minority of jurisdictions hold that a person loses his/her status as an invitee when entering an open business with the intent to commit a crime. However, a person retains that status in most jurisdictions (default rule on the MBE). Therefore, the man retained his status as an invitee, despite his intent to rob the store.

Educational objective:

Burglary requires that a breaking and entering be unlawful—ie, without the owner's permission or legal privilege. A business gives the public permission to enter its premises during business hours, but not when it is closed.

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Burglary

A man discovered that his business partner was making separate deals with other companies and was filled with rage. The man immediately decided to scare the business partner to force him to stop. The man knew that the business partner went to fitness classes on Wednesday mornings before work, so the following week, the man waited for the business partner to arrive at the gym. Once the man saw the business partner walk inside, the man placed a small bomb under the business partner's car. When the class ended, the man watched as the business partner entered the car and started the engine, causing the bomb to explode and instantly kill him.

A statute in the jurisdiction defines first-degree murder as an intentional and premeditated killing, one occurring during the commission of a common law felony, or one resulting from a heinous act. The statute defines second-degree murder as all other common law murders. Voluntary manslaughter is defined as a killing in the heat of passion upon an adequate legal provocation. Involuntary manslaughter is defined as an unintentional killing committed during an unlawful act or with criminal negligence.

What is the most serious crime for which the man can properly be convicted?

A. First-degree murder.

B. Second-degree murder.

C. Voluntary manslaughter.

D. Involuntary manslaughter.

Explanation:

Murder

Common law	Unlawful killing committed with malice aforethought: intent to kill intent to cause serious bodily harm depraved-heart murder felony murder
Modern view*	First-degree – murder committed due to: premeditation & deliberation heinous act (eg, bombing, torture) enumerated felony Second-degree – any murder that is not first-degree murder

*The fact pattern on the MBE must supply a statute if you are to consider degrees of murder. Otherwise, apply the common-law rule.

Consistent with the modern view, the statute in this jurisdiction defines **first-degree murder** as:

an intentional and premeditated killing

a killing committed during the commission of a common law felony *or*

a killing **resulting** from a **heinous act** (ie, heinous murder).

A heinous murder is one that results from an especially egregious act, such as ambush (ie, lying in wait), torture, **bombing**, terrorism, or poisoning. Since the man used a bomb to cause the business partner's death, the man can be convicted of first-degree murder under the statute.

(Choice B) Second-degree murder is defined here as all other common law murders (listed in table above). Since the man only intended to scare the business partner, the man likely committed depraved-heart murder by acting with reckless indifference to human life. However, he can also be convicted of the more serious offense of first-degree murder.

(Choice C) Voluntary manslaughter is defined as a killing that is committed in the heat of passion upon adequate legal provocation.* Discovering that one's business partner is making separate deals is unlikely to constitute adequate provocation. Additionally, there was sufficient time (one week) between the provocation and the killing for a reasonable person to cool off. Therefore, the man would not be convicted of this crime.

*Remember that a killing committed in the heat of passion is not a defense to murder; it merely reduces murder to voluntary manslaughter.

(Choice D) Involuntary manslaughter is defined as an unintentional killing committed during an unlawful act (not seen here) or with criminal negligence—ie, the substantial failure to act as a reasonable person would act under similar circumstances. But the *affirmative* act of using a bomb goes beyond a mere failure to act.

Educational objective:

Under the modern view, a heinous murder—ie, one that results from an especially egregious act, such as ambush, torture, bombing, terrorism, or poisoning—constitutes first-degree murder.

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A woman drove her car through the drive-through lane of a fast-food restaurant one afternoon. When she reached the microphone used to place orders, she said, "There's a man across the street with a rifle. He can see everything you do. If you do not do exactly what I tell you, he will shoot you. Put all the money from the register into a sack and give it to me when I drive up." The clerk did not see anyone across the street and was unsure whether anyone was there. However, unwilling to risk harm to himself, he put $500 in a paper bag and handed it to the woman when she drove up to the delivery window. The woman drove off with the money but was arrested a short time later. She had lied about there having been a man with a rifle and had acted alone.

What is the most serious crime of which the woman can be convicted?

A. Embezzlement.

B. False pretenses.

C. Larceny.

D. Robbery.

Explanation:

Robbery

(larceny by force v. intimidation)

Force	Use of more force than necessary to acquire property or retain the property immediately thereafter
Intimidation	Threat that places victim in reasonable apprehension of immediate death or serious physical injury to victim, close family member, or person present

Larceny is (1) the unlawful taking and carrying away of the victim's personal property (2) with the specific intent to permanently deprive the victim of that property. And larceny **becomes robbery** when:

the property is taken from the victim's person or presence *and*

the taking is accomplished **by force or intimidation**.

Since larceny is necessarily committed during robbery, it is a lesser included offense of robbery. And under the **merger doctrine**, a defendant can only be convicted of larceny (lesser offense) *or* robbery (greater offense).

Here, the woman committed larceny when she took $500 from the clerk and drove away. But she acquired the money by threatening to have the clerk immediately shot if he did not comply. And since the clerk gave her the money because he was unwilling to risk being harmed, the woman can be convicted of the more serious crime of robbery **(Choice C)**.

(Choice A) Embezzlement occurs when a person in *lawful* possession of another's property fraudulently converts it. Since the woman took *unlawful* possession of the money, she cannot be convicted of embezzlement.

(Choice B) False pretenses requires proof that the defendant (1) knowingly misrepresented a past or existing material fact (2) with the intent to defraud and (3) thereby obtained title to another's property. Here, the woman lied to the clerk when she said that a man with a rifle was ready to shoot him. But since the woman never obtained title to the money, she cannot be convicted of false pretenses.

Educational objective:

Larceny becomes robbery when property is taken from the victim's person or presence by force or intimidation. Since larceny merges into the completed robbery, a defendant can be convicted of either crime—but not both.

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The CEO of a company, who spent many of her work hours surfing stamp-collector websites, frequently ordered expensive stamps that she had delivered to her work address. One day, a very rare and expensive stamp arrived in the mail. The CEO's assistant, who was resentful about the meager pay he received from the CEO, decided to steal the stamp. He checked the CEO's calendar and saw that she was attending the opera the following evening. The next night, after the CEO left for the opera, the assistant retrieved a spare key hidden under a rock and entered the CEO's home through the front door, which led straight into the living room where the stamp collection was prominently displayed. As the assistant searched through the stamp collection for the rare stamp, the front door suddenly opened and the CEO walked in. Upon seeing the assistant, the CEO reached into her purse, pulled out a gun, told the assistant to stay where he was, and called the police.

In a common law jurisdiction, which of the following crime(s) can the assistant be found guilty of?

A. No crime.

B. Burglary only.

C. Attempted larceny only.

D. Burglary and attempted larceny.

Explanation:

Common law burglary requires proof that the defendant:

unlawfully broke and entered another's dwelling at night *and*

did so with the **specific intent to commit** a felony (eg, larceny) therein.

An unlawful breaking occurs if the defendant used *any amount* of force to create an opening into the dwelling without consent. And once the defendant enters the dwelling with the requisite intent, the burglary is complete. This means that there is **no need to prove** that the **defendant completed** the **underlying felony** to obtain a burglary conviction.

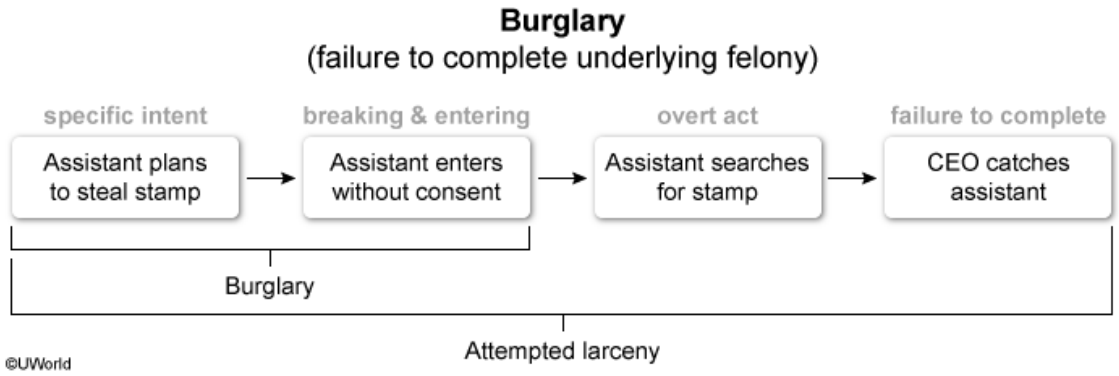
In addition, a burglary defendant who **failed to complete** the **underlying felony** is **guilty of the attempted commission** of that felony. That is because the defendant (1) specifically intended to commit the felony and (2) performed an overt act in furtherance of the felony—the unlawful breaking and entering.

Here, the assistant unlawfully broke and entered the CEO's home at night with the specific intent to commit larceny—ie, the unlawful taking and carrying away of another's personal property (rare stamp) with the specific intent to permanently deprive the owner of that property. Therefore, the assistant is guilty of burglary **(Choices A & C)**. And since the assistant performed the overt act of unlawfully entering the CEO's home, he is also guilty of attempted larceny **(Choice B)**.

Educational objective:

Burglary is complete when the defendant unlawfully breaks and enters another's dwelling with the specific intent to commit a felony therein—the underlying felony need not be committed. And a burglary defendant who fails to complete the underlying felony is also guilty of the attempted commission of that felony.

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An old man lived on the second floor of a small convenience store/gas station that he owned. One night he refused to sell a college student a six-pack of beer after hours, saying he could not violate the state laws. The student became enraged and deliberately drove his car into one of the gasoline pumps, severing it from its base. There was an ensuing explosion causing a ball of fire to go from the underground gasoline tank into the building. As a result, the building burned to the ground and the old man was killed.

The college student is charged with murder and arson in a common law jurisdiction.

What is the most likely outcome of the student's trial?

A. He will be convicted of both offenses.

B. He will be convicted of arson and involuntary manslaughter.

C. He will be convicted of involuntary manslaughter and acquitted of arson.

D. He will be acquitted of both offenses.

Explanation:

In a **common law jurisdiction**, a defendant can be convicted of **murder** if the prosecution proves beyond a reasonable doubt that the defendant killed another person with **malice aforethought**—eg, with **reckless disregard** of an **obvious or high risk** of **serious bodily injury or death** (depraved-heart or extreme-recklessness murder).

There is an unreasonably high risk that driving into a gasoline pump will cause an explosion that could seriously injure or kill others. And here, the student recklessly disregarded that risk when he deliberately drove into the pump (malice aforethought), causing an explosion that killed the old man. Therefore, the student will likely be convicted of murder.

Common law arson is the **malicious** (ie, intentional or reckless) **burning of another's dwelling**. Here, the student deliberately drove into the gasoline pump, so he recklessly caused the explosion and subsequent fire (malicious burning). And since that fire caused the building where the old man lived (dwelling) to burn down, the student will likely be convicted of arson as well **(Choices C & D)**.

(Choices B & D) Involuntary manslaughter is a lesser degree of homicide that occurs when the defendant unintentionally kills another person through criminal negligence or an unlawful act (ie, *without* malice aforethought). But since the student acted *with* malice aforethought (recklessness), he will be convicted of the greater offense of murder.

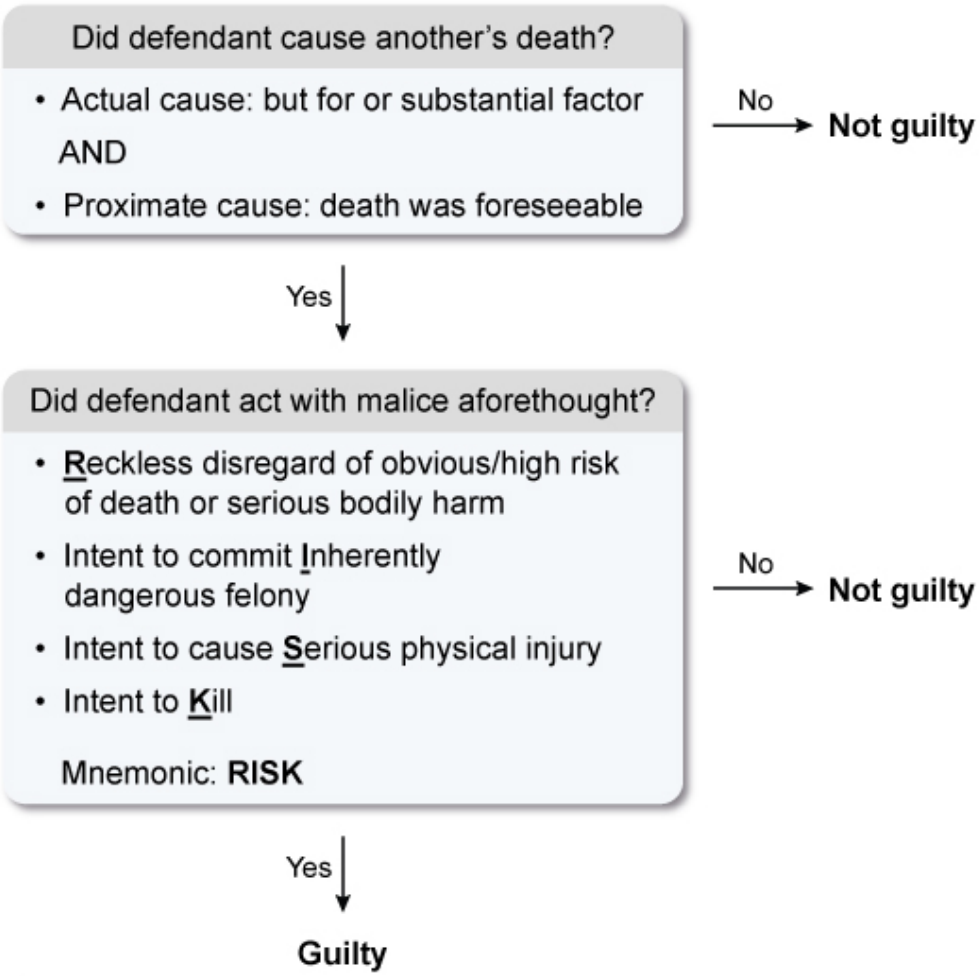
Educational objective:

At common law, a defendant is guilty of murder when he/she kills another person with malice aforethought—eg, with reckless disregard for an obvious or high risk to life. And a defendant commits arson when he/she maliciously burns the dwelling of another.

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Common law murder



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A man was at work when he received a call from his wife. She told the man that their neighbor had severely beaten their son for merely walking across the neighbor's lawn. Incensed, the man rushed home from work only to find the neighbor being led away in handcuffs by the police. Ten days later, the man was shopping at a local grocery store when he spotted the neighbor, who had been released on bail. As they crossed paths, the neighbor looked directly at the man and said, "Hitting your boy sure was fun." The man became enraged, immediately drew a knife, and stabbed the neighbor repeatedly, killing him.

The man was charged with murder. At trial, the man has requested that the court instruct the jury on voluntary manslaughter.

Should the court grant the man's request?

A. No, because a reasonable person in the man's position would have cooled after 10 days.

B. No, because words alone do not constitute adequate provocation.

C. Yes, because the man had not actually cooled off in the days between the son's beating and the neighbor's death.

D. Yes, because the neighbor's taunt provoked the man again.

Explanation:

A court should issue an instruction on any offense of which a reasonable jury could convict the defendant. In a prosecution for murder, an instruction on **voluntary manslaughter** is warranted when a reasonable jury could find that the defendant **intentionally killed** the victim:

in response to **adequate provocation** – an act that would cause a sudden and intense passion in a reasonable person (eg, serious assault on a family member) *and*
in the **heat of passion** – a reasonable person would not have cooled off in the time between the provocation and the killing, and the defendant did not cool off.
However, the **rekindling doctrine** allows a defendant to argue that, even though enough time had passed since the initial provocation to allow for cooling off, another encounter with the victim was sufficient to "rekindle" the defendant's passion. Such encounters commonly involve mocking or taunts about the initial provocation.

Here, the man was adequately provoked after the neighbor severely beat the man's son. However, a reasonable person likely would have cooled off in the 10 days between the son's beating and the man's encounter with the neighbor. But since a reasonable jury could find that the neighbor's taunt—"Hitting your boy sure was fun"—was sufficient to rekindle the man's passion, the court should grant his request for a voluntary-manslaughter instruction **(Choice A)**.

(Choice B) Mere words are typically not enough to constitute adequate provocation. But a second encounter involving taunting or mocking may be sufficient to rekindle passion from a prior adequate provocation (as seen here).

(Choice C) The man may not have actually cooled off in the time between the son's beating and the man's encounter with the neighbor. But since a reasonable person likely would have, this does not provide a basis for an instruction on voluntary manslaughter.

Educational objective:

Voluntary manslaughter is an intentional killing committed (1) in response to adequate provocation and (2) in the heat of passion. But even if enough time had passed for cooling off, a secondary encounter with the victim may be sufficient to rekindle the defendant's passion under the rekindling doctrine.

References

People v. Berry, 556 P.2d 777 (Cal. 1976) (establishing the rekindling doctrine).

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Rekindling doctrine



A driver stopped at a red traffic light in his home state. A stranger opened the passenger door, got in, and pointed a gun at the driver. The stranger then directed the driver to keep driving. They drove several miles, crossed into a neighboring state, and drove several more miles.

When they reached a remote location, the stranger ordered the driver to pull over. The stranger then robbed the driver of his wallet and cash and ordered him out of the car. The stranger drove off in the driver's car.

The stranger is charged with kidnapping in the neighboring state, which has adopted the Model Penal Code.

Can the stranger properly be convicted of kidnapping in the neighboring state?

A. No, because any kidnapping took place in the driver's home state.

B. No, because the restraint was incidental to the robbery.

C. Yes, because the driver in effect paid a ransom for his release.

D. Yes, because the driver was transported under threat of force in the neighboring state.

Explanation:

A defendant can be prosecuted in any state where an essential part of the crime has occurred without violating double jeopardy. Under the Model Penal Code, **kidnapping** occurs when a victim is intentionally and unlawfully moved (or confined) for any of the following purposes:

to hold for ransom/reward or as a hostage/shield

to **facilitate commission of any felony** or flight thereafter

to inflict bodily injury on or terrorize the victim or another

to interfere with performance of a governmental or political function

An **unlawful movement** occurs when the victim is (1) removed from his/her residence or business or (2) **taken a substantial distance** from where he/she is found. And the movement must be **more than incidental** to the commission of another crime. To make this determination, courts consider the **distance and duration** of the movement as well as the **increased danger** the movement posed to the victim.

Here, the stranger entered the car, pointed a gun at the driver, and unlawfully forced him to drive a substantial distance into a neighboring state. This was done so that the stranger could rob the driver of his wallet, cash, and car. And since the driver was (1) forced to drive several miles in the neighboring state and (2) at risk of being shot while doing so, his kidnapping was more than incidental to the robbery **(Choice B)**. As a result, the stranger can be convicted of kidnapping in the neighboring state.

(Choice A) The kidnapping did not only occur in the driver's home state because he was forced to drive across state lines.

(Choice C) A defendant can be convicted of kidnapping for moving a victim to hold for ransom. But the driver did not pay a ransom since the stolen cash, wallet, and car were not given in exchange for his release.

Educational Objective:

Under the Model Penal Code, unlawfully moving a victim a substantial distance through two states to facilitate a crime constitutes kidnapping in both states.

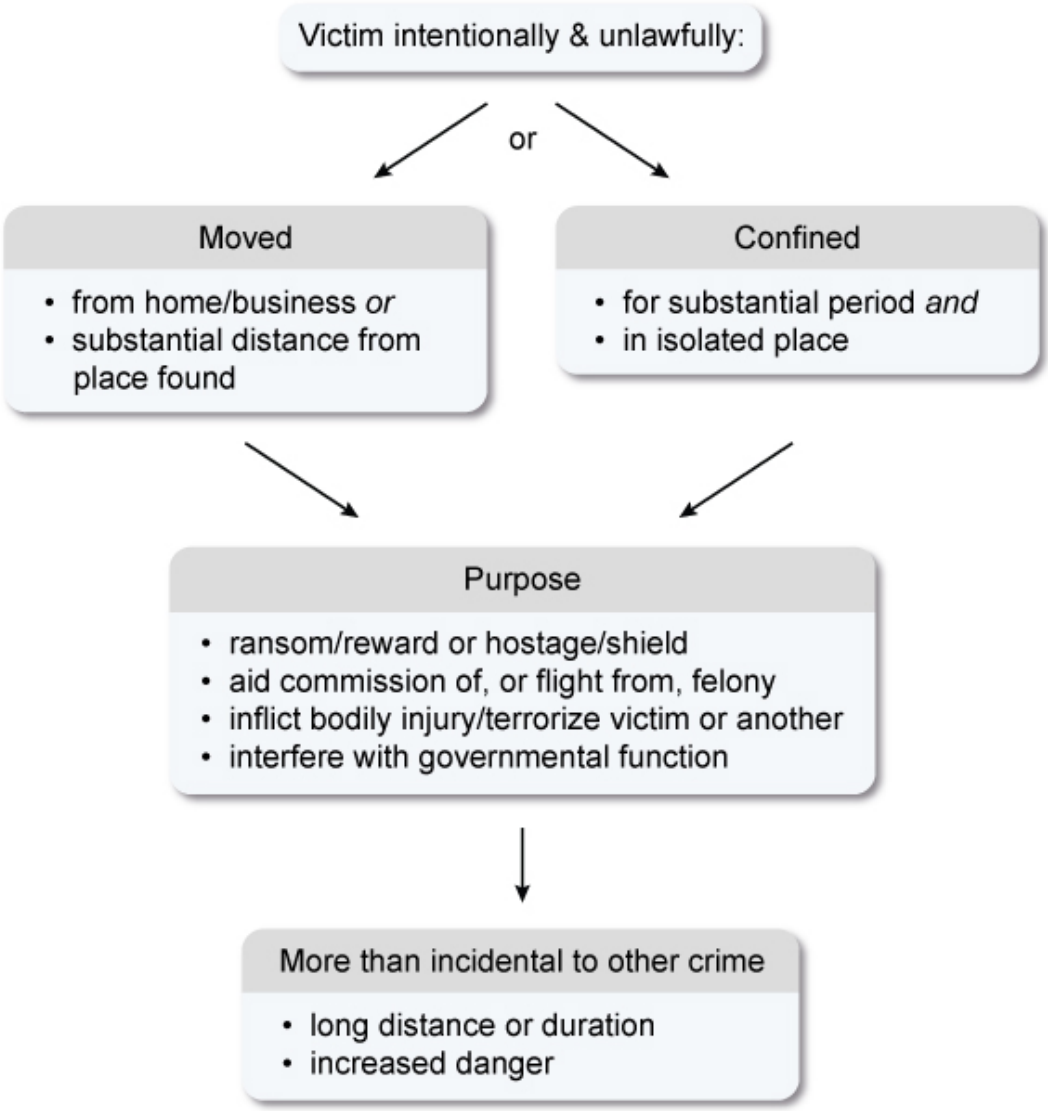
References

Model Penal Code § 212.1 (Am. Law Inst. 2019) (kidnapping).

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Kidnapping under Model Penal Code



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A man and a woman dated for several weeks. During that time, the man repeatedly asked the woman to have sex. Each time, the woman responded that she would not have sex with the man unless they were married. One evening, the man promised the woman that they would elope the following weekend if she would agree to have sex. The woman agreed and the couple had sex. The following weekend, the man told the woman that he had no intention of eloping and only made that promise to get the woman's consent. The woman reported the man to the police, who later arrested and charged the man with rape.

Is the man guilty of rape?

A. No, because fraud in factum did not negate the woman's consent.

B. No, because fraud in the inducement did not negate the woman's consent.

C. Yes, because the woman's consent was obtained by fraud in factum.

D. Yes, because the woman's consent was obtained by fraud in the inducement.

Explanation:

Consent to sexual intercourse obtained by fraud

Type of fraud	Definition	Effect
In factum	Fraud pertains to *nature* of act—eg, doctor convinces patient that sexual act is part of medical exam Victim is *unaware* that he/she is consenting to sexual intercourse	Negates victim's consent
In inducement	Fraud pertains to what victim *knows* is an act of sexual intercourse—eg, defendant promises marriage in exchange for sex Victim is *aware* that he/she is consenting to sexual intercourse	Does not negate victim's consent

In most modern jurisdictions, **rape** is defined as sexual intercourse with another without that person's consent.* This means that rape did not occur if the victim consented to sexual intercourse. However, a victim's **consent** may be ineffective if it was **obtained by fraud**. There are two types of fraud:

Fraud in factum – when consent is obtained by fraud regarding the **nature of the act** itself, leaving the **victim unaware** that he/she consented to sexual intercourse and **negating the victim's consent**

Fraud in the inducement – when consent is obtained by fraud regarding what the **victim knows** is an act of sexual intercourse, which **does *not* negate the victim's consent**

As a result, consent obtained by fraud in factum *is not* a valid defense to rape, but consent obtained by fraud in the inducement *is* a valid defense.

Here, the man falsely promised the woman that they would elope if she agreed to have sex with him. Since the woman knew that the act to which she consented was sexual intercourse, her consent was obtained by fraud in the inducement **(Choices A & C)**. This type of fraud did not negate the woman's consent, so the man is not guilty of rape **(Choice D)**.

*At common law, rape was defined as (1) unlawful sexual intercourse (2) with a female who is not the defendant's wife (3) against her will by force or threat of force.

Educational objective:

Fraud in factum occurs when the fraud pertains to the nature of the act itself and negates a rape victim's consent. In contrast, fraud in the inducement occurs when fraud is used to

gain consent to what the victim knows is an act of sexual intercourse and does not negate the victim's consent.

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A woman's ex-husband was getting remarried. The woman believed that he was making a mistake and that she needed to stop him. On the day of his wedding, held outdoors at a park, the woman hid behind some bushes she knew her ex-husband would have to pass before entering the area where the ceremony would take place. When her ex-husband was a few feet away, the woman got his attention and told him to come behind the bushes to talk. When he resisted, the woman pulled out a gun and the husband reluctantly walked around the bushes to talk to her. The woman then proceeded to tell him that he could not get married. Once the ex-husband was able to convince the woman that he would not get married, he was able to leave and notified the police. The woman was subsequently arrested and charged with kidnapping.

Is the woman guilty of kidnapping?

A. No, because the ex-husband was not actually confined.

B. No, because the ex-husband was only forced to move a few feet.

C. Yes, because the woman forced the ex-husband to go behind the bushes.

D. Yes, because the woman prevented the ex-husband from entering the area where the ceremony would take place.

Explanation:

Kidnapping

Common law	Forcibly abducting or stealing person from his/her own country & sending to another country	
MPC	Unlawfully moving or confining another to: hold for ransom or as hostage facilitate commission of felony or flight thereafter injure/terrorize victim or another *or* interfere with governmental/political function	
Modern view	General	Intentional & unlawful confinement involving: some movement (asportation) *or* concealment
	Aggravated	General kidnapping committed for: ransom commission of other crime offensive purpose *or* child stealing

MPC = Model Penal Code.

Under the modern view, **kidnapping** is:

the intentional* and unlawful confinement of another
against that person's will (eg, by force, threat, or fraud)
coupled with either **moving** or hiding that person.

Confinement occurs when the victim's freedom of movement is significantly restricted. It is not enough that the victim is prevented from taking a path or entering an area; the victim must be prevented from leaving an area or compelled to go somewhere the victim does not want to go. Additionally, the victim need only be **moved a short distance** to satisfy the movement requirement.

Here, the ex-husband was intentionally confined when the woman threatened him with a gun to compel him to come behind the bushes against his will **(Choice A)**. And since the man was forced to walk a few feet, the movement requirement was also satisfied **(Choice B)**. Therefore, the woman is guilty of kidnapping.

*General intent crimes such as kidnapping require only the intent to perform an act that is unlawful.

(Choice D) The man was confined because he was forced to go someplace he did not want to go—behind the bushes. Merely preventing a victim from taking a path or entering an area does not constitute confinement.

Educational objective:

Under the modern view, kidnapping is the unlawful and intentional confinement of another against that person's will, coupled with the movement or hiding of that person. To satisfy the movement requirement, the victim need only be moved a short distance.

References

Charles E. Torcia, 3 Wharton's Criminal Law § 207 (15th ed. 2020) (discussing kidnapping requirements).

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While browsing in a clothing store, an actress decided to take a purse without paying for it. She placed the purse under her coat and took a couple of steps toward the exit. She then realized that a sensor tag on the purse would set off an alarm. She placed the purse near the counter from which she had removed it.

Which crime, if any, has the actress committed?

A. No crime, because the purse was never removed from the store.
B. No crime, because she withdrew from her criminal enterprise.
C. Only attempted larceny, because she intended to take the purse out of the store.
D. Larceny, because she took the purse from its original location and concealed it with the intent to steal.

Explanation:

Larceny is committed once a person (1) unlawfully takes and **carries away** another's personal property (2) with the specific intent to permanently deprive that person of his/her interest in the property. Carrying away (ie, asportation) occurs when property is **moved even a short distance** (eg, mere inches). And some jurisdictions only require that the property be brought under a person's dominion and control—no physical movement of the property is required.

Here, the actress decided to take a purse without paying for it (specific intent). As a result, she removed the purse from the counter (unlawful taking) and concealed it under her coat (carrying away). Therefore, she committed larceny—even though the purse was never removed from the store **(Choice A)**.

(Choice B) Withdrawal (ie, abandonment) occurs when a person completely and voluntarily turns away from a crime before completing it. However, this defense only applies to *attempted* crimes and is not recognized in most jurisdictions. And since the actress *completed* the larceny once she concealed the purse, it is no defense here.

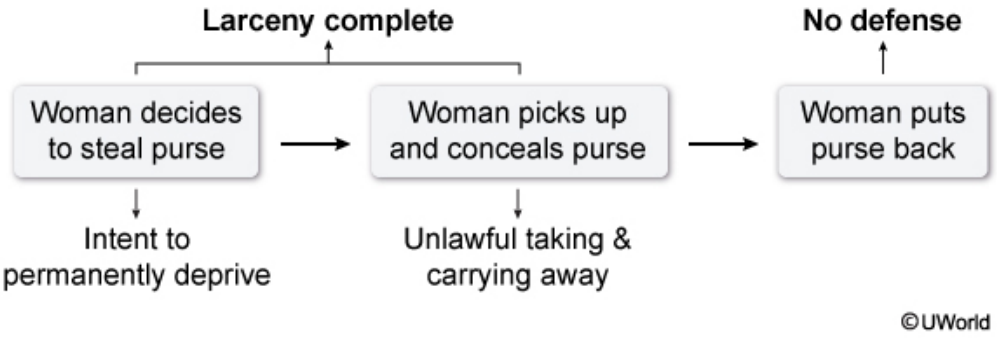
(Choice C) Attempt occurs when a defendant (1) has the specific intent to commit a crime, (2) commits an act in furtherance of that crime, but (3) does not complete it. Here, the actress will be convicted of larceny—not merely attempted larceny—since she *did* complete the crime.

Educational objective:

Larceny requires the carrying away (ie, asportation) of another's personal property. This occurs when the defendant moves the property a slight amount (majority rule) or brings the property under his/her dominion and control (minority rule).

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A man who owned a business believed that one of his employees was stealing computer equipment from the business. He decided to break into the employee's house one night, when he knew that the employee and her family would be away, to try to find and retrieve the equipment.

The man had brought a picklock to open the employee's back door. But when he tried the door, he found that it was unlocked, so he entered. As the man was looking around the house, he heard sounds outside and became afraid. He left the house but was arrested by police on neighborhood patrol.

What is the man's strongest defense to a burglary charge?

A. The back door to the house was unlocked.

B. The burglary was abandoned.

C. The house was not occupied at the time of his entry.

D. The man did not intend to commit a crime inside the house.

Explanation:

Most jurisdictions broadly define **burglary** as:

the **unlawful entry** of a building or other structure
with the **specific intent** to **commit any crime therein**.
An entry occurs when any part of a person's body (or an object in his/her control) crosses into the structure. And that entry is unlawful if it occurred without permission from the rightful possessor or legal privilege. But it only amounts to burglary if the person intended to commit a crime therein—not merely to retrieve his/her own property (as seen here). Therefore, the man's strongest defense is that he lacked the requisite intent.

(Choice A) Most jurisdictions have eliminated the common law "breaking" requirement for burglary—ie, the use of *any* amount of force to gain entry. But even if this requirement existed here, it was satisfied when the man opened the unlocked door.

(Choice B) Abandonment is a defense when a person intends to commit a crime but has a change of heart before completing it. Here, the man intended to recover his business equipment, not to commit a crime. Therefore, his best defense is that he never formed the requisite intent—not that he later abandoned it.

(Choice C) There is no requirement that the structure be occupied at the time of the entry, so the fact that the house was unoccupied would not serve as a defense to burglary.

Educational objective:

In most jurisdictions, burglary requires proof of two elements: (1) an unlawful entry of a building or other structure (2) with the specific intent to commit any crime therein. Therefore, a burglary does not occur if a person unlawfully enters a structure to retrieve his/her own property—not to commit a crime.

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Burglary
(specific intent to commit crime in dwelling)



Intent to steal = burglary

No intent to steal ≠ burglary

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A man decided to kill his boss after she told him that he would be fired if his work did not improve. The man knew his boss was scheduled to go on a business trip on Monday morning. On Sunday morning, the man went to the company parking garage and put a bomb in the company car that his boss usually drove. The bomb was wired to go off when the car engine started. The man then left town. At 5:00 a.m. Monday, the man, after driving all night, was overcome with remorse and had a change of heart. He called the security officer on duty at the company and told him about the bomb. The security officer said he would take care of the matter. An hour later, the officer put a note on the boss's desk telling her of the man's call. The officer then looked at the car but could not see any signs of a bomb. He printed a sign saying, "DO NOT USE THIS CAR," put it on the windshield, and went to call the police. Before the police arrived, the company's vice president got into the car and started the engine. The bomb went off, killing her instantly.

The jurisdiction defines murder in the first degree as any homicide committed with premeditation and deliberation or any murder in the commission of a common law felony. Second-degree murder is defined as all other murder at common law. Manslaughter is defined by the common law.

What is the most serious crime of which the man can be properly convicted?

A. Murder in the first degree, because, with premeditation and deliberation, he killed whoever would start the car.

B. Murder in the second degree, because he had no intention of killing the company vice president.

C. Manslaughter, because he had no intent to kill at the time of the explosion.

D. Only attempted murder of his boss, because the vice president's death was the result of the security officer's negligence.

Explanation:

In this jurisdiction, **first-degree murder** includes felony murder and any homicide that is committed with:

premeditation – the defendant formed the **specific intentto kill** at some **appreciable time before** committing the criminal act *and*

deliberation – the defendant reached the decision to kill after **cool and dispassionate reflection** upon the criminal act and its likely consequences.

And under the doctrine of **transferred intent**, the defendant's **specific intent to kill** one person will be **transferred** to the **person actually harmed** by the defendant.

Here, the man planned to kill his boss (premeditation and deliberation) and planted a bomb in her car to do so. The bomb then killed the vice president. And though the man did not intend to kill the vice president, his intent to kill his boss with the bomb can be shifted onto the vice president under the doctrine of transferred intent **(Choice B)**. Therefore, the man can be convicted of first-degree murder.

(Choice C) All crimes require proof of concurrence—ie, that the defendant had the requisite intent when the criminal act was committed. Here, the man had no intent to kill at the time of the explosion. But he *did* act with such intent when he committed the criminal act of planting the car bomb. And since that bomb caused the vice president's death, the man can be convicted of first-degree murder.

(Choice D) Although the man is guilty of attempted murder of his boss, he is also guilty of first-degree murder of the vice president. The security officer's negligence did not absolve the man of murder because the officer's actions were *foreseeable*—ie, not a superseding cause that would eliminate the man's liability.

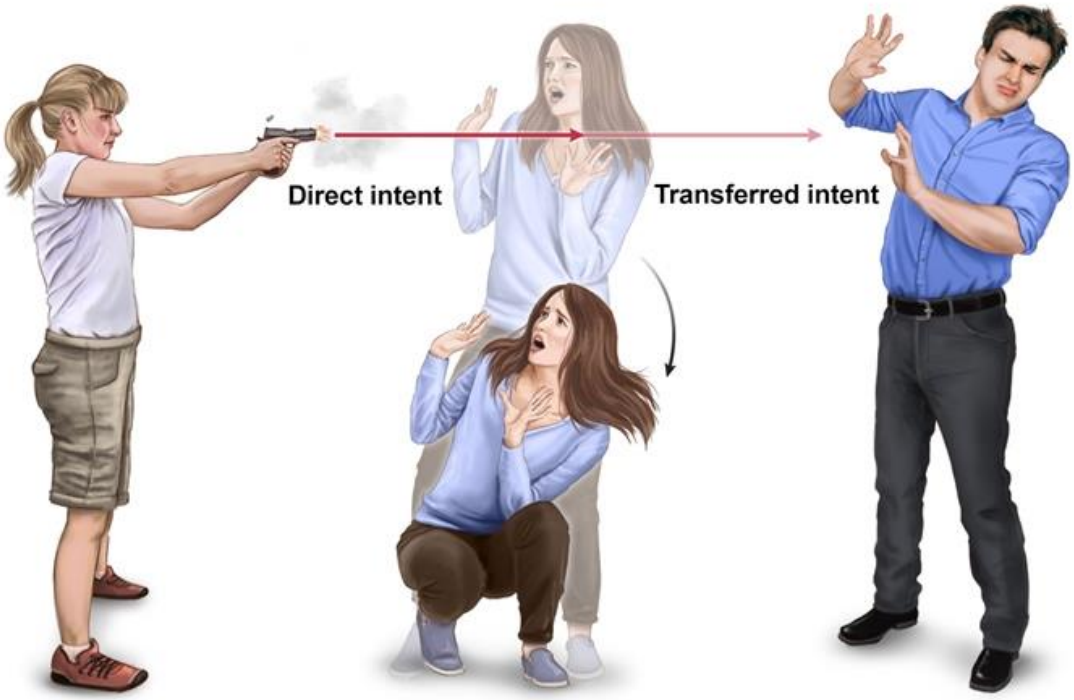
Educational objective:

Under the doctrine of transferred intent, the defendant's specific intent to kill one person will be transferred to the person actually harmed by the defendant.

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Transferred intent



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A man became angry after he was unexpectedly laid off from his longtime job as a factory worker. The next day, he returned to the factory floor and indiscriminately fired shotgun rounds into the air. The man later testified, without contradiction, that he had not intended to kill anyone but had simply sought to exact revenge on the factory's owners by shutting down operations for the day. Unfortunately, one of the bullets ricocheted off the wall and killed the man's best friend.

The crimes below are listed in descending order of seriousness.

On these facts, what is the most serious offense of which the man properly could be convicted?

A. Murder.

B. Voluntary manslaughter.

C. Involuntary manslaughter.

D. Assault.

Explanation:

Homicide

Murder	**Common law**	**Modern approach**
	Unlawful killing committed with malice aforethought:	First-degree: murder committed with:
	Intent to kill	premeditation & deliberation
	Intent to cause serious bodily harm	heinous acts (eg, bombing, torture)
	Depraved-heart murder	enumerated felony murder
	Felony murder	Second-degree: any murder that is not first-degree murder
Voluntary manslaughter	Intentional killing mitigated by either:	
	adequate provocation (ie, heat of passion)	
	other mitigating factors (eg, imperfect self-defense)	
Involuntary manslaughter	Unintentional killing either:	
	caused by criminal negligence (or recklessness under MPC)	
	occurs during commission of criminal act (eg, misdemeanor manslaughter)	

MPC = Model Penal Code.

Murder is the **unlawful killing** of another with **malice aforethought**. Four types of mental states satisfy the malice aforethought requirement:

Intent to kill – the purpose or knowledge that one's conduct will cause the victim's death

Intent to cause serious bodily injury – the purpose or knowledge that one's conduct will cause serious bodily injury or a significant risk of death

Depraved-heart murder – **reckless indifference** to an **obvious or high risk to human life**

Felony murder – intent to commit an inherently dangerous felony

Here, the best friend was killed when the man's bullet ricocheted off a factory wall. Although the man did not intend to kill his best friend, he did act with reckless indifference to human life by indiscriminately firing shotgun rounds into the air inside the factory (depraved-heart murder). Therefore, the man properly could be convicted of murder.

(Choice B) Voluntary manslaughter is an intentional killing of another prompted by adequate provocation (or imperfect self-defense) and committed before a reasonable cooling-off period has elapsed. Here, the man could not be convicted of voluntary manslaughter since (1) he did not intend to kill his best friend, (2) an unexpected layoff is not adequate provocation, and (3) the murder occurred a day later—after he had cooled off.

(Choice C) Involuntary manslaughter is an unintentional killing of another (1) during the commission of an unlawful act or (2) with criminal negligence. Although the man could be convicted of involuntary manslaughter (since he killed the best friend while unreasonably firing a shotgun in the factory), he could also be convicted of the more serious crime of murder.

(Choice D) Assault is an attempted battery *or* the intentional infliction of reasonable apprehension of imminent bodily harm. Here, the man could be convicted of assault since he intended to shut down factory operations for the day by causing apprehension of imminent bodily harm with his shotgun. But murder is a more serious offense.

Educational objective:

Murder is an unlawful killing committed intentionally (ie, intent to kill or inflict serious bodily injury), during the commission or attempted commission of an inherently dangerous felony (ie, felony murder), or with reckless disregard for human life (ie, depraved-heart murder).

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A principal scientist recently left her job at a biotechnology corporation that manufactures and commercializes biopharmaceuticals for various medical conditions. The scientist began working for a competitor in order to lead the development of an experimental drug that would address the same medical condition as a drug she had been developing at the corporation. When the competitor issued a press release that it was in the final stages of testing the experimental drug, the corporation presented evidence to a prosecutor that the experimental drug contained the corporation's trade secrets and that the scientist first learned of the trade secrets while working at the corporation. The corporation also provided the prosecutor with a copy of its employment contract with the scientist, under which the scientist had agreed that the trade secrets belonged to the corporation and would remain with the corporation even after her employment ceased.

In a common-law jurisdiction, which of the following property crimes is the prosecutor most likely to charge the scientist with?

A. No crime, because trade secrets are intangible property.

B. Embezzlement, because the scientist lawfully acquired possession of the trade secrets.

C. False pretenses, because the scientist obtained title to the corporation's trade secrets.

D. Larceny, because the scientist permanently deprived the corporation of its trade secrets.

Explanation:

Legislative changes to theft crimes

Common law	Larceny, embezzlement, false pretenses & receipt of stolen goods are separate offenses Property limited to tangible personal property
MPC & state criminal codes	Theft is a single statutory crime that encompasses larceny, embezzlement, false pretenses & receiving stolen goods Property broadened to include anything of value—including intangibles, services, documents

MPC = Model Penal Code.

At common law, liability for property crimes is limited to the trespassory or otherwise unlawful taking of **tangible property**.* Trade secrets are **intangible property**, so it is unlikely that the prosecutor will charge the scientist with a property crime in this common-law jurisdiction.

*The Model Penal Code and modern theft statutes expand criminal liability for property crimes to include intangible property (eg, trade secrets).

(Choice B) Embezzlement is the fraudulent conversion of another's property by someone in lawful possession of that property. The scientist may have acquired lawful possession of the trade secrets through her employment with the corporation. But in a common-law jurisdiction, the embezzled property must be tangible property or, in some states, real property—not intangible property (as seen here).

(Choice C) False pretenses is obtaining title to another's property by knowingly making a false representation of a past or present material fact with the specific intent to defraud. Here, there is no indication that a false representation was made, and title to the trade secrets never passed from the corporation to the scientist. Additionally, only tangible property is subject to a charge of false pretenses at common law.

(Choice D) Larceny is the unlawful taking and carrying away of another's personal property with the specific intent to permanently deprive the owner of that property. At common law, the property taken must be tangible personal property; intangible property will not suffice.**

**However, documents that represent a right to intangible property are treated as personal property.

Educational objective:

Common-law property crimes limit criminal liability to the trespassory or otherwise unlawful taking of *tangible* property.

References

Charles E. Torcia, 3 Wharton's Criminal Law § 371 (15th ed. 2020) (discussing that at common law only tangible personal property can be the subject of larceny).

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A man worked as the cashier in a restaurant. One night after the restaurant had closed, he discovered that the amount of cash in the cash register did not match the cash register receipt tapes. He took the cash and the tapes, put them in a bag, gave them to the manager of the restaurant, and reported the discrepancy. The manager immediately accused him of taking money from the register and threatened to fire him if he did not make up the difference. The manager placed the bag in the office safe. Angered by what he considered to be an unjust accusation, the man waited until the manager left the room and then reached into the still-open safe, took the bag containing the cash, and left.

Of which crimes(s) is the man guilty?

A. Embezzlement.

B. Larceny.

C. Both embezzlement and larceny.

D. Neither embezzlement nor larceny.

Explanation:

Embezzlement occurs when a person:

lawfully possesses another's property—ie, has the property owner's permission to possess or control it *and*

fraudulently converts it—ie, substantially interferes with the owner's rights in property with the specific intent to defraud the owner of that property.

Here, the man no longer lawfully possessed the restaurant's money once he turned it over to his manager. Therefore, even though he later took the money (substantial interference), he is not guilty of embezzlement **(Choices A & C)**.

Larceny is the (1) **unlawful taking** and **carrying away** of another's personal property (2) with the **specific intent to permanently deprive** the owner of that property. An unlawful taking occurs when the defendant removes property from the owner's possession and control without the owner's consent. And property is carried away once it is moved even a small distance.

Here, the man became angry at his manager after being wrongfully accused of stealing money out of the cash register. After the manager left the room, the man reached into the open safe, took the bag of cash belonging to the restaurant (unlawful taking), and left with it (carrying away). And since the man presumably took the money with the intent to permanently deprive the restaurant of it, he is guilty of larceny **(Choice D)**.

Educational objective:

Embezzlement requires proof that a person in lawful possession of another's property fraudulently converted it. And larceny requires proof that a person (1) unlawfully took and carried away another's personal property (2) with the specific intent to permanently deprive the owner of that property.

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Larceny **v.** **Embezzlement**



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At 11:00 p.m., a husband and wife were accosted in the entrance to their apartment building by a man, who was armed as well as masked. The man ordered the couple to take him into their apartment. After they entered the apartment, the man forced the wife to bind and gag her husband and then to open a safe which contained a diamond necklace. The man then tied her up and fled with the necklace. He was apprehended by apartment building security guards. Before the guards could return to the apartment, but after the man was arrested, the husband, straining to free himself, suffered a massive heart attack and died.

In a common law jurisdiction, of which crimes is the man guilty?

A. Robbery only.

B. Burglary and robbery only.

C. Robbery and murder only.

D. Burglary, robbery, and murder.

Explanation:

Common law **burglary** is the (1) **breaking and entering** of another's dwelling at night (2) with the specific intent to commit a felony therein. The breaking of another's dwelling can be:

actual – when physical force is used to gain entry (eg, opening a window) *or*

constructive – when fraud, deception, or **threat of force** is used to gain entry.

Here, the man ordered the couple to take him into their apartment at gunpoint (constructive breaking). He then entered their apartment at 11:00 at night to rob them (intent to commit felony). Therefore, the man is guilty of burglary **(Choices A & C)**.

Robbery is the use or threat of **force** to unlawfully **take and carry away** another's property with the specific intent to permanently deprive the owner of that property. Here, the man used a gun to force the wife to open the safe, took her diamond necklace, and fled. Therefore, he is also guilty of robbery.

After the robbery, the husband died while trying to escape from his binds. **Common law murder**, under the **felony murder** rule, is any killing of another during the commission, or attempted commission, of an inherently dangerous felony (eg, robbery, burglary). The perpetrator is responsible for deaths that occur after the felony was committed if the **death and felony** were **closely related in time and space** (as seen here). Therefore, the man is also guilty of murder **(Choices A & B)**.

Educational objective:

Felony murder occurs when the defendant kills another during the commission, or attempted commission, of an inherently dangerous felony—eg, burglary or robbery.

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A bartender asked a woman to spend a weekend with him at his apartment and promised her they would get married on the following Monday. The woman agreed and also promised the bartender that she would not tell anyone of their plans. Unknown to the woman, the bartender had no intention of marrying her.

After the woman came to his apartment, the bartender told her he was going for cigarettes. He called the woman's father and told him that he had his daughter and would kill her if he did not receive $100,000. The bartender was arrested on Sunday afternoon when he went to pick up the $100,000. The woman was still at the apartment and knew nothing of the bartender's attempt to get the money.

Of which crime is the bartender guilty?

A. Kidnapping.

B. Attempted kidnapping.

C. Kidnapping or attempted kidnapping but not both.

D. Neither kidnapping nor attempted kidnapping.

Explanation:

Kidnapping

Common law	Forcibly abducting or stealing person from his/her own country & sending to another country	
MPC	Unlawfully moving or confining another to: hold for ransom or as hostage facilitate commission of felony or flight thereafter injure/terrorize victim or another *or* interfere with governmental/political function	
Modern view	General	Intentional & unlawful confinement involving: some movement (asportation) *or* concealment
	Aggravated	General kidnapping committed for: ransom commission of other crime offensive purpose *or* child stealing

MPC = Model Penal Code.

Under the modern view, **kidnapping** is (1) the **unlawful and intentional confinement** of another coupled with (2) the movement or concealment of that person. Confinement occurs when the victim's freedom of movement is restricted **against his/her will**—ie, by force, threat of force, or deception. As a result, there is *no* kidnapping if the **victim consents** to the confinement.

Here, the man convinced the woman to spend the weekend with him by falsely promising to marry her. But his false promise did not restrict the woman to the apartment against her will—she remained there voluntarily. As a result, the man cannot be convicted of kidnapping **(Choices A & C)**. And he cannot be convicted of attempted kidnapping because he (1) never intended to kidnap the woman and (2) did not commit an overt act in furtherance of that crime. Instead, he merely intended to trick the father into paying a $100,000 ransom **(Choices B & C)**.

Educational objective:

Under the modern view, kidnapping is the unlawful and intentional confinement of another that involves the movement or concealment of that person. Since confinement occurs when a person's movement is restricted against his/her will, consent is a defense to kidnapping.

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A woman told a man to accompany her into her friend's unlocked barn and retrieve an expensive black saddle that she said she had loaned to the friend. The man accompanied the woman to the friend's barn, opened the door, found a black saddle hanging high above the ground, and climbed a ladder to reach it. He handed the saddle down to the woman, and the two left with it together. In fact, the saddle belonged to the friend, and when the friend discovered the saddle missing, she suspected that the woman was the thief. The friend used a screwdriver to break into the woman's house to find the saddle. Upon discovering the saddle on the woman's kitchen table, the friend took it back and called the police.

The jurisdiction follows the common law, except that burglary covers structures in addition to dwellings and the nighttime element has been eliminated.

Which of these individuals is guilty of burglary?

A. All of them.

B. Only the friend.

C. Only the woman.

D. The man and the woman.

Explanation:

In this jurisdiction, **burglary** is:

the **unlawful breaking and entering** of another's structure or dwelling—eg, use of slight force to open a door and step through the doorway

with the **specific intent to commit a felony** therein.

Larceny is a felony that occurs when a person unlawfully takes and carries away another's personal property with the specific intent to permanently deprive the owner of it. And a person is guilty of these crimes if he/she personally committed the crime OR **used an innocent agent** to commit the criminal acts. An innocent agent is a person who **lacked the requisite mens rea** but was **tricked or forced into committing the crime**.

Here, the man was an innocent agent of the woman since she falsely told him that she had loaned the saddle to the friend to trick the man into helping her take it from the friend's barn. The woman then used the man to open the unlocked barn door (unlawful breaking) and they entered the barn. Since the woman entered intending to steal the friend's saddle (larceny), she is guilty of burglary. But since the man believed that the woman owned the saddle (no intent to commit larceny or other felony), he is not guilty of burglary **(Choices A & D)**.

The friend then discovered that her saddle was missing. She immediately suspected that the woman stole it, so the friend broke and entered the woman's house to retrieve it. But the friend did not intend to steal *another's* property because she owned the saddle. And since she did not intend to commit larceny or any other felony, the friend is not guilty of burglary **(Choices A & B)**.

Educational objective:

A person is guilty if he/she personally commits a crime or uses an innocent agent to commit the criminal acts. An innocent agent is a person who lacked the requisite mens rea but was tricked or forced into committing the crime.

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Liability for burglary

Directly liable	Liable through innocent agent	Not liable

A man entered the county museum at a time when it was open to the public, intending to steal an etching by a famous painter. Once inside, he took what he thought was the etching from an unlocked display case and concealed it under his coat. However, the etching was a photocopy of an original that had been loaned to another museum. A sign over the display case containing the photocopy said that similar photocopies were available free at the entrance. The man did not see the sign.

Burglary in the jurisdiction is defined as "entering a building unlawfully with the intent to commit a crime."

Of which crime(s) is the man guilty?

A. Burglary and larceny.

B. Burglary and attempted larceny.

C. Larceny.

D. Attempted larceny.

Explanation:

In this jurisdiction (and most others), **burglary** requires proof that a person **unlawfully entered** a building with the intent to commit a crime therein. Here, the man entered the museum with the intent to steal an etching. But since persons may **lawfully enter** a **building held open to the public**, his entry was *lawful*. Therefore, he is not guilty of burglary **(Choices A & B)**.

However, the man is guilty of **larceny**—ie, the **unlawful (eg, nonconsensual) taking** and carrying away of another's personal property with the specific intent to permanently deprive the owner thereof. The man took a photocopy of the etching from the display case even though other copies were available for free at the museum's entrance (unlawful taking). He then completed the crime when he concealed the photocopy under his coat (carrying away) with the intent to steal it (permanent deprivation).

(Choices B & D) Attempt occurs when a person (1) has the specific intent to commit a crime, (2) engages in an act in furtherance of that crime, but (3) does not complete it. Since the man completed the larceny, he is not guilty of attempt.

Educational objective:

Burglary requires proof that a person unlawfully entered a building, so a person cannot burglarize a building while it is open to the public. And larceny requires proof that a person took another's personal property unlawfully—eg, without the owner's consent.

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Larceny
(unlawful taking requirement)



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A man was at home watching sports when his teenaged son walked into the living room and told him that he had just been severely assaulted. When asked who had hurt him, the son replied that it was a neighborhood boy. Enraged, the man grabbed his pistol and set off for the neighbor's house located across the street. The man arrived at the house and banged on the door. Unbeknownst to the man, the neighbor had an identical twin brother. The neighbor's twin answered the door, and the man shot and killed him.

The man is charged with murder as defined under the common law. At trial, he requests the court to charge the jurors that they can find him guilty of voluntary manslaughter rather than murder.

Assuming that the court believes that there is sufficient evidence that the man was adequately provoked and committed the killing in the heat of passion, should the court grant the man's request?

A. No, because a court cannot instruct the jury on two different crimes stemming from the same incident.

B. No, because the man was not provoked by the twin.

C. Yes, because a jury could find that the man unintentionally killed the twin.

D. Yes, because a jury could find that the man's mistake as to the twin's identity was reasonable.

Explanation:

Types of common law homicide

(in descending order of seriousness)

Murder	Unlawful killing of another with malice aforethought: Intent to kill Intent to cause serious physical injury Depraved heart – reckless disregard of obvious/unjustifiably high risk to human life Felony murder – intent to commit inherently dangerous felony
Voluntary manslaughter	Intentional killing of another based on: adequate provocation *or* imperfect self-defense: defendant started confrontation defendant honestly but unreasonably believed deadly force was necessary
Involuntary manslaughter	Unintentional killing of another: with criminal negligence *or* during unlawful act

A common-law murder conviction requires proof that the defendant unlawfully killed another with malice aforethought—eg, with the specific intent to kill or inflict serious bodily harm (as seen here). However, a court should issue an instruction on all lesser crimes for which a reasonable jury could convict the defendant.

An instruction on **voluntary manslaughter** is appropriate if a reasonable jury could find that the defendant **intentionally killed** the victim in the **heat of passion** generated by **adequate provocation**. And under the doctrine of **transferred provocation**, such an instruction is appropriate even if the defendant:

killed someone the defendant **mistakenly but reasonably believed** was the **provoker** *or* **accidentally killed another** while trying to kill the provoker.

Here, the man intentionally killed the twin brother after a serious assault on his son (adequate provocation) and before he and a reasonable person would have cooled off (heat of passion). And though the man mistakenly killed the twin instead of the actual provoker, a jury could find that the man's mistake as to the twin's identity was reasonable **(Choice B)**. Therefore, the man is still entitled to a voluntary-manslaughter instruction.*

*This question is focused on whether the man is entitled to a voluntary-manslaughter jury instruction. Regardless of whether that instruction is given, the jury can still find the man guilty of murder if it so chooses.

(Choice A) A court may instruct a jury on multiple crimes stemming from the same incident. The jury will then weigh the evidence to determine which crime the defendant committed (if any).

(Choice C) An involuntary-manslaughter instruction is appropriate when a reasonable jury could find that the defendant unintentionally killed the victim with criminal negligence or during an unlawful act. But here, the man *intentionally* killed the twin.

Educational objective:

Voluntary manslaughter occurs when a defendant intentionally kills a victim in the heat of passion generated by adequate provocation. This is true even if the victim is someone the defendant (1) mistakenly but reasonably believed was the provoker or (2) accidentally killed while trying to kill the provoker.

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A man and a woman went out on a date. At the end of the date, they went to the woman's apartment for a drink. As the night progressed, the man and the woman became amorous. The man suggested that they move into the woman's bedroom, and the two went into her dark bedroom and began to be sexually intimate. Unbeknownst to the man, the woman had a rare health condition that caused her to faint if her heart rate got too high. Prior to having intercourse, but before the woman gave her consent, the woman fainted. The man did not realize that the woman had fainted and, honestly believing that her lack of resistance indicated her consent, began having intercourse with her. A few moments later, the woman regained consciousness. When she realized what had happened, she reported the man to the police. The man was later arrested and charged with rape.

Is the man guilty of rape?

A. No, because he did not have the specific intent to commit rape.

B. No, because he reasonably believed that the woman had consented to intercourse.

C. Yes, because a mistake of fact regarding the victim's consent is not a defense to rape.

D. Yes, because he had intercourse with the woman without her consent.

Explanation:

In most modern jurisdictions, **rape** is sexual intercourse with another without that person's consent.* Rape is a general intent crime, which means that the defendant must consciously perform the unlawful act **(Choice A)**. **Mistake of fact is a defense** to rape (and other general intent crimes) if the defendant's **honest, reasonable, but mistaken belief** negated the requisite mental state. For rape, this means that the mistake must have negated the intent to engage in nonconsensual sexual intercourse with the victim.

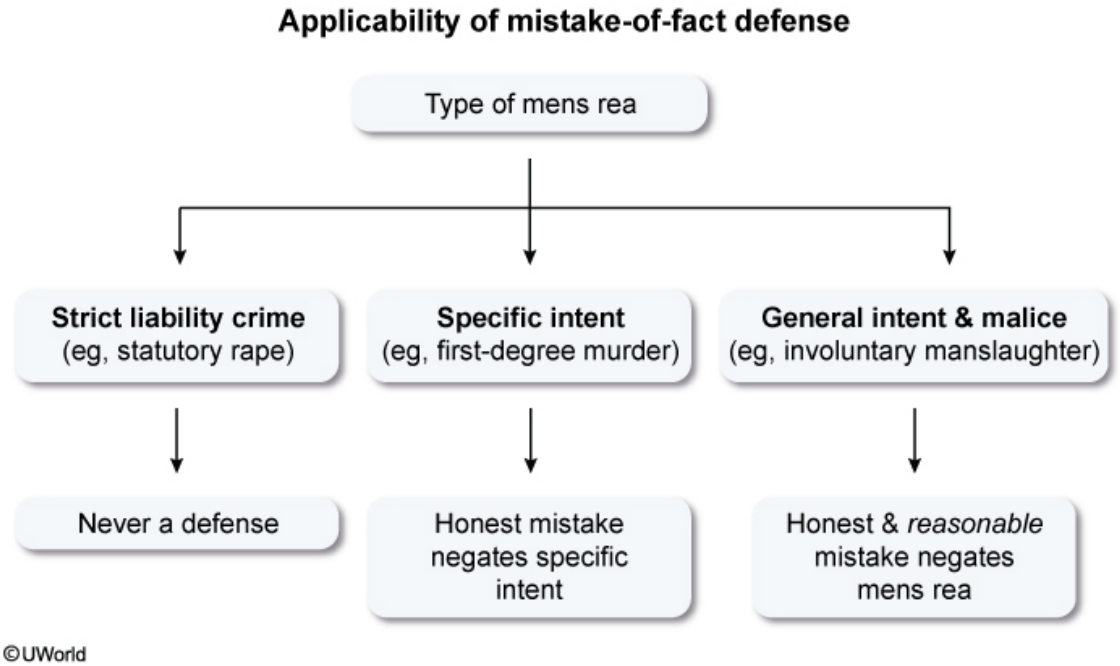
Here, the woman fainted due to a health condition, leaving her unable to consent to sexual intercourse. However, the man honestly but mistakenly believed that the woman's lack of resistance indicated her consent. That mistake was likely reasonable because (1) the woman had voluntarily accompanied the man to the dark bedroom where they became intimate and (2) the man was unaware of the woman's health condition. Due to this mistake of fact, the man is not guilty of rape **(Choices C & D)**.

*At common law, rape was defined as (1) unlawful sexual intercourse (2) with a female who is not the defendant's wife (3) against her will by force or threat of force.

Educational objective:

Rape is a general intent crime. As a result, mistake of fact is a defense if the defendant's honest, reasonable, but mistaken belief negated the intent to engage in nonconsensual sexual intercourse with the victim.

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A college student wanted to purchase a particular narcotic. She approached someone whom she believed to be a drug dealer about buying the narcotic. Unbeknownst to the college student, the person she approached was actually an undercover narcotics officer. The college student asked the undercover officer to sell her a small amount of the narcotic. Thereafter, the undercover officer immediately arrested the college student.

A law in the jurisdiction criminalizes the sale of any amount of the narcotic. The college student was charged with solicitation.

If the charges against the student are dropped, what is the most likely reason?

A. It was factually impossible for the college student to buy the narcotic from the undercover officer.
B. The college student is exempted from the solicited crime because the legislature intended to protect solicitors like the college student.
C. The undercover officer did not actually give the narcotic to the college student.
D. The undercover officer did not agree to sell the narcotic to the college student.

Explanation:

Defenses unique to solicitation

Impossibility	Legal – when solicited act would not be criminal if completed Factual – no defense
Withdrawal / Renunciation	Majority/common law – no defense Minority/MPC – when solicitor voluntarily renounces & thwarts commission of solicited crime
Exemption from solicited crime	Not guilty of solicited crime if legislature intended to protect solicitor

MPC = Model Penal Code.

Solicitation occurs when a person entices, encourages, **requests**, or commands **another** to **commit a crime** with the specific intent that the solicited crime be committed. However, a person who does so (ie, the soliciting party) **cannot be convicted** of solicitation **if**:

the solicited crime requires **more than one participant** (eg, the sale of a narcotic requires a buyer and a seller)

the criminal statute only **imposes liability on one participant** (eg, only the seller can be convicted) *and*

the soliciting party is the type of person the law was **enacted to protect** (eg, the buyer).

The reason is that such persons would not be guilty as an accomplice if the solicited crime was completed because their conduct, though essential to commission of the crime, is not specifically prohibited by the statute. Therefore, the college student cannot be convicted of solicitation.*

*In contrast, the college student would have been guilty of solicitation had she requested that the officer sell the narcotic to a third party because the student would no longer be acting as a buyer.

(Choice A) The crime of solicitation is complete once a person entices, encourages, requests, or commands another to commit a crime with the requisite intent. As a result, it is no defense that it was factually impossible for the college student to buy the narcotic from the undercover officer.

(Choices C & D) A defendant can be convicted of solicitation even if the solicited person did not agree to commit, or go through with committing, the solicited crime. Nevertheless, the college student cannot be convicted because she is the type of person the law was enacted to protect.

Educational objective:

A person cannot be convicted of solicitation if (1) the solicited crime requires more than one participant, (2) the criminal statute only imposes liability on one participant, and (3) the soliciting party is the type of person the law was enacted to protect.

References

Wayne R. LaFave, 2 Substantive Criminal Law § 11.1(d) (3rd ed. 2020) (defenses to solicitation).

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A man revered a famous guitarist who had recently died. The man convinced his girlfriend, who worked at the cemetery where the guitarist was buried, to help him acquire a 12-foot sculpture of a steel guitar that had been commissioned by the guitarist's surviving spouse and installed on the guitarist's gravesite. One day, when the girlfriend knew that no other cemetery employees would be present, she gave the man the keys to a truck with a hydraulic lift that the cemetery used to install headstones. She and the man then drove to the guitarist's gravesite. The girlfriend maintained a lookout while the man severed the sculpture from its base and raised it onto the truck bed using the hydraulic lift. The man then drove the sculpture to a storage unit he had rented, placed it in the unit, and returned the truck to the cemetery. On the way home from the storage facility, the man was killed in a car accident.

The police later ascertained the identities of the man and the girlfriend and recovered the sculpture unharmed.

If the girlfriend is charged with larceny in a jurisdiction that follows the common law, which of the following is her best defense?

A. The man, who is deceased, cannot be convicted of larceny.

B. The sculpture constituted real property.

C. The sculpture was unharmed.

D. The taking occurred during the day.

Explanation:

At common law, a person who (1) aided or encouraged a principal in the commission of a crime and (2) was present at the crime is classified as a principal in the second degree. This designation is significant because a principal in the second degree is liable for the offense to the same extent as the principal—even if the principal is not convicted.

Here, the girlfriend aided the man in the unlawful removal of the sculpture from the guitarist's grave by serving as a lookout during the removal. As a result, the girlfriend is a principal in the second degree and can be tried and potentially convicted even though the man, who died before police could apprehend him, was not previously convicted **(Choice A)**. For the girlfriend to be convicted of **common law larceny**, the prosecution must prove that the man:

unlawfully took and carried away another's **personal property** *and*
did so with the **intent to permanently deprive** the owner of that property.

However, a person who unlawfully **severs** and then **immediately carries away** an **item of real property**—eg, a planted tree or fixture—is **not guilty** of common law larceny. That is because such an item **does not constitute personal property** in its attached state.* Therefore, the girlfriend's best defense is that the sculpture affixed to the grave constituted real property and, as such, was not subject to common law larceny.

*In contrast, an item of real property that (1) was previously severed by the owner or (2) was severed by the defendant and later came into the owner's possession is personal property and subject to larceny.

(Choice C) It is not a defense to larceny that the stolen property was recovered unharmed.

(Choice D) Unlike common law burglary, larceny need not be committed at night.

Educational objective:

A defendant who unlawfully severs and then immediately carries away an item of real property is not guilty of larceny because such an item does not constitute personal property.

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A man allowed his friend to borrow a debit card to buy a computer. When the friend refused to return the card during a later conversation in a bar, the man pointed a handgun at the friend, held his finger on the trigger, and said, "Give it back!" A bystander screamed and threw a beer bottle at the man. The bottle struck the man's hand and caused the gun to discharge, killing the friend instantly.

The man was convicted of murder in a jurisdiction that follows the common law of homicide. On appeal, he argues that the evidence, which essentially set out the facts above, was insufficient to support a verdict of murder.

Should the man's conviction be reversed?

A. No, because the evidence was sufficient to support a verdict of depraved-heart murder.

B. No, because the evidence was sufficient to support a verdict of felony murder.

C. Yes, because the evidence showed that the man did not intentionally pull the trigger.

D. Yes, because the evidence showed that the man's intent was not to kill the friend, but to take property from him under a claim of right.

Explanation:

A conviction should be reversed when the evidence presented at trial was insufficient to support a guilty verdict—ie, no reasonable fact finder could find proof of every element of the crime beyond a reasonable doubt. Common law murder requires proof of two elements: (1) the defendant **unlawfully killed** another (2) while acting with **malice aforethought**—ie:

intent to kill – purpose or knowledge that one's actions will cause death

intent to cause serious bodily injury – purpose or knowledge that one's actions will cause serious bodily injury

depraved-heart murder – **reckless disregard** for a **high risk to human life** or serious bodily injury *or*

felony murder – intent to commit an inherently dangerous felony.

Here, the friend was *accidentally* killed when a bystander's beer bottle hit the man's hand and caused his gun to discharge (unlawful killing) **(Choice C)**. Since the man had held his finger on the trigger while his gun was pointed at the friend, the man acted with reckless disregard for the high risk that his gun could discharge (malice aforethought). Therefore, the evidence is sufficient to support a verdict of depraved-heart murder, and the man's conviction should be affirmed (not reversed).

(Choice B) Felony murder is the unintentional killing of another during the commission, or attempted commission, of an inherently dangerous felony like robbery—ie, the trespassory taking and carrying away of *another's* property by force or threat with the intent to permanently deprive the owner thereof. Here, the killing occurred while the man was trying to recover his *own* debit card—not during an inherently dangerous felony.

(Choice D) An assertion that the defendant took property under a claim of right (ie, a claim of greater ownership) is a defense to theft crimes (eg, larceny, robbery)—not murder. And though the man did not intend to kill, the evidence supports a murder conviction since he recklessly pointed a loaded handgun at the friend.

Educational objective:

A common law murder requires proof that the defendant unlawfully killed another person with malice aforethought, such as reckless indifference to human life (depraved-heart murder)—eg, pointing a loaded gun at another.

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Depraved-heart murder
(reckless indifference to human life)







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A wife decided to kill her husband because she was tired of his infidelity. She managed to obtain some cyanide, a deadly poison. One evening, she poured wine laced with the cyanide into a glass, handed it to her husband, and proposed a loving toast. The husband was so pleased with the toast that he set the glass of wine down on a table, grabbed his wife, and kissed her passionately. After the kiss, the wife changed her mind about killing the husband. She hid the glass of wine behind a lamp on the table, planning to leave it for the maid to clean up. The husband did not drink the wine.

The maid found the glass of wine while cleaning the next day. Rather than throw the wine away, the maid drank it. Shortly thereafter, she fell into a coma and died from cyanide poisoning.

In a common law jurisdiction, of what crime(s), if any, could the wife be found guilty?

A. Attempted murder of the husband and murder or manslaughter of the maid.

B. Only attempted murder of the husband.

C. Only murder or manslaughter of the maid.

D. No crime.

Explanation:

Common law homicide is divided into three degrees:

Murder – unlawfully killing another with **malice aforethought**—eg, intent to kill, reckless disregard of a high risk of serious bodily harm or death (ie, depraved-heart murder)

Voluntary manslaughter – intentionally killing another (1) in the heat of passion upon adequate provocation or (2) in imperfect self-defense

Involuntary manslaughter – unintentionally killing another (1) during an unlawful act *or* (2) with **criminal negligence**—the substantial failure to act as a reasonable person would act

A defendant cannot be convicted of a homicide offense if no killing occurred. However, a defendant can be convicted of **attempted murder** if he/she (1) had the specific intent to kill, (2) committed an **act** in furtherance of the killing, but (3) did not complete the killing. Under the common law **dangerous proximity test**, an overt act occurs when the defendant was **dangerously close to completing** the crime. And a defendant cannot avoid criminal liability for attempted murder by abandoning his/her plan to kill after committing the overt act.

Here, the wife decided to kill her husband (specific intent) and came dangerously close to doing so when she gave him a glass of poisoned wine (overt act). She did not complete the killing because she changed her mind (abandonment) and hid the wine. But since she had already committed the act, the wife should be found guilty of attempted murder of her husband **(Choices C & D)**.

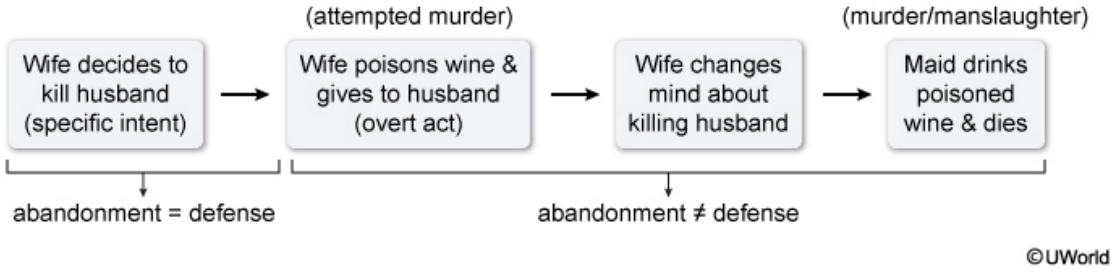
The next day, the maid drank the poisoned wine and died. The wife did not intend to kill the maid. But a jury could find that the wife recklessly disregarded the high risk of death by leaving the wine out for the maid to clean up (depraved-heart murder) or that a reasonable person would have disposed of it (criminal negligence). Therefore, the wife could be found guilty of murder or manslaughter of the maid **(Choices B & D)**.

Educational objective:

Attempted murder occurs when the defendant (1) has the specific intent to kill, (2) commits an act in furtherance of the killing, but (3) does not complete the killing. And once the defendant comes dangerously close to completing the crime (act), he/she cannot avoid criminal liability by abandoning his/her plan.

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(attempted murder)
(murder/manslaughter)
Wife decides to kill husband (specific intent)
Wife poisons wine & gives to husband (overt act)
Wife changes mind about killing husband
Maid drinks poisoned wine & dies
abandonment = defense
abandonment ≠ defense

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A woman and her friends were playing basketball at a local park when another group arrived. A man from the other group told the woman that she and her friends needed to get off the basketball court. The woman replied that she and her friends would leave when they were ready. The man began cursing at the woman and, while doing so, reached behind his back and toward his waistband to adjust his shorts. The woman then pulled a small pistol she carried for self-protection and shot the man, killing him. The woman was subsequently charged with murder.

At trial, the woman has requested a jury instruction on voluntary manslaughter. Which of the following facts, if true, would be a basis for granting the voluntary-manslaughter instruction?

A. The woman became enraged when the man began cursing at her.

B. The woman did not premeditate the shooting.

C. The woman honestly believed it was necessary to shoot the man to defend herself.

D. The woman only intended to scare the man by firing the shots in his direction but accidently struck him.

Explanation:

Voluntary manslaughter

Type	Requirements
Heat of passion	Intentional killing committed: in heat of passion *and* in response to adequate provocation
Imperfect defense	Intentional killing committed either: with honest but unreasonable belief that deadly force was necessary to prevent serious bodily injury or death *or* when defendant started altercation that led to necessary use of deadly force

A court should instruct the jury on **voluntary manslaughter** if a reasonable jury could find that the defendant intentionally killed another under mitigating circumstances. This arises when the defendant killed the victim in a heat of passion generated by adequate provocation or while acting in **imperfect self-defense**. Imperfect self-defense occurs when the defendant either:

honestly but unreasonably believed that **deadly force** was necessary to **prevent serious bodily injury or death** *or*

started the altercation that led to the necessary use of deadly force.

As a result, the woman's honest belief that it was necessary to shoot the man to defend herself from serious bodily injury or death would provide a basis to instruct the jury on voluntary manslaughter. This is true even if that belief was unreasonable—as it likely was in this situation.

(Choice A) Mere insults do not constitute adequate provocation upon which to grant a voluntary-manslaughter instruction. Therefore, even if the woman became enraged when the man began cursing at her, that fact would not support her request.

(Choice B) Lack of premeditation is a defense to first-degree murder but, without more, it does not serve as a basis to instruct a jury on voluntary manslaughter. The defendant must also establish that the killing was committed in the heat of passion or was the result of imperfect self-defense.

(Choice D) Voluntary manslaughter is an *intentional* killing committed under mitigating circumstances, so the fact that the woman *accidentally* struck the man would not justify this instruction. But this fact may support an involuntary-manslaughter instruction since it shows that the woman unintentionally killed the man.

Educational objective:

Murder may be reduced to voluntary manslaughter if the defendant acted in imperfect self-defense. This occurs when the defendant (1) honestly but unreasonably believed that deadly force was necessary to prevent serious bodily injury or death or (2) started the altercation that led to the necessary use of deadly force.

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Despondent over losing his job, a man drank all night at a bar. While driving home, he noticed a car following him and, in his intoxicated state, concluded he was being followed by robbers. In fact, a police car was following him on suspicion of drunk driving. In his effort to get away, the man sped through a stop sign and struck and killed a pedestrian. He was arrested by the police.

The man is prosecuted for manslaughter. What verdict should the jury render?

A. Acquittal, because he honestly believed he faced an imminent threat of death or severe bodily injury.

B. Acquittal, because his intoxication prevented him from appreciating the risk he created.

C. Conviction, because he acted recklessly and his apprehension of danger was not reasonable.

D. Conviction, because he acted recklessly and in fact was in no danger.

Explanation:

In most jurisdictions, manslaughter is divided into two types:

Voluntary manslaughter – an intentional killing mitigated by adequate provocation (ie, heat of passion) *or* other mitigating factors (eg, imperfect self-defense)

Involuntary manslaughter – an **unintentional killing** committed during an unlawful act *or* with **criminal negligence**—the substantial failure to act as a reasonable person would act under similar circumstances (sometimes called recklessness)

Mistake of fact is a **defense** to manslaughter (and other general intent crimes) when the defendant's **honest, reasonable, but mistaken belief** negates the requisite mental state (ie, mens rea).

Here, the man sped through a stop sign and unintentionally killed a pedestrian. He acted recklessly (ie, with criminal negligence) since a reasonable person would not have driven while intoxicated and run a stop sign. And though he honestly believed that robbers were pursuing him and that he needed to escape this threat of harm, his mistaken belief was *unreasonable* since it was brought about by his intoxication—not his pursuers (the police). Therefore, the jury should convict the man of involuntary manslaughter **(Choice A)**.

(Choice B) Voluntary intoxication is a defense to specific intent crimes when it prevents the defendant from forming the requisite intent. But it is not a defense to crimes requiring a lesser mens rea (eg, involuntary manslaughter). So though the man's voluntary intoxication may have prevented him from appreciating the risk he created, it is no defense here.

(Choice D) Although the man acted recklessly and was not actually in danger, his honest but mistaken belief that he was in danger could have been a defense had that belief been reasonable.

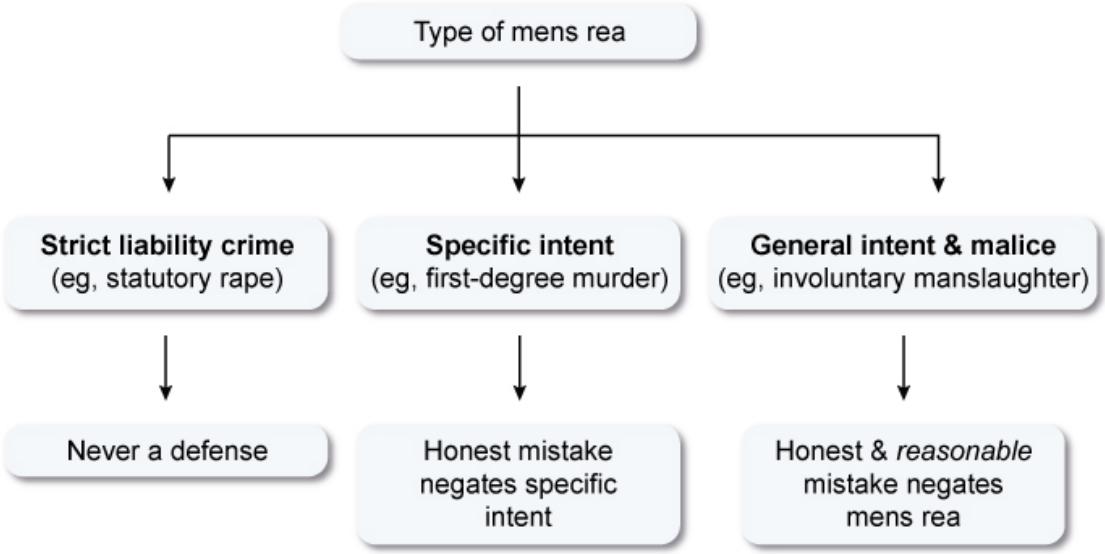
Educational objective:

Mistake of fact is a defense to non-specific intent crimes (eg, manslaughter) when the defendant's honest, *reasonable*, but mistaken belief negates the requisite mental state.

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Applicability of mistake-of-fact defense



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A common law jurisdiction defines first-degree murder as any murder that is (1) committed by means of poison or (2) premeditated. All other murder is second-degree murder, and manslaughter is defined as at common law.

An employee was angry with her boss for denying her a raise. Intending to cause the boss discomfort, the employee secretly dropped into his coffee three over-the-counter laxative pills. The boss drank the coffee containing the pills. Although the pills would not have been dangerous to an ordinary person, because the boss was already taking other medication, he suffered a seizure and died.

If the employee is charged with murder in the first degree, should she be convicted?

A. No.

B. Yes, only because she acted with premeditation.

C. Yes, only because she used poison.

D. Yes, both because she used poison and because she acted with premeditation.

Explanation:

Murder is the unlawful killing of another with **malice aforethought**—ie, (1) **intent** to kill, inflict serious bodily injury, or commit an inherently dangerous felony *or* (2) **reckless disregard** for a high or obvious risk of death or serious bodily harm (ie, depraved-heart murder). And in this jurisdiction, murder is elevated to the first degree when the killing is committed with poison or premeditation (ie, planned or reflected upon the killing beforehand).

Here, the employee put laxatives in her boss's coffee after he denied her a raise. When the laxatives mixed with other medication the boss was taking, it killed him. But the employee only intended to cause the boss discomfort—not kill or seriously injure him. And since the laxatives were not dangerous to an ordinary person, there was no high or obvious risk of death or serious bodily harm (no depraved-heart murder). Therefore, the employee did not act with the malice aforethought necessary to be convicted of *any* degree of murder, including first-degree murder.

(Choices B, C, & D) Premeditation or the use of poison elevates murder from second to first degree in this jurisdiction. But the employee's planning (premeditation) and use of laxatives (a possible poison) are of no consequence here since she lacked the malice aforethought necessary to be convicted of murder in any degree.

Educational objective:

Murder requires proof that the defendant acted with malice aforethought—ie, (1) intent to kill, inflict serious bodily harm, or commit an inherently dangerous felony or (2) reckless disregard for a high or obvious risk of death or serious bodily harm (ie, depraved-heart murder).

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First-degree murder



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A man and his friend were competitive marathon runners, and the man was determined to win a race that was upcoming in two days. The man invited his friend over for dinner, and afterward, the man asked his friend if he wanted to see the new bar that he had recently built in his basement. The friend agreed, and the man led him into his basement. When the friend entered the basement, the man locked the door behind him. The man left the friend in the basement, ran the marathon, and returned two days later to let him out. The friend immediately reported the man to the police, who subsequently arrested and charged the man with kidnapping.

Is the man guilty of kidnapping?

A. No, because the friend was not moved.

B. No, because the man did not use force or threats to confine the friend in the basement.

C. Yes, because the friend was confined due to his reliance on the man's misrepresentation.

D. Yes, because the man concealed the friend in the basement for two days.

Explanation:

Kidnapping

Common law	Forcibly abducting or stealing person from his/her own country & sending to another country	
MPC	Unlawfully moving or confining another to: hold for ransom or as hostage facilitate commission of felony or flight thereafter injure/terrorize victim or another *or* interfere with governmental/political function	
Modern view	General	Intentional & unlawful confinement involving: some movement (asportation) *or* concealment
	Aggravated	General kidnapping committed for: ransom commission of other crime offensive purpose *or* child stealing

MPC = Model Penal Code.

Under the modern view, **kidnapping** is:

the intentional* and unlawful confinement of another
against that person's will (eg, by force, threat, or fraud)
coupled with either moving or **concealing** that person.

Concealment occurs when the victim is kept in a **hidden location**—ie, a place where the victim is not likely to be found—for a **substantial period of time**.

Here, the friend was unlawfully confined against his will after the man lured the friend into the basement to see the new bar. The friend was then locked in the basement for two *days*—a substantial period of time. And since the man's basement is a place where the friend was not likely to be found, the man is guilty of kidnapping.

*General intent crimes such as kidnapping require only the intent to perform an act that is unlawful.

(Choice A) Kidnapping can be accomplished either by moving the victim (even only a short distance) *or* by concealing the victim for a substantial period of time (as seen here). Therefore, the fact that the friend was not moved does not absolve the man of guilt.

(Choice B) A confinement must be accomplished by force, threat, or fraud. Although the man did not use force or threats to confine the friend in the basement, the man did use fraud to do so.

(Choice C) Unlawfully confining the friend in the basement by misrepresentation constitutes false imprisonment. But it does not amount to kidnapping, where the confinement must be against the person's will and coupled with the movement or concealment of that person.

Educational objective:

Kidnapping is the intentional and unlawful confinement of another against that person's will, coupled with the movement or concealment of that person. Concealment occurs when the victim is kept in a hidden location for a substantial period of time.

References

Charles E. Torcia, 3 Wharton's Criminal Law § 207 (15th ed. 2020) (explaining that a kidnapper substantially interferes with the victim's liberty by confining the victim in a place where the victim is not likely to be found).

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A woman broke off her engagement to a man but refused to return the engagement ring the man had given her. One night, the man entered the woman's house after midnight to retrieve the ring. Although the woman was not at home, a neighbor saw the man enter the house and called the police. The man unsuccessfully searched for the ring for 10 minutes. As he was walking out the front door, the police arrived and immediately arrested him.

The man has been charged with burglary in a jurisdiction that follows the common law.

Which of the following, if proved, would serve as the man's best defense to the charge?

A. The man incorrectly and unreasonably believed that he was legally entitled to the ring.
B. The man knew that no one was at home when he entered the house.
C. The man knew that the woman kept a key under the doormat and he used the key to enter the house.
D. The man took nothing of value from the house.

Explanation:

Common law burglary is the unlawful breaking and entering of another's dwelling at night with the **specific intent to commit a felony** therein. The intended felony is often **larceny**—ie:

the unlawful taking and carrying away of another's personal property
with the **specific intent** to permanently **deprive the owner of that property**.

Therefore, a **defendant's belief** that he/she is **entitled to the property**—even if incorrect and unreasonable—serves as a **defense to larceny** since it negates the intent requirement (ie, mistake of fact defense). And if larceny is the intended felony for common law burglary, that belief is also a **defense to burglary**.

Here, the man unlawfully entered the woman's house after midnight to retrieve the engagement ring he had given her. But he did not intend to commit a felony (ie, larceny) therein because he believed that he was legally entitled to that ring. Although this belief was incorrect and unreasonable, it still negates the intent requirement for larceny—and therefore burglary. As a result, this belief is the man's best defense.

(Choice B) Common law burglary has no requirement that the dwelling be *occupied* at the time of entry. Therefore, it is no defense that the man knew that no one was at the woman's home when he entered.

(Choice C) Since a "breaking" occurs when *any* amount of force is used to enter a dwelling (eg, pushing an already-open door), the man's use of a key to enter the home would satisfy this requirement—not negate it.

(Choice D) Common law burglary requires an intent to commit a felony inside another's dwelling, but that felony need not be completed. Therefore, the fact that the man took nothing of value from the house (ie, did not commit larceny) is no defense to burglary.

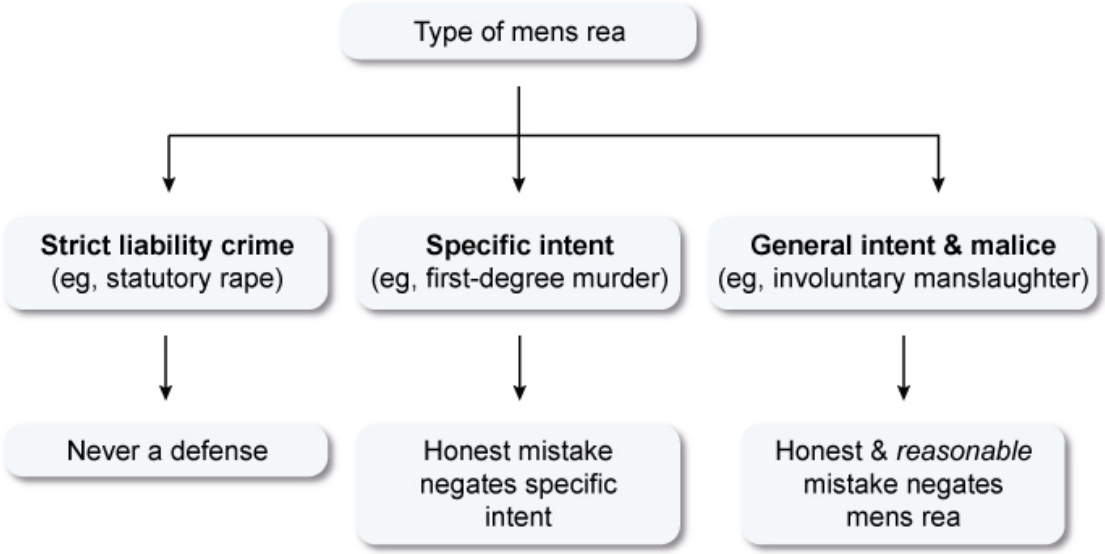
Educational objective:

Larceny requires the intent to permanently deprive another of his/her property, so a person who takes property under the belief that he/she owns it is not guilty of this crime. And if larceny serves as the intended felony for common law burglary, this belief would be a defense to both crimes.

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Applicability of mistake-of-fact defense



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An employee and her boss were leaving work late one evening. As they were passing a dark alleyway on the way to their cars, the defendant jumped out holding a knife. The defendant abruptly pushed the boss against the wall of a nearby building, held the knife to the boss's throat, and demanded the watch on his wrist. The boss complied. The defendant then turned to the employee and threatened to stab the boss if the employee did not hand over her money. The employee handed her wallet to the defendant, who took the wallet and ran away. Shortly thereafter, the police found and arrested the defendant.

What crime(s) can the defendant be properly convicted of?

A. Assault on the employee, battery on the boss, and robbery from both the employee and the boss.
B. Battery on the boss, and larceny from both the employee and the boss.
C. Larceny from the employee and the boss, and robbery from the boss.
D. Robbery from both the employee and the boss.

Explanation:

Larceny is the unlawful taking and carrying away of the victim's personal property with the specific intent to permanently deprive the victim of that property (ie, to steal). Larceny is **elevated to robbery** when:

the property is **taken from the victim's person** or presence *and*

the taking is achieved **by force or threat of force** against the victim, the victim's family member, or another person present.

The threat-of-force element of robbery can be **satisfied by a battery**, which is the unlawful application of force to another resulting in bodily injury or an offensive touching. This element can **also** be **satisfied by an assault**, which is an attempted battery or conduct that intentionally puts the victim in reasonable apprehension of imminent bodily harm.

Here, the defendant battered the boss by grabbing him, pushing him against a wall, and holding a knife to his throat. The defendant also assaulted the boss by threatening to stab him. But the defendant did not assault the employee since he did not attempt to batter her or place her in apprehension of bodily harm **(Choice A)**. The defendant then committed larceny by taking the boss's watch and the employee's wallet.

Both larcenies elevated to robbery since (1) the taking from the boss was accomplished by force and threat of force against him and (2) the taking from the employee was achieved by threatening force against the boss. Since larceny satisfies the taking requirement for robbery—and both battery and assault satisfy the threat-of-force requirement—all three crimes are **lesser included offenses**. This means that they **merge with the robbery** and the defendant can ***only*** **be convicted of robbery**; not the other crimes **(Choices B & C)**.

Educational objective:

Robbery requires a taking of the victim's property by force or intimidation. Since larceny satisfies the taking requirement and battery/assault satisfy the force or intimidation requirement, they are lesser included offenses that merge with robbery.

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Robbery
(greater offense)

Larceny (lesser offense)

- Unlawful taking & carrying away of victim's property
- Specific intent to permanently deprive

+

Battery (lesser offense)

- force used to cause bodily injury or offensive touching

OR

Assault (lesser offense)

- attempted battery or conduct causing apprehension of imminent harm

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A woman and her coworker were invited to go on a hunting trip by their boss. The woman and the coworker were vying for the same promotion, so they were eager to impress their boss with their hunting skills. At one point while the woman and the coworker were hunting alone, the coworker pointed a gun at the woman while her back was turned and said, "Promise you will turn down the promotion or I will shoot you!" Unbeknownst to the coworker, the woman could not hear him because she had placed protective earplugs in her ears before the hunt began. The coworker believed that the woman was intentionally ignoring him, so he aimed at and killed a nearby deer, frightening the woman with the blast from the gun.

If the coworker is charged with assault, is he likely to be convicted?

A. No, because the coworker took no substantial step toward committing a battery.
B. No, because the woman was not aware of the coworker's threat of harm.
C. Yes, because the coworker intended to cause apprehension of bodily harm.
D. Yes, because the woman was placed in actual danger when the coworker pointed the gun at her.

Explanation:

There are two types of **criminal assault**:

Attempted battery – when the defendant has the specific intent to commit and takes a substantial step toward committing a battery

"Fear of harm" assault (ie, apprehension assault) – when the defendant intentionally places another in **reasonable apprehension** of imminent harmful or offensive contact

For "fear of harm" assault, the victim must have been **aware of** the **defendant's threat** of harm **at the time it occurred**. Because actual apprehension is necessary, the victim's **lack of awareness** of the threat of harm is a **defense** to this type of assault.

Here, the coworker did not intend to batter the woman and took no substantial step toward doing so. He did, however, intend to place the woman in reasonable apprehension of imminent harmful contact **(Choice A)**. But the woman was not aware of the coworker's threat of harm since her back was turned and she could not hear his threat due to her protective earplugs. Therefore, the coworker is not likely to be convicted of assault.

(Choice C) Although the coworker had the requisite intent to cause apprehension of bodily harm, he did not cause the reasonable apprehension of such harm. Both elements must be met for the coworker to be convicted of "fear of harm" assault.

(Choice D) For "fear-of-harm" assault, a defendant need not place a victim in actual danger. Instead, the defendant must intentionally place a victim in reasonable *apprehension* of harm. Because the woman lacked awareness of the coworker's threat, it is unlikely that the coworker will be convicted of assault.

Educational objective:

Criminal assault occurs when a defendant (1) attempts to commit a battery or (2) intentionally places another in reasonable apprehension of imminent harmful or offensive contact. Apprehension only exists when the person is actually aware of the defendant's threat of harm at the time it occurs.

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Apprehension



No apprehension ≠ Assault



Apprehension = Assault

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A state statute makes it a crime to "knowingly possess a controlled substance analogue." The statute defines a "controlled substance analogue" (CSA) as a substance that has a chemical structure similar to a controlled substance and has a physiological effect on humans similar to or greater than a controlled substance. A defendant was arrested for possession of a synthetic stimulant known by its street name as "bath salts" and was charged with violating the criminal statute.

Regarding the knowledge element of this crime as it relates to the substance found in the defendant's possession, which of the following is the most proper jury instruction?

A. "If you find that the defendant knew that the substance he possessed was an illegal CSA, you must find the defendant guilty."

B. "If you find that the defendant knew that the substance he possessed was illegal or had a chemical structure similar to a controlled substance and physiological effects on humans similar to or greater than a controlled substance, you must find the defendant guilty."

C. "If you find that the defendant possessed a substance that was a CSA, you must find the defendant guilty even if the defendant did not know that the substance was a CSA or illegal."

D. "If you find that the substance possessed by the defendant is commonly known to have a chemical structure similar to a controlled substance and physiological effects on humans similar to or greater than a controlled substance, you must find the defendant guilty."

Explanation:

Possession of controlled substance

(dual-knowledge requirement)

Knowledge of possession	Defendant must knowingly possess substance—ie: exercise dominion & control over substance
Knowledge of item	Defendant must know that substance is controlled—ie: know that substance is prohibited by law, even if defendant does not know specific identity of substance *or* know facts about substance that make possession illegal, even if defendant does not know possession is illegal

When a statute makes it a crime to **knowingly** possess an item, the word "knowingly" **applies to** the **statute's verb** (possess) as well as the **object of that verb** (controlled substance analogue (CSA)). As a result, a conviction under this statute requires proof that the defendant **knowingly possessed** the substance and either:

knew that the **substance** was **prohibited by law**—even if the defendant did not know the specific identity of the substance—*or*

knew facts about the substance that made possessing it illegal—eg, knew that it had a chemical structure similar to a controlled substance and physiological effects on humans similar to or greater than a controlled substance—even if the defendant did not know that possessing it was illegal.

A jury instruction regarding the knowledge element of this crime as it relates to the substance found in the defendant's possession must include *both* of the above bullet points **(Choice A)**.

The jury instruction should therefore read: "If you find that the defendant knew that the substance he possessed was illegal (prohibited by law) or had a chemical structure similar to a controlled substance and physiological effects on humans similar to or greater than a controlled substance (facts making its possession illegal), you must find the defendant guilty."

(Choices C & D) Mere possession of a substance later identified as a controlled substance or an analogue thereof is not sufficient to convict the defendant. Nor is it sufficient that the substance possessed by the defendant is commonly known (by the public at large) as a CSA. Instead, the *defendant* must have *known* that the substance is illegal or known facts about the substance that made possessing it illegal.

Educational objective:

In prosecutions for possession of a controlled substance or analogue thereof, the defendant's knowledge that the substance was a controlled substance or analogue may be established by evidence that the defendant knew (1) the substance was prohibited by law or (2) facts about the substance that made possessing it illegal.

References

McFadden v. United States, 576 U.S. 186, 194–96 (2015) (applying the dual-knowledge requirement to controlled substance analogue prosecutions).

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A woman went to an art gallery and falsely represented that she was an agent for a museum and wanted to purchase a painting that was hanging in the gallery. The woman and the gallery owner then agreed on a price for the painting to be paid 10 days later, and the woman took the painting. When the gallery failed to receive the payment when due, the owner called the museum and discovered that the woman did not work there. The owner then notified the police.

When interviewed by the police, the woman admitted to making the false representation and acquiring the painting, but she said she believed that the painting had been stolen from her by someone who worked in the gallery.

Is the woman guilty of obtaining property by false pretenses?

A. No, because she believed that the painting belonged to her.

B. No, because the gallery owner would have sold the painting to anyone who agreed to pay the price.

C. Yes, because even if her representation was not material, she never intended to pay for the painting.

D. Yes, because she knowingly made a false representation on which the gallery owner relied.

Explanation:

The crime of obtaining property by **false pretenses** occurs when a person:

knowingly misrepresents a past or existing material fact

does so with the **specific intent to defraud** *and*

thereby obtains title to the property of another.

Intent to defraud is the intent to induce the owner of the property to permanently part with it. Therefore, such intent **does *not* exist** if the defendant either (1) **believes** that he/she has the **right to appropriate** the property *or* (2) **intends** to and is **able to return** the property.

Here, the woman falsely represented to the gallery owner that she was an agent for a museum and wanted to purchase a painting (knowing misrepresentation). They then agreed on a price to be paid 10 days later and the woman took the painting (obtained title). The woman never made that payment. But since she believed that the painting had been stolen by someone at the gallery and that it belonged to her (right to appropriate), she lacked the intent to defraud needed to be guilty of false pretenses **(Choice D)**.

(Choice B) The fact that the gallery owner would have sold the painting to anyone who agreed to pay the price does not excuse the woman's knowing misrepresentation. But she cannot be found guilty of *false pretenses* since she lacked the requisite intent.

(Choice C) The woman's false representations about her employment and desire to buy the painting could be deemed immaterial if the gallery owner did not rely on them. But her false promise to make a future payment would amount to a material misrepresentation in most jurisdictions. Nevertheless, she cannot be convicted of *false pretenses* because she had no intent to defraud.

Educational objective:

The crime of false pretenses requires proof that the defendant intended to defraud the property owner. Such intent does not exist when the defendant (1) believes that he/she has the right to appropriate the property or (2) intends to and is able to return it.

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Specific intent for property crimes

Intent to permanently deprive = Intent to defraud	Intent & ability to return ≠ Intent to defraud	Intent to retrieve own property ≠ Intent to defraud
		

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A new lawyer has three clients, all of whom are indigent. To improve the appearance of his office, he decided to purchase some new furniture and to pay for it out of future earnings. Wearing an expensive suit borrowed from a friend, the lawyer went to a furniture store and asked to purchase on credit a desk and various other items of furniture. The lawyer told the store owner that he was a very able lawyer with a growing practice and that he expected to do very well in the future. The store owner agreed to sell him the items on credit, and the lawyer promised to make monthly payments of $800.

The lawyer has never had an income from his practice of more than $150 a month. The lawyer's business did not improve, and he did not make any payments to the furniture store. After three months, the store owner repossessed the items.

If the lawyer is charged with obtaining property by false pretenses, what is his best argument for being NOT guilty?

A. Even if he misled the store owner, he intended to pay for the items.

B. He did not misrepresent any material fact.

C. The store owner could have asked for payment in full at the time of the purchase.

D. The store owner got his property back and so suffered no harm.

Explanation:

Misrepresentation

(false pretenses & larceny by trick)

Type	Definition	Liability
Statement of fact	Relates to *past or present* fact victim would reasonably consider in deciding whether to transfer property	All jurisdictions
False promise	Promise made with no intention of keeping it	Most jurisdictions
Future event	Relates to something that will take place in the future	No liability
Opinion	Sales talk or puffery	

The crime of **false pretenses** requires proof that the defendant:

knowingly misrepresented a past or existing **material fact**
did so with the specific intent to defraud *and*
thereby obtained title to the property of another.
A material fact is a fact that a person would **reasonably consider** in deciding whether to transfer the property. Therefore, a **misrepresentation cannot stem** from an **opinion** or a prediction about a **future event**.

Here, the lawyer told the store owner that he was a very capable attorney (opinion) with a growing practice and expected to do very well in the future (future event). And the store owner may have considered this statement when he agreed to sell the furniture to the lawyer on credit. But if the lawyer successfully argues that his statements were not misrepresentations of material fact, he would not be found guilty of false pretenses.

(Choice A) In most jurisdictions, liability for false pretenses can stem from a false promise—ie, a promise made with no intent to keep it. Therefore, arguing that the lawyer did intend to pay for the items would show that he did not make a false promise. But this is an incomplete defense since he could still be liable if his other statements were deemed misrepresentations of material fact.

(Choice C) A victim is not required to take affirmative action to prevent a crime. Therefore, an argument that the store owner could have asked for an upfront payment in full (thereby preventing the alleged crime) would fail.

(Choice D) "No harm, no foul" is no defense to false pretenses. And here, the store owner *was* harmed because he was deprived of his property for three months.

Educational objective:

False pretenses requires a misrepresentation of a past or existing material fact—not opinions or predictions of future events.

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An executive of an accounting firm was fired and told to immediately leave the building where she worked. The executive went home, but she returned that night to retrieve personal items from her office. When she discovered that her key no longer opened a door to the building, she forced the door open and went to her former office. To avoid attracting attention, she did not turn on any lights. In the dark, she knew that she was taking some items that were not hers; she planned to sort these out later and return them.

Upon arriving home, she found that she had taken a record book and some financial papers that belonged to the firm. After thinking it over and becoming angrier over being fired, she burned the book and papers in her fireplace. The jurisdiction has expanded the common law definition of burglary to include all buildings.

What crime(s) has the executive committed?

A. Burglary and larceny.

B. Burglary, but not larceny.

C. Larceny, but not burglary.

D. Neither larceny nor burglary.

Explanation:

Common law burglary is (1) the **unlawful breaking and entering** of another's dwelling at night (2) with the **intent to commit a felony therein**. Such intent must exist **at the time of entry**. And this jurisdiction (like most others) has expanded this definition to include all buildings—not just dwellings.

Here, the executive was fired and told to immediately leave the building. When she returned to the building later that night, she discovered that her key no longer worked. She then forced the door open and went inside (unlawful breaking and entry). But since she entered the building with the intent to collect her personal items—not to commit a felony—the executive did not commit burglary **(Choices A & B)**.

Larceny is (1) the **unlawful taking and carrying away** of another's personal property (2) with the **intent to permanently deprive** the owner of that property. Such intent must generally exist **when the taking occurs**. But under the doctrine of **continuing trespass**, a person who unlawfully takes and carries away another's property without the intent to permanently deprive becomes guilty of larceny if he/she **later forms such intent**.

Here, after entering the building, the executive decided to gather items that did not belong to her (unlawful taking) and brought them home (carrying away). She initially planned to return these items. But once she arrived home, she became angry and burned them (intent to permanently deprive). Therefore, the executive is guilty of larceny under the doctrine of continuing trespass **(Choice D)**.

Educational objective:

For burglary, the intent to commit a felony must exist when the unlawful breaking and entry occurs. For larceny, the intent to permanently deprive another of his/her property must generally exist when the unlawful taking occurs. But under the doctrine of continuing trespass, a person can also be guilty of larceny if he/she forms that intent *after* the unlawful taking.

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Burglary
(specific intent to commit crime in dwelling)



Intent to steal = burglary

No intent to steal ≠ burglary

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The ringmaster of a circus recognized a man sitting in the front row at one of his shows as his ex-wife's new boyfriend. Bitter and jealous, the ringmaster told one of the clowns who worked in the circus to choose the man to be a part of the show when it came time to involve members of the audience. He also instructed the clown to punch the man in the stomach once the other clowns were running around the stage and doing pranks for the audience. When it came time to involve audience members, the clown picked the man, and the man agreed to come on stage. The clown subsequently punched the man in the stomach as planned. The clown immediately regretted doing so, and he blurted out that the ringmaster had told him to do it. The man suffered internal bleeding as a result of the punch.

Can the ringmaster be properly convicted of battery?

A. No, because the man implicitly consented to the battery by agreeing to be a part of the show.

B. No, because the ringmaster can only be properly convicted of solicitation.

C. Yes, because the clown's intent to punch the man was transferred to the ringmaster under the doctrine of transferred intent.

D. Yes, because the ringmaster told the clown to punch the man in the stomach.

Explanation:

Criminal battery is the unlawful application of force to another that results in harmful or offensive contact. Although the force can be applied directly by the defendant, this requirement is also met if the defendant:

ordered another person to apply force, thereby acting as an accomplice *or*

set an object in motion that resulted in the application of force (eg, by throwing a rock at the victim).

Here, the ringmaster ordered the clown to punch the man in the stomach (unlawful application of force). The clown did so, causing the man to bleed internally (harmful contact). As a result, the ringmaster can be properly convicted of battery.

(Choice A) Consent to conduct that may cause bodily injury is a defense to battery when, in the case of a sporting event or similar activity, the defendant's conduct and the victim's injury were reasonably foreseeable. But here, it was not reasonably foreseeable that the man would sustain a punch that caused internal bleeding by participating in a circus show.

(Choice B) Solicitation occurs when a person (1) entices, encourages, requests, or commands another to commit a crime (2) with the specific intent that the crime be committed. If the crime is completed, the soliciting party is liable for the crime as an accomplice and the solicitation merges with the completed crime (as seen here).*

*Had the clown ignored the ringmaster's order, the ringmaster would only be guilty of solicitation.

(Choice C) Under the doctrine of transferred intent, a defendant's intent to harm one person is transferred to another whom the defendant unintentionally harmed while attempting to harm the first person. This doctrine does not transfer intent from a person acting under the defendant's direction to the defendant.

Educational objective:

For battery, the defendant can unlawfully apply force to another by (1) applying the force directly, (2) ordering another person to apply force, or (3) setting an object in motion that results in the application of force.

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Battery



Early one morning, a husband and wife were walking through an empty parking garage toward their sports car. As they neared the car, a man carrying a crowbar jumped out from behind the car and yelled, "Give me all of your jewelry and your money, or else I will beat your car to a pulp!" The husband and wife handed their jewelry and money to the man, and the man quickly departed. The man was later found and arrested for robbery.

Is the man likely guilty of robbery?

A. No, because a taking by intimidation alone is insufficient to support a robbery conviction.
B. No, because the man only threatened to damage the car.
C. Yes, because the husband and wife had a reasonable apprehension of property damage.
D. Yes, because the man specifically intended to deprive the husband and wife of the money and jewelry.

Explanation:

Robbery

(larceny by force v. intimidation)

Force	Use of more force than necessary to acquire property or retain the property immediately thereafter
Intimidation	Threat that places victim in reasonable apprehension of immediate death or serious physical injury to victim, close family member, or person present

Robbery requires proof of three elements:

The defendant committed larceny—ie, a trespassory taking and carrying away of a victim's personal property with the specific intent to steal.

The property was taken from the victim's person or in the victim's presence.

The taking was accomplished by force or intimidation.

A **taking by intimidation** occurs when there is an **immediate threat of death or serious physical injury** to the victim, a close family member, or another person present. But a **threat to damage or destroy property** (as seen here), other than the victim's home, is ***not* sufficient**. Therefore, the man likely is not guilty of robbery.

(Choice A) A taking by intimidation alone *is* sufficient to support a robbery conviction. But that intimidation must come in the form of an immediate threat of death or serious physical injury to the victim, a close family member, or another person present (not seen here).

(Choice C) The husband and wife may have had a reasonable apprehension of property damage. But that is insufficient to support a robbery conviction.

(Choice D) The man did specifically intend to permanently deprive the husband and wife of the money and jewelry. But since the taking was accomplished by a threat of damage to the couple's car, the man is not likely to be convicted of robbery.

Educational objective:

For robbery, a taking by intimidation occurs when there is an immediate threat of death or serious physical injury to the victim, a close family member, or another person present. But a threat to damage or destroy property, other than the victim's home, is not sufficient.

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A bank teller was fired by the president of the bank. The teller decided to take revenge against the president but decided against attempting it personally because he knew the president was protected around the clock by bank security guards. The teller also knew that his friend had a violent temper and was very jealous. The teller falsely told his friend that the friend's wife was having an affair with the president. Enraged, the friend said, "What am I going to do?" The teller said, "If it were my wife, I'd just march into his office and blow his brains out."

The friend grabbed a revolver and rushed to the bank. He walked into the bank, carrying the gun in his hand. One of the security guards, believing a holdup was about to occur, shot and killed the friend.

If the teller is charged with the friend's murder, which verdict should be rendered?

A. Guilty, based upon extreme recklessness.

B. Guilty, based upon transferred intent.

C. Not guilty, because the teller did not intend for the friend to be shot by the security guard.

D. Not guilty, because the teller did not shoot the friend and was not acting in concert with the security guard.

Explanation:

Malice aforethought

Intent to kill	Conscious desire to cause death *or* substantial certainty that death will result
Intent to inflict serious bodily harm	Conscious desire to cause serious physical injury *or* substantial certainty that such injury will result
Depraved-heart murder	Reckless disregard for high risk of death *or* serious bodily harm (ie, abandoned & malignant heart murder)
Felony murder	Killing during an inherently dangerous felony (ie, BARRK—burglary, arson, rape, robbery, kidnapping)

Murder is the **unlawful killing** of another committed with some type of **malice aforethought**. Here, the teller did not act with the intent to kill or seriously harm his friend **(Choice C)**. But he did know that the bank president was heavily guarded and that the friend was violent and jealous. Therefore, the teller acted recklessly when he lied to the friend about his wife's affair and encouraged him to shoot the president.

But the teller can only be convicted of **depraved-heart murder** if his **reckless disregard** of the **high risk of serious bodily harm** to the friend was the **actual and proximate cause** of the friend's death. And since the friend would not have carried a gun into the bank but for the teller's lie (actual cause) and it was foreseeable that a bank security guard would shoot the friend (proximate cause), the teller is guilty of murder.

(Choice B) Under the doctrine of transferred intent, a defendant's *intent* to harm one person is transferred to another unintentionally harmed by the defendant. But a defendant's *recklessness* (as seen here) is not transferred under this doctrine.

(Choice D) The security guard (not the teller) shot the friend. And the teller was not the security guard's accomplice since they acted independently (not in concert). But the teller is still guilty of murder because his reckless conduct caused the friend's death.

Educational objective:

Depraved-heart murder occurs when a person's reckless disregard of a high risk of serious bodily harm is the actual (but for) and proximate (foreseeable) cause of another's death.

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A man joined a neighborhood gang. At a gang meeting, as part of the initiation process, the leader ordered the man to kill a member of a rival gang. The man refused, saying he no longer wanted to be part of the group. The leader, with the approval of the other members, told the man that he had become too involved with the gang to quit and that they would kill him if he did not accomplish the murder of the rival gang member. The next day the man shot the rival gang member to death while he was sitting on his motorcycle outside a restaurant.

The man is charged with first-degree murder. First-degree murder is defined in the jurisdiction as the intentional premeditated killing of another. Second-degree murder is all other murder at common law.

If the man killed the rival gang member because of the threat to his own life, what verdict should the jury render?

A. Guilty of first-degree murder.

B. Guilty of second-degree murder.

C. Not guilty, because of the defense of duress.

D. Not guilty, because of the defense of necessity.

Explanation:

Duress v. Necessity

Duress	Crime (other than murder) committed under imminent threat of serious bodily harm from human force
	Reasonable belief crime was necessary to prevent harm to self or others
	No reasonable opportunity to escape
Necessity	Crime (other than murder) committed to prevent imminent & substantial harm from natural* or human force
	No reasonable legal alternative available
	Harm caused < harm avoided

*At common law, necessity had to arise from natural forces. But many jurisdictions have now expanded necessity to include natural *and* human forces.

In this jurisdiction (and most others), murder is divided into two degrees:

First-degree murder – a killing committed with (1) the **intent to kill**—the purpose or knowledge that death will result—and (2) **premeditation**—when the defendant plans or reflects on the killing beforehand

Second-degree murder – all other common law murder—ie, an unlawful killing with malice aforethought

Here, the man intentionally shot and killed a rival gang member to save his own life. And since the man had reflected on the consequences of the killing the day before, his actions were premeditated. Therefore, the man will be convicted of the more serious offense of first-degree murder—unless he has a viable defense **(Choice B)**.

The man's decision to kill the rival gang member because of the death threat he received from his own gang raises two possible defenses:

Duress – excuses criminal conduct when a **human threat** caused the defendant to reasonably believe that committing the crime was necessary to **prevent** imminent serious **bodily harm or death**

Necessity – justifies criminal conduct when a **natural or human threat** caused the defendant to reasonably believe that committing the crime was necessary to **prevent** a **greater harm**

But neither defense is available when the defendant is charged with murder **(Choices C & D)**. Therefore, the jury should render a verdict finding the man guilty of first-degree murder.

Educational objective:

In most jurisdictions, an intentional and premeditated killing is categorized as first-degree murder. And neither duress (human threat) nor necessity (natural or human threat) is ever a defense to murder.

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A man and a woman, both purse snatchers, independently entered a grocery store, each with the intent to steal purses from unsuspecting shoppers. The man approached a victim, grabbed the strap of the purse that was hanging from her shoulder, and pulled. The victim screamed and tried to hold onto the purse, but the man knocked her down, causing her to lose her grip on the purse. The man then escaped with the purse.

During the commotion that arose when the man's victim screamed, the woman approached the shopping cart of a shopper who had turned toward the noise and wandered away from her cart. The woman reached into the now-unattended shopping cart, grabbed the shopper's purse, and quickly walked away, also escaping with a purse.

Both purse snatchers were apprehended a short while later.

Which of the two purse snatchers could properly be convicted of robbery?

A. Both the man and the woman.

B. Only the man.

C. Only the woman.

D. Neither the man nor the woman.

Explanation:

To convict a defendant of **robbery**, the prosecution must prove all of the following:

The defendant unlawfully **took and carried away the victim's property**.

The property was taken from the victim's person or presence **by force or intimidation**.

The defendant intended to permanently deprive the victim of the property (ie, to steal).

The force element of robbery is only met if the defendant uses **more force than necessary** to take the property. This means that a sudden snatching of property does not amount to robbery unless the **victim resists** and the **defendant uses force** to **obtain or keep the property**.

Here, the man intentionally stole the victim's purse from her shoulder. Although he did not use the requisite force when he pulled on the victim's purse strap, this element was met when the victim tried to hold onto her purse and the man knocked her down to obtain it. As a result, he can be convicted of robbery **(Choices C & D)**. In contrast, the woman cannot be convicted of robbery since she did not use force (or intimidation) when she intentionally took a purse from an unattended shopping cart **(Choices A & C)**.

Educational objective:

The force required for robbery is more than was necessary to take the victim's property. So a sudden snatching does not amount to robbery unless the victim resists and the defendant uses force to obtain or keep the property.

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A skilled calligrapher crafted a letter on very old paper. She included details that would lead knowledgeable readers to believe the letter had been written by Thomas Jefferson to a friend. The calligrapher, who had a facsimile of Jefferson's autograph, made the signature and other writing on the letter resemble Jefferson's. She knew that the letter would attract the attention of local collectors.

When it did and she was contacted about selling it, she said that it had come into her hands from a foreign collector who wished anonymity, and that she could make no promises about its authenticity. As she had hoped, a collector paid her $5,000 for the letter. Later the collector discovered the letter was not authentic, and handwriting analysis established that the calligrapher had written the letter.

In a jurisdiction that follows the common law definition of forgery, which crime(s) has the calligrapher committed?

A. Both forgery and false pretenses.

B. Forgery, because she created a false document with the intent to defraud, but not false pretenses, since she made no representation as to the authenticity of the document.

C. Not forgery, because the document had no apparent legal significance, but false pretenses, since she misrepresented the source of the document.

D. Not forgery, because the document had no apparent legal significance, and not false pretenses, since she made no representation as to the authenticity of the document.

Explanation:

At common law (and in most jurisdictions), **forgery** occurs when a person:

makes (ie, creates or alters) a **false document** of apparent **legal significance**
with the intent to defraud.

Documents of legal significance include checks, letters of recommendation, wills, diplomas, and other instruments that can **effectuate one's intent to defraud**. But such documents must have **value beyond their own existence**. Therefore, forgery cannot stem from instruments of mere social significance like historical documents (as seen here) and artwork **(Choices A & B)**.

However, a person who makes a **false instrument of social significance** can be liable for **false pretenses** if he/she:

knowingly misrepresented a past or existing material fact
did so with the specific intent to defraud *and*
thereby obtained title to another's property or money.

Here, the calligrapher intentionally crafted a letter that appeared to be written and signed by Thomas Jefferson. Although she made no representations regarding the letter's authenticity, she did misrepresent the letter's source by claiming that it had come into her hands from a foreign collector. And since that misrepresentation caused a local collector to buy the letter, the calligrapher committed the crime of false pretenses **(Choices B & D)**.

Educational objective:

Forgery requires the making of a false document of apparent *legal* significance (eg, check, will). But a person who makes a false instrument of *social* significance (eg, historical document, artwork) can be liable for false pretenses.

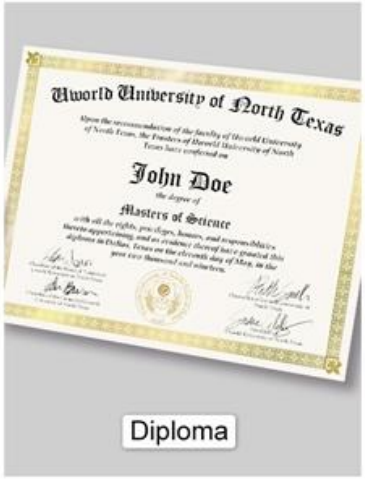
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Forgery = legal significance



Bank check

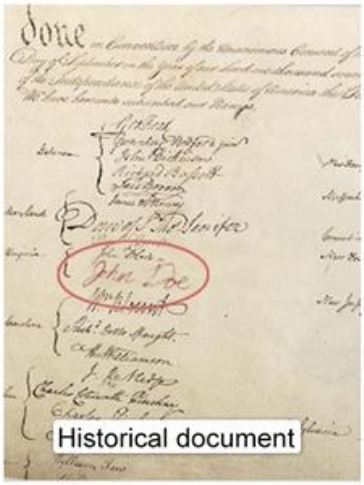


Diploma



Letter of recommendation

False pretenses = social significance



Historical document



Artwork



False introduction

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Animal rights activists were protesting the use of monkeys in medical experiments by scientists who were developing a vaccine for a harmful virus. For several consecutive days, the activists marched in front of the exit door of the scientists' laboratory so that the scientists could not leave without first facing a barrage of name-calling and heckling from the activists. One scientist who was particularly agitated by the protesting decided to take revenge on one of the most vocal activists. On her way out of the laboratory, the scientist threw the skull of a monkey at the activist. The activist happened to turn his body and look away just after the scientist threw the skull. The skull struck the bag that the activist was carrying on his back. Upon discovering that he had been hit by a monkey skull, the activist became extremely distressed and upset.

Is the scientist guilty of the crime of battery?

A. No, because the activist did not see the monkey skull coming toward him.
B. No, because the monkey skull struck the activist's backpack instead of his person.
C. Yes, because the scientist had the specific intent to throw the monkey skull at the activist.
D. Yes, because there was an unlawful application of force that constituted an offensive touching.

Explanation:

Criminal battery is the unlawful application of force to the **victim's person**—including an **object near**, **carried by**, or **attached to** the victim—that causes bodily harm or constitutes an offensive touching. Contact is offensive if a reasonable person would find it unpleasant or repugnant.

Here, the scientist unlawfully threw a monkey skull (unlawful application of force) at the activist, striking the backpack that the activist was carrying (victim's person). Being struck by a monkey skull would be unpleasant or repugnant to a reasonable person, so the resulting contact was offensive. Therefore, the scientist is guilty of criminal battery **(Choice B)**.

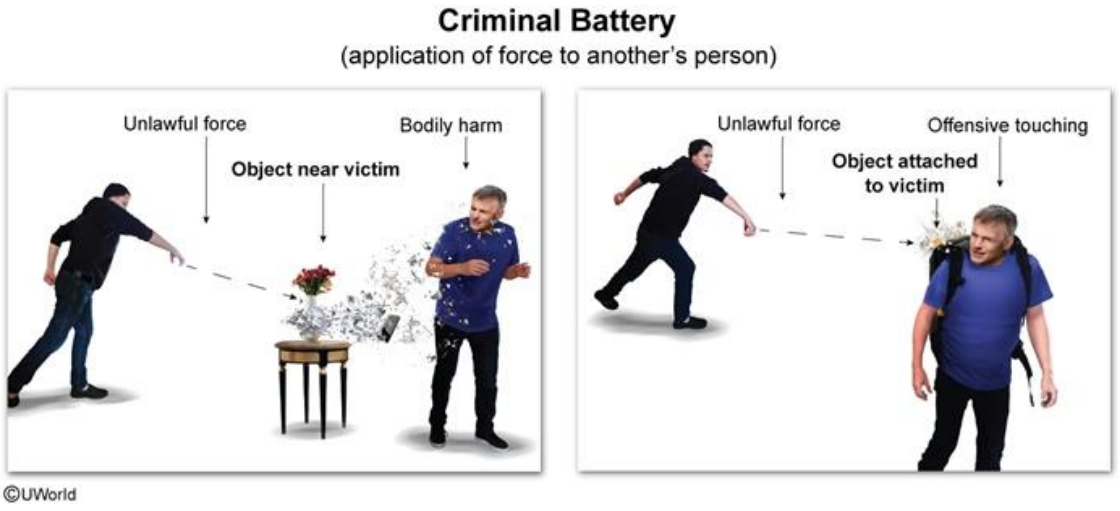
(Choice A) Unlike assault, which arises from an attempted battery or when a defendant intentionally places another in reasonable apprehension of imminent contact, battery does not require proof of apprehension. Therefore, the fact that the activist did not see the monkey skull coming is irrelevant.

(Choice C) Battery is a general intent crime, so the criminal act (throwing a skull) need only be consciously performed or criminally negligent. Therefore, the scientist's *specific* intent—ie, that the criminal act be performed for a particular purpose (to hit the activist)—is not required to find her guilty of battery.

Educational objective:

Criminal battery is the unlawful application of force to the victim's person—including an object near, carried by, or attached to the victim—that causes bodily harm or constitutes an offensive touching.

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An elderly woman was visiting a friend in a sizeable nursing home. After the woman's visit, she attempted to leave the facility. However, a nurse mistakenly believed that the woman was one of the residents and told her to remain on the premises. The woman protested and tried to explain that she was actually a visitor, but the nurse did not believe her. Instead, the nurse guided the woman toward an empty room and told her to wait there until he could verify her identity. The woman refused to enter the room, so the nurse pulled out a syringe and said, "Do I need to give you a sedative or are you going to listen to me?" The woman reluctantly entered the room, and the nurse told the woman to stay in there until he got back. He then closed the door behind him but did not lock it. Thirty minutes later, the nurse returned, apologized for the misunderstanding, and told the woman that she could leave. The woman subsequently filed a criminal complaint against the nurse, and he was charged with false imprisonment.

Is the nurse guilty of false imprisonment?

A. No, because the nurse mistakenly believed that the woman was a patient.

B. No, because the woman was free to leave the unlocked room.

C. Yes, because the nurse intended to lawfully confine a patient, not a visitor.

D. Yes, because the woman's consent was not freely given.

Explanation:

False imprisonment

Unlawful – not consented to or specifically authorized by law

Confinement – forcing person to go or remain where he/she does not wish when no alternative routes are available

Without consent – not freely agreed to by someone with capacity to do so

False imprisonment is the unlawful confinement of a person without consent. A **confinement** occurs when a person is compelled through actual force, threat of force, or a show of force to either

go where the person does not want to go *or*

remain where the person does not want to remain.

The confinement is **unlawful unless** it is specifically authorized by law or **consented to** by the victim. However, consent is only effective if it was **freely given** (ie, without force or fraud) and the victim had the capacity to consent.

Here, the elderly woman was confined when the nurse threatened to give the woman a sedative unless she entered the room. Although the woman subsequently agreed to enter, her actions did not constitute consent because her compliance was not freely given—it was made in response to the nurse's threat of force. Therefore, the confinement was unlawful.

However, mistake of fact is a **defense** to false imprisonment and other **general intent crimes**—which require only the intent to perform an act that is unlawful—if the mistake was **honest and reasonable** and **negates the requisite mens rea**. The mens rea required for false imprisonment is the intent to unlawfully confine another.

Here, the nurse may have honestly and reasonably believed that the elderly woman was a resident. But mistake of fact is not a defense because the nurse could *not* have threatened and confined a nursing home resident in that manner. Such confinement would have also been unlawful. Therefore, the mistake does not negate the requisite mens rea and the nurse is guilty of false imprisonment **(Choices A & C)**.

(Choice B) Although the door was left unlocked, the woman was still confined because she remained in the room due to the nurse's threat of force.

Educational objective:

False imprisonment is the unlawful confinement of a person without consent. Consent is effective only if the victim gave it freely and had the capacity to consent. Mistake of fact is a defense to this general intent crime only if the mistake was honest and reasonable.

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A woman was standing in the aisle of a subway car and put her purse on the seat next to her. A man approached the woman from behind and grabbed the purse off the seat. He then pushed the woman out of the way and ran out of the subway car while carrying the purse. The man was apprehended on the subway platform while in possession of the purse.

In a jurisdiction that follows the common law with respect to criminal offenses, of what crime can the man properly be convicted?

A. Larceny, because force was not used until after he took the purse.

B. Larceny, because he made no threat to use force.

C. Robbery, because he physically took the purse from the woman's presence.

D. Robbery, because he used force in leaving with the purse.

Explanation:

The common law definitions of larceny and robbery are still used in most jurisdictions. **Larceny** is defined as (1) the unlawful taking and carrying away of a victim's personal property (2) with the specific intent to permanently deprive the victim of that property. And larceny will **merge into robbery** when the **property is taken** from the victim's person or presence by either:

force – the use of **more force than necessary to acquire** the property **or to retain the property** immediately thereafter *or*

intimidation – a threat that places the victim in reasonable apprehension of immediate death or serious physical injury to the victim, the victim's close family member, or a person present during the crime.

Here, the man took the woman's purse while it was placed on the subway seat next to her *without* using force or intimidation. However, he did use force to *retain* the purse when he pushed the woman out of his way to escape. As a result, the use-of-force requirement was met, and the man can be convicted of robbery **(Choices A & B)**.

(Choice C) Although the man took the purse from the woman's presence (ie, a location reasonably close to her), he could only be convicted of robbery if he *also* used force or intimidation to take or keep the purse.

Educational objective:

Larceny merges into robbery when property is taken from the victim's person or presence by (1) *force*—more force than necessary to acquire or retain the property—or (2) *intimidation*—threat of immediate death or serious physical injury to the victim, the victim's close family member, or someone at the crime scene.

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Use-of-force requirement

No force = larceny	Just enough force = larceny	Too much force = robbery
		

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At a party, a girl and a boy agreed to play a game they called "spin the barrel." The boy took an unloaded revolver, placed one bullet in the barrel, and spun the barrel. He then pointed the gun at the girl's head and pulled the trigger once. The gun did not fire. The girl then took the gun, pointed it at the boy, spun the barrel, and pulled the trigger once. The gun fired, and the boy fell over dead.

A statute in the jurisdiction defines murder in the first degree as an intentional and premeditated killing or one occurring during the commission of a common law felony, and murder in the second degree as all other murder at common law. Manslaughter is defined as a killing in the heat of passion upon an adequate legal provocation or a killing caused by gross negligence.

What is the most serious crime for which the girl can properly be convicted?

A. Murder in the first degree, because the killing was intentional and premeditated and, in any event, occurred during the commission of the felony of assault with a deadly weapon.

B. Murder in the second degree, because the girl's act posed a great threat of serious bodily harm.

C. Manslaughter, because the girl's act was grossly negligent.

D. No crime, because the boy and the girl voluntarily agreed to play a game and each assumed the risk of death.

Explanation:

Common-law murder

Unlawful killing of another with malice aforethought:

Intent to kill
Intent to inflict serious bodily harm
Reckless disregard of obvious or high risk to human life (ie, depraved-heart murder)
Intent to commit inherently dangerous felony (ie, felony murder)
This jurisdiction divides criminal homicide—the killing of another with the requisite mens rea—into three degrees:

First-degree murder – (1) an intentional and premeditated killing or (2) a killing committed during the commission of a common law felony.

Second-degree murder – all other **common law murders**, including **depraved-heart murder**—ie, a killing committed with a **reckless disregard** of a **great threat of serious bodily harm** or death.

Manslaughter – (1) a killing committed in the heat of passion upon an adequate legal provocation or (2) a killing caused by gross negligence.

Here, the girl shot and killed the boy while they played "spin the barrel," a game where they took turns shooting at each other with a revolver loaded with one bullet (ie, Russian roulette). Since the girl recklessly disregarded the great threat of serious bodily harm posed by the game when she decided to pull the trigger, she can be convicted of second-degree (depraved-heart) murder.

(Choice A) The girl cannot be convicted of first-degree murder because (1) she did not intentionally kill the boy and (2) assault with a deadly weapon is not a common law felony.

(Choice C) The girl likely committed manslaughter since the boy's death was caused by her gross negligence—ie, her substantial failure to act as a reasonably prudent person would act under similar circumstances. But she can also be convicted of the greater offense of second-degree murder.

(Choice D) Consent is a valid defense when lack of consent is (or consent negates) an element of the charged crime—eg, lack of consent is an element of rape, so consent is a defense. Since consent (or lack of consent) is not an element of murder, the fact that the boy and girl voluntarily agreed to play the game and assumed the risk of death does not excuse her criminal conduct.

Educational objective:

A defendant may be convicted of common law murder—even if he/she did not intend to kill the victim—when the defendant acted with a reckless disregard for a high risk of serious bodily harm or death (eg, playing Russian roulette).

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A woman was envious of her coworker for receiving a promotion they had both sought. After receiving the promotion, the coworker bought himself a very expensive watch to celebrate. The woman wanted to buy a similar watch, but she could not afford to do so. The coworker later invited the woman to attend a game night he was hosting, and the woman concocted a plan to steal the watch from him.

When the woman arrived at the coworker's house the following night, the coworker invited her in and showed her to the living room where they were playing games. Later in the evening, when no one was looking, the woman snuck into the coworker's bedroom, opened the bedroom closet, and rummaged through the closet until she found a display box in which the coworker kept his valuables. As anticipated, she found the watch inside the box, hid the watch in her jacket, and left with it at the end of the night.

The coworker reported the incident upon discovering that his watch was missing. The police interviewed all of the guests who attended the game night, and after seeing the woman wearing the watch in plain view, the police arrested the woman and charged her with burglary.

Is the woman guilty of burglary?

A. No, because opening the coworker's watch box does not qualify as a breaking.
B. No, because the woman had permission to enter all areas within the coworker's home.
C. Yes, because the woman entered the coworker's home with the intent to steal the watch.
D. Yes, because the woman opened the coworker's closet door with the intent to steal the watch.

Explanation:

When, as here, the question does not indicate that the majority rule is being tested, apply the common law rule for burglary. **Common-law burglary** is the:

unlawful breaking and entering of another's dwelling at nighttime

with the specific intent to commit a felony (eg, larceny) therein.

A **breaking** is accomplished when **even slight force** is used to create an opening into a dwelling—eg, opening an unlocked door or window. If the defendant instead entered the dwelling with consent, a breaking can still occur if the defendant later **enters part of the dwelling structure** (eg, opening a closet door or wall safe) **without permission**.

Here, the woman went to the coworker's house with the intent to steal his watch. But since the coworker invited the woman into his home for a game night, she did not break into his dwelling when she initially entered his home. However, she did break into the coworker's bedroom closet—part of the dwelling structure that she did not have permission to enter—later that evening. And since the woman entered the closet with the specific intent to steal the coworker's watch (ie, commit larceny), she is guilty of burglary **(Choices B & C)**.*

*This fact pattern also meets the less-stringent majority and Model Penal Code standard for burglary, which merely requires the unlawful entry of a building or other structure with the specific intent to commit any crime therein.

(Choice A) Merely opening an object within a dwelling (eg, watch box, desk drawer, trunk) does not constitute a breaking because common law burglary seeks only to protect a person's right of habitation. However, the woman did commit burglary when she opened the bedroom closet with the requisite intent.

Educational objective:

For burglary, a breaking can still occur after a defendant enters a dwelling with consent if the defendant subsequently enters part of the dwelling structure (eg, opening a closet door or wall safe) without consent. But merely opening an object within a dwelling (eg, desk drawer, trunk, box) is not a breaking.

References

Charles E. Torcia, 3 Wharton's Criminal Law § 318 (15th ed. 2020) (stating that a breaking may occur within a dwelling by opening a closed inner door, such as a bedroom door, with the intent to commit a felony therein).

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Breaking requirement for burglary



A designer properly placed a client's advance payment of anticipated fees into a client trust account. Several weeks later, the designer was asked by the state's Art and Design Association to serve as the chairperson of a committee overseeing an auction dinner to raise funds for the group. Lacking sufficient personal funds, the designer used money in the client trust account to pay for various expenses related to the dinner. The designer intended to fully repay the money in the trust account when the client abruptly fired the designer.

Is the designer guilty of embezzlement?

A. No, because the designer did not take the money to benefit himself.

B. No, because the designer intended to repay the money.

C. Yes, because the designer had failed to repay the money when the client fired him and thereby became entitled to the funds.

D. Yes, because the designer took the money for the benefit of someone other than the client.

Explanation:

Comparison of property offenses

	Actus reus	**Mens rea**
Embezzlement	Conversion of *lawfully* possessed property that belongs to another	Specific intent to defraud/permanently deprive
Larceny	*Unlawful* taking & carrying away of another's property	
Larceny by trick	Knowingly misrepresenting a material fact to obtain *possession* of another's property	
False pretenses	Knowingly misrepresenting a material fact to obtain *title* to another's property	

Embezzlement is the **fraudulent conversion** of the **property of another** by a **person** who is in **lawful possession** of that property—typically pursuant to a trust agreement. Conversion is the inappropriate use of property that substantially interferes with the *owner's* right to the property. This occurs when the defendant treats the property as his/her own or uses it for his/her own purposes.

Here, the designer was the trustee of the advance payment received from his client for anticipated services. The designer treated the money in the client trust account as his own and used it for his own purposes when he used it to pay for auction dinner expenses—not for fees incurred by the client. Therefore, the designer fraudulently converted the money and is guilty of embezzlement.

(Choice A) A defendant need not personally benefit from the conversion to be convicted of embezzlement. Therefore, it is irrelevant that the designer did not take the money to benefit himself.

(Choices B & C) An intent to return the *exact* property that is converted, coupled with the ability to do so at the time that intent is formed, negates the intent to defraud required for conversion. But a mere intent to return similar property or the cash value of the property does not negate the requisite intent. As a result, it makes no difference that the designer intended to repay the money or that he was fired before he could do so.

Educational objective:

Embezzlement is the fraudulent conversion of the property of another by a person who is in lawful possession of the property. To be found guilty, the defendant need not personally benefit from the conversion of the property.

References

26 Am. Jur. 2d Embezzlement § 3 (2020); Wayne R. LaFave, 1 Substantive Criminal Law § 19.6(b) (3d ed. 2020) (discussing the conversion requirement for embezzlement).

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In a crowded football stadium, a man saw a wallet fall out of a spectator's purse. The man picked up the wallet and found that it contained $100 in cash. Thinking that he could use the money and seeing no one watching, the man put the wallet in the pocket of his coat. Just then, the spectator approached the man and asked if he had seen a missing wallet. The man said no and went home with the wallet.

Of what crime, if any, is the man guilty?

A. Embezzlement.

B. False pretenses.

C. Larceny.

D. No crime.

Explanation:

Common property offenses

Larceny	Unlawful taking & carrying away of another's personal property Specific intent to permanently deprive the owner of the property
Larceny by trick	Obtaining possession of another's personal property By knowing false representation of past/present material fact Specific intent to permanently deprive the owner of the property
Embezzlement	Fraudulent conversion of another's property While in lawful possession of the property Specific intent to defraud the owner of the property
False pretenses	Obtaining title to another's property By knowing false representation of past/present material fact Specific intent to defraud the owner of the property
Robbery	Unlawful taking & carrying away of another's personal property By use or threat of force Specific intent to permanently deprive the owner of the property
Receiving stolen property	Taking possession or exercising control over stolen personal property Knowing the property was stolen Specific intent to permanently deprive the owner of the property
Trespass	Entry of a structure Without permission or legal necessity
Burglary	Unlawful (ie, trespassory) entry of a structure Specific intent to commit a crime therein

A person who finds **lost or misplaced personal property** is guilty of **larceny** if he/she:

knows the identity of the owner or has reason to believe that he/she can determine it
takes and carries away the property—ie, exercises control over and moves it *and* possesses the **specific intent to permanently deprive** the owner of the property.

Here, the man saw the spectator's wallet fall out of her purse (knowledge of owner's identity). He picked up the wallet (taking and carrying away), noticed that it contained $100, and decided to keep it (specific intent to permanently deprive). Therefore, the man is guilty of larceny **(Choice D)**.

(Choice A) Embezzlement occurs when a person in lawful possession of another's property fraudulently converts it. A person lawfully possesses another's property if the owner gave the person permission to possess or control it—eg, an owner entrusts a car to a friend. Since the man picked up the wallet without the spectator's permission (no lawful possession), he is not guilty of embezzlement.

(Choice B) Property is acquired by false pretenses when the defendant (1) obtains title (ie, legal ownership) to property (2) by knowingly making a false representation of a past or present material fact (3) with the specific intent to defraud the owner. Although the man knowingly lied to the spectator about her missing wallet, he merely obtained possession (not title) to the wallet. Therefore, he is not guilty of false pretenses.

Educational objective:

A person who finds lost or misplaced property is guilty of larceny if he/she (1) knows the identity of the owner or has reason to believe he/she can determine it, (2) takes and carries away the property, and (3) specifically intends to permanently deprive the owner of it.

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One evening on a college campus, a student handed a classmate cash and the classmate gave the student a packet of heroin. The student looked at the packet and went to place it in his pants pocket. An off-duty police officer who was taking classes at the college witnessed the transaction from only a few feet away. The officer immediately identified herself as a police officer and told the participants that they were under arrest. The student, who had been in the act of placing the packet in his pants pocket, dropped the packet and unsuccessfully attempted to flee.

The student was charged with possession of heroin. At trial, the student offered evidence, which the prosecution did not dispute, that the cash was not transferred in payment for the heroin but instead to repay a loan the classmate had made to the student.

Can the student properly be convicted?

A. No, because the student did not pay for the heroin.

B. No, because the student did not place the heroin in his pocket.

C. Yes, because the student had the opportunity to cease dominion and control over the heroin.

D. Yes, because the student handled the heroin packet.

Explanation:

A defendant can be convicted of **possession of a controlled substance** (or other prohibited object) if the prosecution establishes that the defendant knowingly possessed the controlled substance. The **possession element** requires proof that the defendant either:

knowingly received an illegal substance *or*

exercised **dominion and control** over the substance after learning of its illegal character.

Here, the student may not have initially known that the classmate had given the student a packet of heroin. However, the student had time to look at the packet and went to place it in his pants pocket before the police officer intervened. This shows that the student exercised dominion and control over the heroin. As a result, the student can be properly convicted.

(Choice A) This crime does not require proof that the defendant acquired the substance by paying for it. Therefore, the fact that the student gave the classmate cash to repay a loan—not to pay for the heroin—is irrelevant.

(Choice B) The student did not need to secure the heroin in his pocket to be convicted of possessing it because the prosecution need only prove that the student exercised something more than fleeting or momentary control.

(Choice D) Mere handling of a controlled substance is not necessarily sufficient to establish possession. For example, a person who is unexpectedly given a packet containing a controlled substance may handle it to ascertain its contents and then immediately discard it. Under those circumstances, the element of possession is not met.

Educational objective:

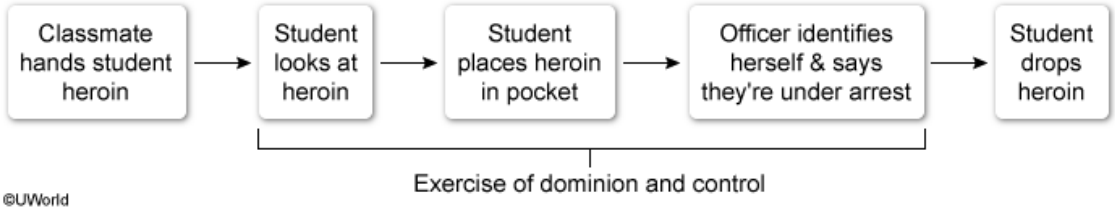
Possession offenses require proof that the defendant (1) knowingly received an illegal item or (2) exercised dominion and control over the item after learning of its illegal character.

References

Wayne R. LaFave, 1 Substantive Criminal Law § 6.1(e) (3d ed. 2020)

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Possession offenses
(dominion and control requirement)



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A man became ill while at work and decided to go home early. When he entered his bedroom, the man saw his wife engaged in sexual intercourse with a neighbor. The man grabbed a gun from a dresser drawer and shot and killed the neighbor. He was later charged and prosecuted.

In a jurisdiction that follows the common law for homicide offenses, which crimes should the court instruct the jury on?

A. Murder and involuntary manslaughter.

B. Murder and voluntary manslaughter.

C. Murder, voluntary manslaughter, and involuntary manslaughter.

D. Voluntary manslaughter and involuntary manslaughter.

Explanation:

Types of common law homicide

(in descending order of seriousness)

Murder	Unlawful killing of another with malice aforethought: Intent to kill Intent to cause serious physical injury Depraved heart – reckless disregard of obvious/unjustifiably high risk to human life Felony murder – intent to commit inherently dangerous felony
Voluntary manslaughter	Intentional killing of another based on: adequate provocation *or* imperfect self-defense: defendant started confrontation defendant honestly but unreasonably believed deadly force was necessary
Involuntary manslaughter	Unintentional killing of another: with criminal negligence *or* during unlawful act

A court should **instruct** the jury on **all possible crimes** for which a **reasonable fact finder could convict** a defendant. Therefore, an instruction on **common law murder** is appropriate when a reasonable jury could conclude that the defendant unlawfully killed another with **malice aforethought**—eg, the defendant acted with the **specific intentto kill** or inflict **serious bodily harm** upon the victim.

Here, the man shot and killed the neighbor (unlawful killing). A reasonable jury could find that the man acted with malice aforethought since he grabbed a gun from a dresser drawer and shot the neighbor after finding him engaged in sexual intercourse with the man's wife (intent to kill or seriously harm). Therefore, the court should instruct the jury on murder.

Additionally, an instruction on **voluntary manslaughter** (ie, heat-of-passion killing) is appropriate when a reasonable jury could find that the defendant intentionally killed another in response to **adequate provocation**. Provocation is adequate if it would cause a **reasonable person to lose control**—eg, discovering one's spouse engaged in adultery (as seen here). Therefore, the court should also instruct the jury on voluntary manslaughter.

(Choices A, C & D) Involuntary manslaughter is an *unintentional* killing caused by an unlawful act (eg, misdemeanor manslaughter) or criminal *negligence* (ie, the substantial

failure to act as a reasonably prudent person). Here, since the evidence shows that the man *intended* to kill or seriously harm his neighbor, a jury instruction on involuntary manslaughter is inappropriate.

Educational objective:

A jury instruction on common law murder is appropriate when a reasonable fact finder could conclude that the defendant unlawfully killed another with malice aforethought (eg, intended to kill or inflict serious bodily harm). And a voluntary manslaughter instruction is appropriate if the jury could find adequate provocation for the killing.

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A chemistry student manufactured and sold methamphetamine to pay for her college tuition. One day, she mentioned to a friend that state law strictly limits purchases of certain medications used in the production of methamphetamine. Because the student could only purchase a small quantity of these medications at a time, she also mentioned that it would take her until the next semester to acquire enough ingredients to produce her next batch.

That night, the friend asked the student for a ride to a local pharmacy to pick up a few items. Unbeknownst to the student, the friend stole several boxes of the medication that the student needed to make methamphetamine from the pharmacy shelf. The student then drove the friend back to the friend's dorm room.

Later that week, the friend delivered the stolen boxes of medication to the student. When the student asked how the friend had gotten the medication, the friend admitted that she had stolen it from the pharmacy. The student offered to pay the friend for the medication, but the friend said, "Don't worry about it. Friends support each other." The student accepted the medication and started preparing a batch.

On these facts, which of the following crimes has the student committed?

A. Accessory after the fact to larceny.

B. Accomplice to larceny.

C. Conspiracy to commit larceny.

D. Receiving stolen property.

Explanation:

Receiving stolen property is a statutory crime that is committed when a person:

receives control of stolen personal property

knows that the property was **stolen** (eg, unlawfully obtained through larceny, embezzlement, false pretenses) *and*

specifically intends to **permanently deprive** the owner of that property.

Here, the student accepted the medication (received control) after the friend admitted that she had stolen it from the pharmacy (knowledge). The student then began preparing a batch of methamphetamine with the stolen medication, indicating her intention to permanently deprive the owner of the medication. Therefore, the student committed the crime of receiving stolen property.

(Choice A) An accessory after the fact is a person who aids or assists a felon in avoiding apprehension or conviction after commission of the felony (eg, larceny). Here, there is no indication that the student did anything to assist the friend in avoiding apprehension or conviction after the friend stole the medication.

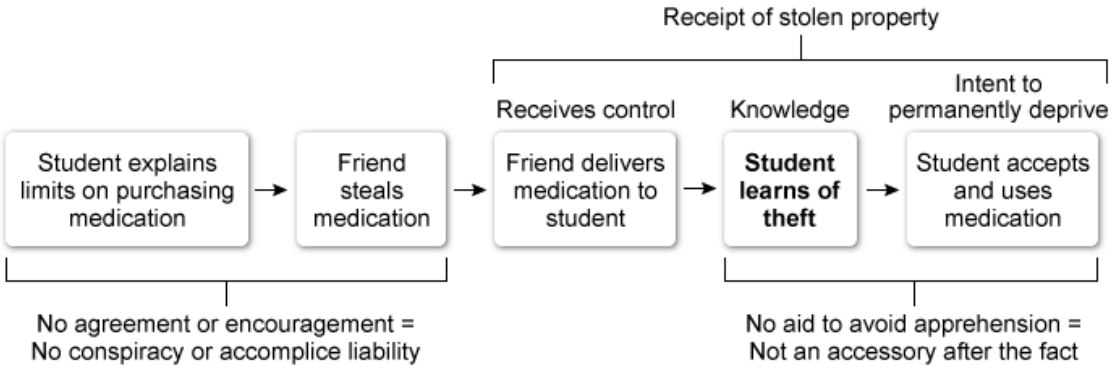
(Choice B) An accomplice is a person who (1) intentionally aids or encourages the principal before or during a crime (2) with the specific intent that the crime be completed. Here, the student *did* assist the friend in carrying away the stolen medication, but she did so unknowingly. Therefore, the student lacked the requisite intent to be an accomplice to larceny.

(Choice C) Conspiracy requires proof that two or more persons entered an agreement with the specific intent to commit a crime. Here, the student and the friend never entered into an agreement to steal medication from the pharmacy before the theft took place. As a result, the student did not conspire to commit larceny.

Educational objective:

Receiving stolen property is committed when a person (1) receives control of stolen personal property, (2) knows that the property was stolen, and (3) specifically intends to permanently deprive the owner of that property.

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Receipt of stolen property
Receives control
Knowledge
Intent to permanently deprive
Student explains limits on purchasing medication
Friend steals medication
Friend delivers medication to student
Student learns of theft
Student accepts and uses medication
No agreement or encouragement = No conspiracy or accomplice liability
No aid to avoid apprehension = Not an accessory after the fact

In which of the following cases is a defendant most likely to be convicted if charged with receiving stolen property?

A. The defendant bought a car from a man. Before the purchase, the man told the defendant that the car was stolen. The man had stolen the car with the help of a friend who, unknown to the defendant or the man, was an undercover police informant who feigned cooperation with the man in the theft of the car.

B. The defendant bought a car from a man. Before the purchase, the man told the defendant that the car was stolen. Unknown to the defendant, the man had stolen the car from a parking lot and had been caught by the police as he was driving it away. The man agreed to cooperate with the police and carry through with his prearranged sale of the car to the defendant.

C. The defendant bought a car from a man. Before the purchase, the man told the defendant that the car was stolen. Unknown to the defendant, the man was in fact the owner of the car but had reported it to the police as stolen and had collected on a fraudulent claim of its theft from his insurance company.

D. The defendant bought a car from a man who operates a used car lot. Before the purchase, the man told the defendant that the car had been stolen, which was true. Unknown to the defendant, the man is an undercover police informant who is operating the lot in cooperation with the police in exchange for leniency in connection with criminal charges pending against him.

Explanation:

A defendant is guilty of **receiving stolen property** if he/she:

took possession of, or exercised control over, **stolen personal property**
knew that the property was stolen *and*
specifically intended to permanently deprive the owner of the property.
But property is **no longer considered stolen** once the **police recover the property**—ie, locate and exercise control over it.

Here, the defendant bought a car from the man after the man told the defendant that it was stolen (knowledge and intent). The man stole the car with a friend who, unbeknownst to the man and the defendant, had been working as an undercover police informant. But since the police did not recover the stolen car before the defendant's purchase (possession), the defendant will likely be convicted of receiving stolen property.

(Choice B) The defendant bought a car from the man after being told that it was stolen. Although the man had taken the car from a parking lot, he was stopped and the car was recovered by police before the defendant took possession. Therefore, the car is not considered stolen and the defendant would likely be acquitted.

(Choice C) Although the defendant intended to buy a stolen car from the man, the man actually owned it. Therefore, the car was not stolen property.

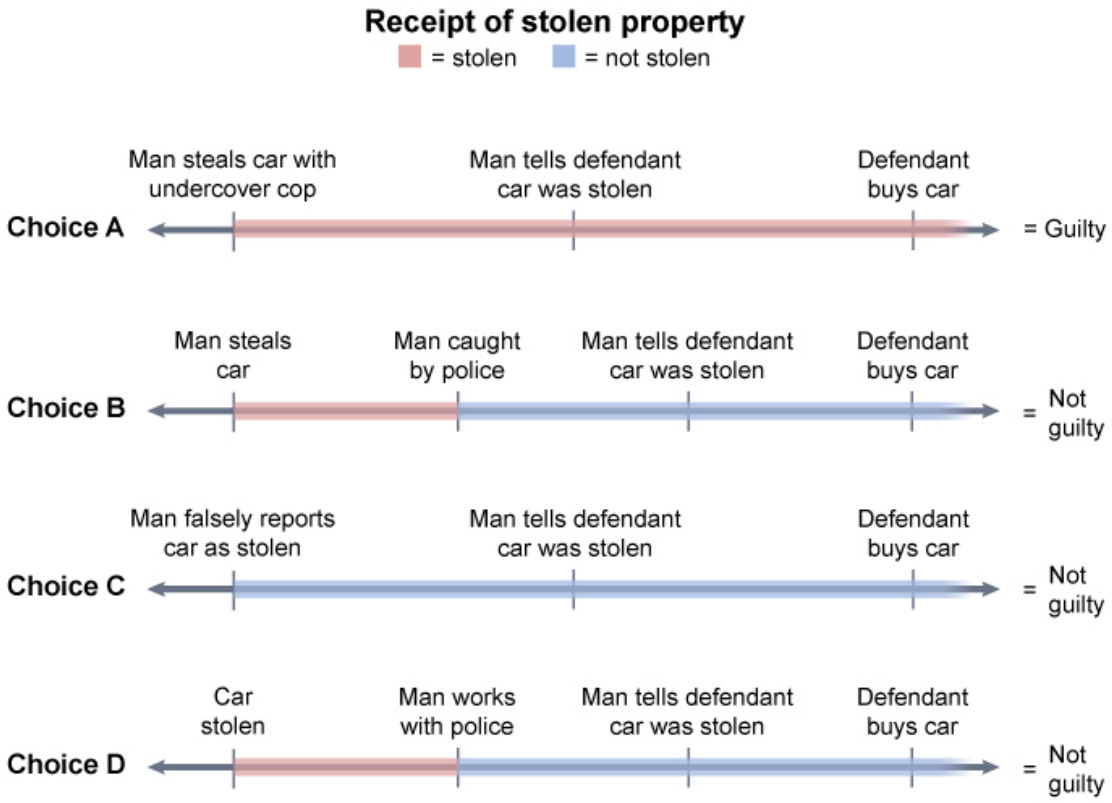
(Choice D) The defendant bought a car from the man after being told that it had been stolen. But since the man operated the used car lot in cooperation with the police, the police exercised control over the car before the defendant took possession. Therefore, the car is considered recovered—not stolen.

Educational objective:

Receiving stolen property requires proof that the defendant (1) took possession of, or exercised control over, stolen personal property, (2) knew that the property was stolen, and (3) specifically intended to permanently deprive the owner of it. But once stolen property is recovered by police, it is no longer considered stolen.

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Receipt of stolen property
= stolen
= not stolen
Man steals car with undercover cop
Man tells defendant car was stolen
Defendant buys car
Choice A
= Guilty
Man steals car
Man caught by police
Man tells defendant car was stolen
Defendant buys car
Choice B
= Not guilty
Man falsely reports car as stolen
Man tells defendant car was stolen
Defendant buys car
Choice C
= Not guilty
Car stolen
Man works with police
Man tells defendant car was stolen
Defendant buys car
Choice D
= Not guilty

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A man was invited to attend a party at a neighbor's house. The man knew that the neighbor kept his valuable sports memorabilia collection in the basement game room and intended to steal it. On the night of the party, guests gathered on the main floor of the house and in the basement game room. The man made his way to the basement and waited until the number of guests dwindled to none. The man then went to grab the memorabilia but found that there was too much to carry out without being noticed. As a result, he decided to hide in the basement until the neighbor went to bed, at which time he would sneak out of the house with the memorabilia. Once the house was quiet, the man tried to exit the basement but found that the basement door had been closed and locked from the outside. Left with no other choice, the man broke a small basement window and climbed out of it with the memorabilia.

The man has been charged with burglary in a common law jurisdiction.

Can the man properly be convicted of burglary?

A. No, because the man did not intend to break the basement window when he decided to steal the memorabilia.

B. No, because there was not a breaking sufficient to support a burglary conviction.

C. Yes, because the man broke the basement window to escape with the memorabilia.

D. Yes, because the man had the intent to steal the memorabilia upon entering the neighbor's house.

Explanation:

Common law burglary is the **unlawful breaking** and entering of another's dwelling at night with the specific intent to commit a felony therein. A breaking occurs when a person **uses force** to create an **opening *into* a dwelling**—eg, by opening an unlocked door or breaking a window to gain entry. But the use of **force to *exit* a dwelling** after commission of a felony therein **does not constitute a breaking**. Therefore, the man cannot be properly convicted of common law burglary **(Choice C)**.

(Choice A) The fact that the man did not intend to break the window when he decided to steal the memorabilia is no defense to burglary since a breaking is accomplished by even a slight use of force (eg, opening an unlocked door or window).

(Choice D) The man did have the intent to steal the memorabilia upon entering the neighbor's house and entering the basement. But since he entered the home and the basement with the neighbor's consent, no unlawful breaking and entering occurred. Therefore, the man cannot be convicted of common law burglary.

Educational objective:

The breaking element of common law burglary is satisfied when a person unlawfully uses force to create an *opening* into a dwelling. Therefore, use of force to *exit* a dwelling is insufficient to support this element.

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A statute in the jurisdiction defines murder in the first degree as knowingly killing another person after deliberation. Deliberation is defined as "cool reflection for any length of time no matter how brief." Murder in the second degree is defined as "all other murder at common law except felony murder." Felony-murder is murder in the third degree. Manslaughter is defined by the common law.

At 2 a.m., the defendant held up an all-night liquor store using an assault rifle. During the holdup, two police cars with flashing lights drove up in front of the store. In order to create a situation where the police would hesitate to come into the store (and thus give himself a chance to escape out the back), the defendant fired several rounds through the front window of the store. The defendant then ran out the back but upon discovering another police car there, surrendered quietly. One of the shots he fired while in the store struck and killed a burglar who was stealing items from a closed store across the street.

What is the most serious degree of criminal homicide of which the defendant is guilty?

A. Murder in the first degree.

B. Murder in the second degree.

C. Murder in the third degree.

D. Manslaughter.

Explanation:

This jurisdiction divides criminal homicide into four levels:

First-degree murder: knowingly killing another person after deliberation

Second-degree murder: all other common law murder (except for felony murder), including **depraved-heart murder**—ie, an unlawful killing committed with **reckless disregard** of an obvious or unjustifiably high risk of **serious bodily harm or death**

Third-degree murder: felony murder—ie, a killing committed during the commission, or attempted commission, of an inherently dangerous felony

Common law manslaughter: either (1) voluntary manslaughter—an intentional killing based on adequate provocation or imperfect self-defense—or (2) involuntary manslaughter—an unintentional killing caused by criminal negligence or the commission of an unlawful act

Here, the defendant killed a burglar across the street when he fired his assault rifle through the front window of the store he was robbing. Since the defendant only intended to create an opportunity to escape out the back—not to knowingly or deliberately kill the burglar—he is not guilty of first-degree murder **(Choice A)**. However, he recklessly disregarded the obviously high risk of serious bodily harm or death posed by firing an assault rifle toward people in the street. Therefore, he is guilty of second-degree murder.

(Choice C) The defendant is guilty of felony murder (here, third-degree murder) since the killing occurred while he was committing a robbery—an inherently dangerous felony. But he is also guilty of the more serious crime of second-degree murder (depraved-heart murder).

(Choice D) The defendant is not guilty of *voluntary* manslaughter since he did not intentionally kill the burglar. However, he may be guilty of *involuntary* manslaughter because the unintentional killing was caused by his criminal negligence—ie, a substantial failure to act in the same manner a reasonably prudent person would act under similar circumstances. But this crime is less serious than second-degree murder.

Educational objective:

Depraved-heart murder is an unintentional killing committed with reckless disregard for an obvious or high risk of serious bodily harm or death.

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A state statute divides murder into degrees and defines murder in the first degree as murder committed willfully with premeditation and deliberation. The statute defines murder in the second degree as all other murder at common law and defines voluntary manslaughter as at common law.

A man hated one of his coworkers. Upon learning that the coworker was at a neighbor's house, the man grabbed his gun and went to the neighbor's house hoping to provoke the coworker into attacking him so that he could then shoot the coworker. After arriving at the house, the man insulted the coworker and bragged that he had had sexual relations with the coworker's wife two weeks earlier. This statement was not true, but it enraged the coworker, who grabbed a knife from the kitchen table and ran toward the man. The man then shot and killed the coworker.

What is the most serious homicide offense of which the man could properly be convicted?

A. Murder in the first degree.

B. Murder in the second degree.

C. Voluntary manslaughter, because he provoked the coworker.

D. No form of criminal homicide, because he acted in self-defense.

Explanation:

In this state (and most jurisdictions), the most serious homicide offense is first-degree murder—ie, a killing committed willfully with both:

premeditation – when the defendant fully forms the specific intent to kill an appreciable time (no matter how brief) before committing the act *and*

deliberation – when the defendant makes the decision to kill after reflecting on the act and its likely consequences in a cool and dispassionate manner.

Here, the man fully formed the intent to kill his coworker when he grabbed a gun and went to the coworker's location (premeditation). The man hoped to provoke the coworker into attacking so that he could then shoot the coworker (deliberation). And since the man then willfully shot and killed the coworker, the most serious homicide offense of which the man could be convicted is first-degree murder—unless he has a viable defense.

The man may argue that the coworker's attack justified the man's use of **deadly force in self-defense**. Deadly force is justified when the defendant actually and reasonably believes that such force is necessary to protect him/herself from imminent death or serious bodily harm. But this defense is generally **unavailable** if the **defendant provoked the victim's attack**—as seen here **(Choice D)**.

(Choice B) In this state, second-degree murder includes all murder at common law—ie, the unlawful killing of another with malice aforethought (eg, intent to kill)—other than first-degree murder. Although the man could be convicted of second-degree murder since he intentionally and unlawfully killed the coworker, he could also be convicted of the more serious crime of first-degree murder.

(Choice C) Voluntary manslaughter is an intentional killing committed (1) in the heat of passion upon adequate provocation *or* (2) in imperfect self-defense—ie, an *honest* but unreasonable belief that deadly force is necessary to defend oneself. Here, the man committed the killing after deliberation—not in the heat of passion. And since he purposely provoked the coworker, the man could not honestly act in self-defense.

Educational objective:

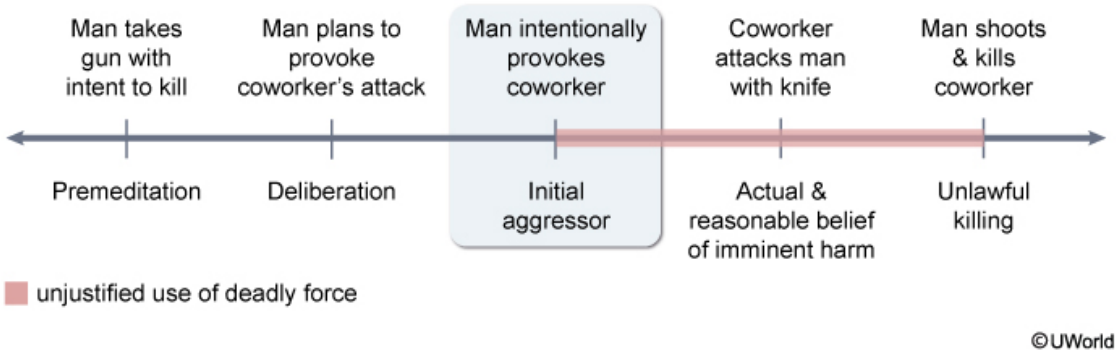
First-degree murder encompasses willful killings committed with (1) premeditation—a specific intent to kill fully formed an appreciable time before the killing—and (2) deliberation—a decision to kill made after cool and dispassionate reflection. And though a killing may be justified if the defendant acted in self-defense, this defense is generally unavailable when the defendant was the initial aggressor.

References

40 Am. Jur. 2d Homicide § 43 (2002) (premeditation and deliberation).

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Two women, a boxer and a martial artist, agreed to compete against one another in a 12-round boxing match. Prior to the match, the referee cautioned both fighters that striking an opponent with an open glove, below the navel, in the kidneys, or behind the ears was not permitted. The referee further warned that hitting an opponent when she was knocked down on the ground was impermissible.

Toward the end of the twelfth round, by which time the fighters had become exhausted, the boxer repeatedly punched the martial artist in the face with a closed glove. As the martial artist was falling to the ground, and before the referee could separate them, the boxer punched the martial artist in the face one more time and broke her nose. The martial artist subsequently filed a criminal complaint against the boxer for battery.

If the boxer is indicted, what is her best defense against a charge of battery?

A. The boxer did not intend to break the martial artist's nose.

B. The boxer punched the martial artist in the face with a closed glove.

C. The martial artist consented to the battery.

D. The martial artist had not fallen when the boxer landed the final blow.

Explanation:

Criminal battery is the unlawful application of force to another that results in harmful or offensive contact. A victim's consent is generally not a defense to a crime. However, **consent to bodily injury** or **conduct that may cause bodily injury** is a **defense** when:

the **injury was not serious** *or*

the victim and the defendant were engaged in an **activity** in which the **defendant's conduct** and the victim's resulting **injury** were **reasonably foreseeable**.

This is true regardless of whether the victim's consent was given explicitly (eg, by signed authorization) or implicitly (eg, by participating in an activity likely to result in injury).

Here, both fighters consented to conduct that may cause bodily injury when they agreed to compete and participated in a boxing match. And since boxing is an activity in which the boxer's conduct (punch) and the martial artist's resulting injury (broken nose) were reasonably foreseeable, consent is the boxer's best defense against the charge of battery.

(Choice A) The boxer may not have specifically intended to break the martial artist's nose. But this is no defense to battery since it is a *general* intent crime that merely requires that the criminal act (the punch) be consciously performed or criminally negligent.

(Choices B & D) The boxer did strike the martial artist with a closed (not open) glove, and the final blow was landed before the martial artist fell (not when she was on the ground). But the boxer could still be convicted of battery under these facts *unless* the martial artist consented to the battery.

Educational objective:

A victim's consent is a defense to battery if (1) the injury was not serious or (2) the parties engaged in an activity in which the defendant's conduct and the victim's resulting injury were reasonably foreseeable.

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A man walked into a store that had a check-cashing service and tried to cash a $550 check that was payable to him. The attendant on duty refused to cash the check because the man did not have two forms of identification, which the store's policies required. The man, who had no money except for the check and who needed cash to pay for food and a place to sleep, became agitated. He put his hand into his pocket and growled, "Give me the money or I'll start shooting." The attendant, who knew the man as a neighborhood character, did not believe that he was violent or had a gun. However, because the attendant felt sorry for the man, he handed over the cash. The man left the check on the counter and departed. The attendant picked up the check and found that the man had failed to endorse it.

Of which crime is the man guilty?

A. Robbery.

B. Attempted robbery.

C. Theft by false pretenses.

D. Larceny by trick.

Explanation:

Robbery

(larceny by force v. intimidation)

Force	Use of more force than necessary to acquire property or retain the property immediately thereafter
Intimidation	Threat that places victim in reasonable apprehension of immediate death or serious physical injury to victim, close family member, or person present

Robbery requires proof of *all* the following elements:

The defendant unlawfully **took and carried away** the victim's personal property.

The property was taken from the victim's person or presence **by force or intimidation**.

The defendant **specifically intended to permanently deprive** the victim of the property (ie, to steal).

But a defendant who **does not complete** all of these elements can still be convicted of **attempted robbery** if he/she (1) had the specific intent to commit robbery and (2) committed an **act** in furtherance of that crime.

Here, the man intentionally took $550 in cash after he threatened the attendant by stating, "Give me the money or I'll start shooting." But this taking was not accomplished by force. Nor was it accomplished by intimidation since the attendant gave the man the money out of pity—not fear. As a result, the man is *not* guilty of robbery **(Choice A)**. But since he specifically intended to steal the cash by intimidation and committed an act by threatening to shoot the attendant, the man *is* guilty of attempted robbery.

(Choices C & D) The knowing misrepresentation of a past or present material fact made with the intent to defraud is either:

larceny by trick – if the defendant thereby obtains *possession* of the victim's property *or*

false pretenses – if the defendant thereby obtains *title* to the victim's property.

Here, the man might have mispresented his intent to shoot. But since he only obtained possession of (not title to) the stolen cash, he did not commit false pretenses. And since the attendant's pity—not the man's misrepresentation—caused him to acquire the cash, he is not guilty of larceny by trick.

Educational objective:

Robbery requires proof that property was taken from the victim's person or presence by intimidation (or force). So if the victim was not fearful of the defendant's threat, any taking was not by intimidation.

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A man and his friend were watching a televised football game at the man's home. Upset by a penalty called by the referee, the friend threw a bottle of beer at the man's television, breaking the screen. Enraged, the man picked up a nearby hammer and hit the friend on the head with it. The friend died from the blow.

The crimes below are listed in descending order of seriousness.

In a jurisdiction that follows common law principles, what is the most serious crime of which the man could properly be convicted?

A. Murder.

B. Voluntary manslaughter.

C. Involuntary manslaughter.

D. Assault.

Explanation:

Under the common law, a defendant can be convicted of **murder** if he/she **unlawfully killed** another with **malice aforethought**—ie, acted with:

intent to **kill** – the purpose or knowledge to a substantial certainty that death will result

intent to inflict **serious physical harm**

reckless disregard for an **obvious** or unjustifiably high **risk to human life** *or*

intent to commit an inherently dangerous felony.

Here, the man killed his friend by hitting the friend on the head with a hammer. And a reasonable jury could find that the man acted with malice aforethought—(1) the intent to kill or seriously injure his friend with the hammer or (2) a reckless disregard of the obvious risk that his conduct would kill his friend. Therefore, the most serious crime of which the man could be convicted is murder.

(Choice B) Voluntary manslaughter is the intentional killing of another in response to adequate provocation—ie, conduct or circumstances that would cause a *reasonable person* to lose control. But since a reasonable person would not hit someone on the head with a hammer in response to a broken television screen (no adequate provocation), the man will likely not be convicted of this crime.

(Choice C) Involuntary manslaughter is the unintentional killing of another *without* malice aforethought through criminal negligence or an unlawful act. But here, a reasonable jury could find that the man acted *with* malice aforethought, so he could be convicted of the more serious crime of murder.

(Choice D) Assault occurs when a defendant (1) attempts to commit a battery or (2) intentionally places a victim in fear of imminent harmful contact. Although the man may have committed assault, the most serious crime of which he could be convicted is murder.

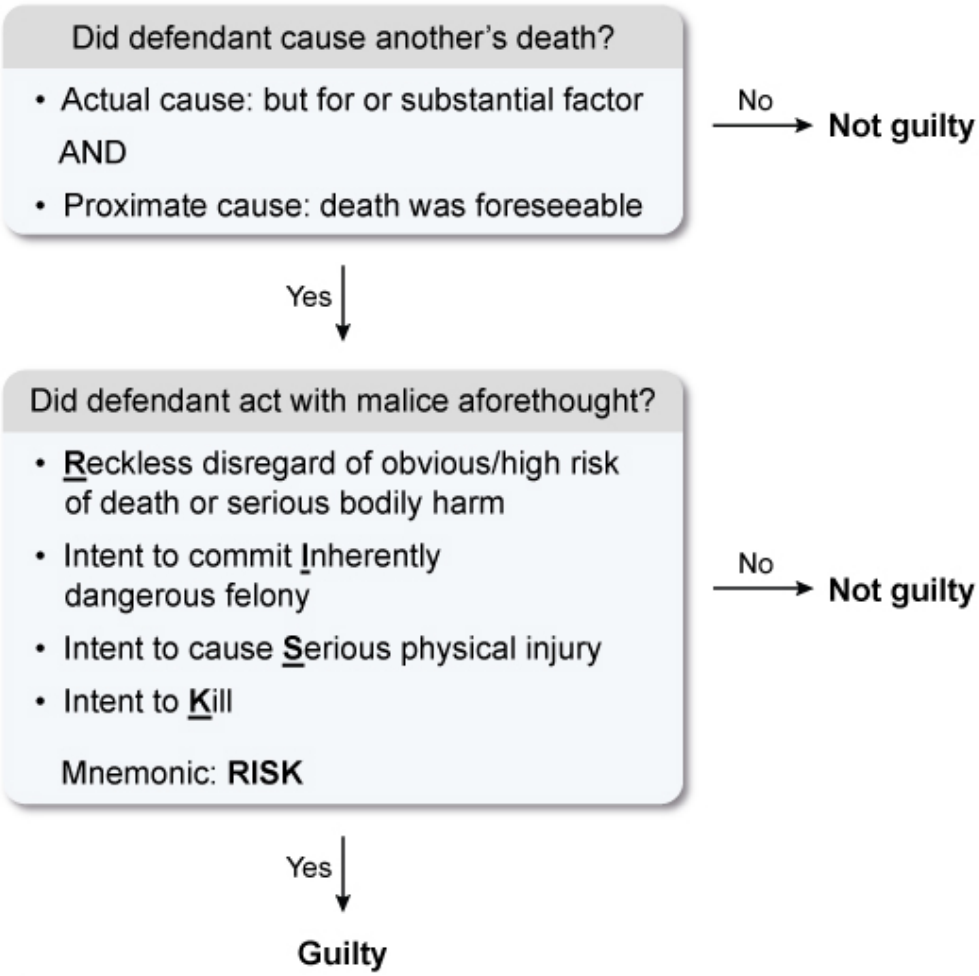
Educational objective:

A defendant is guilty of common law murder when a jury finds that he/she unlawfully killed another with malice aforethought—eg, intent to kill or inflict serious bodily harm, reckless disregard for an obvious or unjustifiably high risk to human life.

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Common law murder



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A customer asked to see an expensive watch in a jewelry store. In conversation with the store clerk, the customer falsely claimed to be the son of the mayor. When handed the watch, the customer asked if he could put it on, walk around a bit so he could see how it felt on his wrist, and briefly step outside to observe it in natural light. The clerk agreed, saying, "I know I can trust someone like you with the merchandise." The customer walked out of the store wearing the watch and did not return. A week later, the clerk was at a gathering when she spotted the customer wearing the watch. She told him that he must either pay for the watch or give it back. He hissed, "You'll be sorry if you mess with me." Intimidated, the clerk backed off.

The following list of crimes is in descending order of seriousness.

What is the most serious crime the customer committed?

A. Robbery.

B. Larceny.

C. False pretenses.

D. Embezzlement.

Explanation:

Larceny occurs when a person (1) unlawfully takes and carries away another's personal property (2) with the specific intent to permanently deprive the owner of that property. An **unlawful taking** occurs when a person obtains possession of another's property **without privilege or valid consent**. This can arise when consent is obtained by **knowingly misrepresenting** a past or present material fact (ie, **larceny by trick**).

Here, the customer took the watch and carried it outside with the intent to permanently keep it. And though the clerk gave the customer permission to take the watch, she only did so because the customer falsely told her that he was the mayor's son. As a result, the clerk's consent was invalid, and the customer committed larceny.

(Choice A) Larceny is elevated to robbery when property is taken from another by force or intimidation. Here, the customer merely used deception to take the watch. And though he later intimidated the clerk with his threat, the unlawful taking and carrying away had already occurred. Therefore, no robbery occurred.

(Choice C) The crime of false pretenses differs from larceny by trick in that the defendant acquires title to—not just custody or possession of—the property. Since the customer merely obtained *custody* of the watch, he did not commit false pretenses.

(Choice D) Embezzlement is the fraudulent conversion of another's property by a person in *lawful* possession of that property. Here, no embezzlement occurred because the customer *unlawfully* possessed the watch due to his misrepresentation.

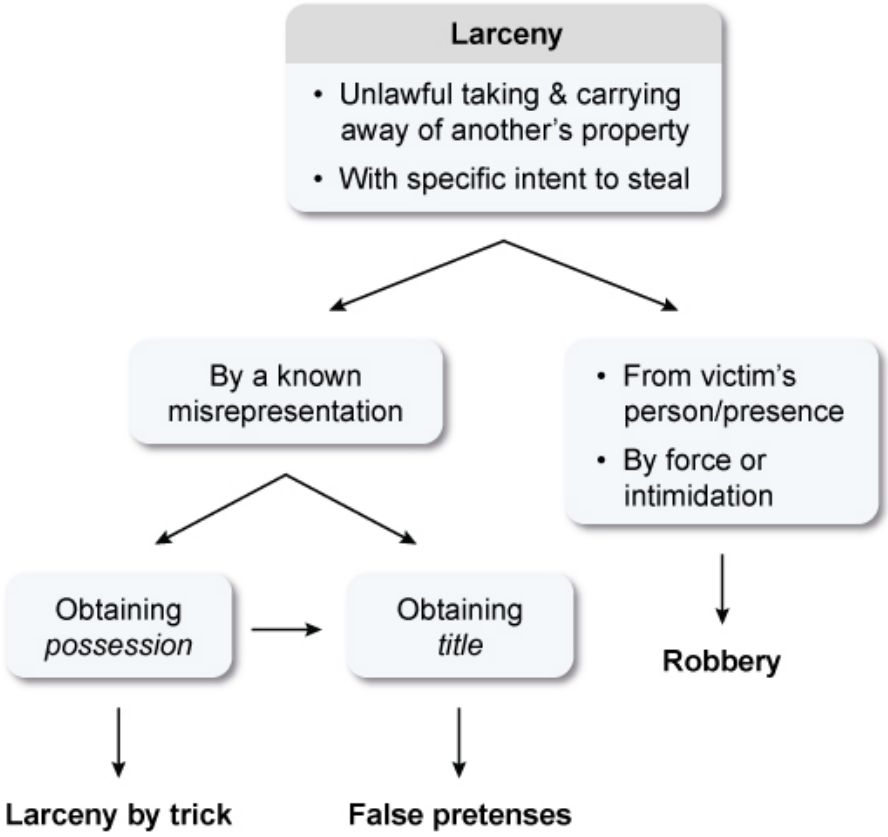
Educational objective:

Larceny is (1) the unlawful taking and carrying away of another's personal property with (2) the specific intent to permanently deprive the owner of it. A taking is unlawful when the person obtains possession of property without the owner's valid consent—eg, by knowingly misrepresenting a past or present material fact.

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Distinguishing property crimes



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A man entered a store with a gun, planning to rob the store. He was unfamiliar with guns and thought that the safety lock was on. When the store manager refused to give him any money, the man shook the gun at her to scare her into cooperating. The gun fired, killing the manager. A clerk ran in from the back stockroom. The man fired a shot into the air to scare the clerk. Unbeknownst to the man, the clerk had a heart condition, and the fright caused her to suffer a fatal heart attack.

Can the man properly be convicted of felony murder?

A. No.

B. Yes, but only for the death of the store manager.

C. Yes, but only for the death of the clerk.

D. Yes, for the deaths of both the manager and the clerk.

Explanation:

A defendant can be convicted of **felony murder** if he/she (1) **caused the death** of another (2) during the commission, or attempted commission, of an inherently dangerous felony. To show that a defendant caused the death of another, there must be evidence of both:

actual causation – the victim would not have died at that time **but for the defendant's conduct** *and*

proximate causation – the death was **foreseeable** (the natural and probable consequence of the defendant's actions).

Here, during the man's attempted robbery of the store (inherently dangerous felony), he accidently fired his gun and killed the store manager (actual and proximate causation). The man then fired a shot into the air to scare the clerk, which caused her to suffer a heart attack and die (actual cause). Although the man did not know that the clerk had a heart condition, it was still foreseeable that firing a gun would cause death (proximate cause). Therefore, the man can be convicted of felony murder for the deaths of both individuals **(Choices A, B, & C)**.

Educational objective:

Felony murder requires proof that the defendant caused another's death during the commission, or attempted commission, of an inherently dangerous felony. Causation exists if the victim would not have died but for the defendant's conduct (actual causation) and the death was foreseeable (proximate causation).

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Felony murder
(defendant liable for deaths actually and proximately caused)



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Unprepared for a final examination, a student asked his girlfriend to set off the fire alarms in the university building 15 minutes after the test commenced. The girlfriend did so. Several students were injured in the panic that followed as people were trying to get out of the building.

If both the student and the girlfriend are prosecuted for battery and for conspiracy to commit battery, what is the likely result?

A. They are guilty of both crimes.

B. They are guilty of battery but not conspiracy.

C. They are guilty of conspiracy but not battery.

D. They are not guilty of either crime.

Explanation:

Battery requires proof that the defendant unlawfully inflicted **harmful or offensive physical contact** on another. Since battery is a **general intent crime**, the contact need not be intentionally inflicted. **Criminal negligence**—ie, a gross deviation from the level of care a reasonable person would use under similar circumstances—is enough to support a battery conviction.

Here, several students were injured when the fire alarms caused people to exit the building in a panic. Although the girlfriend did not intend to inflict harmful or offensive contact when she set off the alarms, she was criminally negligent when she did so during an examination. Therefore, she is guilty of battery. And since the student acted as her accomplice when he encouraged her to set off the alarms, he is liable to the same extent as the girlfriend **(Choices C & D)**.

Conspiracy requires proof that (1) the defendant entered an **agreement** with the **specific intent** to **commit a crime** and (2) an overt act was committed in furtherance of that agreement. Here, the student and the girlfriend agreed that she would pull the fire alarms. But since they did not enter that agreement with the specific intent to commit battery, they are not guilty of conspiracy to commit battery **(Choice A)**.

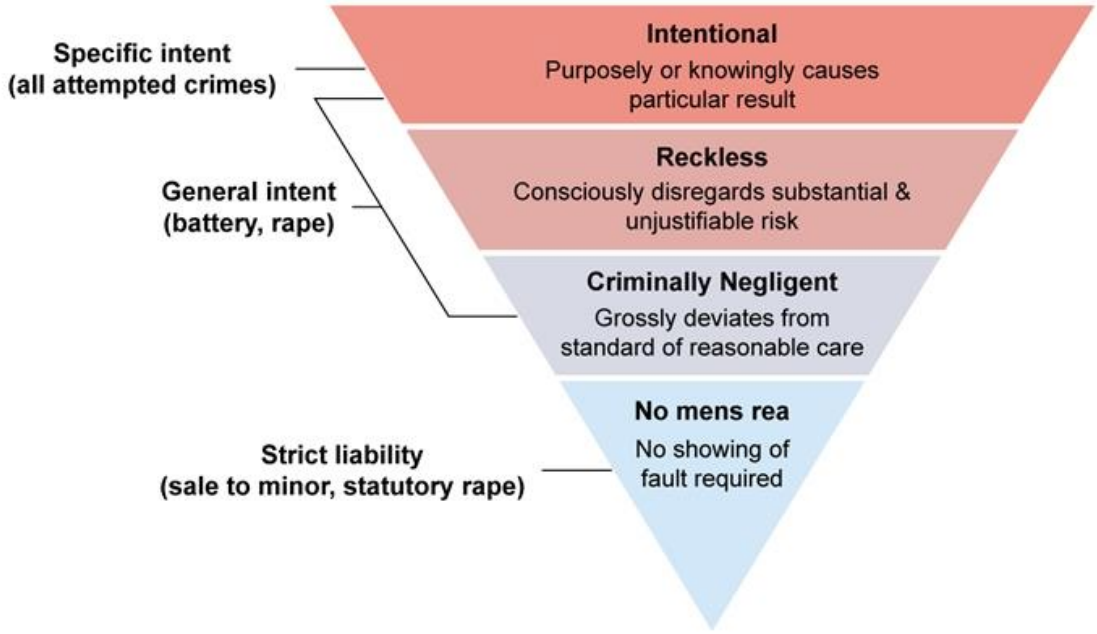
Educational objective:

General intent crimes (eg, battery) require at least criminally negligent conduct—ie, grossly deviating from the level of care a reasonable person would use under similar circumstances. But specific intent crimes (eg, conspiracy) require intentional conduct—ie, purposefully or knowingly causing a particular result.

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Types of mens rea



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A man bought a new rifle and wanted to try it out by doing some target shooting. He went out into the country to an area where he had previously hunted. Much to his surprise, he noticed that the area beyond a clearing contained several newly constructed houses that had not been there before. Between the houses there was a small playground where several children were playing. Nevertheless, the man nailed a paper target to a tree and went to a point where the tree was between himself and the playground. He then fired several shots at the target. One of the shots missed the target and the tree and hit and killed one of the children in the playground.

The man was convicted of murder. He appealed, contending that the evidence was not sufficient to support a conviction of murder.

How should the appellate court rule?

A. Affirm the conviction, as the evidence is sufficient to support a conviction of murder.
B. Reverse the conviction and order the case dismissed, because the evidence is sufficient only for a finding of negligence and negligence alone cannot support a criminal conviction.
C. Reverse the conviction and remand for a new trial, because the evidence is not sufficient for murder but will support a conviction of involuntary manslaughter.
D. Reverse the conviction and remand for a new trial, because the evidence is not sufficient for murder but will support a conviction of voluntary manslaughter.

Explanation:

An appellate court should affirm (ie, uphold) a defendant's conviction if a reasonable fact finder could conclude that there was sufficient evidence at trial to establish every element of the crime beyond a reasonable doubt. To support a **murder** conviction, the evidence must show that the defendant **unlawfully killed another** with **malice aforethought**—ie, the defendant:

intended to kill – acted with purpose or knowledge that his/her actions would cause a death

intended to cause serious bodily injury – acted with purpose or knowledge that his/her actions would cause significant but nonfatal injury

acted with **reckless indifference** to an obvious or unjustifiably **high risk of serious bodily harm or death** (ie, **depraved-heart murder**) *or*

intended to commit an inherently dangerous felony (ie, felony-murder).

Here, the defendant did not intend to shoot the child, but he knew that several children were playing in a small playground beyond a clearing. Therefore, a reasonable fact finder could conclude that he consciously disregarded the unreasonable risk that he could seriously harm or kill a child by firing several shots in that direction (depraved-heart murder). As a result, there is sufficient evidence to affirm the murder conviction.

(Choice B) Ordinary negligence (ie, the failure to use reasonable care) cannot support a criminal conviction. But here, the evidence is sufficient to support a finding of reckless disregard (ie, malice aforethought) necessary for a murder conviction.

(Choice C) Involuntary manslaughter is an unintentional killing committed (1) with criminal negligence—ie, the substantial failure to exercise reasonable care—or (2) during the commission of an unlawful act—eg, misdemeanor assault. Here, although the man's actions were criminally negligent, they also were serious enough to support his murder conviction.

(Choice D) Voluntary manslaughter is an intentional killing committed in response to adequate provocation or in imperfect self-defense. Since the man acted recklessly (not intentionally) and without provocation or a need for self-defense, the evidence does not support a voluntary manslaughter conviction. But since there is sufficient evidence to support his murder conviction, the court should affirm it.

Educational objective:

Common law murder requires proof that the unlawful killing of another was committed with malice aforethought—eg, proof that the defendant consciously disregarded an obvious or unjustifiably high risk of serious bodily injury or death (depraved-heart murder).

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Depraved-heart murder
(reckless indifference to human life)



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A writer in desperate need of money decided to hold up a local convenience store. Determined not to harm anyone, he carried a toy gun that resembled a real gun. In the store, he pointed the toy gun at the clerk and demanded money. A customer who entered the store and saw the robbery in progress pulled his own gun and fired at the writer. The bullet missed the writer but struck and killed the clerk.

If the writer is charged with felony murder, what is his best argument for being found NOT guilty?

A. He did not commit the robbery because he never acquired any money from the clerk.

B. He did not intend to create any risk of harm.

C. He did not intend to kill.

D. He is not responsible for the acts of the customer.

Explanation:

Felony murder occurs when a defendant kills another during the commission, or attempted commission, of an inherently dangerous felony. The defendant's **responsibility for deaths caused by others** during the felony depends on the theory adopted by the jurisdiction:

Agency theory (majority rule) – the defendant is responsible for deaths caused by **co-felons**

Proximate cause theory (minority rule) – the defendant is responsible for deaths caused by **any person** (eg, co-felon, police, bystander)

Here, the writer attempted to rob a convenience store with a fake gun (inherently dangerous felony). A customer (not a co-felon) shot at the robber but killed the clerk instead. And since most jurisdictions follow the agency theory, the writer's best argument for being acquitted (ie, found not guilty) of felony murder is that he is not responsible for the customer's acts.

(Choice A) Although the writer did not commit robbery because he failed to acquire the money, he did *attempt* to commit robbery. And since felony murder applies when the defendant attempts to commit an inherently dangerous felony, this argument would not protect the writer.

(Choices B & C) Felony murder is *any* killing committed during an inherently dangerous felony, so it does not require proof that the defendant intended to create a risk of harm or intended to kill. Therefore, these arguments would not help the writer.

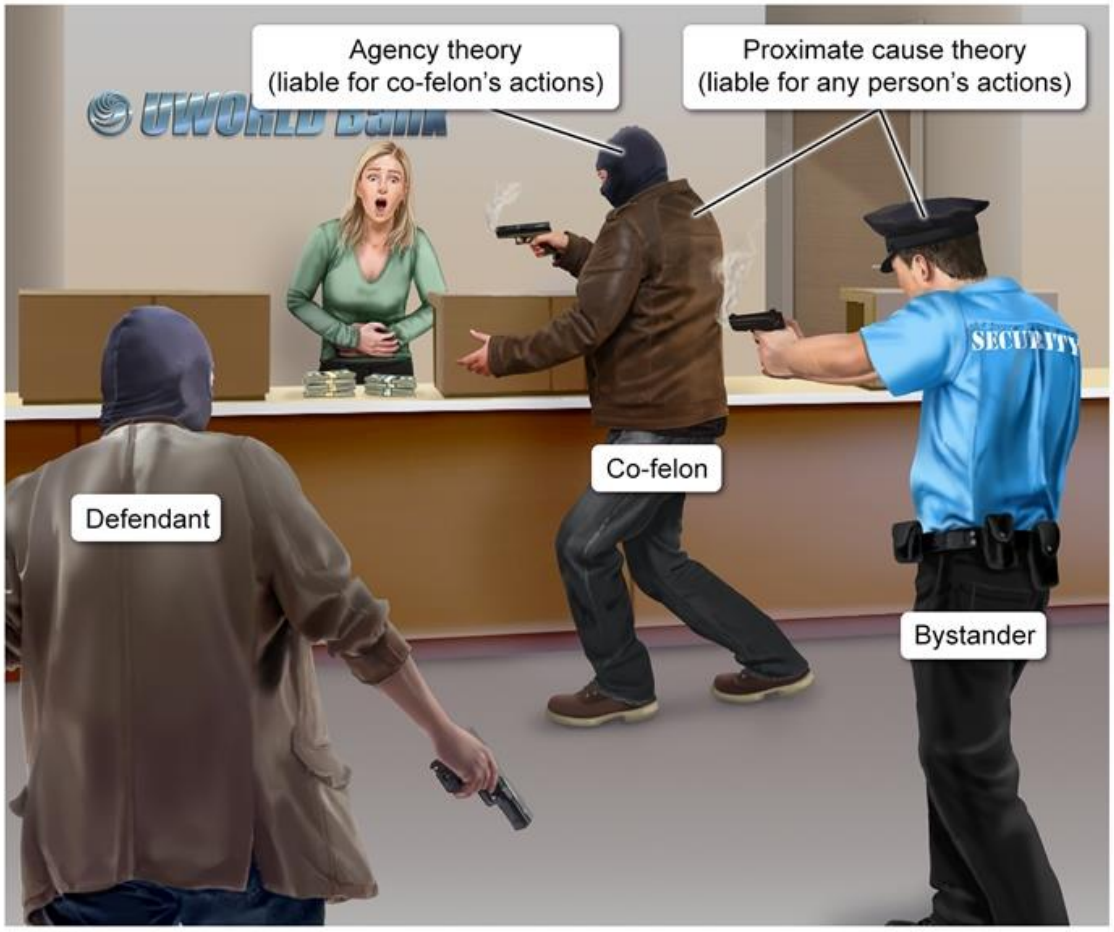
Educational objective:

Under the agency theory of felony murder (majority rule), a defendant is responsible for deaths caused by him/her or co-felons during the commission, or attempted commission, of an inherently dangerous felony—not for deaths caused by others.

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Felony murder
(defendant's liability for death caused by others**)**



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At a defendant's robbery trial, the state called the victim to testify that the defendant pointed a gun at him before grabbing his briefcase and running away. The state then called a bystander who testified that she saw the defendant take the victim's briefcase but saw no gun.

For which of the following offense(s) could the jury properly return a verdict of guilty?

A. Larceny only.

B. Robbery only.

C. Either larceny or robbery.

D. Both larceny and robbery.

Explanation:

Larceny is (1) the unlawful taking and carrying away of another's personal property (2) with the specific intent to permanently deprive the victim of that property. It **escalates to robbery** when **property is taken** from the victim's person or presence **by force or intimidation**. As a result, larceny is necessarily committed during a robbery—making it a lesser included offense of robbery. And since larceny (lesser offense) **merges** into robbery (greater offense) once the robbery is completed, a defendant can only be convicted of larceny *or* robbery **(Choice D)**.

Here, the defendant was tried for robbery. The victim and bystander testified that the defendant took the victim's briefcase and ran off with it. Though the victim also testified that the defendant pointed a gun at him (robbery), the bystander testified that she did not see a gun (larceny). Since the jury can choose whom to believe, it can return a guilty verdict for either crime—but not both **(Choices A & B)**.

Educational objective:

Larceny is (1) the unlawful taking and carrying away of another's personal property (2) with the specific intent to permanently deprive the victim of that property. It merges into robbery if the property is taken from the victim's person or presence by force or intimidation. Therefore, a person can be convicted of larceny or robbery—not both.

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A woman decided to steal a necklace that belonged to her neighbor. She knew where the neighbor kept the necklace because she had been in the neighbor's house on many occasions when the neighbor had taken off the necklace and put it away in a jewelry box in the bathroom. One night, the woman went to the neighbor's house. The neighbor was away, and the house was dark. The woman opened the bathroom window, saw the jewelry box on the counter, and started to climb inside. As her leg cleared the window sill, the neighbor's dog began to bark loudly. Terrified, the woman jumped back outside and fled.

The crimes below are listed in descending order of seriousness.

What is the most serious crime, if any, committed by the woman?

A. Burglary.

B. Attempted burglary.

C. Attempted larceny.

D. No crime.

Explanation:

In most jurisdictions, **burglary** is defined as the:

unlawful entry of a building or other structure
with the specific intent to commit **any crime** therein—even if that crime is not completed.

An unlawful entry occurs when any part of the **defendant's body** (or an object under his/her control) **crosses into the structure** without the possessor's consent or legal privilege. And the crime that burglars often intend to commit inside is **larceny**—ie, the unlawful taking and carrying away of another's personal property with the specific intent to permanently deprive that person of the property.

Here, the woman unlawfully entered her neighbor's house when her leg cleared the bathroom window sill. She did so with the specific intent to steal the neighbor's necklace. And though the woman did not succeed, she still committed burglary—the most serious of the listed crimes **(Choices B & D)**. She also committed attempted larceny (the least serious crime) since she:

had the specific intent to commit larceny (ie, steal the necklace)
committed an act in furtherance of the larceny (ie, opened and entered the window)
but did not complete the crime (ie, failed to take the necklace) **(Choice C)**.

Educational objective:

Burglary is the unlawful entry of a building or other structure with the specific intent to commit a crime therein—but that crime need not be completed. An unlawful entry occurs when the defendant's body or an object under his/her control crosses into the structure without the possessor's permission or legal privilege.

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Unlawful entry for burglary
(body or object crosses into structure)



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At a party for coworkers at the manager's home, a salesman accused the manager of making advances toward his wife. The salesman and his wife left the party. The next day at work, the manager saw the salesman and struck him on the head with a glass bottle. The salesman fell into a coma and died two weeks after the incident.

This jurisdiction defines aggravated assault as an assault with any weapon or dangerous implement and punishes it as a felony. It defines murder as the unlawful killing of a person with malice aforethought or in the course of an independent felony.

Under what circumstance may the manager be found guilty of murder?

A. If the jury finds that the killing occurred in the course of an aggravated assault.
B. If the jury finds that the manager intended either to kill or to inflict serious bodily harm.
C. Only if the jury finds that the manager did not act in a rage provoked by the salesman's accusations.
D. Only if the jury finds that the manager intended to kill the salesman.

Explanation:

In this jurisdiction, a defendant is guilty of **murder** if a jury finds beyond a reasonable doubt that he/she unlawfully killed another person (1) with **malice aforethought** or (2) in the course of an independent felony. Malice aforethought exists when the **defendant acts with**:

intent to kill

intent to inflict serious bodily harm

reckless disregard of an obvious or high risk to human life (ie, depraved-heart murder) *or*

intent to commit an inherently dangerous felony (ie, felony murder).

Here, the manager killed the salesman by striking him on the head with a glass bottle (unlawful killing). Therefore, the manager may be found guilty of murder if the jury also finds that he intended to kill the salesman *or* to inflict serious bodily harm upon him (malice aforethought) **(Choice D)**.

(Choice A) In this jurisdiction, murder also includes the unlawful killing of another during an independent felony—a felony committed for a purpose other than causing physical harm or death (eg, burglary). Since aggravated assault requires proof that a dangerous implement was used to inflict (or create imminent apprehension of) *harmful* contact, it is not an independent felony. Therefore, the manager cannot be found guilty of murder on this basis.

(Choice C) Voluntary manslaughter typically requires proof that a defendant intentionally killed another in an immediate response to adequate provocation—murder does not. Therefore, whether the manager acted in a rage provoked by the salesman's accusations will not affect the manager's potential murder conviction.

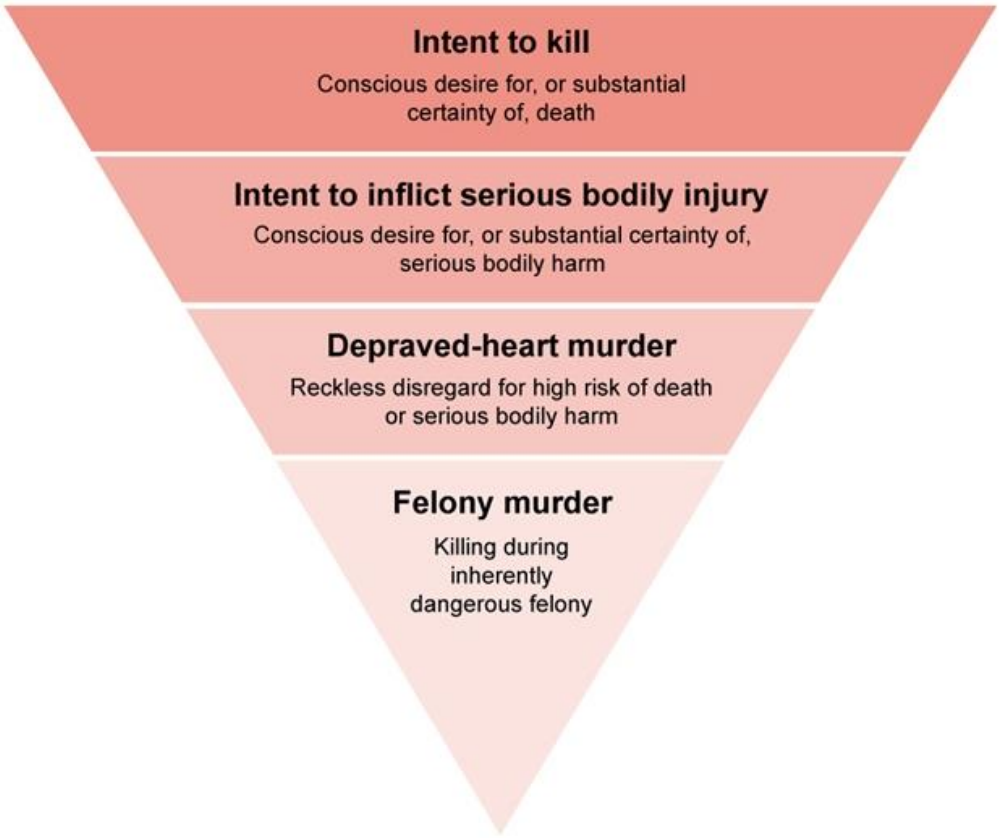
Educational objective:

A jury can convict a defendant of murder if it finds beyond a reasonable doubt that the defendant unlawfully killed another person with malice aforethought (eg, intended to kill or inflict serious bodily harm).

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Malice aforethought



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Upon the recent passing of her mother, a sister inherited a valuable antique chair that her brother had coveted for a long time. Unbeknownst to the sister, the brother had accumulated a large amount of gambling debt that required immediate payment, so he decided to steal the chair when he knew that his sister would be out with friends. Early the next evening, just after the sister left, the brother entered her home through the front door, which he knew she always left unlocked. After entering the living room, the brother grabbed the chair and quickly exited the home. The sister's neighbor, who happened to be outside getting her mail, noticed the brother as he was leaving. She was able to see his face because it was illuminated by the setting sun. Upon recognizing him, she immediately called the police and reported the crime she had just witnessed. The brother was subsequently arrested and charged with burglary.

In a common-law jurisdiction, is the brother guilty of burglary?

A. No, because the front door to the sister's house was unlocked.

B. No, because there was sufficient sunlight to see the brother's face.

C. Yes, because the brother had the specific intent to commit robbery.

D. Yes, because the brother intended to permanently deprive the sister of the chair.

Explanation:

Common-law burglary is defined as the unlawful breaking and entering of another's dwelling **at night** with the specific intent to commit a felony therein—eg, larceny (as seen here). Nighttime is the period of **darkness between sunset and sunrise**. Therefore, it is **not considered nighttime** when there is **sufficient natural daylight** to see the burglar's face.

Here, the brother entered the sister's home early in the evening while she was out with friends, with the intent to steal the sister's chair. But since it was early in the evening, there was sufficient sunlight for the neighbor to see the brother's face when he was outside. Therefore, the common-law nighttime requirement for burglary was not met.

(Choice A) An unlawful breaking occurs when the defendant uses any degree of force to gain entry (eg, opening a door) without the owner's permission or legal privilege. Since the brother waited until his sister left the house before opening the door and entering the living room, this element is met even though the door was left unlocked.

(Choice C) Robbery is larceny committed in the victim's presence by force or intimidation. Here, the brother stole the sister's chair while she was out with friends—not in her presence.

(Choice D) Larceny is the unlawful taking and carrying away of another's personal property with the specific intent to permanently deprive the owner of that property (here, the chair). The brother entered the sister's home with the intent to commit this felony therein. But since the nighttime requirement has not also been met, he is not guilty of common-law burglary.

Educational objective:

Common-law burglary is defined as the unlawful breaking and entering of another's dwelling at night with the specific intent to commit a felony therein. When there is sufficient natural daylight to see the burglar's face, it is not considered nighttime.

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Burglary

(common law v. modern (majority) definition)

building/structure

Unlawful ~~breaking and~~ entry of another's ~~dwelling at night~~ with the specific intent to commit a ~~felony~~ therein.

crime

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In a jurisdiction that has abolished the felony-murder rule but otherwise follows the common law of murder, a husband and wife, both armed with automatic weapons, went into a bank to rob it. The husband ordered all the persons in the bank to lie on the floor. When some were slow to obey, the wife, not intending to hit anyone, fired about 15 rounds into the air. One of these ricocheted off a stone column and struck and killed a customer in the bank.

The husband and wife were charged with murder of the customer.

Which of the following is correct?

A. Both can be convicted of murder.

B. Neither can be guilty of murder, but both can be convicted of manslaughter based upon an unintentional homicide.

C. The wife can be convicted of murder, because she did the act of killing, but the husband cannot be convicted of either murder or manslaughter.

D. The wife can be convicted only of manslaughter, but the husband cannot be convicted of murder or manslaughter.

Explanation:

A defendant is guilty of common law murder if he/she unlawfully killed another with malice aforethought—ie:

intent to kill

intent to inflict serious bodily harm

reckless disregard of a **high risk of serious bodily injury or death** (ie, depraved-heart murder) *or*

intent to commit an inherently dangerous felony (ie, felony murder)—abolished in this jurisdiction.

And under **accomplice liability**, a person who **intentionally aided or encouraged** the defendant (principal) with the intent that the crime be completed can be convicted of (1) the **encouraged crime** and (2) **any crimes** that occurred as a **foreseeable consequence** of that crime.

Here, the wife committed murder when she recklessly disregarded the high risk to human life posed by shooting 15 rounds into the air inside the bank (malice aforethought) and killed a bank customer (unlawful killing). The husband is also guilty of murder as an accomplice because (1) he intentionally assisted his wife with the armed bank robbery and (2) the murder was foreseeable since they used automatic weapons **(Choice C)**.

(Choices B & D) The husband and wife may be guilty of involuntary manslaughter—an unintentional killing caused by an unlawful act or criminal negligence. But since the wife killed the customer with malice aforethought (recklessness) and the husband was her accomplice, they can be convicted of the more serious crime of murder.

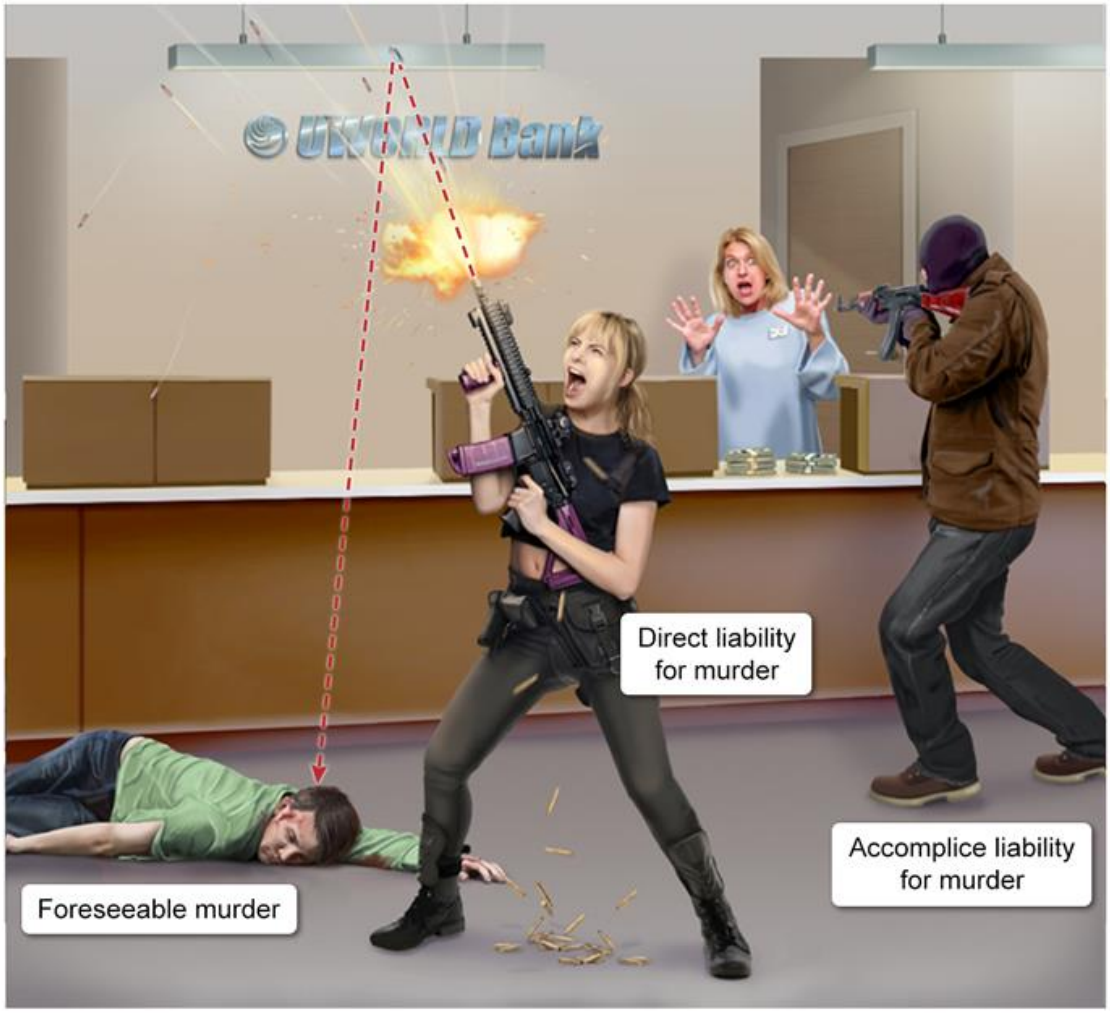
Educational objective:

Common law murder is an unlawful killing with malice aforethought (eg, depraved-heart murder). An accomplice—one who intentionally aided or encouraged another with the intent that the crime be completed—can be convicted of the encouraged crime *and* any crimes that occur as a foreseeable consequence thereof.

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Accomplice liability
(liable for assisted & foreseeable crimes**)**



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A babysitter, while working one night, noticed that her next-door neighbor had left his house but the door had not closed completely behind him. The babysitter said to the 11-year-old boy she was watching, "Let's play a game. You go next door and see if you can find my laptop, which I lent to my neighbor, and bring it over here." The babysitter knew that the neighbor had a laptop and the babysitter planned to keep the laptop for herself.

The boy thought the laptop belonged to the babysitter. He went next door, found the laptop, and carried it out the front door. At that moment, the neighbor returned home and discovered the boy in his front yard with the laptop. The boy explained the "game" he and the babysitter were playing. The neighbor then took back his laptop and called the police.

What is the most serious crime for which the babysitter can be convicted?

A. No crime, because the boy did not commit any crime.

B. Attempted larceny, because the babysitter never acquired possession of the laptop.

C. Larceny as an accomplice to the boy.

D. Larceny by the use of an innocent agent.

Explanation:

Parties to a crime

(modern & majority approach)

Party	Definition	Liability
Principal	Commits criminal act with requisite mens rea *or* Tricks or forces another (ie, innocent agent) to commit criminal act	Liable for resulting crime
Accomplice	Aids or encourages principal before or during crime with intent that principal commit crime	Liable to same extent as principal
Accessory after the fact	Knows principal has committed felony & helps principal avoid arrest or conviction	Liable for independent crime (not principal's)

Larceny occurs when there is a trespassory taking and carrying away of another's personal property (actus reus) with the specific intent to permanently deprive that person of the property (mens rea). A conviction can stem from either:

principal liability – when the actus reus is **committed by the defendant** OR a person acting on the defendant's behalf without the requisite mens rea (ie, **innocent agent**) *or*

accomplice liability – when the defendant **intentionally aids or encourages the principal** before or during a crime with the intent that the crime be completed (making both parties **equally liable** for the crime).

Here, the babysitter intended to steal the neighbor's laptop, but did not personally take it. Instead, she encouraged the boy to do so by prompting him to retrieve what he believed to be her laptop. His mistaken belief negated the necessary intent for larceny. Therefore, the boy did not commit larceny, and the babysitter cannot be convicted as his accomplice **(Choices A & C)**. But the babysitter can still be convicted as a principal since she used the boy (an innocent agent) to steal the laptop.

(Choice B) Attempt occurs when a defendant (1) has the specific intent to commit a crime, (2) commits an act in furtherance of that crime, but (3) does not complete it. Since the larceny was completed when the boy took the laptop on the babysitter's behalf, she will be convicted of the completed crime—not attempt.

Educational objective:

A defendant can be criminally liable if he/she (1) personally commits a crime or uses an innocent agent to do so (principal liability) or (2) intentionally aids or encourages the principal before or during a crime with the intent that the crime be completed (accomplice liability). But an accomplice is only liable to the same extent as the principal.

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A drug dealer agreed with another individual to purchase heroin from the individual in order to sell it on a city street corner. Unbeknownst to the drug dealer, the other individual was an undercover police officer whose only purpose was to arrest distributors of drugs. The drug dealer made a down payment for the heroin and agreed to pay the remainder after he sold it on the street. As soon as the undercover officer handed over the heroin, other officers moved in and arrested the dealer.

The jurisdiction follows the common law approach to conspiracy.

Could the dealer properly be convicted of conspiring to distribute drugs?

A. No, because there was no overt act.

B. No, because there was no plurality of agreement.

C. Yes, because neither an overt act nor plurality of agreement is required at common law.

D. Yes, because the dealer believed that all the elements of conspiracy were present and cannot take advantage of a mistake of fact or law.

Explanation:

Common law conspiracy is (1) an **agreement** between **two or more persons** to commit a crime that is (2) entered with the **specific intent** to accomplish that crime. This requires proof of at least two guilty minds (ie, plurality of agreement). As a result, a defendant **cannot be convicted** of this crime if the other alleged conspirators **feigned agreement**.

Here, the drug dealer and another individual agreed to purchase and distribute heroin. But since that individual was an undercover police officer whose only purpose was to arrest drug distributors (not to commit a crime), there was no plurality of agreement. As a result, the dealer cannot properly be convicted of conspiracy in this common law jurisdiction.

(Choices A & C) Although common law conspiracy requires plurality of agreement, it does not require an overt act—discernible evidence that a conspiracy is at work (eg, the dealer's payment for drugs).

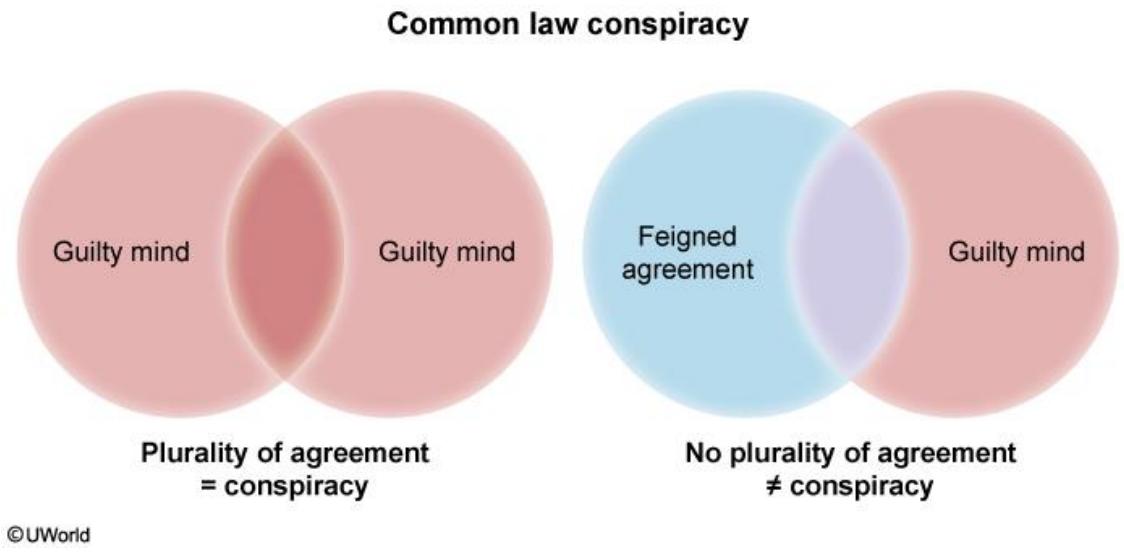
(Choice D) Mistake of law is rarely a defense to any crime. And mistake of fact is only a defense to conspiracy if that honest mistake *negates* the specific intent to commit a crime. Here, the dealer's mistaken belief that all elements of conspiracy were present would *support* that intent. But these defenses need not be considered since no conspiracy occurred.

Educational objective:

Common law conspiracy requires proof of at least two guilty minds (ie, plurality of agreement), so the defendant cannot be convicted of conspiring with persons who feigned agreement.

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A woman promised to pay $10,000 to a hit man if he would kill her neighbor in any manner that could not be traced to her. The hit man bought a gun and watched the neighbor's house for an opportunity to shoot him. One evening, unaware of the hit man's presence, the neighbor tripped as he was walking toward his house, falling and hitting his head against the front steps. Believing that the neighbor was unconscious, the hit man ran over to him and shot him twice in the chest.

When the woman learned of the neighbor's death, she paid the hit man $10,000. A medical examiner determined that the neighbor was already dead when the hit man shot him.

The crimes below are listed in descending order of seriousness.

What is the most serious crime of which the woman properly could be convicted?

A. Murder.

B. Attempted murder.

C. Conspiracy.

D. Solicitation.

Explanation:

Inchoate crimes

Attempt	Specific intent to commit crime & overt act committed in furtherance of target crime Merges with intended crime if completed
Conspiracy	Agreement entered with specific intent to commit crime & overt act committed in furtherance of agreement No merger
Solicitation	Inducing or encouraging another to commit crime with specific intent that crime be committed, but solicited party need not agree Merges with solicited crime if completed

Criminal liability is imposed equally upon:

principals – persons who **commit a criminal act** with the requisite mental state *and*

accomplices – persons who (1) intentionally **aid or encourage** the principal to commit a crime (2) with the specific intent that the principal complete that crime.

Both parties are **liable for the encouraged crime** and any crimes that occur as a **natural and probable** (ie, foreseeable) **consequence** of that crime.

Here, the woman became an accomplice when she promised to pay the hit man $10,000 to commit a murder—ie, an unlawful killing committed with malice aforethought. But even though the man shot the neighbor twice in the chest, neither the man nor the woman can be convicted of murder because the fall (not the shooting) caused the neighbor's death **(Choice A)**. However, they can be convicted of *attempted* murder since the shooting was an act committed in furtherance of the intended but unsuccessful murder.

(Choice C) The woman could be convicted of conspiracy—an agreement entered with the specific intent to commit a crime—even though the agreed-upon murder was not completed. But the conspiracy would also create accomplice liability for the more serious crime of attempted murder.

(Choice D) The woman committed solicitation (the least serious crime) when she requested that the hit man commit a murder with the specific intent that he do so. This request also established the woman's accomplice liability for attempted murder (a more serious crime).

Educational objective:

The principal commits a criminal act with the requisite mental state, while the accomplice intentionally aids or encourages the principal with the specific intent that the principal

complete that crime. Both are equally liable for the encouraged crime and its natural and probable consequences.

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A woman and her sister took a trip to the Caribbean. When they passed through U.S. Customs inspection upon their return, the customs officials found packages of cocaine stitched inside separate carry-on bags belonging to each of them. They were arrested. Upon separate questioning by customs officers, the woman broke down and cried, "I told my sister there were too many officers at this airport." The sister did not give a statement.

The woman and her sister were indicted for conspiracy to import cocaine. They were tried separately. At the woman's trial, after the government introduced the above evidence and rested its case, her lawyer moved for a judgment of acquittal on grounds of insufficient evidence.

Should the court grant the motion?

A. No, because the evidence shows that both the woman and her sister agreed to import cocaine.

B. No, because the evidence shows that both the woman and her sister possessed cocaine.

C. Yes, because the evidence shows only that the woman and her sister committed separate crimes of cocaine possession.

D. Yes, because the evidence shows that the woman effectively withdrew from the conspiracy when she cooperated by giving a statement.

Explanation:

Conspiracy

	Agreement	**Overt act**
Majority view (modern & MPC)	Unilateral approach – at least one person specifically intends to enter agreement	At least one conspirator must commit overt act
Minority view (common law)	Bilateral approach – two or more persons specifically intend to enter agreement	Not required

MPC = Model Penal Code.

Conspiracy requires proof that:

two or more persons **entered an agreement** (explicitly or implicitly) with the specific intent to commit a crime* *and*

in most jurisdictions, at least one conspirator committed an **overt act** in furtherance of that agreement.

Therefore, a court should grant a motion for acquittal if no rational trier of fact could find that the evidence, viewed in the light most favorable to the prosecution, establishes these elements beyond a reasonable doubt.

Here, there is no evidence of an *explicit* agreement (eg, express words). But a rational trier of fact could find evidence of an *implicit* agreement because (1) the statement that "I told my sister there were too many officers at this airport" and (2) the cocaine found inside the sisters' carry-on bags show their intent to jointly achieve a criminal objective—importing cocaine. Therefore, the court should deny the woman's motion for acquittal.

*Whether this jurisdiction follows the unilateral or bilateral approach to conspiracy is not stated. However, there is evidence that both women agreed and specifically intended to import cocaine, so either approach is satisfied under these facts.

(Choice B) Evidence that the sisters possessed cocaine also shows that they committed an overt act in furtherance of the conspiracy. But since an overt act is not an element of conspiracy in *every* jurisdiction, this is not the strongest basis for denying the woman's motion.

(Choice C) The evidence shows that the woman and her sister committed separate crimes of cocaine possession. But it also shows that they committed conspiracy—a distinct crime.

(Choice D) Withdrawal is only a defense to conspiracy after an overt act under the Model Penal Code, which requires that the defendant voluntarily renounce the conspiracy and

thwart its success. Here, the woman's statement to customs officers did not prevent the import of cocaine, so she did not withdraw.

Educational objective:

Conspiracy requires an agreement between two persons to commit a crime, but the agreement need not be express. It can be implied from conduct demonstrating an intent to jointly achieve a shared criminal objective.

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A jurisdiction has the following decisional law on questions of principal and accomplice liability:

CASE A: The defendant, a hardware store owner, sold several customers a device which detects police radar and enables speeders to avoid detection. When one of the devices broke down and the speeder was arrested, he confessed that he often sped, secure in the knowledge that the device would warn him of police radar in the vicinity. Held: The defendant is guilty as an accomplice to speeding.

CASE B: The defendant told a friend that the defendant had stored some stereo equipment in a self-storage locker. He gave the friend a key and asked her to pick up the equipment and deliver it to the defendant's house. The friend complied and removed the equipment from the locker using the key. In fact, the equipment belonged to the defendant's neighbor, whose locker key the defendant had found in the driveway. Held: The defendant is guilty as a principal to burglary.

CASE C: A city council member accepted a bribe from the defendant in exchange for his vote on the defendant's application for a zoning variance. A statute prohibits the taking of bribes by public officials. Held: The defendant is not guilty as an accomplice to the city council member's violation of the bribery statute.

CASE D: The defendant, an innkeeper, sometimes let his rooms to prostitutes whom he knew to be using the rooms to ply their trade. He charged the prostitutes the same price as other guests at his inn. Held: The defendant is not guilty as an accomplice to prostitution.

A college student purchased narcotics from a man whom the student believed to be a drug dealer but who was in fact an undercover police agent. The student has been charged as an accomplice to the sale of narcotics.

Should the student be convicted or acquitted of this crime?

A. Convicted on the authority of Case A.

B. Convicted on the authority of Case B.

C. Acquitted on the authority of Case C.

D. Acquitted on the authority of Case D.

Explanation:

Exclusions from accomplice liability

Member of protected class	Members of class criminal statute was designed to protect are immune from liability (eg, statutory rape)
Exempted necessary party	When crime requires multiple participants but criminal statute only imposes liability on one, others are immune from liability (eg, sale of narcotics)
Withdrawal	No liability if accomplice voluntarily withdraws before crime becomes unstoppable by: repudiating encouragement undoing or neutralizing assistance notifying authorities or otherwise preventing crime

A defendant can be convicted as an **accomplice** to a crime if he/she intentionally helped or encouraged the principal before or during the crime with the specific intent that the principal complete that crime. But a person who would otherwise be an accomplice is **exempt from liability** when:

the crime requires **more than one participant** (eg, bribery requires an offeror and recipient) *but*
the criminal **statute** only imposes **liability on one participant** (eg, only the recipient—not the offeror).

Here, a student purchased drugs and was charged as an accomplice to the sale of narcotics—an offense that requires two participants (a seller and a purchaser). But only a seller can be liable for the sale of narcotics, just as only an official can be liable for taking a bribe in Case C. Therefore, the student is exempt from accomplice liability and should be acquitted of this crime.

(Choice A) In Case A, a hardware store owner (accomplice) sold a device that helped speeders (principals) avoid detection. He was not exempt from accomplice liability since—unlike here—the law did not limit criminal liability to a certain participant.

(Choice B) Case B addresses the defendant's *principal* liability for a burglary carried out by an innocent agent (the friend)—a person who was tricked or forced into committing a criminal act. But this case is inapplicable here because the student was not a principal to the unlawful sale of narcotics—he was merely the buyer.

(Choice D) As Case D shows, mere knowledge that the principal intends to use a person's aid—particularly aid involving the *sale* of goods or services—to commit a crime does not make that person an accomplice. An accomplice must have some greater interest in the

commission of that crime (eg, selling at a higher price). Since the student *purchased* drugs, this authority does not apply.

Educational objective:

When a crime requires at least *two* participants but the criminal statute only imposes liability on *one* participant, all other participants are exempt from accomplice liability.

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A state statute provides as follows: "The maintenance of any ongoing enterprise in the nature of a betting parlor or bookmaking organization is a felony."

A prosecutor has evidence that a woman has been renting an office to a man, that the man has been using the office as a betting parlor within the meaning of the statute, and that the woman is aware of this use.

Which of the following additional pieces of evidence would be most useful to the prosecutor's effort to convict the woman as an accomplice to the man's violation of the statute?

A. The man has paid the woman the rent in bills that are traceable as the proceeds of gambling activity.
B. The woman charges the man considerably more in rent than she charged the preceding tenant, who used the office for legitimate activities.
C. The woman has personally placed bets with the man at the office location.
D. The woman was previously convicted of running a betting parlor herself on the same premises.

Explanation:

Exclusions from accomplice liability

Member of protected class	Members of class criminal statute was designed to protect are immune from liability (eg, statutory rape)
Exempted necessary party	When crime requires multiple participants but criminal statute only imposes liability on one, others are immune from liability (eg, sale of narcotics)
Withdrawal	No liability if accomplice voluntarily withdraws before crime becomes unstoppable by: repudiating encouragement undoing or neutralizing assistance notifying authorities or otherwise preventing crime

A person who aids or encourages another (ie, the principal) before or during a crime can only be convicted as an **accomplice** if those acts were **intended to further the principal's criminal aim**. Mere knowledge that the principal intends to commit a crime is not enough to prove the intent necessary for accomplice liability. But such **intent can be inferred** from evidence that the person has a **personal stake** in the commission of the crime.

Here, the woman knew that the man was using the office she rented to him as an illegal betting parlor. And her intent to aid or encourage his crime could be inferred from evidence that she personally benefits from his operation by charging him considerably higher rent than she charged the preceding tenant. Therefore, this evidence would be most useful to the prosecutor's effort to convict the woman as the man's accomplice.

(Choice A) Evidence that the man's rent payments are traceable to gambling activity would not show that the woman *intended* to further his crime.

(Choice C) Although maintaining a betting parlor requires more than one participant (operator and customer), the statute only imposes liability on one participant (operator). So evidence that the woman acted as a customer (an exempted necessary party) by placing bets at the office would exclude her from accomplice liability.

(Choice D) The woman's prior conviction of running a betting parlor on the same premises would be irrelevant since it would not show that she intended to help the man with *his* criminal enterprise.

Educational objective:

An accomplice must aid or encourage the principal with the *intent* to further the principal's criminal aim. Such intent can be inferred when the accomplice has a personal stake in the crime being committed.

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Nine gang members, including the gang leader, were indicted for the murder of a tenth gang member, who had become an informant. The gang leader pleaded guilty. At the trial of the other eight gang members, the state's evidence showed the following: The gang leader had announced a party to celebrate the release of a gang member from jail, but the party was not what it seemed. The gang leader had learned that the released gang member had earned his freedom by informing the authorities about the gang's criminal activities. The gang leader decided to use the party to let the other gang members see what happened to informants. He told no one about his plan. At the party, after everyone had consumed large amounts of liquor, the gang leader announced that the released gang member was an informant and stabbed him with a knife in front of the others. The eight other gang members watched and did nothing while the released gang member slowly bled to death. The jury found the eight gang members guilty of murder, and they appealed.

Should the appellate court uphold the convictions?

A. No, because mere presence at the scene of a crime is insufficient to make a person an accomplice.

B. No, because murder is a specific-intent crime, and there is insufficient evidence to show that the other gang members intended to kill.

C. Yes, because the gang members made no effort to save the informant after he had been stabbed.

D. Yes, because voluntary intoxication does not negate criminal responsibility.

Explanation:

Parties to a crime

Modern view	**Common law**	**Definition**	**Liability**
Principal	**Principal (first degree)**	Performs criminal act with requisite intent or uses innocent agent to commit criminal act	Target & foreseeable crimes
Accomplice	**Principal (second degree)**	Present at crime & aids/encourages principal with intent that principal commit crime	
	Accessory before the fact*	*Not* present at crime but aids/encourages principal with intent that principal commit crime	
Accessory after the fact		Knows principal has committed felony & helps principal avoid arrest or conviction	Independent crime

*Common law liability requires conviction of principal.

Accomplice liability extends to anyone who:

intentionally aided or encouraged the principal **before or during a crime** with the specific intent that the crime be completed.
However, **mere presence** at the scene of a crime does not amount to aid or encouragement and is therefore **insufficient** to make a person an accomplice.

Here, the gang leader committed murder—an unlawful killing with malice aforethought—when he stabbed the informant to death. And though eight other gang members watched while the informant bled to death, they are *not* guilty of murder since they did nothing—and mere presence at a crime scene does not establish accomplice liability. As a result, the appellate court should not uphold the gang members' murder convictions.

(Choice B) Murder does not require specific intent to kill since other forms of malice aforethought (eg, depraved heart) will suffice. But regardless, the gang members are not responsible for the murder since they did not aid or encourage the gang leader's crime.

(Choice C) Criminal liability can only arise from a failure to act (ie, omission) if the defendant had a legal duty to act and could have reasonably done so. And since the gang

members had no legal duty to save the informant, the fact that they made no effort to do so is irrelevant.

(Choice D) Voluntary intoxication *does* negate criminal responsibility for specific intent crimes when it prevents the defendant from forming the requisite mental state. But it does not matter whether the gang members were sober or intoxicated here since they were merely present (not responsible) for the murder.

Educational objective:

An accomplice is someone who (1) intentionally aids or encourages the principal before or during a crime (2) with the specific intent that the crime be completed. But mere presence at the scene of a crime does not make a person an accomplice.

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A businesswoman decided to destroy an old warehouse that she owned because the taxes on the structure exceeded the income that she could receive from it. She crept into the building in the middle of the night with a can of gasoline and a fuse and set the fuse timer for 30 minutes. She then left the building. The fuse failed to ignite, and the building was not harmed.

Arson is defined in this jurisdiction as "the intentional burning of any building or structure of another, without the consent of the owner." The businesswoman believed, however, that burning one's own building was arson, having been so advised by her lawyer.

Has the businesswoman committed attempted arson?

A. No, because even if her actions had every consequence she intended, they would not have constituted arson.

B. No, because her mistake negated a necessary mental state.

C. Yes, because a mistake of law even on the advice of an attorney is no defense.

D. Yes, because factual impossibility is no defense.

Explanation:

Defenses to attempt

Impossibility	Legal – intended act would not be criminal if completed
	Factual (no defense) – unknown condition prevents completion of intended crime
Abandonment	Majority/common law (no defense) – attempt complete once overt act committed
	Minority/MPC – voluntary & complete withdrawal from crime

MPC = Model Penal Code.

Attempt occurs when a person:

has the specific intent to commit a crime

performs an **act** in furtherance of the intended crime *but*

does not complete it.

Legal impossibility is a **defense to attempt** if the intended act would **not be criminal even if completed**. That is because it is no crime to commit an act that is not a crime.

Here, the businesswoman decided to burn down her warehouse (specific intent). She crept into the warehouse with a can of gasoline and a fuse, then set a fuse timer (acts). However, the fuse did not ignite (incomplete crime). But even if she had successfully burned *her* warehouse, this jurisdiction limits arson to the intentional burning of *another's* building. Therefore, her attempted act would not have been criminal even if completed (legal impossibility).

(Choice B) A defendant's honest but mistaken belief is a defense to specific intent crimes (eg, attempt) when that belief negates the specific intent (ie, mistake of fact). But since the businesswoman's mistaken belief did not prevent her from forming the specific intent to burn down her warehouse, it is not a defense here.

(Choice C) Mistake or ignorance of the law is almost never a defense to criminal liability—even when a person relies on the advice of an attorney. But the businesswoman did not commit attempted arson because her intended act (even if completed) would not amount to arson in this jurisdiction.

(Choice D) Factual impossibility arises when an unknown fact or circumstance prevents the defendant from completing the intended crime (eg, the malfunctioning fuse) and is *never* a defense to attempt. But legal impossibility (eg, burning one's building) is *always* a defense to attempt.

Educational objective:

Legal impossibility is a defense to attempt when a person's intended act would not constitute a crime if completed.

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While on their way home from a ball game, a driver and his passenger stopped at an all-night gas station. The passenger offered to pay for the gas. While the passenger pumped gas, he was surprised to see the driver enter the station, take money from the unattended cash drawer, and get back in the car. The passenger paid the attendant for the gas, and the driver drove off. The driver offered to reimburse the passenger for the gas, but the passenger declined. After discovering the missing cash, the gas station attendant called the police, and the driver was later stopped. The driver escaped with the stolen money, however, and was never prosecuted.

If the passenger is prosecuted for theft as an accomplice, should he be convicted?

A. No, because he had no intent to promote the commission of the offense.

B. No, because the driver, the principal, was never prosecuted.

C. Yes, because he facilitated commission of the offense by failing to make any effort to stop it.

D. Yes, because he paid the attendant while he knew the driver was holding the stolen money.

Explanation:

Parties to a crime

(modern & majority approach)

Party	Definition	Liability
Principal	Commits criminal act with requisite mens rea *or* Tricks or forces another (ie, innocent agent) to commit criminal act	Liable for resulting crime
Accomplice	Aids or encourages principal before or during crime with intent that principal commit crime	Liable to same extent as principal
Accessory after the fact	Knows principal has committed felony & helps principal avoid arrest or conviction	Liable for independent crime (not principal's)

An **accomplice** is someone who (1) **intentionally aids or encourages** another (the principal) before or during a crime (2) with the **intent that the crime be completed**—making both parties **equally liable** for the crime. Since the passenger was surprised to see the driver steal the money and had no intent to help the driver do so, the passenger should not be convicted of theft as an accomplice.

(Choice B) In most jurisdictions, an accomplice can be convicted of a crime even if the principal was never prosecuted for (or convicted of) the crime. Therefore, the fact that the driver (principal) was never prosecuted does not preclude the passenger's conviction. Nevertheless, the passenger should not be convicted of theft as an accomplice because he did not intend to help the driver complete the crime.

(Choices C & D) Although the passenger made no effort to stop the driver's theft and paid the attendant while knowing that the driver had taken the money, neither of these facts shows that the passenger had the mental state necessary to trigger accomplice liability (ie, that he intended to promote the theft).

Educational objective:

Accomplice liability arises when a person (1) intentionally aids or encourages the principal before or during a crime (2) with the intent that the crime be completed. Both parties are then equally liable for the crime.

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An artist facing financial difficulty asked her friend, who worked as a security guard in an art museum, to help her by leaving the museum's warehouse unlocked so she could steal paintings and replace them with forgeries. The artist said she would reward the friend with half of her profits. The friend said that he agreed, but in fact he did not have access to the museum's warehouse and did not intend to leave the warehouse unlocked. Later that day, he informed the police of her plans. The artist was arrested immediately.

The applicable jurisdiction follows the common law for all relevant rules.

Which of the following crimes has the artist committed?

A. Attempted larceny.

B. Bribery.

C. Conspiracy.

D. Solicitation.

Explanation:

Defenses unique to solicitation

Impossibility	Legal – when solicited act would not be criminal if completed Factual – no defense
Withdrawal / Renunciation	Majority/common law – no defense Minority/MPC – when solicitor voluntarily renounces & thwarts commission of solicited crime
Exemption from solicited crime	Not guilty of solicited crime if legislature intended to protect solicitor

MPC = Model Penal Code.

Solicitation is an inchoate crime that occurs when a person:

entices, encourages, requests, or commands another to commit a crime (eg, requests another to act as an accomplice to larceny)
with the **specific intent** that the solicited **crime be committed**.
Solicitation is complete once these elements are met. This is true regardless of whether the solicited party agrees to commit the crime or takes any step toward doing so. As a result, **factual impossibility**—eg, the solicited party's inability or lack of intent to commit the offense—is **not a defense**.

Here, the crime of solicitation was committed the moment the artist asked the friend to help her commit larceny. Therefore, the artist committed solicitation even though the friend did not have the ability or intent to open the warehouse or leave it unlocked.

(Choice A) Attempt occurs when the defendant (1) had the specific intent to commit a crime, (2) performed an act in furtherance of the crime, but (3) did not complete it. Under the common law dangerous-proximity test, the act must bring the defendant sufficiently close to completing the crime. But here, the artist was arrested before she could take an action that brought her close to stealing the paintings.

(Choice B) Common law bribery is the corrupt payment of something of value for the purpose of influencing the action of a *public official* in the discharge of his/her public or legal duties. A security guard is not a public official, so the artist did not commit bribery.

(Choice C) The common law, bilateral approach to conspiracy requires proof of at least *two* guilty minds. As a result, a defendant could not be convicted if the other conspirator feigned agreement (as seen here).

Educational objective:

Solicitation is complete once a person (1) entices, encourages, requests, or commands another to commit a crime (2) with the specific intent that the solicited crime be committed. Factual impossibility is not a defense to solicitation.

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A man was charged with felony murder because of his involvement in a bank robbery. The evidence at trial disclosed that a coworker invited the man to go for a ride in her new car, and after a while asked him to drive. As they drove around town, the coworker explained to the man that she planned to rob the bank and that she needed him to drive the getaway car. The man agreed to drive to the bank and to wait outside while the coworker went in to rob it.

As they approached the bank, the man began to regret his agreement to help with the robbery. Once there, the coworker got out of the car. As she went out of sight inside the bank, the man drove away and went home. Inside the bank, the coworker killed a bank guard who tried to prevent her from leaving with the money. The coworker ran outside and, finding that her car and the man were gone, ran down an alley. She was apprehended a few blocks away. The man later turned himself in after hearing on the radio that the coworker had killed the guard.

The jurisdiction has a death penalty that applies to felony murder.

Consistent with the law and the Constitution, of which crime may the jury convict the man?

A. Felony murder and impose the death penalty.

B. Felony murder but not impose the death penalty.

C. Bank robbery only.

D. No crime.

Explanation:

Accomplice liability extends to any person who (1) intentionally aids or encourages the principal before or during a crime (2) with the specific intent that the crime be completed. Both parties are equally liable for the **encouraged crime** and any crimes that occur as a **natural and probable** (ie, foreseeable) **consequence** of that crime.

Here, the man became an accomplice when he drove his coworker to the bank so that she could rob it. The man then fled the crime scene and did not encourage the commission of felony murder—the killing of another during the commission, or attempted commission, of an inherently dangerous felony like robbery. But he is guilty of felony murder since the coworker killed a bank guard who tried to prevent her from taking the money—a foreseeable consequence of robbery **(Choice D)**.

However, due to the Eighth Amendment prohibition against cruel and unusual punishment, the **death penalty cannot be imposed** on an **accomplice to felony murder** who did not kill or intend to kill—**unless** the accomplice **significantly participated in the underlying felony** and acted with **reckless indifference to human life**. And since the man merely dropped the coworker off at the bank, he did not significantly participate in the robbery. Therefore, the jury may convict him of felony murder but *cannot* impose the death penalty **(Choice A)**.

(Choice C) In felony murder cases, the underlying felony is a lesser included offense that merges into the crime of felony murder. Therefore, a defendant can be convicted of either offense—but not both. So, though the man could be convicted of bank robbery (lesser offense), he will likely be convicted of felony murder (greater offense) instead.

Educational objective:

The death penalty cannot be imposed on an accomplice to felony murder who did not kill or intend to kill—unless the accomplice (1) significantly participated in the felony and (2) acted with reckless indifference to human life.

References

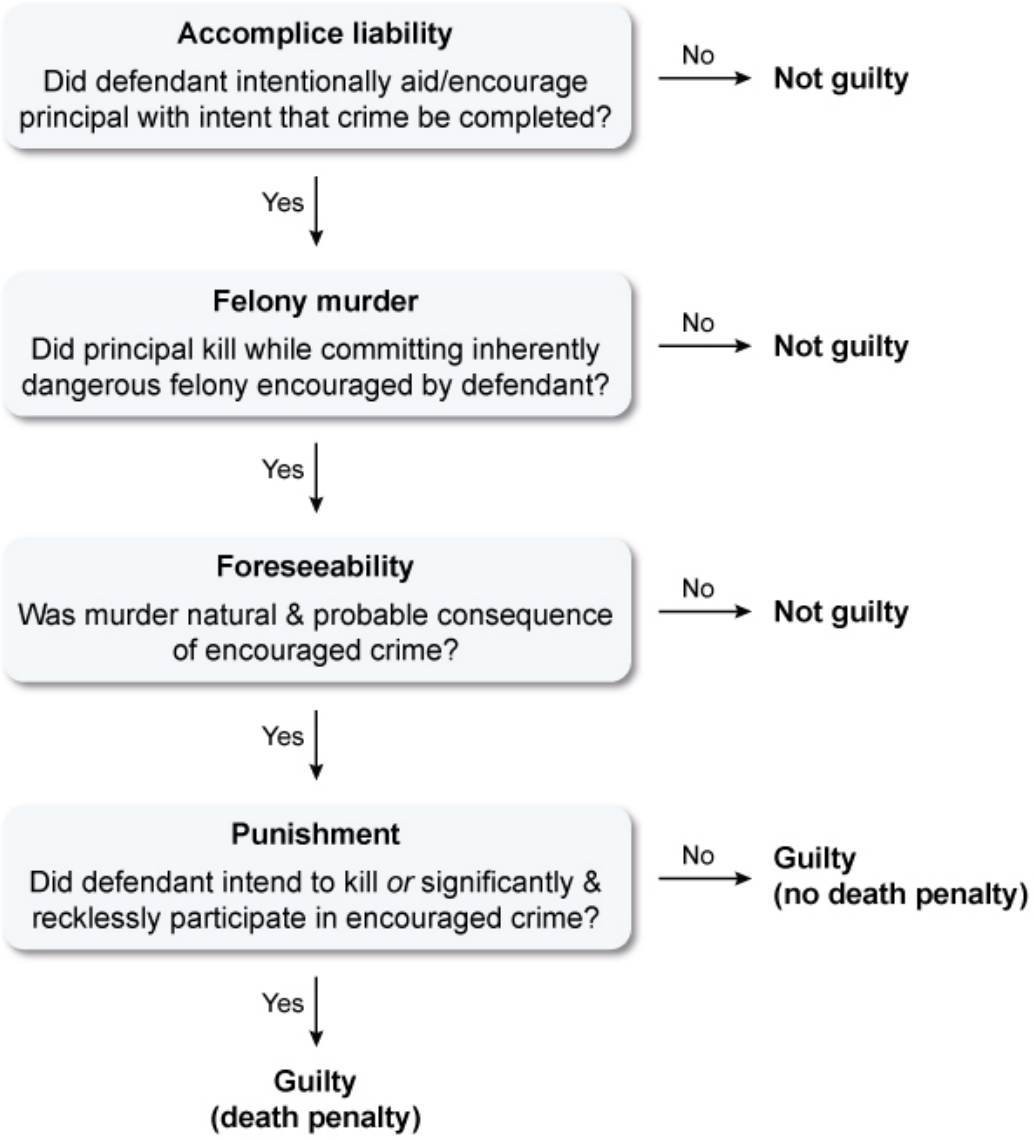
Enmund v. Florida, 458 U.S. 782, 790–91 (1982) (holding that the death penalty cannot be imposed on a felony-murder accomplice who did not kill or intend to kill).

Tison v. Arizona, 481 U.S. 137, 158 (1987) (imposing the death penalty on a felony-murder accomplice who was a major participant in the underlying felony and acted with reckless indifference to human life).

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Accomplice liability & punishment for felony murder



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A man asked his girlfriend to lend him something he could use to break into his neighbor's padlocked storage shed in order to steal a lawn mower. She handed him a crowbar. He took the crowbar but then found a bolt cutter that the neighbor had left outside the shed. Using the bolt cutter, he cut the padlock on the shed and took the mower, which he then used to mow his girlfriend's lawn. She was surprised and pleased by this gesture.

Burglary in the jurisdiction applies to any structure or building, and there is no nighttime element. The girlfriend has been charged as an accomplice to burglary and larceny.

Of which crimes, if any, is she guilty?

A. Burglary and larceny.

B. Burglary, but not larceny, because she intended to assist only in the breaking.

C. Larceny, but not burglary, because she provided no actual assistance to the breaking but received a benefit from the larceny.

D. Neither burglary nor larceny, because she provided no actual assistance.

Explanation:

Parties to a crime

(modern & majority approach)

Party	Definition	Liability
Principal	Commits criminal act with requisite mens rea *or* Tricks or forces another (ie, innocent agent) to commit criminal act	Liable for resulting crime
Accomplice	Aids or encourages principal before or during crime with intent that principal commit crime	Liable to same extent as principal
Accessory after the fact	Knows principal has committed felony & helps principal avoid arrest or conviction	Liable for independent crime (not principal's)

Accomplice liability arises when a person:

intentionally aids or encourages another (ie, the principal) before or during a crime with the specific intent that the encouraged crime be completed.

Slight aid or encouragement will suffice, even when such assistance is **not necessary to complete the crime**. And an accomplice is liable to the same extent as the principal for the encouraged crime and any crimes that occur as a natural and probable (ie, foreseeable) consequence of that crime.

This jurisdiction (like most others) defines burglary as the unlawful entry of a structure or building with the intent to commit a crime (eg, larceny) therein. Therefore, the girlfriend aided the man with the intent that he commit both burglary *and* larceny by breaking into the neighbor's shed and stealing a lawn mower **(Choices B & C)**. Therefore, the girlfriend is guilty of both burglary *and* larceny.

(Choice D) Although the man ultimately used a bolt cutter instead of the girlfriend's crowbar to accomplish the burglary and larceny, she still provided the aid necessary to be guilty as an accomplice. This is because only slight aid or encouragement is required for accomplice liability.

Educational objective:

Accomplice liability is imposed when a person provides even *slight* aid or encouragement to the principal with the specific intent that the encouraged crime be completed—even when that assistance is not necessary to complete the crime.

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The police had been tracking a businessman who used his fast-food chain as a front for selling cocaine. The cocaine was produced by a chemist in a lab hidden inside the factory where the fast food was made. The cocaine was then shipped along with the food to a fast-food restaurant, where the manager of the restaurant would divide the cocaine up into smaller quantities for sale to individual customers. Due to the large-scale operations, the businessman, the chemist, and the manager did not know one another. One day, an undercover police officer came to the restaurant and purchased cocaine from the manager. Upon completion of the transaction, the manager was arrested for conspiracy to sell cocaine.

Is the manager likely guilty of conspiracy to sell cocaine?

A. No, because the manager, the businessman, and the chemist did not know one another.
B. No, because there was no agreement between the manager, the businessman, and the chemist to sell cocaine.
C. Yes, because the manager, the businessman, and the chemist had the general intent to sell cocaine.
D. Yes, because there was a community of interest between the manager, the businessman, and the chemist to sell cocaine.

Explanation:

Conspiracy, at its core, is an **agreement** between two or more persons to commit a crime. A **conspiracy** can exist among **individuals who do not know each other** if there is a **community of interest** in achieving the objective of the conspiracy. A community of interest is usually established through a **chain relationship** where each alleged conspirator played a role or served as a link in the chain in reaching the conspiracy's objective.

Here, the businessman, the chemist, and the manager did not know each other. However, they each played a role in reaching the objective of the conspiracy—selling cocaine. The businessman owned the fast-food chain used as a front for selling cocaine, the chemist produced the cocaine, and the manager divided it for individual sale. Due to this community of interest, the manager is likely guilty of conspiracy **(Choice A)**.

(Choice B) For a conspiracy, an agreement need not be specifically articulated (eg, verbally or in writing). It can be inferred from the concerted actions of the alleged conspirators (as seen here).

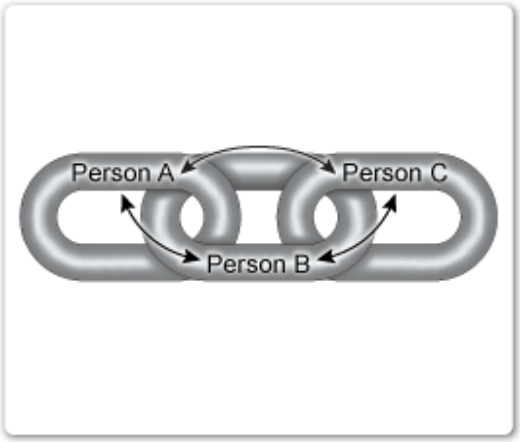
(Choice C) Conspiracy requires the specific intent (not general intent) to agree to and to achieve the criminal objective.

Educational objective:

A conspiracy can exist among individuals who do not know each other when there is a community of interest in the achievement of the objective of the conspiracy. A community of interest typically exists when each alleged conspirator plays a role in reaching that objective.

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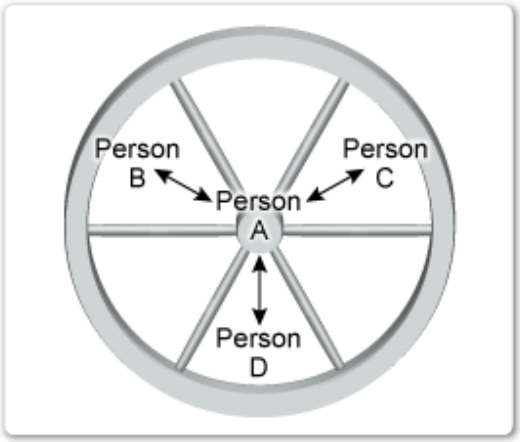
Chain conspiracy



Conspirators liable for actions of coconspirators

V.

Hub & spoke conspiracy



Spoke conspirators *not* liable for actions of other spoke conspirators

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A boyfriend approached a hitman and inquired about hiring someone to kill his girlfriend's parents. Unknown to the boyfriend, the hitman was an undercover police officer who pretended to agree to handle the job and secretly taped subsequent conversations with the boyfriend concerning plans and payment.

A few days before the payment was due, the boyfriend changed his mind and called the plan off. Nevertheless, the boyfriend was charged with solicitation to commit murder.

Should the boyfriend be acquitted or convicted of solicitation, as defined at common law?

A. Acquitted, because he withdrew before payment and commission of the act.

B. Acquitted, because no substantial acts were performed.

C. Convicted, because the "hitman" agreed to commit the offense.

D. Convicted, because the offense was completed before his attempt to withdraw.

Explanation:

Defenses unique to solicitation

Impossibility	Legal – when solicited act would not be criminal if completed Factual – no defense
Withdrawal / Renunciation	Majority/common law – no defense Minority/MPC – when solicitor voluntarily renounces & thwarts commission of solicited crime
Exemption from solicited crime	Not guilty of solicited crime if legislature intended to protect solicitor

MPC = Model Penal Code.

Solicitation is an inchoate crime that occurs when a person (1) **entices or encourages** another to commit a crime (2) with the **specific intent** that the solicited **crime be committed**. Solicitation is completed—regardless of whether the solicited party agrees to commit the crime or takes any step toward doing so—once these elements are met. Therefore, a complete and voluntary renunciation of one's criminal purpose (ie, **withdrawal**) is **no defense** to solicitation in common law (and most other) jurisdictions.

Here, the boyfriend's solicitation was complete the moment he inquired about hiring someone to kill his girlfriend's parents—regardless of whether the "hitman" agreed to handle the job **(Choice C)**. And though the boyfriend later changed his mind and called off the plan before the hitman had been paid or committed the murder, withdrawal is no defense **(Choice A)**. As a result, the boyfriend should be convicted of solicitation to commit murder.

(Choice B) Solicitation does not require a substantial act. Instead, this offense is complete the moment a person entices or encourages another to commit a crime with the requisite intent.

Educational objective:

Solicitation is complete once a person entices or encourages another to commit a crime with the specific intent that the crime be committed. And at common law (and in most jurisdictions), withdrawal is no defense.

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A hair technician agreed to implant synthetic hair into the scalp of her customer. The customer explained to the hair technician that he often broke into people's houses to take jewelry and that he wanted to avoid leaving his own hair at the scene as incriminating evidence. The technician, knowing that a great deal of the synthetic hair would fall out due to implant rejection, that the strands would still have the customer's DNA at the root, and that the procedure would be no help at all in hiding forensic evidence, said nothing. The technician completed the procedure and charged her regular hourly rate. The next night, the customer broke into a house and stole a diamond ring. He later was convicted of burglary based on hair evidence he left behind.

The jurisdiction follows the Model Penal Code rule regarding accomplice liability.

Should the hair technician be convicted of burglary as an accomplice?

A. No, because she did not break into the house and steal the ring.

B. No, because she did not have the requisite intent for accomplice liability.

C. Yes, because she failed to notify legal authorities in a timely manner.

D. Yes, because she knew that the customer broke into houses regularly.

Explanation:

Parties to a crime

Modern view	**Common law**	**Definition**	**Liability**
Principal	**Principal (first degree)**	Performs criminal act with requisite intent or uses innocent agent to commit criminal act	Target & foreseeable crimes
Accomplice	**Principal (second degree)**	Present at crime & aids/encourages principal with intent that principal commit crime	
	Accessory before the fact*	*Not* present at crime but aids/encourages principal with intent that principal commit crime	
Accessory after the fact		Knows principal has committed felony & helps principal avoid arrest or conviction	Independent crime

*Common law liability requires conviction of principal.

An **accomplice** (i.e., accessory) to a crime is **fully liable** for the principal's conduct. But in most jurisdictions and under the Model Penal Code, accomplice liability will only be imposed if the accomplice has a **dual intent**:

the specific intent to **aid or encourage the principal** before or during the crime *and*
the specific intent that the **principal commit the crime**.
Mere knowledge that another person intends to commit a crime is not enough to impose accomplice liability.

Here, the hair technician implanted synthetic hair into her customer's scalp. After the procedure, the customer was convicted of burglary for breaking into a house and stealing a ring. But even though the hair technician knew that the customer broke into houses regularly, there is no indication that she had the specific intent to aid or encourage the customer or the specific intent that he commit the crime **(Choice D)**. And since the hair technician did not have the requisite intent for accomplice liability, she should not be convicted of burglary as an accomplice.

(Choice A) The fact that the hair technician did not break into the house and steal the ring means that she cannot be convicted of burglary as a *principal*. But she could have been convicted as an *accomplice* had she possessed the requisite intent (not seen here).

(Choice C) The hair technician had no duty to notify legal authorities in a timely manner that the customer often broke into people's houses to take jewelry. Therefore, she cannot be convicted of burglary as an accomplice for failing to do so.

Educational objective:

In most jurisdictions and under the Model Penal Code, a conviction based on accomplice liability requires proof that a person (1) intentionally aided or encouraged the principal before or during the crime and (2) intended that the principal commit the crime. Mere knowledge that another person intends to commit a crime is not enough.

References

Model Penal Code § 2.06(3) (defining accomplice liability).

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A man and a woman were partners in an automobile leasing agency. For some time, the man had been embezzling money from the agency. The woman became suspicious and told the man that she wanted to engage an accounting firm to audit the agency's books. In a panic to prevent the audit and avoid being discovered, the man decided to have the woman killed. He contacted a professional killer and hired him to kill the woman for $10,000. A short time later, the woman died in a car crash arranged by the killer.

In addition to embezzlement, of what crime or crimes may the man properly be convicted?

A. Conspiracy and murder.

B. Murder.

C. Solicitation and conspiracy.

D. Solicitation, conspiracy, and murder.

Explanation:

A person who unlawfully kills another with malice aforethought is principally liable for murder. But a person who did *not* commit that killing is **equally liable** for murder if he/she acted as an **accomplice** by (1) intentionally aiding or encouraging the principal before or during the crime (2) with the specific intent that the crime be completed. As a result, a person can become an accomplice when he/she **commits** either:

solicitation – by inducing or encouraging another to commit a crime with the specific intent that the crime be committed *or*

conspiracy – by entering an agreement with the specific intent to commit a crime and, in most jurisdictions, at least one conspirator committing an overt act in furtherance of that agreement.

Here, the man committed solicitation *and* conspiracy when he contacted and hired a professional killer to kill the woman—subjecting the man to accomplice liability. And since the killer successfully arranged the deadly car crash pursuant to their agreement, the man can be convicted of murder **(Choice B)**. And though he cannot be convicted of solicitation since it *merges* with the solicited crime once completed **(Choices C & D)**, he can still be convicted of conspiracy since it remains a *separate* offense.

Educational objective:

A defendant who commits solicitation or conspiracy is often subject to accomplice liability for the encouraged crime. And if the encouraged crime is completed, the defendant can be convicted of the completed crime and conspiracy—but not solicitation since it merges with the completed crime.

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Merger of inchoate & completed crimes



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An 18-year-old student and his 14-year-old girlfriend made plans to meet in the student's apartment to have sexual intercourse, and they did so. The girlfriend later told her mother about the incident.

The student was charged with statutory rape and conspiracy to commit statutory rape. In the jurisdiction, the age of consent is 15, and the law of conspiracy is the same as at common law. The student was convicted of both charges and given consecutive sentences.

On appeal, he contends that his conspiracy conviction should be reversed.

Should the student's conviction be affirmed or reversed?

A. Affirmed, because he agreed with the girlfriend to commit the crime.

B. Reversed, because one cannot conspire with a person too young to consent.

C. Reversed, because the crime is one that can only be committed by agreement and thus Wharton's Rule bars conspiracy liability.

D. Reversed, because the girlfriend could not be a conspirator to this crime.

Explanation:

Conspiracy

	Agreement	**Overt act**
Majority view (modern & MPC)	Unilateral approach – at least one person specifically intends to enter agreement	At least one conspirator must commit overt act
Minority view (common law)	Bilateral approach – two or more persons specifically intend to enter agreement	Not required

MPC = Model Penal Code.

Common law jurisdictions follow the **bilateral theory of conspiracy**, which requires proof that two or more persons entered an agreement with the specific intent to accomplish a criminal act. In other words, there must be **at least two guilty minds**—the defendant and another conspirator. But when the agreed-upon act was **criminalized to protect** a certain class of persons, **members of that class** cannot supply a guilty mind. As a result, these protected persons **cannot be convicted** of the target crime or conspiracy to commit it.

Here, the 18-year-old student was convicted of conspiracy to commit statutory rape after he and his 14-year-old girlfriend agreed to have sexual intercourse. And though the student likely had a guilty mind since he specifically intended to commit this crime, the girlfriend could not supply the other guilty mind. That is because this jurisdiction's statutory-rape law is designed to protect persons under 15 years old—like the girlfriend **(Choice A)**. As a result, there was no conspiracy and the student's conviction should be reversed.

(Choice B) A victim's consent is not a defense to conspiracy (or statutory rape) since consent does not negate an element of either crime. And regardless, persons can conspire with anyone who has the capacity to consent (ie, make reasonable judgments). So though the girlfriend was not too young to enter a conspiracy, she could not do so here because she is the type of person the statute was designed to protect.

(Choice C) Wharton's Rule bars liability for conspiracy to commit a crime that requires at least two culpable parties (eg, dueling, adultery, bigamy) and the crime is completed by only the necessary number of parties. But this rule does not apply here since the girlfriend cannot be culpable under the statutory-rape statute.

Educational objective:

Common law conspiracy requires proof that at least two persons entered an agreement with the specific intent to accomplish a criminal act (ie, bilateral theory). But when the

conspired act violates a statute designed to protect members of a given class, a member of that class cannot be guilty of the criminal act or conspiracy to commit it.

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A girl told an 18-year-old boy she would like to have sexual intercourse with him and that he should come to her apartment that night at 7 p.m. After the boy arrived, he and the girl went into the bedroom. As the boy started to remove the girl's blouse, she said she had changed her mind. The boy tried to convince her to have intercourse with him, but after ten minutes of her sustained refusals, he left the apartment. Unknown to the boy, the girl was 15 years old. Because she appeared to be older, the boy believed her to be about 18 years old.

A statute in the jurisdiction provides: "A person commits rape in the second degree if he has sexual intercourse with a girl, not his wife, who is under the age of 16 years."

If the boy is charged with attempting to violate this statute, what is the proper verdict?

A. Guilty, because he persisted after she told him she had changed her mind.

B. Guilty, because no mental state is required as to the element of age.

C. Not guilty, because he did not intend to have intercourse with a girl under the age of 16.

D. Not guilty, because he reasonably believed she had consented and voluntarily withdrew after she told him she had changed her mind.

Explanation:

Attempt is an inchoate crime that occurs when the defendant:

has the specific intent to commit a crime

performs an act in furtherance of the intended crime *but*

does not complete it.

Therefore, an attempt to violate this jurisdiction's criminal statute requires proof that the defendant specifically intended to have sexual intercourse with a girl under 16 years of age. This is true **even when** the ***target*** **crime** (statutory rape) is a **strict liability offense** that does not require proof of a particular mental state as to the element of age **(Choice B)**.

Here, the boy tried to convince the 15-year-old girl to have sexual intercourse with him. But he did not intend to have intercourse with a girl under the age of 16 since the girl appeared to be older and the boy believed her to be about 18 years old. As a result, he should be found *not* guilty of attempting to violate the statute.

(Choice A) Had the boy possessed the requisite intent for attempt, his persistent efforts to convince the girl to have intercourse with him may have satisfied the act requirement. But since the boy lacked such intent, he should not be convicted of attempt.

(Choice D) Consent is not an element of statutory rape or attempt, so the boy's reasonable belief that the girl had consented is irrelevant. And since attempt is complete once the act is committed, abandonment is no defense. Therefore, the fact that the boy voluntarily left the girl's apartment after she changed her mind would not absolve him of liability.

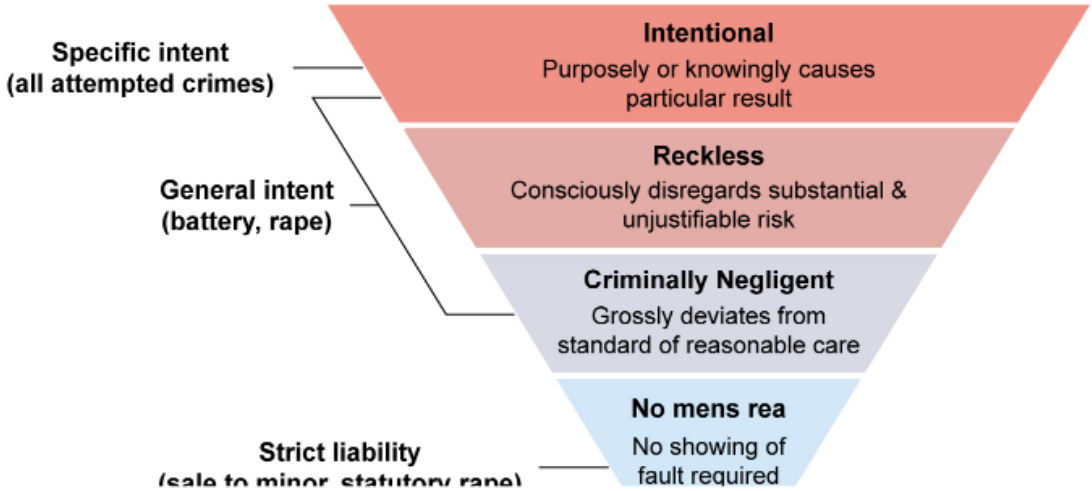
Educational objective:

Attempt always requires proof that the defendant specifically intended to commit a crime—even if the target crime does not require specific intent (eg, statutory rape).

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Types of mens rea



A foreign diplomat discovered that a small person could enter a particular jewelry store by crawling through an air vent. The diplomat befriended a woman he met in a bar who he believed was small enough to crawl through the air vent. Without telling her that he was a diplomat, he explained how she could get into the jewelry store. She agreed to help him burglarize the store. Someone overheard their conversation and reported it to the police. Shortly thereafter, the police arrested the diplomat and the woman. Both were charged with conspiracy to commit burglary.

Before trial, the diplomat moved to dismiss the charge against him on the ground that he was entitled to diplomatic immunity. The court granted his motion. The woman then moved to dismiss the conspiracy charge against her. The jurisdiction has adopted the Model Penal Code version of conspiracy.

Should the court grant the woman's motion to dismiss the conspiracy charge against her?

A. No, because the diplomat's defense does not negate any element of the crime.

B. No, because the woman was not aware of the diplomat's status.

C. Yes, because a conspiracy requires two guilty participants.

D. Yes, because but for the diplomat's conduct, no conspiracy would have occurred.

Explanation:

Conspiracy

	Agreement	**Overt act**
Majority view (modern & MPC)	Unilateral approach – at least one person specifically intends to enter agreement	At least one conspirator must commit overt act
Minority view (common law)	Bilateral approach – two or more persons specifically intend to enter agreement	Not required

MPC = Model Penal Code.

Under the **Model Penal Code** (MPC) and in most jurisdictions, **conspiracy** requires proof that:

a person entered into an **agreement** to commit a crime with the **specific intent to commit that crime** *and*

one of the conspirators committed an overt act in furtherance of that agreement.

This definition of conspiracy departs from the traditional view that there must be at least *two* guilty parties to form a conspiracy. As a result, another conspirator's guilt (or lack thereof) has no effect on the defendant's liability.

Here, the diplomat and the woman were charged with conspiracy after they agreed to burglarize a jewelry store. The conspiracy charge against the diplomat was dismissed due to his diplomatic immunity. But the diplomat's immunity defense does not affect the woman's liability for conspiracy since this MPC jurisdiction only requires proof of *one* guilty participant **(Choice C)**. As a result, her motion to dismiss this charge should be denied.

(Choice B) The woman's awareness of the diplomat's status has no bearing on her liability for conspiracy.

(Choice D) Although the diplomat's conduct was a but-for cause of the conspiracy, his actions do not excuse the woman's criminal liability. Instead, those actions support her conviction since they satisfy the overt act requirement.

Educational objective:

Under the Model Penal Code (MPC), conspiracy occurs when (1) a person enters into an agreement with the specific intent to commit a crime and (2) any conspirator commits an overt act in furtherance of that agreement. Therefore, the MPC only requires proof of *one* guilty participant.

References

Model Penal Code § 5.03 (Am. Law Inst. 2019) (criminal conspiracy).

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A youth and two of his friends were members of a teenage street gang. While they were returning from a club late one evening, their car collided with a car driven by an elderly woman. After an argument, the youth attacked the elderly woman with his fists and beat her to death. The youth's two friends watched, and when they saw the woman fall to the ground, they urged him to flee.

The youth was eventually apprehended and tried for manslaughter, but the jury could not decide on a verdict.

If the youth's companions are subsequently tried as accomplices to manslaughter, should they be acquitted or convicted?

A. Acquitted, because the youth was not convicted of the offense.

B. Acquitted, because they did not assist or encourage the youth to commit the crime.

C. Convicted, because they made no effort to intervene.

D. Convicted, because they urged him to flee.

Explanation:

Parties to a crime

Modern view	**Common law**	**Definition**	**Liability**
Principal	**Principal (first degree)**	Performs criminal act with requisite intent or uses innocent agent to commit criminal act	Target & foreseeable crimes
Accomplice	**Principal (second degree)**	Present at crime & aids/encourages principal with intent that principal commit crime	
	Accessory before the fact*	*Not* present at crime but aids/encourages principal with intent that principal commit crime	
Accessory after the fact		Knows principal has committed felony & helps principal avoid arrest or conviction	Independent crime

*Common law liability requires conviction of principal.

A person becomes an **accomplice** by (1) **intentionally aiding or encouraging** another (ie, the principal) **before or during a crime** (2) with the specific intent that the crime be completed. But **mere presence** at the scene of a crime does not amount to aid or encouragement and is therefore **insufficient** to make a person an accomplice.

Here, the friends were tried as accomplices to manslaughter after the youth beat the elderly woman to death in front of them. Although the friends urged the youth to flee *after* the beating was over, they did not aid or encourage the youth *before or during* this crime—they only watched. And since mere presence at a crime scene does not establish accomplice liability, the friends should be acquitted.

(Choice A) In most jurisdictions, an accomplice can be convicted even if the principal was never tried for, or convicted of, the aided/encouraged crime. So, the fact that the youth (principal) was never convicted does not immunize the friends. But they should be acquitted since they did not aid or encourage the youth's crime.

(Choice C) Criminal liability only arises from a failure to act (ie, omission) if a person had a legal duty to act and could have reasonably done so. Since the friends were mere

bystanders with no duty to intervene on the woman's behalf, the fact that they made no effort to do so is irrelevant.

(Choice D) Persons who aid a principal *after* a crime has been completed (ie, accessories after the fact) are liable for a separate offense (eg, harboring a fugitive)—not the offense committed by the principal (eg, manslaughter). And merely urging the youth to flee is not sufficient post-crime assistance to establish such liability.

Educational objective:

An accomplice intentionally aids or encourages the principal before or during a crime with the specific intent that the crime be completed. But mere presence at a crime scene does not make a person an accomplice.

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A jurisdiction has the following decisional law on questions of principal and accomplice liability:

CASE A: The defendant, a hardware store owner, sold several customers a device which detects police radar and enables speeders to avoid detection. When one of the devices broke down and the speeder was arrested, he confessed that he often sped, secure in the knowledge that the device would warn him of police radar in the vicinity. Held: The defendant is guilty as an accomplice to speeding.

CASE B: The defendant told a friend that the defendant had stored some stereo equipment in a self-storage locker. He gave the friend a key and asked her to pick up the equipment and deliver it to the defendant's house. The friend complied and removed the equipment from the locker using the key. In fact, the equipment belonged to the defendant's neighbor, whose locker key the defendant had found in the driveway. Held: The defendant is guilty as a principal to burglary.

CASE C: A city council member accepted a bribe from the defendant in exchange for his vote on the defendant's application for a zoning variance. A statute prohibits the taking of bribes by public officials. Held: The defendant is not guilty as an accomplice to the city council member's violation of the bribery statute.

CASE D: The defendant, an innkeeper, sometimes let his rooms to prostitutes whom he knew to be using the rooms to ply their trade. He charged the prostitutes the same price as other guests at his inn. Held: The defendant is not guilty as an accomplice to prostitution.

A plastic surgeon agreed to remove the fingerprints from the hands of a man whom the surgeon knew to be a safecracker. The surgeon charged his usual hourly rate for the operation. Afterward, the man burglarized a bank safe and was convicted of burglary. The surgeon has been charged with burglary.

Should he be convicted or acquitted of this crime?

A. Convicted on the authority of Case A.

B. Convicted on the authority of Case B.

C. Acquitted on the authority of Case C.

D. Acquitted on the authority of Case D.

Explanation:

Although the surgeon did not commit burglary, he can be convicted under the theory of **accomplice liability** if he:

intentionally aided or encouraged the principal (the safecracker) before or during the crime

with the **specific intent** that the **crime be completed**.

As Case D shows, mere knowledge that the principal intended to use a person's aid—particularly aid involving the sale of goods or services—to commit a crime does not show that the person *intentionally* aided the principal. But such intent can be inferred when a seller provides highly specialized goods or services (as seen in Case A), receives unusually large profits from the sale, or has an interest in the crime's success beyond a mere sale.

Here, the surgeon removed fingerprints from a known safecracker at the surgeon's usual hourly rate **(Choice D)**. But since a procedure that allows persons to avoid detection is highly specialized, the surgeon's intent to aid the safecracker in committing the burglary can be inferred—just as in Case A. Therefore, the surgeon should be convicted as an accomplice to the safecracker's burglary on this authority.

(Choice B) Case B shows that a defendant can be convicted as a principal for encouraging an innocent agent to commit a crime. An innocent agent is someone who lacked the requisite mens rea (eg, intent) because he/she was tricked or forced into committing the crime. But since the safecracker *intentionally* committed burglary, this authority does not apply here.

(Choice C) Case C shows that a person is exempt from accomplice liability when (1) the aided crime requires at least two participants but (2) the criminal statute only imposes liability on one participant. But this exception does not apply here because burglary—unlike bribery or the sale of narcotics—only requires one participant.

Educational objective:

An accomplice's intent to aid the principal can be inferred when the accomplice (1) provides highly specialized goods or services, (2) receives unusually large profits from a sale, or (3) has some greater interest in the crime's success.

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Inferred intent for accomplice liability

Unusually large profit from sale



Highly specialized goods or services



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A man decided to steal a valuable coin collection from a collector's house while the collector was away. Knowing that the house had an alarm system, the man contacted the pool cleaner who worked at the house twice a week. The man offered the pool cleaner part of the proceeds from selling the coin collection if she would disarm the alarm and leave a side door unlocked so that the man could enter the house. The pool cleaner pretended to agree but then contacted the police, who immediately arrested the man.

In a jurisdiction that follows the common law and has adopted the bilateral requirement for conspiracy, what crime has the man committed?

A. Attempted burglary.

B. Attempted larceny.

C. Conspiracy.

D. Solicitation.

Explanation:

Inchoate crimes

Attempt	Specific intent to commit crime & overt act committed in furtherance of target crime Merges with intended crime if completed
Conspiracy	Agreement entered with specific intent to commit crime & overt act committed in furtherance of agreement No merger
Solicitation	Inducing or encouraging another to commit crime with specific intent that crime be committed, but solicited party need not agree Merges with solicited crime if completed

At common law (and in most jurisdictions), **solicitation** is an inchoate offense that requires proof that the defendant:

enticed, encouraged, or commanded another to **commit a crime** (eg, burglary or larceny) with the specific intent that the person commit that crime.

Here, the man enticed the pool cleaner to help him steal the coin collection from the collector's house by offering to share proceeds from selling the collection with her. And the man specifically intended that the pool cleaner help him steal the coins by disarming the alarm and leaving a side door unlocked. Therefore, he committed solicitation.

(Choices A & B) Attempt occurs when a defendant (1) has the specific intent to commit a crime, (2) commits an act in furtherance of that crime, but (3) does not complete it. In this common law jurisdiction, an act must bring the defendant sufficiently close to completing the target offense. Therefore, mere preparation (eg, soliciting help to commit a crime) is not enough.

(Choice C) Conspiracy occurs when two or more persons enter an agreement with the specific intent to commit a crime. The common law bilateral theory of conspiracy requires proof of at least two guilty minds—the defendant and one other conspirator. Therefore, a defendant cannot be convicted when the only other conspirator feigns agreement (as seen here).

Educational objective:

Common law solicitation occurs when a defendant (1) entices, encourages, or commands another to commit a crime (2) with the specific intent that the person commit the crime.

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An undercover police detective told a local drug dealer that she wanted to buy cocaine but needed time to raise the necessary funds. The drug dealer said that he needed time to get the cocaine. They agreed to meet again in 10 days. An hour later, without a warrant, other officers forcibly entered the drug dealer's apartment and arrested him for attempted possession of a controlled substance.

If the drug dealer is prosecuted in a common law jurisdiction for attempted possession of cocaine, should he be convicted?

A. No, because he had not taken sufficient steps toward commission of the crime.

B. No, because he was illegally arrested.

C. Yes, because by objective standards the undercover detective and the drug dealer had made an agreement that the dealer would obtain cocaine.

D. Yes, because he unequivocally expressed his intent to obtain the cocaine.

Explanation:

Attempt

(inchoate crime)

	Mens rea	**Actus reus**
	(specific intent)	(overt act)
Common law	Intends to commit target offense	Dangerous proximity test – performs act sufficiently close to completing target offense
Majority & MPC		Substantial step test – engages in conduct that exceeds mere preparation & strongly corroborates criminal intent

MPC = Model Penal Code.

Criminal liability for an **attempted crime** arises when a defendant:

has the specific intent to commit a crime
performs an **overt act** in furtherance of the target crime *but*
does not complete it.
An overt act must go **beyond mere preparation** for the target crime. At **common law**, this requires the defendant to perform an act that is sufficiently close—in time and physical proximity—to completing the target crime (ie, **dangerous proximity test**). In other words, the defendant must commit an **act** that is **indispensable to the crime's success**.

Here, the drug dealer was charged with attempted possession of cocaine because he told the undercover detective that he needed time to get cocaine for her to buy. The drug dealer's statement evidences his intent to obtain cocaine. But this interaction did not amount to an overt act because it did not bring the drug dealer dangerously close to completing the crime—especially since he and the detective were not going to meet again for 10 days **(Choice D)**. Therefore, the drug dealer should not be convicted.

(Choice B) While an illegal (eg, warrantless) arrest may lead to suppression of evidence, it will not stop a criminal prosecution or serve as a defense to the charged crime. Therefore, the dealer could be convicted despite being illegally arrested.

(Choice C) Merely agreeing to commit a crime is not an overt act under either the dangerous proximity test (common law approach) or substantial step test (modern approach).

Educational objective:

Attempt requires proof that the defendant committed an overt act in furtherance of the intended crime. At common law, this requirement is met when the defendant performs an act that is dangerously close (in time and physical proximity) to completing the intended crime.

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A man was planning to propose to his girlfriend, so he took her to a jewelry store to look at engagement rings. After trying on several rings, the girlfriend selected a ring that was well outside of the man's price range. The man asked the girlfriend to wait in the car while he purchased the ring. Once she exited the jewelry store, the man pulled out a gun and robbed the store.

After the robbery, the man calmly returned to the car and sat silently as the girlfriend unwittingly drove them to their house. Shortly after their arrival, a police officer knocked on their front door. Panicked, the man told the girlfriend that he had robbed the jewelry store and begged her not to open the door. Despite his pleas, the girlfriend answered the door. The man quickly hid inside their bedroom closet. When the officer asked the girlfriend where the man was, she said that the man was headed to a neighboring town. The girlfriend provided no further information to the police.

If the woman is charged as an accessory after the fact to robbery and the above evidence is presented at trial, which verdict should the jury render?

A. Guilty, because the girlfriend aided the man by driving the getaway car.

B. Guilty, because the girlfriend told the police officer that the man was headed to a neighboring town.

C. Not guilty, because the girlfriend did not learn of the robbery until after its commission.

D. Not guilty, because the girlfriend had no duty to report the robbery to the police.

Explanation:

Parties to a crime

Modern view	**Common law**	**Definition**	**Liability**
Principal	**Principal (first degree)**	Performs criminal act with requisite intent or uses innocent agent to commit criminal act	Target & foreseeable crimes
Accomplice	**Principal (second degree)**	Present at crime & aids/encourages principal with intent that principal commit crime	
	Accessory before the fact*	*Not* present at crime but aids/encourages principal with intent that principal commit crime	
Accessory after the fact		Knows principal has committed felony & helps principal avoid arrest or conviction	Independent crime

*Common law liability requires conviction of principal.

A person is an **accessory after the fact** if he/she:

knew that the principal had committed a felony
aided or assisted the principal after the felony was committed *and*
did so for the specific purpose of helping the principal avoid apprehension or conviction.
As a result, a person who **gives false information** to the police **to prevent** the **apprehension of a felon** is an accessory after the fact. But a person who merely fails to report a crime is generally not.

Here, the girlfriend learned that the man had committed a felony after he told her that he had robbed the jewelry store. And though the girlfriend had no duty to report the robbery upon learning about it, she gave the police false information—that the man was headed to a neighboring town—to help him avoid apprehension **(Choice D)**. Therefore, the jury should find the girlfriend guilty as an accessory after the fact to robbery.

(Choice A) The girlfriend may have aided the man by driving him away from the robbery. But at that time, she did not know that the man had committed the

robbery. Therefore, this fact is insufficient to find the girlfriend guilty as an accessory after the fact.

(Choice C) The girlfriend did not learn of the robbery until after its commission. But upon learning of it, she lied to the police for the specific purpose of helping the man avoid arrest and is therefore an accessory after the fact.

Educational objective:

An accessory after the fact is someone who knows that a person committed a felony and aids that person for the purpose of helping him/her avoid apprehension or conviction. One can be convicted as an accessory after the fact for giving the police false information to prevent apprehension of a felon, but not for merely failing to report a crime.

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A man and a woman agreed that the woman would rob a bank and that the man would steal a car beforehand for the woman to use as a getaway vehicle. The man stole a car and parked it two blocks from the bank. He left the car key under the floor mat with a note saying that he wanted nothing more to do with the scheme. The next day, the woman robbed the bank and ran to the spot where the man had said he would leave the stolen car. She then escaped in the car and disappeared. She never shared any of the money with the man.

In a jurisdiction that has adopted the bilateral requirement for conspiracy, can the man properly be convicted of conspiring with the woman to rob the bank?

A. No, because the man received no benefit from the robbery.

B. No, because the man withdrew from the conspiracy.

C. Yes, because the robbery was successful due in part to the man's actions.

D. Yes, because there was an agreement to rob the bank and an overt act in furtherance of the agreement.

Explanation:

Conspiracy

	Agreement	**Overt act**
Majority view (modern & MPC)	Unilateral approach – at least one person specifically intends to enter agreement	At least one conspirator must commit overt act
Minority view (common law)	Bilateral approach – two or more persons specifically intend to enter agreement	Not required

MPC = Model Penal Code.

Conspiracy, at its core, is an **agreement** between two or more persons to commit a crime. Proof of an agreement depends on whether the prosecuting jurisdiction follows either:

the **bilateral** approach (minority rule) – requires proof that **two or more persons** entered the agreement with the *specific intent* to commit the target crime, so the defendant must be **acquitted** if other participants feigned agreement *or*

the **unilateral** approach (majority rule) – requires proof that **the defendant** entered the agreement with the *specific intent* to commit the target crime, so the defendant can be **convicted** even if other participants feigned agreement.

And most jurisdictions also require proof that at least one of the conspirators committed an overt act in furtherance of the conspiracy.

Here, there is proof of two guilty minds since the man *and* the woman agreed and specifically intended to rob a bank by having (1) the man steal a getaway vehicle and (2) the woman rob the bank. And they both committed overt acts in furtherance of their agreement when he stole the getaway car and she robbed the bank. As a result, the man can be convicted of conspiracy in this bilateral-approach jurisdiction (and any other jurisdiction).

(Choice A) A conspirator need not benefit from the target crime to be convicted of conspiracy.

(Choice B) A defendant can withdraw from a conspiracy *before* it is completed. But since the man attempted to withdraw *after* the conspiracy was completed—ie, after an agreement was formed and, if required, an overt act occurred—withdrawal is no defense.

(Choice C) The bank robbery was successful due in part to the man's overt act—stealing the getaway car. But he could be convicted even if the overt act had been completed by another conspirator or if the robbery had failed.

Educational objective:

The bilateral approach to conspiracy (minority rule) requires proof that two or more persons entered an agreement with the specific intent to commit a crime. But the unilateral approach (majority rule) only requires proof that the defendant entered an agreement with such intent.

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Four men are being tried for conspiracy to commit a series of bank robberies. Nine successful bank robberies took place during the period of the charged conspiracy. Because the robbers wore masks and gloves and stole the bank surveillance tapes, no witnesses have been able to directly identify the robbers. Some circumstantial evidence ties each of the men to the overall conspiracy.

During cross-examination, a prosecution witness testified that one of the men was in jail on other charges during the last six robberies. That man's lawyer has moved for a judgment of acquittal at the close of the government's case.

Should the motion be granted?

A. No, because a conspirator is not required to agree to all of the objectives of the conspiracy.
B. No, because a conspirator need not be present at the commission of each crime conspired upon.
C. Yes, provided that the man has complied with the rule requiring pretrial notice of alibi.
D. Yes, regardless of compliance with the alibi rule, because the government is bound by exculpatory evidence elicited during its case-in-chief.

Explanation:

A motion for a judgment of acquittal (ie, court-ordered acquittal) should be granted if the evidence presented at trial cannot establish guilt beyond a reasonable doubt. For **conspiracy**, this occurs when no rational trier of fact could find that:

two or more people entered an **agreement** with the **specific intent to commit a crime** *and* in most jurisdictions, at least one conspirator committed an **overt act** in furtherance of that agreement.

Since the crime of conspiracy is completed once an agreement and (if required) overt act occur, a **conspirator need not be present** during the commission of the agreed-upon crime(s). Therefore, the man's inability to participate in the last six robberies due to his incarceration is no defense. And since circumstantial evidence ties him to the overall conspiracy to commit a series of bank robberies, his motion for acquittal should be denied.

(Choice A) Conspirators *are* required to agree on all essential objectives of the conspiracy—ie, the target crime or crimes.

(Choice C) Under the alibi-notice rule, the government may request information about a defendant's alibi defense. The defendant must then state (1) where the defendant claims to have been during the alleged crime and (2) the names, addresses, and telephone numbers of the *defendant's* alibi witnesses. But since the *government's* witness provided the man's alibi—ie, that he was in jail—this rule is irrelevant.

(Choice D) The government is *not* bound by exculpatory evidence elicited during its case-in-chief. But even if it were, the elicited testimony was not exculpatory because it was immaterial to the man's guilt or innocence.

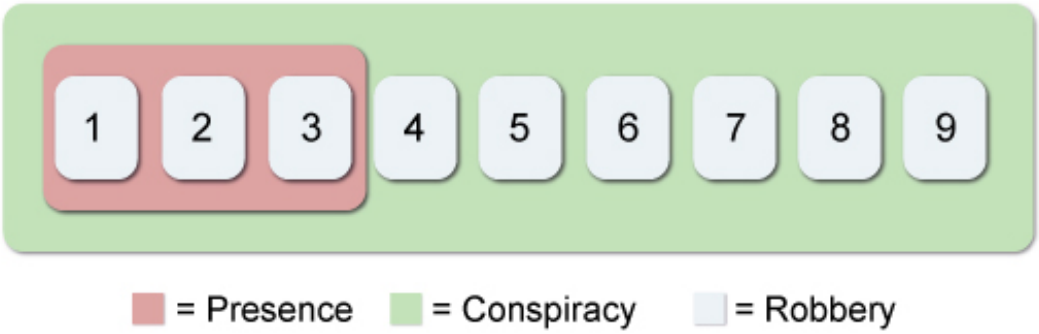
Educational objective:

A conspiracy is completed once an agreement and, if required, overt act occur. Therefore, a conspirator need not be present during the commission of the target crime(s) to be convicted of conspiracy.

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Conspiracy
(presence not required)



= Presence = Conspiracy = Robbery

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A man decided to rob a bank to pay off his crippling loan debt, so he purchased a gun, a mask, and some duffel bags. The man then told his friend that he had decided to rob a local bank and was going to scope it out the next day. As planned, the man went inside the local bank to look around. After surveilling the bank, he decided not to go through with robbing the bank because a bank in the neighboring city had fewer cameras. Unbeknownst to the man, the friend had called the police to inform them of the man's plan. As the man was walking back to his car, he was arrested by the police.

Of what crime, if any, may the man be properly convicted?

A. Attempted robbery, because he still intended to rob the neighboring bank.

B. No crime, because he voluntarily withdrew from the robbery.

C. No crime, because his conduct did not exceed mere preparation.

D. Robbery, because he committed an act in furtherance of that crime.

Explanation:

Act

(requirement for attempt crimes)

Dangerous-proximity test (common law)	Defendant performs act sufficiently close to completing crime—eg, act indispensable to crime's success, act close in time or physical proximity to crime
Substantial-step test (majority & MPC)	Defendant's conduct exceeds mere preparation & strongly corroborates defendant's criminal intent—eg, surveilling place where crime is to occur

MPC = Model Penal Code.

Attempt occurs when a defendant (1) has the specific intent to commit a crime, (2) commits an **act** in furtherance of that crime, but (3) does not complete it. Under the **substantial-step test** used in the majority of jurisdictions, an act occurs when the defendant's conduct **exceeds mere preparation** and **strongly corroborates** the defendant's **criminal intent**.

Here, the man did not actually rob a bank, so he cannot be convicted of robbery **(Choice D)**. However, he did intend to do so. And though merely purchasing supplies for a robbery would *not* constitute a substantial step, his conduct exceeded mere preparation when he surveilled the bank **(Choice C)**. Therefore, absent a defense, the man may be convicted of attempted robbery.

However, most jurisdictions recognize **abandonment** as a defense to attempt when a person **completely and voluntarily turns away** from a crime before completing it.* Abandonment is ***not* voluntary if** it is motivated by:

a desire to **avoid detection**
a decision to **delay** the commission until a **more favorable time** *or*
the selection of **another similar objective or victim**.
Here, the man decided not to rob the local bank because a bank in the neighboring city had fewer cameras. This shows that his abandonment was motivated by his desire to avoid detection and the selection of another similar objective. Therefore, abandonment is not a defense here **(Choice B)**.

*At common law, once the defendant has taken a substantial step toward the commission of the offense, the defendant may not claim abandonment due to a change of heart as a defense.

Educational objective:

Abandonment is not a defense to attempt if it was motivated by (1) a desire to avoid detection, (2) a decision to delay the commission until a more favorable time, or (3) the selection of another similar objective or victim.

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A woman wanted to kill a business competitor. She contacted a man who she believed was willing to commit murder for hire and offered him $50,000 to kill the competitor. The man agreed to do so and accepted $25,000 as a down payment. Unbeknownst to the woman, the man was an undercover police officer.

In a jurisdiction that has adopted the unilateral theory of conspiracy, is the woman guilty of conspiracy to murder the business competitor?

A. No, because it would have been impossible for the woman to kill the competitor by this method.

B. No, because the man did not intend to kill the competitor.

C. Yes, because the woman believed that she had an agreement with the man that would bring about the competitor's death.

D. Yes, because the woman took a substantial step toward bringing about the competitor's death by paying the man $25,000.

Explanation:

Conspiracy

	Agreement	**Overt act**
Majority view (modern & MPC)	Unilateral approach – at least one person specifically intends to enter agreement	At least one conspirator must commit overt act
Minority view (common law)	Bilateral approach – two or more persons specifically intend to enter agreement	Not required

MPC = Model Penal Code.

Conspiracy occurs when:

two or more persons enter an agreement with the specific intent to commit a crime *and* in most jurisdictions, an overt act is committed in furtherance of that agreement.
The common law **bilateral theory** of conspiracy required proof of at least **two guilty minds**, so a defendant could not be convicted if the other conspirators had feigned agreement. But most jurisdictions now follow the **unilateral theory** of conspiracy, where only **one guilty mind** is required. That means a defendant can be convicted even if the other conspirators feigned agreement to commit the crime.

Here, the woman hired a man to kill her business competitor (agreement and intent) and gave him a $25,000 down payment (overt act). Therefore, the woman is guilty under the unilateral theory of conspiracy even though the man (an undercover police officer) did not intend to commit the crime. But had this jurisdiction followed the bilateral theory of conspiracy, the man's feigned agreement would have absolved the woman of this crime **(Choice B)**.

(Choice A) It would have been impossible for the woman to kill the competitor by this method since the man was an undercover police officer. But the woman is still guilty since factual impossibility is no defense to conspiracy.

(Choice D) Most jurisdictions require proof of an overt act to convict a defendant of attempt or conspiracy. While attempt requires proof of a substantial step—ie, conduct strongly corroborating criminal intent (more than mere preparation)—conspiracy only requires discernible evidence that the conspiracy is at work (including acts of mere preparation). Here, the woman's $25,000 down payment is an overt act under both standards. But it would only support her conviction if an overt act is an element of conspiracy in this jurisdiction.

Educational objective:

The unilateral theory of conspiracy requires only one guilty mind, so a defendant is guilty even if the other conspirators feigned agreement to commit the crime. But since the bilateral theory requires two guilty minds, a defendant would not be guilty if the other conspirators feigned agreement.

References

16 Am. Jur. 2d Conspiracy § 16 (2019) (unilateral theory of conspiracy).

Model Penal Code § 5.03 (Am. Law Inst. 2019) (criminal conspiracy).

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A jurisdiction has the following decisional law on questions of principal and accomplice liability:

CASE A: The defendant, a hardware store owner, sold several customers a device which detects police radar and enables speeders to avoid detection. When one of the devices broke down and the speeder was arrested, he confessed that he often sped, secure in the knowledge that the device would warn him of police radar in the vicinity. Held: The defendant is guilty as an accomplice to speeding.

CASE B: The defendant told a friend that the defendant had stored some stereo equipment in a self-storage locker. He gave the friend a key and asked her to pick up the equipment and deliver it to the defendant's house. The friend complied and removed the equipment from the locker using the key. In fact, the equipment belonged to the defendant's neighbor, whose locker key the defendant had found in the driveway. Held: The defendant is guilty as a principal to burglary.

CASE C: A city council member accepted a bribe from the defendant in exchange for his vote on the defendant's application for a zoning variance. A statute prohibits the taking of bribes by public officials. Held: The defendant is not guilty as an accomplice to the city council member's violation of the bribery statute.

CASE D: The defendant, an innkeeper, sometimes lent his rooms to prostitutes whom he knew to be using the rooms to ply their trade. He charged the prostitutes the same price as other guests at his inn. Held: The defendant is not guilty as an accomplice to prostitution.

In this jurisdiction, conviction for statutory rape requires proof of the defendant's knowledge that the victim is underage. A high school student, who knew that a girl was underage, encouraged his friend, who was unaware of the girl's age, to have sex with the girl. The student has been charged with statutory rape.

Should the student be convicted or acquitted of this crime?

A. Convicted on the authority of Case A.

B. Convicted on the authority of Case B.

C. Acquitted on the authority of Case C.

D. Acquitted on the authority of Case D.

Explanation:

Parties to a crime

Modern view	**Common law**	**Definition**	**Liability**
Principal	**Principal (first degree)**	Performs criminal act with requisite intent or uses innocent agent to commit criminal act	Target & foreseeable crimes
Accomplice	**Principal (second degree)**	Present at crime & aids/encourages principal with intent that principal commit crime	
	Accessory before the fact*	*Not* present at crime but aids/encourages principal with intent that principal commit crime	
Accessory after the fact		Knows principal has committed felony & helps principal avoid arrest or conviction	Independent crime

*Common law liability requires conviction of principal.

In this jurisdiction, statutory rape occurs when a person has sex with a victim (actus reus) with knowledge that the victim is underage (mens rea). And a conviction can stem from either:

principal liability – if the actus reus was committed by the defendant or, as evidenced in Case B, another who acted on the defendant's behalf but ***lacked* the requisite mens rea** (ie, an **innocent agent**) *or*

accomplice liability – if the defendant intentionally aided or encouraged another who ***had* the requisite mens rea** (ie, the principal) before or during a crime with the intent that the crime be completed.

Here, the student had the requisite mens rea since he knew that the girl was underage. But like the defendant in Case B, the student did not commit the actus reus—he encouraged his friend to do so. And since the friend *lacked* the mens rea necessary to commit statutory rape because he did not know that the girl was underage, he was an innocent agent (like the friend in Case B). Therefore, the student should be convicted of statutory rape as a principal—not an accomplice.

(Choices A, C, & D) Cases A, C, and D concern accomplice liability, which subjects the principal and accomplice to *equal* liability for a crime. But this theory of liability does not apply here because the friend lacked the necessary mens rea for statutory rape in this jurisdiction—ie, knowledge that the victim was underage. Therefore, the student cannot be liable as an accomplice to the friend's innocent act.

Educational objective:

Principal liability is imposed when (1) the defendant possessed the requisite mens rea and (2) the actus reus was committed by the defendant or the defendant's innocent agent—ie, a person who lacked the mens rea required for the crime.

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A landlord decided to destroy his dilapidated building in order to collect the insurance money. He hired a man to burn down the building. The man broke into the building and carefully searched it to make sure no one was inside. The man failed, however, to see a person experiencing homelessness asleep in an office closet. The man started a fire. The building was destroyed, and the person experiencing homelessness died from burns a week later. Two days after the fire, the landlord filed an insurance claim in which he stated that he had no information about the cause of the fire.

The landlord is charged with felony murder of the person experiencing homelessness.

If the landlord is found guilty, it is because the death of the person experiencing homelessness occurred in connection with which felony?

A. Arson.

B. Burglary.

C. Conspiracy.

D. Fraud.

Explanation:

Accomplice liability arises when a person intentionally aids, encourages, or solicits another (principal) to commit a crime with the intent that the crime be completed. An accomplice is liable to the same extent as the principal for the **encouraged crime** and any crimes that occur as a **natural and probable** (ie, foreseeable) **consequence of that crime**.

Here, the landlord became an accomplice when he hired the man to burn down his building (ie, solicited arson). The landlord did not encourage the commission of felony murder—the killing of another during the commission, or attempted commission, of an inherently dangerous felony like arson. But he still could be found guilty of felony murder since the person experiencing homelessness died from burns caused by that fire (foreseeable consequence of arson).

(Choice B) Burglary is an inherently dangerous felony that requires proof of a (1) trespassory entering of another's property (2) with the specific intent to commit a crime therein. Although the man intended to commit arson in the landlord's building, he did not trespass because the landlord consented to his entry (no burglary).

(Choice C) Criminal conspiracy occurs when (1) two or more persons enter an agreement with the specific intent to commit a crime and (2) one of the conspirators commits an overt act in furtherance of that agreement. Although the landlord and the man conspired to commit arson, the felony murder conviction must be based on an inherently dangerous felony—not their conspiracy.

(Choice D) Fraud requires proof that the defendant made a false representation with the specific intent to permanently obtain the victim's property. But since fraud is not an inherently dangerous felony, it can never be the basis for felony murder.

Educational objective:

An accomplice is someone who intentionally aids, encourages, or solicits another to commit a crime with the intent that the crime be completed. As a result, an accomplice is liable for the encouraged crime and any crimes that occur as a natural and probable consequence of that crime.

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Accomplice liability
(accomplice liable for encouraged and foreseeable crimes)



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A man was angry at a coworker who had received a promotion. The man believed that the coworker had taken credit for the man's work and had bad-mouthed him to their boss. One day, as the man was leaving the company parking lot in his car, he saw the coworker walking through the lot. On a sudden impulse, the man pushed the accelerator pedal hard and veered toward the coworker with the intention of scaring him. The coworker tried to jump out of the way but slipped and fell and was run over. Although the coworker suffered life-threatening injuries, he survived.

In a jurisdiction that follows the common law of homicide, could the man properly be convicted of attempted murder?

A. No, because the coworker's slip and fall broke the chain of proximate causation.

B. No, because the man lacked the requisite intent.

C. Yes, because the coworker suffered life-threatening injuries.

D. Yes, because the man acted with reckless disregard for human life.

Explanation:

Attempt is an inchoate crime that requires proof that a defendant:

had the **specific intent** to **commit a crime** (eg, murder)
performed an overt act in furtherance of the intended crime *but*
did not complete it.

Therefore, **attempted murder** requires proof that the defendant **specifically intended to kill** the victim. This is true even though a *completed* murder can be established without showing an intent to kill—ie, when there is some other type of malice aforethought.

Here, the man cannot be convicted of attempted murder because he only intended to scare the coworker—not kill him. But had the coworker died, the man could have been convicted of murder since he acted with reckless disregard for human life (ie, malice aforethought) when he accelerated toward the coworker **(Choice D)**.

(Choice A) Causation is relevant to crimes that require the occurrence of a particular result—eg, murder requires that the defendant cause the victim's death. But causation is irrelevant to attempt (and other inchoate crimes) since the intended result need not be completed. Therefore, the man is not guilty of attempted murder regardless of whether the coworker's slip and fall broke the chain of causation.

(Choice C) Although the coworker suffered life-threatening injuries, the man cannot be convicted of attempted murder since he lacked the specific intent to kill.

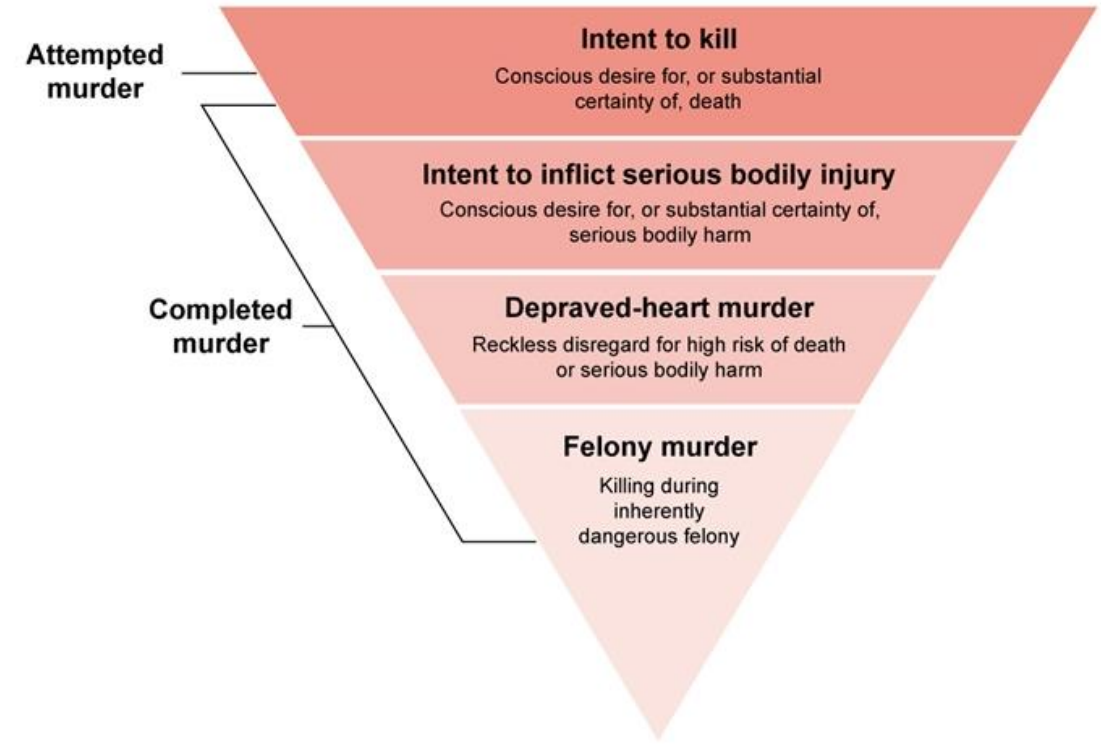
Educational objective:

Attempt is a specific intent crime. Therefore, attempted murder requires proof that the defendant acted with the intent to kill—no other form of malice aforethought will suffice.

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Malice aforethought
(attempted v. completed murder)



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A bank teller was fired by the president of the bank. The teller decided to take revenge against the president but decided against attempting it personally because he knew the president was protected around the clock by bank security guards. The teller also knew that his cousin had a violent temper and was very jealous. The teller falsely told his cousin that the cousin's wife was having an affair with the president. Enraged, the cousin said, "What am I going to do?" The teller said, "If it were my wife, I'd just march into his office and blow his brains out."

The cousin grabbed a revolver and rushed to the bank. He walked into the bank, carrying the gun in his hand. One of the security guards, believing a holdup was about to occur, shot and killed the cousin.

If the teller is charged with attempted murder of the president, which verdict should be rendered?

A. Guilty, because he intended to kill the president and used the cousin to carry out his plan.

B. Guilty, because he was extremely reckless as to the president.

C. Not guilty, because the cousin, if successful, would be guilty of no more than manslaughter and an accomplice cannot be guilty of a higher crime than the principal.

D. Not guilty, because the president was never in imminent danger of being killed.

Explanation:

Attempt is an inchoate crime that requires proof of three elements:

The defendant had the **specific intent** to commit a crime.
The **defendant—or his/her agent**—performed an **act** in furtherance of that crime.
The target crime was **not completed**.
Proof of specific intent is *always* required for attempt—even when proof of a lesser mental state would be sufficient for the target crime. Therefore, a defendant is only guilty of attempted murder if he/she specifically intended to kill the victim. No other type of malice aforethought will suffice **(Choice B)**.

Here, the teller intended to have the bank president killed. And the teller committed an act in furtherance of this crime—and used the cousin to carry out his plan—when the teller lied to the cousin about his wife's affair and urged him to shoot the president. But since the cousin was shot by a security guard, the president's murder was never completed. Therefore, the teller is guilty of attempted murder.

(Choice C) Had the intended murder been successful, it would *not* have been reduced to voluntary manslaughter since there was no adequate provocation or other mitigating factor. And though an accomplice (person encouraging crime) cannot be guilty of a *higher* crime than the principal (person committing criminal act), they are *equally* liable. Therefore, the teller (accomplice) and the cousin (principal) are equally guilty of attempted murder.

(Choice D) The lack of imminent danger would only negate the act requirement in the few jurisdictions that use the dangerous proximity test. Under this test, an act occurs when the defendant is so close to completing the target crime that it is essentially unstoppable. But most jurisdictions use the substantial step test, which only requires that an act exceed mere preparation and strongly corroborate the defendant's criminal intent.

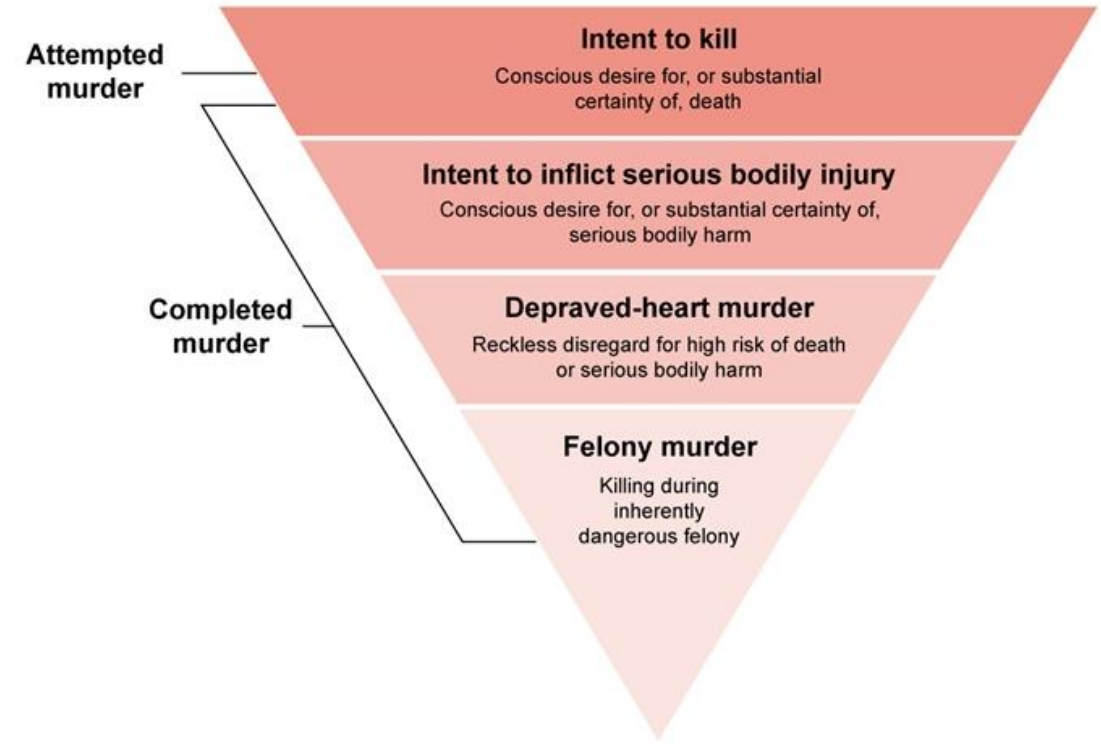
Educational objective:

Attempt always requires (1) the specific intent to commit a crime and (2) an act by the defendant or his/her agent in furtherance of that crime.

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Malice aforethought
(attempted v. completed murder)



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A woman who wanted to rob a bank offered to pay her friend one-third of the money she stole if the friend would drive the getaway car to be used in the robbery. The friend agreed but made the woman promise not to hurt anyone during the robbery.

The woman then drove to a sporting goods store, where she explained to the store owner that she needed a small firearm for use in a bank robbery. The store owner responded that he would charge extra because the woman was so unwise as to confide her unlawful plans for using the weapon, and he sold her a handgun at four times the regular price.

During the robbery, the woman used the gun to threaten a bank teller, who handed over money. The gun discharged by accident and killed a bank customer. The friend drove the woman away from the bank.

In addition to the woman, who could properly be convicted of murder in the death of the customer at common law?

A. Both the friend and the store owner.

B. Neither the friend nor the store owner.

C. Only the friend.

D. Only the store owner.

Explanation:

Parties to a crime

Modern view	**Common law**	**Definition**	**Liability**
Principal	**Principal (first degree)**	Performs criminal act with requisite intent or uses innocent agent to commit criminal act	Target & foreseeable crimes
Accomplice	**Principal (second degree)**	Present at crime & aids/encourages principal with intent that principal commit crime	
	Accessory before the fact*	*Not* present at crime but aids/encourages principal with intent that principal commit crime	
Accessory after the fact		Knows principal has committed felony & helps principal avoid arrest or conviction	Independent crime

*Common law liability requires conviction of principal.

Accomplice liability extends to anyone who:

intentionally aids or encourages a principal before or during the commission of a crime with the specific intent that the **principal commit the encouraged crime**.

Common law jurisdictions (as seen here) divide accomplices into two categories—those who were **present** for the crime (**principals in the second degree**) and those who were **not** (**accessories before the fact**). But accomplices under either category are liable to the same extent as the principal for the **encouraged crime** and any crimes that occurred as a **natural and probable** (i.e., foreseeable) **consequence** of that crime.

Here, the woman (principal in the first degree) can be convicted of murder because she killed a customer in the course of a bank robbery. The friend intentionally aided in that robbery by driving the woman away from the bank after the robbery was completed—as they previously agreed. And since the killing was a foreseeable consequence of the robbery, the friend (who was at the crime) can be convicted of murder as a principal in the second degree **(Choices B & D)**.

The store owner's intent to aid in the woman's robbery cannot be inferred from his decision to sell her a gun after learning of her criminal plan. But it can be inferred from his sale of the gun at four times the regular price since the sale shows that the store owner has an interest in the outcome of the criminal venture. And since it was foreseeable that the gun would be used to kill someone during the robbery, the store owner (who was not at the crime) can be convicted of murder as an accessory before the fact **(Choice C)**.

Educational objective:

Principals in the second degree (accomplices at the crime) and accessories before the fact (accomplices *not* at the crime) are liable at common law for (1) any crimes that they encouraged a principal in the first degree to commit and (2) any crimes that occurred as a foreseeable consequence of the encouraged crime.

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A man wanted to kill his coworker because the man believed the coworker was having an affair with the man's wife. Early one morning, armed with a pistol, the man crouched behind some bushes on a park hillside overlooking a path upon which the coworker frequently jogged. On this morning, however, the man saw the coworker jogging on another path about a half mile away. Nonetheless, the man fired five shots at the coworker. None of the five shots came anywhere close to the coworker as he was well out of the range of the pistol the man was using.

At the man's trial, what verdict should the jury return?

A. Guilty of attempted murder, because a reasonable person would not have been aware of the limited range of the pistol.

B. Guilty of attempted murder, because the man was not aware of the limited range of his pistol.

C. Not guilty of attempted murder, but guilty of assault.

D. Not guilty of attempted murder or any lesser included offense, because it was impossible for the man to have killed his coworker.

Explanation:

A defendant is guilty of **attempt** if he/she:

had the **specific intent to commit a crime** (eg, murder)
performed an **act** in furtherance of the target crime *but*
did not complete it.
In most jurisdictions, an act is a **substantial step** taken toward the completion of the target crime that exceeds mere preparation and strongly corroborates criminal intent. Once this occurs, the defendant can be convicted of attempt **even if** it was **factually impossible** to complete the target crime.

Here, the man wanted to kill his coworker (intent to commit murder) and fired five shots at him with a pistol. None of the shots came anywhere close to the coworker because he was well out of the pistol's range (factual impossibility). But since the man was not aware of the pistol's limited range, he acted with the intent to kill the coworker—and took a substantial step toward murder by pulling the trigger (overt act). Therefore, the jury should find him guilty of attempted murder.

(Choice A) There is no reasonable person standard for attempt. Therefore, the man can be guilty of attempt even if a reasonable person would not have been aware of the pistol's limited range.

(Choice C) Assault is (1) an attempted battery *or* (2) conduct that intentionally puts the victim in reasonable apprehension of imminent bodily harm. Here, the man may have committed assault when he shot at the coworker. But since the man intended to *kill* his coworker, the jury should find the man guilty of the greater offense of attempted murder.

(Choice D) It was impossible for the man to kill his coworker under the circumstances since the coworker was well out of the pistol's range. But factual impossibility is *never* a defense to attempt.

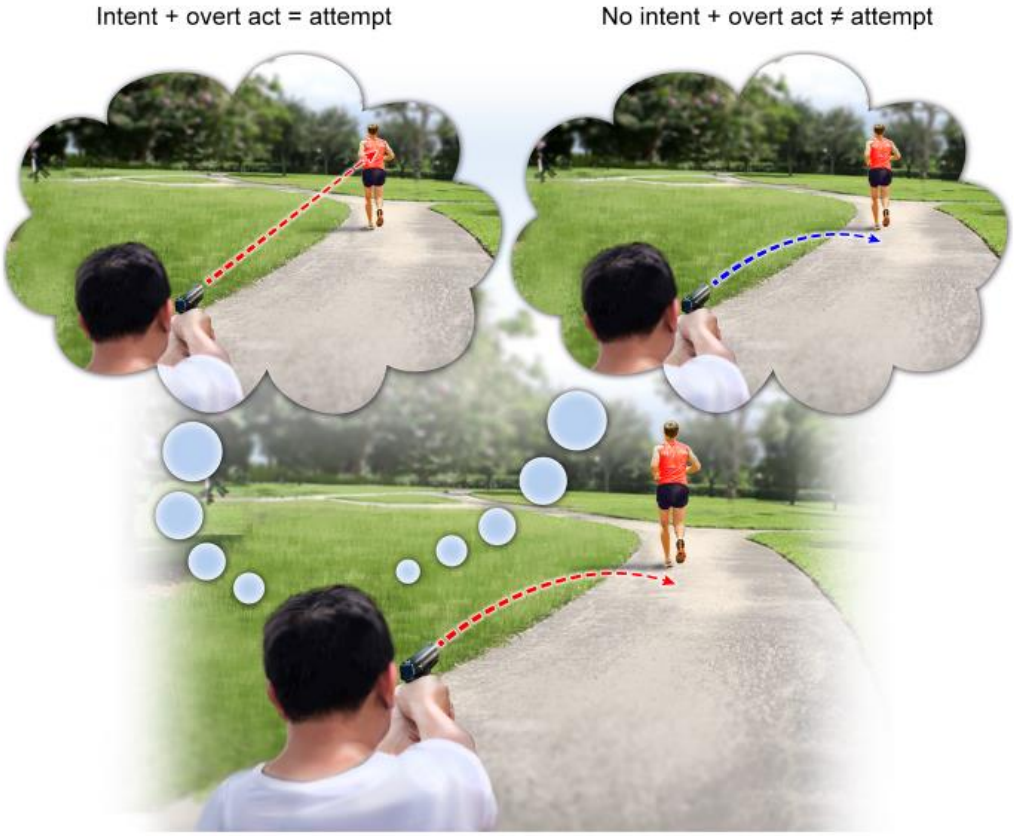
Educational objective:

Attempt requires proof that the defendant specifically intended to commit a crime and performed an act (ie, substantial step) in furtherance of that crime. A defendant can be convicted even if it was factually impossible for the target crime to be committed.

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Attempted murder



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A man who owned a failing construction business lacked the money and supplies necessary to complete a major industrial project. In order to acquire supplies for the major project, the man planned to take supplies that another client had purchased and delivered for the construction of an apartment complex. The man shared his plan with a friend, an employee of the construction business, and asked the friend to help him retrieve the supplies from the business's storage facility. The friend knew that the supplies belonged to the other client but nevertheless agreed to help the man. Unbeknownst to the man and the friend, the apartment project had recently been canceled and the supplies had been returned to the client.

The next day, the friend went to the storage facility to get the supplies. The friend searched the facility for only a few minutes when he had a change of heart and left. However, his movement around the facility had triggered a silent alarm that turned on the surveillance cameras and alerted the police.

The friend and the man were later arrested, charged with conspiracy to commit larceny, and tried separately. The man was acquitted based on a lack of evidence, but the friend's trial is still pending.

In a jurisdiction that follows the modern-prevailing approach for conspiracy, is the friend likely guilty?

A. No, because the friend's subsequent withdrawal from the conspiracy prevented its success.

B. No, because the man was acquitted due to insufficient evidence.

C. Yes, because impossibility is not a defense to conspiracy.

D. Yes, because the friend agreed to take the supplies and committed an overt act.

Explanation:

Conspiracy

	Agreement	**Overt act**
Majority view (modern & MPC)	Unilateral approach – at least one person specifically intends to enter agreement	At least one conspirator must commit overt act
Minority view (common law)	Bilateral approach – two or more persons specifically intend to enter agreement	Not required

MPC = Model Penal Code.

In most jurisdictions (including this one) and under the MPC, **conspiracy** requires proof of the following:

two or more persons entered an agreement with the specific intent to accomplish an unlawful purpose (e.g., larceny) *and*

at least one conspirator committed an overt act in furtherance of the agreement.

And since these jurisdictions follow the **unilateral approach**, a conspiracy may be formed when **only one party actually agrees** and, for example, the other party merely feigns agreement.

Here, the friend entered an agreement to commit larceny when he agreed to help the man take another client's supplies and use them for a different project. The friend then committed an overt act in furtherance of this agreement when he went to the storage facility to retrieve the supplies. As a result, the friend is likely guilty of conspiracy to commit larceny.

(Choice A) Under the MPC and the minority view, subsequent withdrawal is a defense to conspiracy if the defendant voluntary acts to "thwart the success" of the conspiracy. But in most jurisdictions, withdrawal is a defense only if it occurs *before* an overt act has been committed. Here, the friend committed an overt act when he went to the storage facility, so his subsequent change of heart is no defense.

(Choice B) The fact that the man was acquitted of conspiracy in a previous trial does not affect the friend's guilt because unilateral-approach jurisdictions require proof of only *one* guilty mind. Therefore, a jury is not precluded from finding the friend guilty of conspiracy to commit larceny in his separate trial.

(Choices C) Impossibility *is* a defense to conspiracy if the object of the agreement is not a crime. But it is *not* a defense when, as here, an unknown condition (e.g., return of the supplies) prevents the completion of the intended crime.

Educational objective:

Under the modern-prevailing view, conspiracy requires proof that (1) one party actually entered an agreement with the specific intent to accomplish an unlawful purpose and (2) at least one conspirator committed an overt act in furtherance of the agreement.

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